Palo Alto's Development Regulations Compared with Nearby Cities

Provisions of the Palo Alto Municipal Code that bear on construction and development and differ materially from those of neighboring jurisdictions

Technical reference · Codes current as of early October 2026

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Comparison jurisdictions: San José, Santa Clara, Sunnyvale, Mountain View, Los Altos, Cupertino, Menlo Park and Redwood City, with Santa Clara County, San Mateo County and California state law as secondary references.

This report describes regulatory differences and their likely direction and size of effect on development. It does not recommend changes to any regulation.

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Summary

This report identifies 84 provisions, or groups of related provisions, in which Palo Alto's rules on development differ materially from those of the eight comparison cities. The table below counts them by the direction of their effect on development in Palo Alto and by salience. The Index of differences (page 3) lists each one, with a link to its entry. The counts give only a rough picture: entries differ widely in scope, and one high-salience difference can matter more to a given project than several low-salience ones.

	High	Moderate	Low	Total
More restrictive	4	22	15	41
Mixed	4	16	6	26
Unclear	2	4	3	9
More permissive	1	2	5	8
Total	11	44	29	**84**

High-salience differences. Eleven differences were rated high salience:

- *Single-family houses.* Palo Alto allows less floor area on a typical 6,000 square foot lot than Cupertino, Menlo Park, Mountain View or Sunnyvale (1.1). New second stories must meet objective two-story standards or pass discretionary Individual Review (1.2).
- *Multifamily and mixed-use housing.* Base height, density and floor area limits sit at or near the low end of the range in multifamily districts (3.1) and along commercial corridors (3.2). Palo Alto's local incentive programs let qualifying projects reach envelopes comparable to other cities' and are rated more permissive (4.1). Multifamily parking minimums are higher than five cities' for larger units and lower than Sunnyvale's and Mountain View's; they do not apply near major transit (7.1).
- *Inclusionary housing.* Ownership requirements are similar to the other cities'. Rental projects pay a fee instead of providing units on site, which the other cities generally require for at least some rental projects (5.1).
- *Office and R&D.* Palo Alto caps new office and R&D floor area annually in its commercial core and citywide. No other city's code has a citywide or annual cap; Cupertino allocates office floor area through its General Plan instead (6.1).
- *Green building.* Palo Alto alone makes the optional CALGreen Tier 1 and Tier 2 measures mandatory for new homes and larger remodels (12.1).
- *Impact fees.* Park fees and total city impact fees on an illustrative 100-unit apartment building fall in the middle of the range. A house that replaces an existing house pays none (16.2, 16.1).

Rules with no counterpart elsewhere. Several Palo Alto rules were not found, in comparable form, in any of the other eight cities' codes:

- the office caps above;
- a citywide bar on replacing existing ground-floor retail with other uses (6.3);
- seasonal and duration limits on pumping groundwater for basements (14.1);
- architectural review of every sign (6.4);

- a development moratorium after some tree removals (10.1);
- a maximum lot size for new single-family lots, alongside an unconditional ban on flag lots (15.1).

More permissive rules. Eight differences were rated more permissive:

- the local housing incentive programs (4.1);
- staff-level decisions on conditional use permits (8.5);
- looser rules for adding to houses that do not meet current standards (1.5);
- smaller required commercial space in housing projects (3.5);
- a report-only seismic program (11.4);
- home businesses in accessory buildings (18.4);
- no construction tax (17.3);
- no local solar mandate beyond state law (13.5).

Fees. For housing, Palo Alto's fees differ more in composition than in total. Palo Alto:

- charges four facility fees that most other cities do not (16.3);
- has the highest housing impact fee on office space among the cities with confirmed rates (5.2);
- has the highest solar and battery permit fees that were located (13.1, 13.2);
- levies a transfer tax that, with the county tax, totals four times that in six of the cities, but less than San José's and Mountain View's on high-value sales (17.4).

State law. For many housing projects, state law sets or overrides the rule that applies. Examples include the Density Bonus Law, the bar on parking minimums near transit, SB 9, the ADU statutes and SB 79. The entries say where this narrows a difference's reach. AB 130 (2025) limits new local amendments to residential building standards until 2031, which affects several energy and building-code entries. Appendix D lists the state laws cited.

Gaps. Some comparisons are incomplete. Several cities place key rules in specific or precise plans, and some city documents could not be obtained. Entries mark such cells "Not located." Appendix B records how each development-related chapter of the Palo Alto code was handled.

Index of differences

Every difference identified in this report, grouped by topic in the order of the sections that follow. Each number and title links to the full entry. Direction, salience and position are explained under "How to read an entry" (page 9).

No.	Difference	Direction	Salience	Palo Alto's position
Single-family and low-density residential zoning				
1.1	Floor area, lot coverage and maximum house size in the main single-family district	More restrictive	●●● High	Lowest cap on a 6,000 sq ft lot except where no cap exists
1.2	Review of two-story houses and second-story additions	More restrictive	●●● High	Objective-standards-or-review path shared with Cupertino; Cupertino triggers narrower
1.3	Height, daylight planes and setbacks for single-family houses	Mixed	●●○ Moderate	Mid-range height; contextual front setback is unique
1.4	Single-story overlay districts	More restrictive	●○○ Low	Strictest approval threshold of the four cities with an overlay
1.5	Additions and rebuilds of houses that do not meet current standards	More permissive	●○○ Low	Looser than Menlo Park, Redwood City; like Cupertino, Los Altos
Accessory dwelling units, SB 9 and small-lot subdivisions				
2.1	Separate sale of ADUs as condominiums (AB 1033)	More restrictive	●○○ Low	Not opted in; of the 8 others, only San José has
2.2	Size, height and design standards for detached and attached accessory dwelling units	More restrictive	●○○ Low	Near the state floor; size cap mid-range, height below 5 of 7 others
2.3	Urban lot split review and notice requirements	More restrictive	●○○ Low	Broadest notice of the nine; Cupertino notifies adjacent owners only
Multifamily and mixed-use residential standards				
3.1	Height, density and floor area limits in multifamily residential districts	Mixed	●●● High	Mid-range height and density; second-lowest FAR among cities setting one
3.2	Height, floor area and density for housing in commercial and mixed-use districts	Mixed	●●● High	Among the lowest base heights and FARs on corridors; incentives reach other cities' range
3.3	Bird-friendly glazing standards for new buildings	More restrictive	●●○ Moderate	Among the broadest of the nine; Cupertino comparable in scope
3.4	Height transitions and daylight planes where multifamily and mixed-use sites adjoin lower-density housing	More restrictive	●●○ Moderate	Only 150-foot height band located among the eight cities
3.5	Ground-floor commercial space required in housing projects	More permissive	●●○ Moderate	Smaller required commercial area than Sunnyvale; similar to Santa Clara
3.6	Usable open space required per dwelling unit	Unclear	●○○ Low	Mid-range; below Sunnyvale and Santa Clara, above Redwood City
Housing incentives and streamlined approvals				

No.	Difference	Direction	Salience	Palo Alto's position
4.1	Local housing incentive programs as an alternative to state density bonus	More permissive	●●● High	Broadest local alternative to density bonus of the nine cities
4.2	Implementation of SB 79 transit-oriented upzoning	More restrictive	●●○ Moderate	Local standards set at half of state capacity; others use exclusions
4.3	By-right sites and ministerial or streamlined housing approval	Mixed	●●○ Moderate	Mid-range; fewer local ministerial tracks than San José, more than Los Altos
Inclusionary housing and redevelopment of existing housing				
5.1	Inclusionary affordable-unit requirements for ownership and rental housing	Mixed	●●● High	Ownership similar to peers; rental is fee-only, unlike most peers
5.2	Housing impact (linkage) fees on commercial and rental residential development	More restrictive	●●○ Moderate	Highest office/R&D rate of 7 cities with confirmed rates
5.3	Tenant relocation payments when rental housing is demolished or redeveloped	Mixed	●●○ Moderate	Fixed payment for all incomes; fewer process steps than Mountain View
5.4	Limits on converting rental apartments to condominiums	More restrictive	●○○ Low	Vacancy gate like Los Altos, Cupertino; stricter than Menlo Park
Commercial, office and R&D development				
6.1	Annual and citywide caps on new office and R&D floor area	More restrictive	●●● High	Only code with citywide and annual caps; Cupertino allocates in General Plan
6.2	Floor area ratio, height and size limits in commercial, office and R&D districts	More restrictive	●●○ Moderate	Lower than Santa Clara and Menlo Park bonus tiers; similar to Mountain View
6.3	Ground-floor retail preservation, retail-only combining districts and formula retail	More restrictive	●●○ Moderate	Broadest retail-conversion ban of the nine; others use narrower district rules
6.4	Architectural review for every sign, including tenant signs	More restrictive	●○○ Low	Only one of nine placing all signs under design review
Parking, loading and transportation demand management				
7.1	Off-street parking minimums for multifamily housing	Mixed	●●● High	Higher than 5 of 8 for 2-bedroom units; below Sunnyvale and Mountain View
7.2	Off-street parking minimums for office, R&D, retail and restaurants	More restrictive	●●○ Moderate	Highest office ratio outside two districts; among highest for retail and restaurants
7.3	Transportation demand management plan triggers and enforcement	Mixed	●●○ Moderate	Mid-range; lower trigger than most, no fixed targets or fee in code
7.4	Administrative parking reductions and their caps	Mixed	●○○ Low	Only city with a fixed percentage cap and 10-space floor

No.	Difference	Direction	Salience	Palo Alto's position
7.5	Garage and covered-space requirements for single-family houses	Mixed	●○○ Low	Mid-range; fewer spaces than Sunnyvale and Cupertino, fewer covered than Santa Clara
7.6	In-lieu parking fee for downtown nonresidential development	Mixed	●○○ Low	One of two cities with a downtown in-lieu parking fee
7.7	Tandem spaces and mechanical lifts for required parking	Mixed	●○○ Low	Between Mountain View (no tandem) and Los Altos, Cupertino, Redwood City (no cap)
Design review and permit procedures				
8.1	Expiration and extension of planning approvals	More restrictive	●●○ Moderate	Shortest initial term; matched by Menlo Park and Cupertino's minor permits
8.2	Architectural review triggers and decision-making body	Mixed	●●○ Moderate	Board hearing for more project types than 6 of 8; single-family exempt
8.3	Notice radius, appeal period and appeal path	Mixed	●●○ Moderate	Second-widest notice radius; shortest appeal chain for ARB projects
8.4	Codified objective design standards for housing	Unclear	●●○ Moderate	Codified in the zoning code; others mostly outside their codes
8.5	Decision-maker for conditional use permits and variances	More permissive	●○○ Low	CUPs staff-level, unlike 4 of 8; variances typical
Historic preservation				
9.1	Exterior alteration and demolition review of historic buildings	Mixed	●●○ Moderate	Advisory for houses, 60-day to 1-year delay for demolition; strictest downtown
9.2	Floor area, exception and tax incentives for historic properties	Mixed	●●○ Moderate	Strong floor-area incentives for houses and downtown; no Mills Act program in code
9.3	Which properties are subject to historic review	Mixed	●●○ Moderate	Narrow code trigger, broad CEQA trigger; middle of the nine cities
Trees, landscaping and creek setbacks				
10.1	Notice, appeals and development moratorium for tree removal	More restrictive	●●○ Moderate	Only one of nine with a moratorium after a permitted removal
10.2	Tree replacement requirements and in-lieu fees	More restrictive	●●○ Moderate	Higher fixed minimum than cities that state a ratio
10.3	When a protected tree may be removed for development	More restrictive	●●○ Moderate	Narrowest development-removal tests of the nine cities
10.4	Which private trees are protected	Mixed	●●○ Moderate	General threshold higher than 4 of 8; native-species thresholds mid-range
10.5	Setbacks and vegetation rules along creeks	More restrictive	●○○ Low	Redwood City alone has a comparable general setback; Cupertino's hillside wider

No.	Difference	Direction	Salience	Palo Alto's position
10.6	Tree protection zones, arborist reports and securities during construction	More restrictive	●○○ Low	Formula-based zone; arborist chosen from city list
Building and fire code amendments				
11.1	Automatic sprinkler triggers for additions, basements and remodels of existing buildings	More restrictive	●●○ Moderate	Stricter than San José, Cupertino and Mountain View; Los Altos stricter still
11.2	Building permit expiration, extension limits and expired-permit penalties	More restrictive	●●○ Moderate	Only city with a 48-month permit term; shares penalty scale with Los Altos
11.3	Sprinkler requirement for small new nonresidential buildings	More restrictive	●○○ Low	Lowest size threshold of the cities that set one (350 sq ft)
11.4	Seismic hazard identification and retrofit programs for existing buildings	More permissive	●○○ Low	Report-only program; San José alone mandates retrofit
Energy, electrification and EV charging				
12.1	Mandatory CALGreen tiers, embodied carbon and certification requirements	More restrictive	●●● High	Unique to Palo Alto in scope; Mountain View, San José and Cupertino use certification
12.2	Energy and electrification requirements for existing single-family homes	More restrictive	●●○ Moderate	Broadest of the nine; Menlo Park's remodel menu is the closest
12.3	Electric vehicle charging requirements for new construction	Mixed	●●○ Moderate	Mid-range; below Sunnyvale and Mountain View for multifamily
12.4	Electric-readiness wiring and space for gas appliances	More restrictive	●○○ Low	Among the broadest; Mountain View's also covers new and existing buildings
Solar, storage and interconnection				
13.1	Building permit fees for residential rooftop solar	More restrictive	●●○ Moderate	Highest located fee; about 3 to 5 times the others
13.2	Permitting and fees for residential battery storage systems	More restrictive	●●○ Moderate	Highest located fee; no automated path for stand-alone batteries
13.3	Automated permitting, review deadlines and inspection for residential rooftop solar	Mixed	●●○ Moderate	Listed on SolarAPP+ with storage, but no panel upgrades; no code deadline
13.4	Compensation for exported solar energy and utility interconnection	Unclear	●●○ Moderate	Flat CPAU export rate; PG&E cities use hourly CPUC-set values
13.5	Local solar requirements for new buildings beyond the state baseline	More permissive	●○○ Low	No local PV size or battery mandate; Santa Clara and Mountain View have one
Site work, water, hazards and construction operations				
14.1	Construction dewatering for basements and below-grade garages	More restrictive	●●○ Moderate	Unique to Palo Alto among the nine cities
14.2	Deconstruction, salvage survey and construction waste diversion	More restrictive	●●○ Moderate	Highest diversion target; only third-party salvage survey requirement
14.3	Flood-zone basement ban and elevation above base flood	More restrictive	●○○ Low	Basement ban shared with 3 of 8; 1-foot freeboard like Redwood City, Cupertino

No.	Difference	Direction	Salience	Palo Alto's position
14.4	Grease control devices for food facilities	More restrictive	●○○ Low	Most detailed device standards; five of eight other codes require a device
14.5	Recycled-water dual plumbing and irrigation requirements	More restrictive	●○○ Low	Lowest numeric size trigger; Menlo Park has none in its districts
14.6	Permitted construction hours and weekend work	Mixed	●○○ Low	Weekday start later than 7 of 8; Saturday work allowed unlike 4
Subdivisions and public improvements				
15.1	Minimum and maximum lot size and flag-lot limits for new single-family lots	Mixed	●●○ Moderate	Only unconditional R-1 flag-lot ban; only new-lot size cap; mid-range minimum
15.2	Undergrounding of utility lines for new development and service upgrades	Mixed	●●○ Moderate	No remodel trigger or in-lieu fee; Sunnyvale, Los Altos, Cupertino stricter
15.3	Who approves tentative maps, parcel maps and final maps	Mixed	●●○ Moderate	Council decides major maps, as in 4 of 8; minor maps staff-level
15.4	Required frontage improvements (curb, gutter, sidewalk, paving, street trees)	Unclear	●●○ Moderate	Only subdivisions trigger code requirements; four others add project triggers
Development impact fees				
16.1	Illustrative impact fee totals for an apartment building and a single-family rebuild	Unclear	●●● High	Mid-range for apartments; lowest for a replacement house
16.2	Park fees on new multifamily housing	Unclear	●●● High	Mid-range; Sunnyvale, Mountain View and Cupertino higher
16.3	Community center, library, public safety and general government impact fees	More restrictive	●●○ Moderate	Only city with four separate facility fees; Los Altos has two
16.4	Impact fees on commercial, office and hotel development	More restrictive	●●○ Moderate	Highest facility fee on office located; most cities show none
16.5	Impact fees on a replacement single-family house and on lot splits	Mixed	●●○ Moderate	Replacement house exempt; lot-split fee third highest of seven located
16.6	Transportation impact fees on housing and commercial development	Unclear	●●○ Moderate	Only trip-based housing fee of the nine; mid-range per unit
Public art, permit fees and transfer tax				
17.1	Planning application fees for design review of a multifamily project	More restrictive	●●○ Moderate	Highest published amount; only Santa Clara's flat fee ($36,720) is comparable
17.2	Public art requirement for private development	More restrictive	●●○ Moderate	One of two uncapped 1% rules covering housing, with Cupertino
17.3	Construction taxes and building street impact fees	More permissive	●●○ Moderate	No construction tax, like Santa Clara and Redwood City
17.4	Real property transfer tax rates and high-value tiers	Mixed	●○○ Low	Four times six peer cities' total; below San José, Mountain View at high values

No.	Difference	Direction	Salience	Palo Alto's position
17.5	Building permit and plan check fees for a single-family house	Unclear	●○○ Low	Mid-range; fifth highest of the nine
Special uses and other zoning provisions				
18.1	Contractor yards, work trailers and other temporary uses tied to construction	More restrictive	●○○ Low	Shortest general term; no express rule for construction staging
18.2	Demolition permits held until a replacement project is approved	More restrictive	●○○ Low	Citywide rule; only San José and Sunnyvale (HH districts) have related rules
18.3	Review tiers and design caps for wireless communication facilities	Unclear	●○○ Low	Most procedural steps of the nine cities; height caps mid-range
18.4	Home occupations in garages and accessory buildings	More permissive	●○○ Low	Allows accessory buildings, as do Cupertino, Mountain View; 4 of 8 bar outright

About this report

Purpose. This report identifies provisions of the Palo Alto Municipal Code (PAMC) that bear on development and differ materially from the corresponding rules of eight nearby cities: San José, Santa Clara, Sunnyvale, Mountain View, Los Altos and Cupertino in Santa Clara County, and Menlo Park and Redwood City in San Mateo County. "Development" is used broadly. It covers new housing and commercial buildings, additions and remodels, accessory dwelling units (ADUs), subdivisions, demolition, and building-system work such as electrical, plumbing, solar and electric-vehicle (EV) charging.

Each entry quotes the Palo Alto provision, compares it with the other cities' rules, and rates the direction and salience of the difference. The report does not evaluate whether any rule is good policy, and it does not recommend changes. A rule that makes development harder may serve other public purposes; the entries describe only its effect on development.

Scope. The comparison covers code text in force in early October 2026. It also covers rules outside the code that govern projects directly: fee schedules adopted by council resolution, rules of the City of Palo Alto Utilities (CPAU), and adopted design standards. Entries that rest on such rules say so in the "Rule source" line. Santa Clara County, San Mateo County and state law are cited where they set or override the rule. Differences judged immaterial are left out of the entries; Appendix B records how each development-related chapter of the PAMC was handled, so that "not discussed" can be told apart from "not examined."

The report does not cover general plan policies, specific and precise plans (except where an entry cites one), staff practice that is not written down, permit processing times, or school impact fees, which school districts rather than cities set. It also does not estimate the combined effect of the differences on any project.

Contact. The report was prepared at the request of Cornelius Duffie. Questions, corrections and reports of errors are welcome at cornelius.duffie@gmail.com.

How to read an entry

Every entry opens with a summary box like this one:

More restrictive ●●● High *Highest ratio of the nine cities outside transit areas*

Palo Alto rule	PAMC § 18.52.040
Applies to	Multifamily housing
Rule source	Municipal code
Status	Current

Direction The effect of the difference on the ease of development in Palo Alto, relative to most of the comparison cities. **More restrictive** means Palo Alto's rule makes development harder, slower, costlier or smaller. **More permissive** means it makes development easier, faster, cheaper or larger. **Mixed** means the difference has material effects in both directions, for example a stricter standard paired with a more generous exception. **Unclear** means the direction depends on the project or the evidence does not settle it.

Salience How much the difference matters to development in Palo Alto. High: it affects a large share of a common project type or can decide whether a project is feasible. Moderate: it adds noticeable cost, time or design constraints for a common project type, or decides feasibility for a narrower class of projects. Low:

it is material but small in effect or narrow in scope.

Position Where Palo Alto falls among the nine cities (Palo Alto and the eight comparison cities). "Of 8" refers to the eight comparison cities.

Status "Amended since January 2025" flags recent changes; "Change adopted or pending" means the Context paragraph describes a change not yet in effect.

The body of each entry follows a fixed order: a plain-language Summary; the Palo Alto text; a Comparison table with one row per city (Palo Alto's row is shaded) and quotations from representative cities; Difference and effect, which explains how the difference bears on projects and why the salience rating was chosen; and, where relevant, Context on recent or pending changes and state law.

Quotations from codes appear in boxes with the city and section above them; Palo Alto's are marked with a blue rule. Quotations are verbatim. An ellipsis (…) marks omitted words. Section numbers in the text link to an online copy of the code (Appendix A). Footnotes cite everything that is not a code section.

Method in brief

The full text of each city's code, both counties' codes and the zoning codes published separately (Redwood City, Santa Clara, San Mateo County) was downloaded in October 2026 and searched section by section. Palo Alto's chapters were grouped into eighteen topics. For each topic, an analyst identified the Palo Alto provisions that bear on development, located the corresponding provisions in each comparison city, and wrote entries for differences judged material. A second, independent reviewer then checked each table cell and numerical claim against the code text, and the findings were resolved before editing. A script confirmed that every quotation appears word for word in the downloaded code text, and the quotations from Palo Alto, Cupertino and the four cities published by Municode were also matched against the official publications. Fee schedules and other non-code documents were obtained from city websites.

The report was researched and written by Claude, an AI model made by Anthropic: Claude Opus 5.5 planned and edited the work, Claude Sonnet 5.5 agents analyzed each topic, and Claude Haiku 5.5 agents fact-checked them, with the automated checks described above. Appendix C describes the method, its limits, and how to verify any entry against the official sources. Readers relying on a specific figure should confirm it against the official code or fee schedule cited.

1 Single-family and low-density residential zoning

1.1 Floor area, lot coverage and maximum house size in the main single-family district

More restrictive ●●● High *Lowest cap on a 6,000 sq ft lot except where no cap exists*

Palo Alto rule	PAMC § 18.12.040; PAMC § 18.12.090
Applies to	New single-family houses; additions and remodels in R-1
Rule source	Municipal code
Status	Amended since January 2025

Summary. In the R-1 district Palo Alto limits floor area to 0.45 of the first 5,000 square feet of lot plus 0.30 of the remainder, which gives 2,550 square feet on a 6,000-square-foot lot, with a hard cap of 6,000 square feet on any house. The count includes attached garages and counts tall spaces twice. Menlo Park (2,800), Mountain View (2,640), Cupertino (2,700) and Sunnyvale (3,600) allow more floor area on the same lot. San José, Santa Clara and Redwood City set no equivalent cap and instead control size through coverage or review triggers.

Palo Alto. Table 2 of PAMC § 18.12.040(a) sets the formula above and limits multi-story development to 35 percent site coverage. Single-story development may cover an area equal to the floor area allowance, or 42.5 percent of a 6,000-square-foot lot. A note to the table puts garage space inside the cap:

> **PALO ALTO** PAMC § 18.12.040
> The gross floor area of attached garages are included in the calculation of maximum house size.

Under the summary in Table 3 and the definition in PAMC § 18.04.030(a)(65), areas with ceiling heights over 17 feet count twice and areas over 26 feet count three times, and covered porches above the first floor count. Basements are excluded when they are not habitable, or when the first floor is no more than 3 feet above grade, and when lightwells and below-grade patios meet the size and location limits of PAMC § 18.12.090.

Comparison. Main single-family district of each city; maximum on a 6,000 sq ft lot unless stated.

Jurisdiction	Floor area limit	Coverage	Citation
Palo Alto (R-1)	2,550 sq ft (0.45/0.30 formula); garage included; 6,000 sq ft cap	35% multi-story; floor-area equivalent single-story	PAMC § 18.12.040
San José (R-1-8)	No cap; permit needed above 0.45 FAR (2,700 sq ft; garage and basement excluded)	None in district table	San José MC §§ 20.30.200, 20.100.1040
Santa Clara (R1-6L)	None	40%	Santa Clara CC § 18.10.030, Table 2-3
Sunnyvale (R-1)	60% FAR (3,600 sq ft); hearing above	50%	Sunnyvale MC § 19.32.020
Mountain View (R1)	0.44 FAR (2,640 sq ft); 0.50 less 0.00001 times lot area	None in district table	Mountain View CC § 36.10.25
Los Altos (R1-10)	35% of lot up to 11,000 sq ft (3,500 on the 10,000 sq ft minimum lot)	35% (30% limits two-story)	Los Altos MC §§ 14.06.060, 14.06.070
Cupertino (R1-6)	45% FAR (2,700 sq ft); residential garages and interior areas over 16 ft counted (definition says 15 ft); no numeric cap	45% (plus 5% for open roofed features)	Cupertino MC §§ 19.28.070, 19.08.030

Jurisdiction	Floor area limit	Coverage	Citation
Menlo Park (R-1-U)	2,800 sq ft for lots 5,000–7,000 sq ft (district minimum lot is 7,000); second floor at most half	40% single-story; 35% two-story	Menlo Park MC § 16.16.030
Redwood City (R-1)	None; Planning Commission hearing above both 3,000 sq ft and 45% FAR	40%	Redwood City Zoning Code §§ 5.5, 48.4

> **SUNNYVALE** Sunnyvale MC § 19.32.020
> In the R-0, R-1, and R-2 zoning districts, dwellings that exceed the maximum floor area ratio or gross floor area must be considered by the planning commission at a public hearing

> **REDWOOD CITY** Redwood City Zoning Code § 48.4
> Architectural Permit applications for single-family dwellings with a gross floor area exceeding three thousand (3,000) square feet and a floor area ratio exceeding forty-five percent (45%) shall require a public hearing before the Planning Commission.

Difference and effect. Palo Alto combines a sliding FAR, a numeric house-size cap, a garage count and multiple-count rules for tall spaces; no other city's code text read for this entry uses all four. On a 6,000-square-foot lot its 2,550 square feet is below Mountain View's 2,640, Cupertino's 2,700, Menlo Park's 2,800 (a lot below its 7,000 sq ft district minimum) and Sunnyvale's 3,600. Cupertino also counts attached garages and tall interior areas, but applies a flat 45 percent ratio with no house-size cap and no review step for exceeding it. San José and Redwood City allow larger houses but add a discretionary step: San José above 2,700 square feet (0.45 FAR), Redwood City when a house exceeds both 3,000 square feet and 45 percent FAR. Santa Clara and Redwood City limit footprint to 40 percent (2,400 square feet on a 6,000-square-foot lot) and height to two stories and two and a half stories respectively, so neither has a fixed floor-area ceiling. Los Altos requires a 10,000-square-foot minimum lot, so its 3,500 square feet is not a like-for-like lot size. The 6,000-square-foot cap binds only on lots above about 17,500 square feet.

Palo Alto's cap applies to a typical lot without a review step, which is why the rating is high. State law (SB 9, the ADU statutes) allows at least 800-square-foot units regardless of these limits, but does not change the cap for the main house.

Context. Mountain View measures FAR under a separate handbook that is not part of its code, so garage and attic treatment there is not confirmed. Sunnyvale's table was amended by Ord. 3258-26 (July 2026); the 60 percent figure reflects the code text. See also entry 1.3 and entry 1.2.

1.2 Review of two-story houses and second-story additions

More restrictive ●●● High *Objective-standards-or-review path shared with Cupertino; Cupertino triggers narrower*

Palo Alto rule	PAMC § 18.12.110; PAMC § 18.77.075; PAMC § 18.12.040(m)
Applies to	New two-story houses; new second stories; second-story expansions over 150 sq ft; R-1 district
Rule source	Code and non-code rules
Status	Amended since January 2025

Summary. Palo Alto requires a new two-story house or a new second story of any size, or an expansion of an existing second story by more than 150 square feet, to either meet a list of Council-adopted objective two-story standards (effective February 2025) or go through Single Family Individual Review, a discretionary director decision with neighbor notice, a hearing on request and an appeal to Council. Cupertino sends

a two-story project to design review only when the second floor exceeds 66 percent of the first floor or a second-story interior side setback is under 15 feet; in its R1-a district every two-story project goes to Planning Commission review. Santa Clara, Los Altos and Sunnyvale also review second stories with notice; San José, Mountain View and Menlo Park do not have a second-story-specific review in their single-family districts.

Palo Alto. PAMC § 18.12.110(b) applies individual review to construction that does not comply with the objective standards for two-story development:

> **PALO ALTO** PAMC § 18.12.110
> Such projects include construction of a new singly developed two-story structure; the construction of a new second story; or the expansion of an existing second story by more than 150 square feet in the R-1 single family residential district.

The standards themselves are a non-code document of dozens of items covering side and rear setbacks for upper floors, second-floor area (35 percent of allowable floor area or 400 square feet, whichever is larger), roof heights, balcony size, window privacy and screening trees.[1] An application that uses individual review follows PAMC § 18.77.075: notice to adjacent owners within 3 days, a 21-day comment period, a proposed director's decision that becomes final 14 days after mailing unless an adjacent owner or the applicant requests a hearing (no fee), then a 14-day appeal period to Council for a fee. Approval requires a finding of consistency with the Individual Review Guidelines (PAMC § 18.12.110(d)).

Comparison. Single-family district; second-story project.

Jurisdiction	Second-story review	Citation
Palo Alto	Objective standards, or individual review (director, notice, hearing on request, appeal to Council)	PAMC §§ 18.12.110, 18.77.075
San José	No second-story-specific review; single-family house permit (Director hearing in some cases) for FAR over 0.45, or for houses over 30 ft or more than 2 stories	San José MC §§ 20.100.1030, 20.100.1050
Santa Clara	Director public hearing for any new or expanded second story	Santa Clara CC § 18.120.020(D)
Sunnyvale	Design review with notice and 14-day comment for any second-story addition within the FAR threshold (appeal to Planning Commission); Planning Commission hearing above it	Sunnyvale MC §§ 19.80.030, 19.80.040
Mountain View	None; development review only for FAR exceptions	Mountain View CC § 36.10.30
Los Altos	Zoning administrator approval at noticed public meeting for any new two-story house	Los Altos MC § 14.77.030
Cupertino	Administrative Residential Design Review, with notice to adjacent properties, only if second-to-first floor ratio exceeds 66% or a second-story interior side setback is under 15 ft (R1-a: Planning Commission review of every two-story project); otherwise none	Cupertino MC §§ 19.28.040, 19.28.070
Menlo Park	None located in the R-1-U regulations	Menlo Park MC § 16.16.030
Redwood City	Architectural Permit (zoning administrator, no hearing) for upper-story work over 100 sq ft	Redwood City Zoning Code §§ 45.2, 45.3

[1] City of Palo Alto, *Adopted Two-Story Development Objective Design Standards* (effective February 14, 2025), https://www.paloalto.gov/files/assets/public/v/1/development-services/planning-review/1.-single-family-and-duplexes/two-story-objective-design-standards_2-25.pdf. Opened 2026-10-12.

> **SANTA CLARA** Santa Clara CC § 18.120.020
> A new second story or the expansion of an existing second story.

> **LOS ALTOS** Los Altos MC § 14.77.030
> Any new two-story single-family dwelling;

Difference and effect. Palo Alto, Santa Clara, Sunnyvale and Los Altos all subject second stories to a noticed review (Sunnyvale's Planning Commission hearing applies only above its FAR threshold). Palo Alto differs in giving owners a pre-set objective path that avoids discretionary review if every standard is met, and in the absence of a Planning Commission hearing at the first level. Cupertino has a similar structure, since a two-story house meeting its ratio and side-setback tests (and the 25-foot second-floor front and rear setbacks and 28-foot height in Cupertino MC § 19.28.070) needs no design review, but its tests are narrower: Palo Alto's apply to every new second story and to expansions over 150 square feet, and Cupertino's only to projects that exceed one of two limits. The objective standards impose limits tighter than the zoning code, including the 22–27-foot roof heights discussed in entry 1.3, so an owner who wants the full code envelope must use individual review. The 35 percent second-floor cap and, for expansions, the 150-square-foot threshold determine which path applies to most additions.

Review adds time and approval risk; an adjacent owner's hearing request adds a hearing and then an appeal to Council, though the code limits the Council step to the consent calendar unless three votes remove it. San José has no second-story-specific trigger (its permit turns on FAR over 0.45, height over 30 feet or more than two stories), and Mountain View and Menlo Park have none in the district text read; they rely on numeric limits such as FAR, wall and roof heights, second-story setbacks and daylight planes. The rating is high because the rule applies to the most common large residential project in Palo Alto.

Context. Ordinances 5641 (2024), 5645 (2025) and 5691 (2026) amended PAMC § 18.12.110 according to the code history. The Council's decision-making record for the 2025 standards was not located. Menlo Park's Planning Commission review of discretionary dwellings, mentioned in Menlo Park MC § 16.16.030(9), is conditional and not a second-story trigger.

1.3 Height, daylight planes and setbacks for single-family houses

Mixed ●●○ Moderate *Mid-range height; contextual front setback is unique*

Palo Alto rule	PAMC § 18.12.040; PAMC § 18.12.050; PAMC § 18.40.090
Applies to	New single-family houses; second-story additions
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto allows R-1 houses to reach 30 feet (33 feet with a 12:12 roof) and applies a 45-degree side daylight plane from 10 feet and a 60-degree rear plane from 16 feet. The headline height is higher than in six of the other eight cities, but houses taking the objective two-story path are limited to 22–27 feet. Palo Alto also raises the front yard above 20 feet to the neighbor average on blocks where that average is 30 feet or more.

Palo Alto. Table 2 of PAMC § 18.12.040(a) sets interior side yards of 6 feet (8 feet in the larger subdistricts), a rear yard of 20 feet and a street side yard of 16 feet. The front yard follows a contextual rule:

> **PALO ALTO** PAMC § 18.12.040
> The minimum front yard ("setback") shall be the greater of twenty feet (20') or the average setback, if the average front setback is 30 feet or more.

The Council-adopted two-story objective standards (a non-code document) cap roof height at 27 feet for pitches of 9:12 or more, 25 feet for 3:12 to 9:12 and 22 feet below 3:12, and bar second-floor area in side and rear setbacks.[2]

Comparison. Main single-family district of each city.

Jurisdiction	Height	Interior side / rear	Daylight plane	Citation
Palo Alto (R-1)	30 ft (33 with 12:12 roof); 17 ft in S overlay	6 ft / 20 ft; front 20 ft or neighbor average	45° from 10 ft (sides); 60° from 16 ft (rear)	PAMC § 18.12.040
San José (R-1-8)	35 ft, 2.5 stories	5 ft / 20 ft; front 20 ft	None	San José MC § 20.30.200
Santa Clara (R1-6L)	25 ft, 2 stories	5 ft (10 ft second story) / 20 ft; front 20 ft	45° adjacent to R1 and R2 zones	Santa Clara CC § 18.10.030, Table 2-3
Sunnyvale (R-1)	30 ft, 2 stories	6 ft one side, total 20% of width (min 15 ft) / 20 ft; second-story front 25 ft	None located	Sunnyvale MC §§ 19.32.020, 19.34.030, 19.34.045
Mountain View (R1)	28 ft (2-story); 24 ft (1-story)	5 ft, 12 ft total (second story 7 ft in front half of lots 5,000+ sq ft, 12 ft rear half) / 1-story 20% of depth, min 15 ft; 2-story 25% of depth, min 20 ft	None	Mountain View CC § 36.10.25
Los Altos (R1-10)	27 ft, 2 stories	10 ft (17.5 ft second story) / 25 ft; front 25 ft	25° from 11 ft (lots 70+ ft wide); from 19 ft at second-story setback line (narrower)	Los Altos MC §§ 14.06.080, 14.06.090, 14.06.100
Cupertino (R1-6)	28 ft, 2 stories	5 ft, 15 ft combined (second story 10 ft, 25 ft combined) / 20 ft (second story 25 ft); front 20 ft (second story 25 ft)	Building envelope: 25° from 10 ft at property line (first floor) or 16 ft (second floor)	Cupertino MC § 19.28.070
Menlo Park (R-1-U)	28 ft	5–10 ft / 20 ft; front 20 ft	45° from 12.5 ft (1-story) or 19.5 ft (2-story)	Menlo Park MC §§ 16.16.030, 16.67.020
Redwood City (R-1)	28 ft, 2.5 stories	6 ft or half building height / 20 ft; front 15 ft	None located	Redwood City Zoning Code §§ 5.6, 5.7

> **LOS ALTOS** Los Altos MC § 14.06.100
> No structure shall extend above or beyond a daylight plane as follows:

> **MENLO PARK** Menlo Park MC § 16.67.020
> A daylight plane shall begin at a horizontal line at a certain distance directly above each side setback line of each lot and shall slope inwards at a forty-five (45) degree angle.

[2] City of Palo Alto, *Adopted Two-Story Development Objective Design Standards* (effective February 14, 2025), https://www.paloalto.gov/files/assets/public/v/1/development-services/planning-review/1.-single-family-and-duplexes/two-story-objective-design-standards_2-25.pdf. Opened 2026-10-12.

Difference and effect. The 30-foot limit is higher than in Santa Clara, Mountain View, Los Altos, Cupertino, Menlo Park and Redwood City and below San José. Palo Alto's daylight plane begins at 10 feet, lower than Menlo Park's 12.5 or 19.5 feet, but at a 45-degree angle it admits more volume than the 25-degree planes of Los Altos and Cupertino (Cupertino's envelope starts at 10 feet for first-floor walls and 16 feet for second-floor walls). Mountain View and San José use wall-height or setback tools instead. The contextual front setback and the contextual garage placement rule in PAMC § 18.12.040(f) add site-specific constraints; the front rule applies only where the block average reaches 30 feet. San José runs the other way: its block-average rule can lower the front setback below 20 feet (San José MC § 20.30.240).

For a two-story house the practical ceiling depends on the route taken: 30 feet under the code, or 22–27 feet if the owner relies on the objective standards instead of discretionary review (see entry 1.2). That is why the effect runs in both directions. Flag lots and substandard lots are limited to 17 feet and one habitable floor (PAMC § 18.12.040(c)).

Context. The two-story objective standards took effect February 14, 2025.

1.4 Single-story overlay districts

More restrictive ●○○ Low *Strictest approval threshold of the four cities with an overlay*

Palo Alto rule	PAMC § 18.12.100
Applies to	R-1 neighborhoods that opt in; second-story construction
Rule source	Municipal code
Status	Current

Summary. Palo Alto lets owners petition to rezone a neighborhood to a Single Story (S) overlay that limits houses to 17 feet and one habitable floor. Creation requires that at least 80 percent of homes be single-story and that 70 percent of owners sign (60 percent if all lots carry deed restrictions). Cupertino, Los Altos and Sunnyvale have comparable overlays with lower thresholds. The other five cities have none that was located.

Palo Alto. PAMC § 18.12.100(b) replaces the R-1 height limit within an S district:

> **PALO ALTO** PAMC § 18.12.100
> The maximum height shall be 17 feet, as measured to the peak of the roof

The petition must include a map whose boundaries follow natural or man-made features, signatures of the required share of owners, and a statement of reasons; it is processed as a zoning map amendment. Removal requires 70 percent support whether or not deed restrictions exist. Table 2 sets site coverage in S districts equal to the floor area allowance, so single-story houses can cover as much ground as the floor area limit permits.

Comparison.

Jurisdiction	Overlay	Creation threshold	Citation
Palo Alto	S combining district; 17 ft, one habitable floor	80% single-story; 70% of owners (60% with deed restrictions)	PAMC § 18.12.100
San José	None located		
Santa Clara	None located		
Sunnyvale	S combining district; 17 ft, one floor, FAR 45%	75% single-story, at least 20 homes; 55% of owners	Sunnyvale MC § 19.26.200

Jurisdiction	Overlay	Creation threshold	Citation
Mountain View	None located		
Los Altos	R1-S overlay limiting height and stories	66⅔% owner support; council discretion	Los Altos MC §§ 14.13.020, 14.13.030
Cupertino	R1-Xi combining district; one story, 18 ft	75% single-story; petition of 66⅔% of owners, then mailed ballot requiring 66⅔% before a hearing; City Council decides	Cupertino MC §§ 19.28.050(B), 19.12.090, 19.28.040
Menlo Park	None located		
Redwood City	None located		

> **SUNNYVALE** Sunnyvale MC § 19.26.200
> at least fifty-five percent of the property owners in the proposed district support creation of the district

Difference and effect. The overlay removes the second story as an option for covered lots, so it constrains yield and expansion in those neighborhoods. Palo Alto's combined thresholds (80 percent single-story and 70 percent consent) are higher than Sunnyvale's 75 and 55 percent, Cupertino's 75 and 66⅔ percent (the latter applied to both petition and ballot) and Los Altos's 66⅔ percent. The share of Palo Alto parcels in S districts was not located; sources found were neighborhood-level figures only, so the citywide effect is not quantified, and the rating is low.

1.5 Additions and rebuilds of houses that do not meet current standards

More permissive ●○○ Low *Looser than Menlo Park, Redwood City; like Cupertino, Los Altos*

Palo Alto rule	PAMC § 18.70.080; PAMC § 18.70.100; PAMC § 18.70.105
Applies to	Existing single-family houses with legal nonconforming setbacks, height or floor area
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto lets a legal noncomplying house be altered or enlarged if the work does not increase the noncompliance, with no cost or wall-removal cap. After non-willful damage (acts of God), a noncomplying R-1 house that was complying when built can be rebuilt in its previous configuration if floor area, height and size do not increase. Menlo Park and Redwood City cap remodel cost or exterior wall removal for such houses. The difference matters for older houses with side-yard encroachments.

Palo Alto. PAMC § 18.70.080(a) states the general rule:

> **PALO ALTO** PAMC § 18.70.080
> no enlargement, expansion, or other addition or improvement to a noncomplying facility shall be permitted which increases the noncompliance.

PAMC § 18.70.105 (Ord. 5694, 2026) lets up to 250 square feet of noncomplying floor area be relocated if the degree of noncompliance is unchanged; relocations of 150–250 square feet above the ground floor go through individual review. PAMC § 18.70.100(d) lets a noncomplying R-1 or RE house that was complying when built, and was damaged by non-willful means (acts of God), be replaced on the same site in its previous configuration. Home improvement exceptions under PAMC § 18.12.120 allow limited further encroachments (for example 100 additional square feet of floor area or 2 feet into an interior side yard) if the project keeps 75 percent of the existing exterior walls.

Comparison.

Jurisdiction	Rule for altering or enlarging a nonconforming house	Citation
Palo Alto	No increase in noncompliance; no cost or wall cap	PAMC § 18.70.080
San José	Site development permit to expand	San José MC § 20.150.060
Santa Clara	Allowed if changes conform and do not extend the nonconformity; minor use permit procedure	Santa Clara CC § 18.90.050
Sunnyvale	R-1 may be enlarged without variance despite lot-area nonconformity only if all other current standards are met (existing yard nonconformities cannot be extended)	Sunnyvale MC § 19.50.020
Mountain View	Expansion must meet current standards; whole structure complies if R1 house more than doubles	Mountain View CC § 36.06.85
Los Altos	Residential structure may be altered if nonconformity does not increase	Los Altos MC § 14.66.060
Cupertino	No enlargement that increases the noncompliance; no cost or wall cap; non-willful damage allows replacement as it existed (a noncomplying portion that caused the noncompliance only if replacement costs 10% or less of the facility's value)	Cupertino MC §§ 19.140.060, 19.140.080
Menlo Park	Work capped at 75% (one-story) or 50% (two-story) of replacement cost per 12 months, else use permit	Menlo Park MC § 16.80.030
Redwood City	No more than 70% of exterior walls removed or altered, else whole house must comply	Redwood City Zoning Code § 33.11

> **MENLO PARK** Menlo Park MC § 16.80.030
> shall not exceed in any twelve (12) month period the percentage shown in the following table for the applicable zoning district and project type, unless a conditional use permit is obtained.

> **REDWOOD CITY** Redwood City Zoning Code § 33.11
> no more than seventy percent (70%) of the existing exterior walls, measured in linear feet, per residential unit may be removed or structurally altered unless the entire structure is brought into compliance with zoning requirements;

Difference and effect. Menlo Park and Redwood City state numeric limits on cumulative remodeling of nonconforming houses, and Mountain View caps minor alterations at 400 square feet or 25 percent of floor area (by use permit) and applies a doubling rule; Palo Alto has none. Its approach limits only the degree of noncompliance, so a large remodel that keeps existing walls in place can proceed without triggering a full conformance requirement. Cupertino's rule uses the same test as Palo Alto's, with no cost or wall cap on alterations; its rebuild rule after damage other than non-willful damage limits replacement of a noncomplying portion to 10 percent of the facility's value (Cupertino MC § 19.140.080(B)). Mountain View's doubling rule and San José's permit are different triggers that were not measured against Palo Alto in detail. The rating is low because the rule helps a narrow class of older houses.

Context. Section 18.70.105 was added by Ord. 5694 (2026). San José's, Santa Clara's and Sunnyvale's rules for R-1 yards were read only in part.

2 Accessory dwelling units, SB 9 and small-lot subdivisions

2.1 Separate sale of ADUs as condominiums (AB 1033)

More restrictive ●○○ Low *Not opted in; of the 8 others, only San José has*

Palo Alto rule	PAMC § 18.09.030(j); PAMC § 18.09.040(n)
Applies to	Owners of lots with an ADU who want to sell the ADU separately
Rule source	Municipal code
Status	Current

Summary. Gov. Code § 66342 (AB 1033) lets a city adopt an ordinance allowing an ADU and its primary home to be sold separately as condominiums. Cities that do not adopt one keep the default bar on selling an ADU apart from the primary residence. San José has adopted one; Sunnyvale states that it has not; Palo Alto's code only repeats the default bar and has no condominium procedure. This report found no condominium ordinance in the other five cities' codes. Cupertino's ADU chapter allows separate conveyance only "pursuant to Government Code Section 66340 – 66342" and sets out no procedure. Menlo Park's ADU chapter mentions § 66342 only in a utility-connection exception.

Palo Alto. PAMC § 18.09.040(n)(2) bars separate sale and refers only to Gov. Code § 66341, which is the default exception, not to § 66342:

> **PALO ALTO** PAMC § 18.09.040(n)
> The unit shall not be sold separately from the primary residence except as allowed under Government Code Section 66341.

Comparison.

Jurisdiction	ADU condominium ordinance	Citation
Palo Alto	None located	PAMC § 18.09.040(n)(2)
San José	Adopted; streamlined parcel map and condominium process	San José MC §§ 20.80.181–20.80.185
Santa Clara	None located	Santa Clara CC § 18.60.020
Sunnyvale	Expressly not elected	Sunnyvale MC § 19.79.040(q)
Mountain View	None located	Mountain View CC § 36.12.80 et seq.
Los Altos	None located	Los Altos MC ch. 14.14
Cupertino	None located; ch. 19.112 permits separate conveyance only as state law allows, with no procedure	Cupertino MC § 19.112.020(D)
Menlo Park	None located; code mentions § 66342 only for utility connections and cites § 66341 for sale	Menlo Park MC § 16.79.080(k), (l)
Redwood City	Not located (ADU article absent from corpus)	n/a

> **SAN JOSÉ** San José MC § 20.80.181
> This Part implements Government Code Section 66342, herein referred to as Assembly Bill 1033 (AB 1033).

> **SUNNYVALE** Sunnyvale MC § 19.79.040(q)
> The city has not elected to allow the separate conveyance of the main building and accessory dwelling unit or

> units as condominiums pursuant to Government Code Section 66342.

Difference and effect. In San José an owner can record a condominium plan and sell the ADU to a separate buyer, subject to the statute's conditions: Davis-Stirling Common Interest Development Act compliance, a certificate of occupancy or housing quality standards report, and lienholder consent.[3] In Palo Alto the ADU stays under the owner of the primary home, so an ADU adds a rental or family unit but not a separately ownable one. The option matters to a small set of owners, and the statute does not require it, so salience is low. "None located" reflects a search of each city's ADU chapter and the code text for § 66342, AB 1033 and condominium terms only.

2.2 Size, height and design standards for detached and attached accessory dwelling units

More restrictive ●○○ Low *Near the state floor; size cap mid-range, height below 5 of 7 others*

Palo Alto rule	PAMC § 18.09.030; PAMC § 18.09.040
Applies to	New detached or attached ADUs larger than 800 sq ft; two-story ADUs; single-family lots
Rule source	Municipal code
Status	Amended since January 2025

Summary. State law protects a new detached ADU of up to 800 square feet, with 4-foot side and rear setbacks and a height of 16 feet or more, from local development standards. Palo Alto's local standards apply only above that floor, and they sit near it: a 900 square foot cap (1,000 square feet for two or more bedrooms), a 16-foot height for most detached units, and objective second-story privacy rules. San José, Santa Clara, Los Altos and Mountain View allow larger or taller units, while Menlo Park and Sunnyvale are close to Palo Alto. Because most ADUs are built at or under 800 square feet, the difference reaches a small share of projects.

Palo Alto. PAMC § 18.09.030 applies the state-protected standards (up to 800 square feet, 4-foot side and rear setbacks, no parking, no FAR or coverage limit). Section 18.09.040 governs every other ADU. Table 2 sets a maximum of 900 square feet, or 1,000 square feet for two or more bedrooms. An attached ADU may not exceed 50 percent of the size of the single-family home. Height is 16 feet for a detached unit (18 feet within one-half mile of a major transit stop or high-quality transit corridor), and 25 feet or the zone's limit, whichever is lower, for an attached unit. Up to 800 square feet of ADU area on a lot is exempt from floor area ratio (FAR), lot coverage and maximum house size. Section 18.09.040(a) states the floor:

> **PALO ALTO** PAMC § 18.09.040(a)
> Nothing in this section shall be interpreted to prohibit an ADU of up to 800 square feet, at the heights stated in Table 2, with a four foot side and rear setbacks.

Section 18.09.040(k) adds privacy rules for second-story units. Windows facing an interior property line, other than egress windows, must meet a sill-height or opaque-glass test:

> **PALO ALTO** PAMC § 18.09.040(k)(2)(B)
> Windows on a second floor, loft, or equivalent elevated space, excluding those required for egress, shall have a five-foot sill height as measured from the second-finished floor level, or utilize opaque glazing on the entirety of any window that faces an adjacent interior property line.

[3] Cal. Gov. Code § 66342, https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=GOV&sectionNum=66342 (text read at https://california.public.law/codes/ca_gov't_code_section_66342). Opened 2026-10-12.

Section 18.09.040(m) also bars ADU construction from removing more than 25 percent of a protected tree's functioning leaf, stem or root area in 24 months. Replacement under the Tree and Landscape Technical Manual applies where the state-minimum unit cannot otherwise be built. This report did not compare tree rules for ADUs in the other cities.

Comparison. Single-family lot; new construction ADU larger than 800 square feet unless stated.

Jurisdiction	Maximum size	Detached height	Citation
Palo Alto	900 sq ft; 1,000 sq ft for 2+ bedrooms	16 ft (18 ft near transit)	PAMC § 18.09.040, Table 2
San José	1,000 sq ft (lot up to 9,000 sq ft); 1,200 sq ft (larger lots)	18 ft one story; 25 ft two stories	San José MC § 20.80.175
Santa Clara	1,000 sq ft (lot up to 5,500 sq ft); 1,200 sq ft (larger lots)	18 ft one story; 25 ft and 1.5 stories with 15-ft multistory rear setback	Santa Clara CC § 18.60.020
Sunnyvale	1,000 sq ft	16 ft (18 ft near transit); two stories maximum	Sunnyvale MC § 19.79.040
Mountain View	850 sq ft (1 bedroom or fewer); 1,000 sq ft (2+ bedrooms)	28 ft	Mountain View CC § 36.12.80
Los Altos	1,200 sq ft detached (attached: 850 sq ft for 1 bedroom, 1,200 sq ft for 2+)	18 ft	Los Altos MC §§ 14.14.060, 14.14.070
Cupertino	850 sq ft (studio or 1 bedroom); 1,000 sq ft (2+ bedrooms)	20 ft, one story (accessory-structure limit); Table 19.112.040 also states 18 ft within one-half mile of transit; second story only within one-half mile of transit	Cupertino MC §§ 19.112.040, 19.100.030
Menlo Park	850 sq ft (1 bedroom or fewer); 1,000 sq ft (2+ bedrooms)	16 ft (18 ft near transit)	Menlo Park MC § 16.79.070
Redwood City	Not located	Not located	Article 37 absent from corpus

> **SAN JOSÉ** San José MC § 20.80.175
> A detached two-story Accessory Dwelling shall be limited to a maximum roof height of twenty-five (25) feet above grade.

> **SUNNYVALE** Sunnyvale MC § 19.79.040(k)(1)
> 16 feet on a lot with an existing or proposed single-family dwelling or single-story multifamily dwelling unit that does not meet the requirements of subsection (k)(1)(B), below.

Difference and effect. Palo Alto's 900 square foot cap for a one-bedroom unit is higher than Mountain View, Cupertino and Menlo Park (850) and lower than San José, Santa Clara, Los Altos (1,200 for a detached unit) and Sunnyvale (1,000). Its 1,000 square foot cap for larger units equals Sunnyvale, Mountain View, Cupertino and Menlo Park and is below San José, Santa Clara and Los Altos on larger lots. Its 16-foot height matches Sunnyvale and Menlo Park and is below San José, Santa Clara, Los Altos, Cupertino and Mountain View, which allow 18 to 28 feet. Cupertino also sets 18 feet for the state-protected 800 square foot detached unit (Table 19.112.030A), two feet above the state floor of 16 feet. A Palo Alto owner who wants a second-story detached ADU above 16 feet needs the transit location or must use an attached unit. The 800 square foot FAR and coverage exemption is the state-protected size, so it does not set Palo Alto apart. Salience is low because the state-protected 800 square foot unit, conversions and JADUs, which fall under § 18.09.030, are unaffected by these limits.

Context. Ord. 5656 (2025) is the latest amendment to Chapter 18.09. The Los Altos and Menlo Park

figures are read from their ADU tables; the Redwood City ADU article (Article 37) is not in the code text reviewed.

2.3 Urban lot split review and notice requirements

More restrictive ●○○ Low *Broadest notice of the nine; Cupertino notifies adjacent owners only*

Palo Alto rule	PAMC § 21.10.040; PAMC § 21.10.050; PAMC § 21.10.030
Applies to	Urban lot splits in R-1 and R-E districts
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto reviews an urban lot split ministerially within 60 days, as state law requires, but also posts a notice at the site and mails notice to owners and residents within 600 feet. Cupertino requires notice to adjacent owners 14 days before action, a narrower notice than Palo Alto's. No notice requirement appears in the urban lot split provisions of the other seven cities. Lot-size rules (1,200 square feet minimum, 40 percent minimum share) match state law and the other cities. The notice step adds a process step and neighbor awareness before approval, without a hearing or a right to deny.

Palo Alto. PAMC § 21.10.050 requires an owner affidavit, a parcel map prepared by an engineer or surveyor, and notice of the pending application:

> **PALO ALTO** PAMC § 21.10.050(d)
> The director of planning shall cause a notice of the pending application to be posted at the site of the proposed Urban Lot Split and for notice to be mailed to owners and residents of property within 600 feet of the property.

The owner-occupancy affidavit (three years) and 30-day rental limit in § 21.10.050(a) restate state requirements (Gov. Code § 66411.7) that the other cities also apply. Approval is ministerial, and an application not decided within 60 days of completeness is deemed approved (§ 21.10.050(e), (f)). The map must carry a declaration that each lot is residential only, holds no more than two units and cannot be split again (§ 21.10.050(b)). Section 21.10.040 also requires utility easements, a stormwater maintenance covenant and a shared-maintenance agreement before final map recording, and § 21.10.040(e) refers to objective lot design standards adopted by the City Council.

Comparison.

Jurisdiction	Notice of application	Citation
Palo Alto	Posted on site; mailed within 600 ft	PAMC § 21.10.050(d)
San José	None located	San José MC §§ 20.30.810–20.30.840
Santa Clara	None located	Santa Clara CC § 18.24.070
Sunnyvale	None located	Sunnyvale MC ch. 18.26
Mountain View	None located	Mountain View CC §§ 36.13.55–36.13.75
Los Altos	None located	Los Altos MC ch. 14.64
Cupertino	Notice to adjacent owners (including across a street) 14 days before action; no posting or resident notice stated	Cupertino MC § 18.20.170(A)
Menlo Park	None located	Menlo Park MC ch. 15.31

Jurisdiction	Notice of application	Citation
Redwood City	None located	Redwood City MC § 30.76

> **CUPERTINO** Cupertino MC § 18.20.170(A)
> Notice shall be provided to adjacent property owners (including those across any public or private street) fourteen days prior to any action on the proposed project.

> **REDWOOD CITY** Redwood City MC § 30.76(B)
> A parcel map for an urban lot split shall be ministerially approved as set forth in this Section, if the City determines that the parcel map meets the requirements of this Section and Government Code Section 66411.7.

Difference and effect. Notice does not change what must be approved, since the review is ministerial and the code lists no ground for the neighbors to object. It adds mailing and posting work for staff and the applicant and gives neighbors advance notice that most of the others do not. Cupertino's rule is the same kind of step but reaches only adjacent owners, so Palo Alto's 600-foot radius, on-site posting and notice to residents are the broadest. The 60-day deadline and deemed approval match the state timeline. Salience is low because the step is procedural. The "None located" cells for the other six cities reflect a search of each city's urban lot split provisions for notice, posting or mailing terms, and a city may mail notice under another section.

Context. Ord. 5691 (2026) is the latest amendment to Chapter 21.10 and appears across §§ 21.10.020 to 21.10.050.

3 Multifamily and mixed-use residential standards

3.1 Height, density and floor area limits in multifamily residential districts

Mixed ●●● High *Mid-range height and density; second-lowest FAR among cities setting one*

Palo Alto rule	PAMC § 18.13.040; PAMC § 18.13.045; PAMC § 18.14.030
Applies to	Multifamily housing in RM-20, RM-30 and RM-40 districts
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto's three multifamily districts cap density at 20, 30 and 40 units per acre, height at 30, 35 and 40 feet, and floor area ratio (FAR) at 0.5, 0.6 and 1.0. Base height limits are similar to Menlo Park, Los Altos, Cupertino's R-3 (30 feet) and Redwood City's R-3 and R-4 districts, and lower than Cupertino's R-4 (70 feet), Mountain View's R4, Santa Clara's R4 to R6, Sunnyvale's R-4 and R-5 and Redwood City's R-5. Palo Alto's base FAR is lower than Mountain View's and Redwood City's R-5 (3.5), lower than Menlo Park's R-4 for RM-20 and RM-30 (RM-40 equals it), and higher only than Menlo Park's R-3 (0.45); Cupertino sets no FAR. Projects that elect the local Housing Incentive Program can reach 40 to 50 feet and a FAR of 2.0 to 3.0, which changes the comparison for those projects.

Palo Alto. PAMC § 18.13.040, Table 2 sets the base standards: maximum height 30 feet (RM-20), 35 feet (RM-30) and 40 feet (RM-40); maximum site coverage 35%, 40% and 45%; FAR 0.5:1, 0.6:1 and 1.0:1; maximum density 20, 30 and 40 units per acre, with minimums of 11, 16 and 21. Small projects get a higher FAR:

> **PALO ALTO** PAMC § 18.13.045
> A housing development project of three to seven units shall have a maximum floor area ratio of 1.0:1.

Eight to ten units get 1.25:1 (PAMC § 18.13.045). As an alternative to state density bonus law, PAMC § 18.14.030 allows RM projects up to 40 feet (RM-20, RM-30) or 50 feet (RM-40), FAR of 2.0, 2.5 and 3.0, and densities of 40 units per acre (RM-20) or 60 units per acre (RM-30, RM-40, with no limit if 10% of units have three or more bedrooms).

Comparison. Base standards in each city's principal multifamily districts.

Jurisdiction	Height	Density	FAR	Citation
Palo Alto	30 / 35 / 40 ft (RM-20/30/40)	20 / 30 / 40 du/ac	0.5 / 0.6 / 1.0	PAMC § 18.13.040
San José	45 ft (R-M)	Not set in zoning code	No FAR stated for R-M	San José MC § 20.30.200
Santa Clara	40 ft (R3); 80 ft (R4); 100 ft (R5)	20–36 (R3); 37–50 (R4); 51–99 (R5)	None	Santa Clara CC § 18.10.030
Sunnyvale	35 ft (R-3); 55 ft (R-4, R-5)	About 24 (R-3), 36 (R-4), 46 (R-5)	None	Sunnyvale MC §§ 19.30.040, 19.32.020
Mountain View	45 ft (R3); 62 ft (R4)	By lot area, about 11–44 (R3); 80 (R4)	1.05 (R3); 1.40–2.30 (R4)	Mountain View CC §§ 36.10.70, 36.10.75, 36.12.10
Los Altos	36 ft, 3 stories (R3-3, R3-4.5, R3-5); 40 ft (R3-1)	Not stated in district chapters	0.55 (R3-4.5)	Los Altos MC §§ 14.16.060, 14.20.110, 14.24.100
Cupertino	30 ft (R-3, unless General Plan Figure LU-2 sets another); 70 ft (R-4)	Set by General Plan land use map, not in zoning	None; lot coverage 55% (5+ units)	Cupertino MC §§ 19.36.060, 19.36.070, 19.38.060, 19.38.070

Jurisdiction	Height	Density	FAR	Citation
Menlo Park	35 ft (R-3); 40 ft (R-4, R-4-S); 40 ft in R-3 near El Camino Real/downtown at 20+ du/ac	About 13 (R-3; up to 30 near El Camino Real/downtown); 40 (R-4); 20–30 (R-4-S)	0.45 (R-3; 0.35–0.75 near downtown); 1.0 (R-4); 0.60–0.90 (R-4-S)	Menlo Park MC §§ 16.20.030, 16.22.040, 16.23.050
Redwood City	35 ft (R-3); 45 ft (R-4); 75 ft or more (R-5)	General Plan maximum	Not located (R-3, R-4); 3.5 (R-5)	Redwood City Zoning Code §§ 8.3, 9.3, 10.3, 10.5, 10.8

> **REDWOOD CITY** Redwood City Zoning Code § 10.3
> The maximum building height for structures of all other types of use is seventy-five (75) feet

> **SUNNYVALE** Sunnyvale MC § 19.32.020
> In the R-3, R-4 and R-5 zoning districts, a height bonus of up to five feet is allowed when underground parking is included in the development.

Difference and effect. Palo Alto's RM-30 and RM-40 density caps fall inside the range of Santa Clara's R3 and R4 and above Sunnyvale's R-3. The larger gaps are in height and floor area: a 40-foot RM-40 limit and a 1.0 FAR support about three stories, while Mountain View's R4 (62 feet, FAR up to 2.30), Santa Clara's R4 and R5 and Redwood City's R-5 support five or more. The 0.5 to 0.6 FAR in RM-20 and RM-30 can bind before the density cap does. Los Altos, Cupertino's R-3, Redwood City's R-3 and, outside the downtown area, Menlo Park's R-3 are similar to or more restrictive than Palo Alto on height. Cupertino's R-4 (70 feet) is higher than any Palo Alto base limit, and Cupertino controls floor area through lot coverage and setbacks rather than a FAR.

Larger projects can leave the base table in two ways. State density bonus law (Gov. Code § 65915) and the Housing Incentive Program, which a project may use in place of each other but not together (PAMC § 18.14.030(c)), both lift the envelope above the table. entry 4.1 describes both. Salience is high because RM districts are Palo Alto's main multifamily zoning, but the direction is mixed: restrictive in the base table, permissive for projects that use the local program.

Context. Chapter 18.13 was amended in 2025 (Ord. 5650). San José, Santa Clara, Cupertino and Redwood City set density in their General Plans rather than zoning, so the density cells show what the zoning text states or refers to.

3.2 Height, floor area and density for housing in commercial and mixed-use districts

Mixed ●●● High *Among the lowest base heights and FARs on corridors; incentives reach other cities' range*

Palo Alto rule	PAMC § 18.16.060; PAMC § 18.18.060; PAMC § 18.29.060; PAMC § 18.34.040; PAMC § 18.14.020; PAMC § 18.14.030; PAMC § 18.30(K).070
Applies to	Residential and mixed-use projects in CN, CC, CC(2), CS, CD, North Ventura, PTOD and workforce housing districts
Rule source	Municipal code
Status	Amended since January 2025

Summary. In Palo Alto's commercial districts, housing is limited by base residential floor area ratios (FAR) of 0.5 to 0.6 in the CN, CS and CC(2) districts and heights of 35 to 50 feet. Other cities' mixed-use districts

allow 32 to 135 feet (Santa Clara's lowest district is 32 feet; Redwood City, Sunnyvale nodes and San José reach 75 to 135), with densities from 19 to 250 units per acre or none. Palo Alto reaches that range only through site-specific programs: the Housing Incentive Program (50 to 60 feet, FAR 2.5 to 3.5 on El Camino Real and California Avenue), Housing Element opportunity-site standards, and the North Ventura district.

Palo Alto. Residential use is limited in most commercial districts:

> **PALO ALTO** PAMC § 18.16.060
> Exclusively residential uses are generally prohibited in the CN, CS, CC(2) and CC zone districts, except on housing inventory sites identified in the Housing Element, subject to the standards in Section 18.16.060(b), and on CS and CN sites on El Camino Real and CC(2) sites, subject to the following.

Table 4 of PAMC § 18.16.060(b) sets mixed-use standards. Height is 50 feet in CC and CS, 37 feet in CC(2) and 35 feet in CN (40 feet on El Camino Real). Residential FAR is 0.5 in CN, 0.6 in CS and CC(2); total mixed-use FAR is 0.9 (CN), 1.0 (CS) and 2.0 (CC(2)). CS density is 30 units per acre, and CC(2) and El Camino Real sites have no maximum. The CD-C downtown subdistrict allows 50 feet, residential FAR of 1.0 and total FAR of 2.0 (3.0 with bonuses) (PAMC § 18.18.060(b)). North Ventura allows 35 to 65 feet and FAR of 0.5 to 3.0 across its multifamily and mixed-use districts (PAMC § 18.29.060), and the California Avenue PTOD district allows 40 feet and 40 units per acre (PAMC § 18.34.040).

Opportunity sites listed in the Housing Element get FARs of 1.25 to 2.0 (PAMC § 18.14.020, Table 1). The El Camino Real Focus Area allows 65 or 85 feet and FAR of 3.0 or 4.0 with no density cap, with 20% of units below market rate (PAMC § 18.14.020, Table 3). The Workforce Housing combining district on public facilities sites near rail allows 50 feet and FAR of 2.0, with a 750-square-foot maximum unit size (PAMC § 18.30(K).070).

Comparison. Corridor and mixed-use districts that allow housing.

Jurisdiction	Height	Density	FAR	Citation
Palo Alto	35–50 ft base; 50–60 ft Housing Incentive Program; 85 ft El Camino Real Focus Area	30 (CS); none on El Camino Real, CC(2), CD-C	Residential 0.5–0.6 base; 2.5–3.5 incentive	PAMC §§ 18.16.060, 18.14.020, 18.14.030
San José	85 ft (MUC); 135 ft (UR); village plans set others	Min. 30–55; max. 50 (MUC) to 250	Up to 4.0–12.0	San José MC § 20.55.100
Santa Clara	32 / 40 / 60 ft (MU-NC / CC / RC); none in MU-VHD	19–36 / 20–36 / 37–50 / 50–120	Min. commercial FAR 0.1–0.2	Santa Clara CC § 18.14.030
Sunnyvale	55 ft (segments); 75 ft (nodes); 65 / 85 with tall ground floor	24–54 base, plus incentive points	Not set	Sunnyvale MC §§ 19.36.070, 19.36.100
Mountain View	Not located	Not located	Not located	Precise plans not in corpus
Los Altos	Not located	Not located	Not located	Not reviewed

Jurisdiction	Height	Density	FAR	Citation
Cupertino	Residential portions of P(CG, R-3/R-4) zones take R-3 (30 ft) or R-4 (70 ft) height unless the General Plan or a specific plan sets another; Heart of the City plan 45 ft (non-code)	Per General Plan land use map	None (R-3, R-4 set no FAR)	Cupertino MC § 19.80.030; Heart of the City Specific Plan § 1.01.030[4]
Menlo Park	40 ft base; 70 ft bonus (R-MU)	20–30 base; to 100 bonus	Residential 0.60–0.90 base; to 2.25 bonus	Menlo Park MC § 16.45.050
Redwood City	85 ft residential; 60 ft commercial	80 du/ac	Commercial 0.5; mixed-use 1.0 (commercial only)	Redwood City Zoning Code § 53.7

> **SANTA CLARA** Santa Clara CC § 18.14.030
> Maximum density standards shall be consistent with the General Plan or applicable Master Plan, Specific Plan, or Area Plan.

> **SUNNYVALE** Sunnyvale MC § 19.36.070
> Residential development is not permitted in the ECR-C, ECR-O, and ECR-PF zoning districts.

Difference and effect. The base FAR is the tightest constraint. A 0.6 residential FAR on a CS lot is far below the 55 to 85 feet of height that Sunnyvale and Redwood City allow on their corridors, and no FAR cap applies in those cities' residential districts or mixed-use corridors beyond the density limit (Sunnyvale) or the commercial-only FAR (Redwood City). Palo Alto's incentive programs close most of that gap on El Camino Real and California Avenue, so the effect depends on whether a site qualifies. Projects that use state density bonus law cannot also use the local program, and Housing Element sites with lower-income allocations can be exclusively residential. Mountain View's precise plans and Los Altos's downtown and commercial districts are not in the code text reviewed and were not compared. Cupertino has no mixed-use zoning district: mixed-use housing sites are planned development (P) zones, whose residential standards come from the R-3 or R-4 district and whose heights and densities come from the General Plan and specific plans (Cupertino MC § 19.80.030(F)), so its row reflects those documents rather than a code table.

Context. Chapter 18.14 was revised in 2024 and 2025 (Ords. 5608, 5650, 5657). Menlo Park's El Camino Real/Downtown Specific Plan sets its own height and density tables in a plan document outside the codes reviewed; the figures above are Menlo Park's R-MU district only.

[4]City of Cupertino, *Heart of the City Specific Plan*, § 1.01.030 (maximum 45 feet except where the General Plan's maximum building heights govern; residential density per the General Plan), https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/planning/land-use-plans/heart-of-the-city-specific.pdf. Opened 2026-10-13.

3.3 Bird-friendly glazing standards for new buildings

More restrictive ●●○ Moderate *Among the broadest of the nine; Cupertino comparable in scope*

Palo Alto rule	PAMC § 18.40.280
Applies to	New multifamily and mixed-use buildings; substantial remodels; new glazing and glass railings
Rule source	Municipal code
Status	Amended since January 2025

Summary. PAMC § 18.40.280 applies to every new building in Palo Alto, requires bird-friendly treatment of any unbroken glazing of 24 square feet or more, and caps untreated glass at 10% of any residential elevation in the area between Highway 101 and Foothill Expressway. Menlo Park sets a 10% cap in its R-3, commercial, mixed-use, life sciences and residential overlay districts. Cupertino applies a 10% untreated-glass cap to the facade of every new building up to 60 feet and 5% above 60 feet, in all districts. Mountain View adopted a bird-safe measure in September 2025 that applies to multifamily buildings of 10,000 square feet or more when zoning requires it. No bird-glazing rule was located in the codes of San José, Santa Clara, Los Altos or Redwood City, and Sunnyvale has one only in the Moffett Park plan area.

Palo Alto. The standard applies to all newly constructed structures, substantial remodels and any new fenestration or bird hazard installation (PAMC § 18.40.280(c)). Treatment is required for all bird hazard installations (transparent railings, parallel panes, skyways) and for unbroken glazing of 24 square feet or more. Within the bird-sensitive area, which covers the part of the city east of Highway 101 and west of Foothill Expressway, the residential limit is:

> **PALO ALTO** PAMC § 18.40.280
> Within the bird-sensitive area, in addition to the requirements of (d)(1), no more than ten percent of an elevation of any structure or building shall be untreated glazing.

Outside that area, no more than 40% of the elevation above 35 feet may be untreated. Nonresidential buildings are held to 10% everywhere. Treatments include fritted or etched patterns (dots at least 1/4 inch, no more than 2 inches apart), exterior screens, or, for residential buildings, films and decals approved by the American Bird Conservancy. An alternative-compliance route requires a biologist's report and Director approval (§ 18.40.280(e)). Historic structures are exempt, as are the first 14 feet of street-facing ground-floor commercial frontage in the Retail Shopping and Pedestrian Shopping combining districts.

Comparison.

Jurisdiction	Bird-glazing rule	Citation
Palo Alto	All new buildings; 10% untreated cap on residential elevations in bird-sensitive area	PAMC § 18.40.280
San José	None located in zoning or building code	Not located
Santa Clara	None located	Not located
Sunnyvale	Moffett Park Specific Plan area only	Sunnyvale MC § 19.29 (Moffett Park)
Mountain View	90% of elevation to 40 ft and 60% above; multifamily only if zoning requires and building is 10,000 sq ft or more	Mountain View CC §§ 8.96.05, 8.96.10; Table 101.10
Los Altos	None located	Not located
Cupertino	All new buildings and remodeled portions, all districts: 10% untreated glass to 60 ft, 5% above; exempt: historic, ground-floor retail to 15 ft, R-1 outside bird-sensitive areas	Cupertino MC §§ 19.102.020, 19.102.030

Jurisdiction	Bird-glazing rule	Citation
Menlo Park	10% cap on non-bird-friendly glazing in R-3, C-1, C-1-C, C-2, C-MU, R-MU, LS and residential overlay	Menlo Park MC §§ 16.20.050, 16.30.050, 16.36.050, 16.38.070, 16.40.050, 16.44.130, 16.45.130, 16.95.050
Redwood City	None located	Not located

> **CUPERTINO** Cupertino MC § 19.102.030
> No more than 10% of the surface area of the façade be untreated glass between the ground and 60 feet above ground.

> **MENLO PARK** Menlo Park MC § 16.20.050
> No more than ten percent (10%) of facade surface area shall have non-bird-friendly glazing.

> **MOUNTAIN VIEW** Mountain View CC § 8.96.10
> No less than 90 percent of a building elevation, measured from grade to a height of 40 feet (12 m) above grade, or from grade to the height of an adjacent mature tree canopy (whichever is greater), shall incorporate bird-friendly mitigation strategies.

Difference and effect. Palo Alto's rule and Cupertino's reach projects that other cities exempt: all housing regardless of size or zoning, and any large glass element. Glass-heavy buildings, balconies with glass guards and corner windows need fritted, etched or screened glazing, which raises glazing cost and limits transparent railings. Menlo Park's design standard applies in the eight districts listed, not citywide. Cupertino's cap is citywide and applies to all building types at 10%, and is stricter than Palo Alto's above 60 feet (5%) and outside Palo Alto's bird-sensitive area, where Palo Alto allows 40% untreated above 35 feet; Both cities offer a biologist-supported alternative compliance route. Mountain View's measure is stricter on treated area (90% to 40 feet) but applies to fewer multifamily projects. Salience is moderate because the cost is incremental to glazing and not a feasibility threshold.

Context. Palo Alto's section was last amended by Ord. 5695 (2026); Mountain View's measure is dated 9 September 2025 (Ord. 9.2025). Cupertino's chapter dates from 2021 (Ord. 21-2225) and was amended in 2025 (Ord. 25-2277). The Moffett Park references were read in the code index only and the standards are in a plan document outside the codes reviewed.

3.4 Height transitions and daylight planes where multifamily and mixed-use sites adjoin lower-density housing

More restrictive ●●○ Moderate *Only 150-foot height band located among the eight cities*

Palo Alto rule	PAMC § 18.13.040; PAMC § 18.16.060; PAMC § 18.18.060; PAMC § 18.14.030; PAMC § 18.14.020
Applies to	Multifamily and mixed-use projects abutting or near single-family and two-family districts
Rule source	Municipal code
Status	Current

Summary. Palo Alto limits commercial-district housing projects to 35 feet within 150 feet of a residential district and applies the abutting residential district's daylight plane. The multifamily districts apply a 45-degree plane from 10 feet at the lot line where a site abuts R-1, R-2, RMD or RM-20 districts or a single-family or two-family use. The other eight cities use a 45-degree plane or a setback rule, mostly starting at

25 to 28 feet (Cupertino adds setbacks for floors above adjacent homes), and none sets a 150-foot height band in the code text reviewed. The Housing Incentive Program and the El Camino Real Focus Area replace Palo Alto's rules with narrower ones.

Palo Alto. In CN, CC, CC(2) and CS, height falls to 35 feet within 150 feet of an abutting residential district, and the daylight plane copies the most restrictive abutting residential district (PAMC § 18.16.060, Table 4). The distance can be shortened:

> **PALO ALTO** PAMC § 18.16.060
> 150-foot measurement may be reduced to 50 feet at minimum, subject to approval by the Planning Director, upon recommendation by the Architectural Review Board pursuant to criteria set forth in Chapter 18.76.

CD-C is limited to 40 feet within 150 feet (PAMC § 18.18.060(b)). RM-20, RM-30 and RM-40 sites abutting R-1, R-2, RMD, RM-20 or a single-family or two-family use in a nonresidential district use a daylight plane with a 10-foot initial height at 45 degrees, and RM-40 is limited to 35 feet within 50 feet of a more restrictive residential district (PAMC § 18.13.040, Table 2). Projects under the Housing Incentive Program use 35 feet within 50 feet of low-density districts and a plane starting at 16 feet (PAMC § 18.14.030, Table 5). The El Camino Real Focus Area uses a 16-foot, 45-degree plane (PAMC § 18.14.020, Table 3).

Comparison. Controls on multifamily or mixed-use buildings next to low-density residential.

Jurisdiction	Control	Citation
Palo Alto	35 ft within 150 ft (50 ft with approval); plane matches abutting district; RM abutting R-1, R-2, RMD, RM-20: 10 ft at 45°	PAMC §§ 18.16.060, 18.13.040
San José	No daylight plane or height band located in R-M or urban village standards	San José MC §§ 20.30.200, 20.55.100
Santa Clara	32 ft within 20 ft of R1 and R2; 45° plane off the lot line	Santa Clara CC §§ 18.10.030, 18.14.030
Sunnyvale	El Camino Real: 45° plane from grade (60° next to non-residential)	Sunnyvale MC § 19.36.100
Mountain View	R4 across a street from R1: wall over 40 ft set back 10 ft; R3 yards at least wall height	Mountain View CC §§ 36.10.70, 36.12.10
Los Altos	R3-3: 25 ft side yard with 10 ft screen where abutting R1-10	Los Altos MC § 14.20.070
Cupertino	R-3 (5+ units): rear 20 ft plus 10 ft more for floors over one story above adjacent homes; R-4: interior side +10 ft and rear +15 ft on upper floors; no parking in setbacks next to R-1; Heart of the City plan: rear setback 1.5 times height (20 ft minimum)	Cupertino MC §§ 19.36.070, 19.38.070; Heart of the City Specific Plan § 1.01.030[5]
Menlo Park	45° profile from 28 ft (R-3 near downtown); from 25 ft (R-4-S)	Menlo Park MC §§ 16.20.030, 16.23.050
Redwood City	MUC: 45° plane from 28 ft (residential) or 15 ft (commercial, mixed-use)	Redwood City Zoning Code § 53.7(B)

> **REDWOOD CITY** Redwood City Zoning Code § 53.7
> Residential buildings shall not intercept a forty-five-degree daylight plane inclined inward from twenty-eight (28) feet above existing grade at the property line of the parcel immediately adjacent to the R-1, R-2, and R-3 district boundary line.

[5]City of Cupertino, *Heart of the City Specific Plan*, § 1.01.030(C)(2) (rear setback equal to 1.5 times building height, minimum 20 feet, along residential properties), https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/planning/land-use-plans/heart-of-the-city-specific.pdf. Opened 2026-10-13.

> **SUNNYVALE** Sunnyvale MC § 19.36.100
> Daylight plane is a component of the allowable building envelope, which is measured from the point at grade along any side or rear yard lot line shared with a non-Plan Area property.

Difference and effect. A 150-foot band at 35 feet cuts the top floor or two of a 50-foot project on a lot with residential neighbors, and on a shallow El Camino Real lot it can cover the whole site. Other cities' planes reduce height close to the line and let it rise farther away. The 50-foot reduction depends on discretionary Planning Director approval after Architectural Review Board (ARB) review, which adds approval risk. Projects under the Housing Incentive Program use a 50-foot band instead. Cupertino's added-setback rule is a fixed step in distance rather than a height band or plane. San José's urban village plans and Mountain View's precise plans may contain transition rules outside the codes reviewed.

Context. Palo Alto's objective design standards in Chapter 18.24 contain step-back and daylight-plane rules that this entry does not cover.

3.5 Ground-floor commercial space required in housing projects

More permissive ●●○ Moderate *Smaller required commercial area than Sunnyvale; similar to Santa Clara*

Palo Alto rule	PAMC § 18.16.060; PAMC § 18.13.040; PAMC § 18.29.060; PAMC § 18.18.060
Applies to	Residential mixed-use projects; large multifamily projects in RM-30 and RM-40
Rule source	Municipal code
Status	Current

Summary. Palo Alto requires a ground-floor commercial floor area ratio (FAR) of 0.15 in mixed-use projects in the CN, CS and CC(2) districts (0.25 in the California Avenue parking district), and none for residential projects on El Camino Real CN and CS sites or in CC(2), unless retail preservation rules apply. Sunnyvale requires 7,000 to 60,000 square feet on its El Camino Real sites. Santa Clara requires a commercial FAR of 0.1 to 0.2. Menlo Park's R-MU district, Redwood City's mixed-use corridor district and Cupertino's zoning code do not set a minimum. Retail preservation overlays are described in entry 6.3.

Palo Alto. The mixed-use table in PAMC § 18.16.060(b) sets the minimum, with an exception for housing:

> **PALO ALTO** PAMC § 18.16.060
> In the CC(2) zone and on CN and CS zoned sites on El Camino Real, there shall be no minimum mixed use ground floor commercial FAR for a residential project, except to the extent that the retail preservation requirements of Section 18.40.180 or the retail shopping (R) combining district (Chapter 18.30(A)) applies.

Other Palo Alto rules: an RM-30 or RM-40 project of 40 or more units more than 500 feet from neighborhood services must include at least 1,500 square feet of neighborhood-serving retail (PAMC § 18.13.040(f)(6)), and optional commercial space in such projects is capped at 5,000 square feet or 3% of residential floor area with a conditional use permit (§ 18.13.040(f)(1)). North Ventura requires a 0.15 minimum in mixed-use districts (PAMC § 18.29.060). CD-C projects must design ground-floor space for retail (PAMC § 18.18.060(f)). The Housing Incentive Program keeps the underlying minimum (PAMC § 18.14.030, Table 5).

Comparison.

Jurisdiction	Requirement for housing projects	Citation
Palo Alto	0.15 FAR (CN, CS, CC(2)); none for housing on El Camino Real, CC(2); 1,500 sq ft in large RM projects	PAMC §§ 18.16.060, 18.13.040(f)
San José	Set by Citywide Design Standards and Guidelines (not in the code text)	San José MC § 20.55.100
Santa Clara	Minimum commercial FAR 0.1 (MU-NC, MU-CC), 0.2 (MU-RC, MU-VHD)	Santa Clara CC § 18.14.030
Sunnyvale	7,000–60,000 sq ft by lot size, or 75% of frontage × 50 ft; plus active-use area	Sunnyvale MC §§ 19.36.090, 19.36.100
Mountain View	Not located	Precise plans not in corpus
Los Altos	Not located	Not reviewed
Cupertino	No minimum in code; P(CG, R-3/R-4) sites may add first-floor commercial that is not the primary use; Heart of the City plan prefers housing behind street-fronting retail[6]	Cupertino MC § 19.80.030(E)(4)
Menlo Park	R-MU: nonresidential is a 15–25% FAR maximum, not a minimum	Menlo Park MC § 16.45.050
Redwood City	Not required; retail frontage qualifies for bonus height	Redwood City Zoning Code § 53.7(B)(3)

> **SUNNYVALE** Sunnyvale MC § 19.36.090
> Each mixed-use development (including both office and residential mixed-use developments) shall be subject to devoting a portion of the ground floor area to a commercial use.

> **REDWOOD CITY** Redwood City Zoning Code § 53.7
> The ground-floor frontage along all major streets will be occupied by retail or restaurant uses for a depth of no less than twenty (20) feet.

Difference and effect. The Palo Alto minimum is small. A 0.15 FAR is about 6,500 square feet on a 1-acre site, against 7,000 square feet in Sunnyvale for sites of 50,000 square feet or less and up to 60,000 on larger sites. Waiving it on El Camino Real housing projects removes a cost and a financing constraint, but Palo Alto's separate retail preservation rules (PAMC § 18.40.180) can reinstate it on listed sites. The rating is moderate because it applies to a narrow set of sites. The direction reflects only the housing-project minimum.

Context. The overlap with commercial-office is on retail preservation; this entry covers only requirements that attach to housing projects.

[6] City of Cupertino, *Heart of the City Specific Plan*, § 1.01.020 (preferred location for residential units "behind primary street fronting retail/commercial uses"; a "viable and substantial retail component"), https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/planning/land-use-plans/heart-of-the-city-specific.pdf. Opened 2026-10-13.

3.6 Usable open space required per dwelling unit

Unclear ●○○ Low *Mid-range; below Sunnyvale and Santa Clara, above Redwood City*

Palo Alto rule	PAMC § 18.13.040; PAMC § 18.16.060; PAMC § 18.18.060; PAMC § 18.29.060; PAMC § 18.34.040; PAMC § 18.40.230
Applies to	Multifamily housing; residential mixed-use
Rule source	Code and non-code rules
Status	Current

Summary. Palo Alto requires 150 square feet of usable open space per unit in its multifamily and mixed-use districts, of which at least 75 square feet is common and 50 square feet private in the RM districts. Sunnyvale (380 to 400) and Santa Clara (200 common plus 40 to 60 private) require more. Redwood City (125), Menlo Park's downtown plan (100 common or 80 private) and San José (about 105 to 160 for projects of 15 or more units) require similar or less. Cupertino's zoning sets only private space (60 square feet per unit in R-3 for five or more units, 48 in R-4) and no common area, while its Heart of the City plan requires 150 common plus 60 private. Los Altos is not located. Palo Alto lets rooftop gardens count for up to 60% of the requirement in some commercial districts.

Palo Alto. Table 2 of PAMC § 18.13.040 sets 150 square feet per unit in RM-20, RM-30 and RM-40 (minimum 75 common and 50 private), with 20 to 35% landscape or open-space coverage. Table 4 of PAMC § 18.16.060 and Table 3 of PAMC § 18.18.060 set 150 square feet per unit in commercial districts, with minimum dimensions of 6 feet (private) and 12 feet (common):

> **PALO ALTO** PAMC § 18.16.060
> Required usable open space: (1) may be any combination of private and common open spaces; (2) does not need to be located on the ground (but rooftop gardens are not included as open space except as provided below);

On CN and CS sites on El Camino Real, CS sites on San Antonio Road and CC(2) sites not abutting low-density housing, rooftop gardens can supply 60% of the requirement if they meet PAMC § 18.40.230 (third story or higher; 15 to 25% landscaped). North Ventura requires 150 square feet (PAMC § 18.29.060). The PTOD district requires 200 square feet per unit for projects of five or fewer units and 100 for larger ones (PAMC § 18.34.040). Housing Element Table 3 sites require 100 square feet (PAMC § 18.14.020).

Comparison. Per dwelling unit, multifamily districts.

Jurisdiction	Requirement	Citation
Palo Alto	150 sq ft (75 common, 50 private in RM); 100–200 in some overlays	PAMC §§ 18.13.040, 18.16.060
San José	15+ units: common 100 (residential) or 75 (mixed use) plus private 40–60 or 30–45; under 15 units: private only	San José MC § 20.55.102
Santa Clara	R3, R4: 200 common plus 60 private (for 50% of units); R5, R6: 200 common plus 40	Santa Clara CC § 18.10.030
Sunnyvale	R-3: 400; R-4, R-5: 380, plus 375–425 landscaped	Sunnyvale MC § 19.37.040
Mountain View	R3: 55% open area, 40 private; R4: 30% open area, 40 private average	Mountain View CC §§ 36.10.70, 36.12.10
Los Altos	Not located	Not located

Jurisdiction	Requirement	Citation
Cupertino	R-3 (5+ units): private 60 sq ft per unit, no common area stated; R-4: private 48; Heart of the City plan: 150 common plus 60 private[7]	Cupertino MC §§ 19.36.070, 19.38.070; Heart of the City Specific Plan § 1.01.040(C)[8]
Menlo Park	R-3: 25% landscaping; El Camino Real/Downtown Plan: 100 common or 80 private	Menlo Park MC § 16.20.030; specific plan worksheet[9]
Redwood City	125	Redwood City Zoning Code § 32.9

> **SUNNYVALE** Sunnyvale MC § 19.37.040
> Usable open space is required for all duplex and multifamily residential properties as described in Table 19.37.040.

> **REDWOOD CITY** Redwood City Zoning Code § 32.9
> There shall be one hundred twenty-five (125) square feet of usable open space per dwelling unit.

Difference and effect. The effect on a project depends on which city is the comparison: Palo Alto's 150 square feet per unit is lower than Sunnyvale's and Santa Clara's totals and higher than Redwood City's and Menlo Park's downtown plan. On a 40-unit project it is 6,000 square feet, against 15,000 or more in Sunnyvale, and the rooftop credit lets podium projects meet it above grade. Mountain View and Menlo Park's R-3 use percentage-of-site rules, so the per-unit area depends on density. Cupertino's code figure is lower than Palo Alto's, but projects on the Stevens Creek Boulevard corridor face a higher combined figure under the specific plan. Palo Alto's landscape coverage minimums (20 to 35%) apply in addition. The difference is small in effect, which is why salience is low.

[7] City of Cupertino, *Heart of the City Specific Plan*, § 1.01.040(C)(2) (common usable outdoor space of at least 150 square feet per unit for multi-unit buildings; private outdoor space of at least 60 square feet per unit), https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/planning/land-use-plans/heart-of-the-city-specific.pdf. Opened 2026-10-13.

[8] City of Cupertino, *Heart of the City Specific Plan*, § 1.01.040(C)(2) (common usable outdoor space of at least 150 square feet per unit for multi-unit buildings; private outdoor space of at least 60 square feet per unit), https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/planning/land-use-plans/heart-of-the-city-specific.pdf. Opened 2026-10-13.

[9] City of Menlo Park, *El Camino Real/Downtown Specific Plan Standards and Guidelines: Project Compliance Worksheet*, standard E.3.6.01, https://menlopark.gov/files/sharedassets/public/community-development/documents/ecr-d_standards-and-guidelines-table_201412051205413232.pdf. Opened 2026-10-12.

4 Housing incentives and streamlined approvals

4.1 Local housing incentive programs as an alternative to state density bonus

More permissive ●●● High *Broadest local alternative to density bonus of the nine cities*

Palo Alto rule	PAMC § 18.14.030; PAMC § 18.14.040; PAMC § 18.14.020
Applies to	Multifamily housing in RM-20 to RM-40, commercial and El Camino Real zones; 100% affordable housing
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto offers two local programs that replace the state Density Bonus Law for projects that choose them. The Housing Incentive Program lifts residential density limits in most commercial zones and sets floor area ratio (FAR) caps of 2.0 to 3.5 and heights of 40 to 60 feet for any multifamily project, with no affordability set-aside in the chapter itself. The Affordable Housing Incentive Program allows 100% affordable rental projects a 2.4 FAR, 50 to 60 feet of height and parking of 0.5 spaces per unit or none. Menlo Park, Mountain View and San José have local programs of narrower reach. Santa Clara, Sunnyvale, Los Altos, Cupertino and Redwood City rely on state law in the sections reviewed.

Palo Alto. Both programs were added in 2024 and 2025 to carry out the 2023–2031 Housing Element. The Housing Incentive Program applies in RM-20, RM-30 and RM-40, the GM/ROLM Focus Area, CC(2), CN and CS sites on El Camino Real, CS sites on San Antonio Road, CD(C) and the North Ventura (NV) districts. Table 6 sets maximum FAR by district, higher on Housing Element opportunity sites (for example 3.5 in CC(2) and CS on El Camino Real against 2.6 and 2.85 elsewhere), plus an extra 0.5 FAR when at least 10 percent of units have three or more bedrooms. Residential density is capped only in RM zones (40 or 60 dwelling units per acre). Minimum parking is 1 space for studios and 1-bedroom units and 1.5 for larger units. Eligible projects that meet objective design standards go through the streamlined process described in entry 4.3; others go to architectural review. The Affordable Housing Incentive Program covers 100% affordable rentals (households at or below 120 percent of area median income, average rent at 100 percent) on opportunity sites, near major transit, or on Housing Incentive Program sites.

> **PALO ALTO** PAMC § 18.14.030(a)
> The housing incentive program modifies base zoning district standards and streamlines review to encourage higher-density multi-family housing production. The program is a local alternative to State Density Bonus Law.

An applicant uses either program or state density bonus under Chapter 18.15, not both.

> **PALO ALTO** PAMC § 18.14.040(b)
> If an applicant utilizes state density bonus law, the regulations in this section shall not apply.

Comparison.

Jurisdiction	Local alternative to state density bonus	Citation
Palo Alto	Housing Incentive Program (FAR 2.0 to 3.5, 40 to 60 ft; no density cap outside RM) and Affordable Housing Incentive Program (100% affordable: FAR 2.4, 50 to 60 ft, 0 to 0.5 parking)	PAMC §§ 18.14.030, 18.14.040
San José	No general local bonus. Overlays for 100% affordable housing in North San José (75 to 250 du/ac, 270 ft) and mixed-income housing	San José MC §§ 20.65.070 to 20.65.100; ch. 20.190
Santa Clara	None located; chapter implements state law. A separate bonus for commercial developers who fund housing	Santa Clara CC §§ 18.64.010, 18.64.130

Jurisdiction	Local alternative to state density bonus	Citation
Sunnyvale	None located; state law "and other development incentives adopted by the city council"	Sunnyvale MC § 19.18.025
Mountain View	Precise-plan bonus FAR: either/or with state bonus where it exceeds general plan density; combinable where at or below it	Mountain View CC § 36.48.80(c)
Los Altos	None; state law only, capped at state minimums, with a menu of on-menu concessions (for example 11 ft of height)	Los Altos MC § 14.28.046
Cupertino	None in ch. 19.56 or the code sections read (Heart of the City and North De Anza plans not reviewed); ch. 19.56 implements state law, with parking capped at 1 to 2.5 spaces by bedroom count and discretion to exceed the bonus maximum for 100% lower-income projects	Cupertino MC §§ 19.56.010, 19.56.030(F)(6), 19.56.040(C)
Menlo Park	Affordable Housing Overlay: bonus up to 60% (80% if 100% affordable), with FAR, height, parking and fee incentives; density bonus may be combined with state bonus at 25%+ affordable (§ 16.98.050(3)), though § 16.97.050(c) says otherwise; below market rate bonus of one market unit per affordable unit	Menlo Park MC §§ 16.98.050, 16.98.060, 16.96.040
Redwood City	None located; summarizes state law	Redwood City Zoning Code § 32.19

> **MENLO PARK** Menlo Park MC § 16.98.060(10)
> Incentives and fee waivers granted pursuant to this section shall not be combined with any incentives or fee waivers granted pursuant to the State Density Bonus Law (Government Code Section 65915 et seq.).

> **MOUNTAIN VIEW** Mountain View CC § 36.48.80(c)
> Where bonus FAR allows densities that are greater than the maximum allowable residential density in the general plan, a project may qualify for either a density bonus under the State Density Bonus Law or under the bonus FAR program established in the applicable zoning or precise plan, and an applicant may elect to apply for either bonus program for which its project qualifies, but not both.

Difference and effect. Palo Alto and Menlo Park write local programs that replace state density bonus, and Mountain View's precise-plan bonus FAR is an alternative in some cases. Only Palo Alto's Housing Incentive Program has no stated affordability requirement; affordable units in these projects arise from the inclusionary rules (see entry 5.1). Menlo Park's overlay requires at least 20 percent affordable units. Projects meeting objective design standards receive a streamlined Director review and other projects go to architectural review (PAMC § 18.14.030(f)); neither is by right. The base FAR in the underlying districts was not compared against state bonus outcomes. The Housing Incentive Program parking ratios equal the base ratio for studios and 1-bedroom units (1) and are below it for units with 2 or more bedrooms (1.5 against 2); see entry 7.1. Salience is high because the programs cover most multifamily-zoned and commercial land Palo Alto expects to produce housing on. The comparison cities mostly route projects through state density bonus, whose benefits depend on affordability set-asides.

Context. The Housing Element was found in substantial compliance by the state Department of Housing and Community Development (HCD) on August 20, 2024, and HCD named the incentive program among those the city must monitor.[10] Before that date Palo Alto had no certified element, and developers filed builder's remedy applications at sites including 156 California Avenue, 3150 El Camino Real, 3400 El Camino Real and 3997 Fabian Way.[11] Later press reports say three developers agreed to pause and pursue

[10] Mountain View Voice, "Palo Alto wins state blessing for housing plan" (August 20, 2024), https://www.mv-voice.com/housing/2024/08/20/palo-alto-wins-state-blessing-for-housing-plan/. Opened 2026-10-12.

[11] Mountain View Voice, "Palo Alto wins state blessing for housing plan" (August 20, 2024), https://www.mv-voice.com/housing/2024/08/20/palo-alto-wins-state-blessing-for-housing-plan/. Opened 2026-10-12.

code-compliant proposals; this entry does not trace their outcomes. Ordinance dates in PAMC § 18.14.030 and § 18.14.040 are 2025 (Ord. 5650, 5657).

4.2 Implementation of SB 79 transit-oriented upzoning

More restrictive ●●○ Moderate *Local standards set at half of state capacity; others use exclusions*

Palo Alto rule	PAMC § 18.14.070
Applies to	Multifamily housing within one-half mile of qualifying rail and bus rapid transit stops
Rule source	Code and non-code rules
Status	Change adopted or pending (see Context)

Summary. Senate Bill 79 (2025) took effect on July 1, 2026 and allows taller, denser housing near qualifying transit stops (in the Bay Area, Caltrain and similar rail stops). Palo Alto adopted a temporary ordinance on June 15, 2026, effective July 16, that sets interim standards at 50 percent of the capacity SB 79 allows and exempts locally designated historic resources. San José, Sunnyvale and Mountain View used narrower exclusions, and Menlo Park's council, as reported, did not delay SB 79's application downtown. Cupertino's council memo says SB 79 will not affect the city. Santa Clara, Los Altos and Redwood City were not located.

Palo Alto. PAMC § 18.14.070 creates a Transit Oriented Development (TOD) Combining District covering sites within one-half mile of a TOD stop, except city-owned sites and sites designated as local historic resources by January 1, 2025. Within one-quarter mile the maximum residential FAR is 1.75, between one-quarter and one-half mile it is 1.5, and adjacent to a stop it is the greater of 2.25 or the underlying zone's FAR. Setbacks are 10 feet front and rear and 4 feet on the sides, with a 16-foot, 45-degree daylight plane against low-density residential districts. There is no maximum density; minimum density is the greater of 30 dwelling units per acre or 5 units, and maximum site coverage is 70 percent.

> **PALO ALTO** PAMC § 18.14.070(b)
> It is the intention of the City Council that the TOD Combining District permit development in accordance with the development standards set forth herein.

Comparison.

Jurisdiction	SB 79 implementation	Citation
Palo Alto	Interim TOD district at 50% of state capacity (FAR 1.5 to 2.25); historic resources exempt	PAMC § 18.14.070
San José	Local implementing ordinance; excludes five industrial employment hubs; sites allowing residential remain covered	San José MC §§ 20.197.030, 20.197.040
Santa Clara	Not located	Not located
Sunnyvale	Murphy Station Heritage Landmark District excluded until one year after the 7th-cycle element	Sunnyvale MC § 19.96.170
Mountain View	Small deferral for historic resources, as reported by California YIMBY; code text not located	Not in code[12]
Los Altos	Not located	Not located

[12] California YIMBY, "SB 79 one month in: taking stock of California YIMBY's signature bill" (2026), https://cayimby.org/blog/sb-79-one-month-in-taking-stock-of-california-yimbys-signature-bill/. Opened 2026-10-12.

Jurisdiction	SB 79 implementation	Citation
Cupertino	No ordinance located; city staff memo says SB 79 "will not impact Cupertino"[13]	Not in code
Menlo Park	Council chose not to defer downtown, as reported by California YIMBY; code text not located	Not in code[14]
Redwood City	Not located	Not located

> **SAN JOSÉ** San José MC § 20.197.040(A)
> Consistent with Government Code Section 65912.160(e)(2), Industrial Employment Hubs are hereby exempted from the provisions of SB 79 and housing shall not be a permitted use on any of the sites so excluded.

> **SUNNYVALE** Sunnyvale MC § 19.96.170
> In accordance with Government Code Section 65912.161(b)(1), the Murphy Station Heritage Landmark District, as a historic resource designated on the local register of the city of Sunnyvale prior to January 1, 2025, and all sites within the District's boundaries, shall be excluded from applicability of Government Code Section 65912.157, until one year following the adoption of the seventh revision of the housing element.

Difference and effect. Palo Alto's interim standards are described by the city as 50 percent of the development capacity SB 79 otherwise permits.[15] The city reports nine pre-applications proposing 341 housing units and says formal submittals are due within 180 days to comply with SB 330.[16] The code's historic-resource exclusion uses the Historic Resources Inventory as of January 1, 2025. The city says jurisdictions may prepare a TOD Alternative Plan subject to HCD review. California YIMBY, an advocacy group, wrote on August 3, 2026 that Palo Alto and Beverly Hills are "trying to keep the SB 79 limitation on bonus height in their local plans" and called this a "clear violation of state housing law"; that is an advocacy view.[17] Salience is moderate: the scope is limited to sites near a few stops, but those include Palo Alto's densest commercial areas.

Context. The city expects to codify the temporary ordinance over six to twelve months and has not said whether it has submitted an alternative plan.[18] The status page gives no ordinance number; PAMC § 18.14.070 cites Ord. 5703 (2026), which the page does not confirm is the same ordinance. Other cities' decisions come from press analysis, not codes, and may have changed.

[13] City of Cupertino, Council informational memorandum, 2025 legislative wrap-up (October 30, 2025), https://www.cupertino.gov/files/assets/city/v/2/departments/documents/city-council/council-informational-memos/2025/informational-memorandum-2025-legislative-wrap-up-10.30.25-final.pdf. Opened 2026-10-13. It refers to a September 25, 2025 informational memo, not opened.

[14] California YIMBY, "SB 79 one month in: taking stock of California YIMBY's signature bill" (2026), https://cayimby.org/blog/sb-79-one-month-in-taking-stock-of-california-yimbys-signature-bill/. Opened 2026-10-12.

[15] City of Palo Alto, "Status of the City's Temporary SB 79 Implementation Regulations" (August 4, 2026), https://www.paloalto.gov/News-Articles/City-Manager/Status-of-the-Citys-Temporary-SB-79-Implementation-Regulations. Opened 2026-10-12.

[16] City of Palo Alto, "Status of the City's Temporary SB 79 Implementation Regulations" (August 4, 2026), https://www.paloalto.gov/News-Articles/City-Manager/Status-of-the-Citys-Temporary-SB-79-Implementation-Regulations. Opened 2026-10-12.

[17] California YIMBY, "SB 79 one month in: taking stock of California YIMBY's signature bill" (2026), https://cayimby.org/blog/sb-79-one-month-in-taking-stock-of-california-yimbys-signature-bill/. Opened 2026-10-12.

[18] City of Palo Alto, "Status of the City's Temporary SB 79 Implementation Regulations" (August 4, 2026), https://www.paloalto.gov/News-Articles/City-Manager/Status-of-the-Citys-Temporary-SB-79-Implementation-Regulations. Opened 2026-10-12.

4.3 By-right sites and ministerial or streamlined housing approval

Mixed ●●○ Moderate *Mid-range; fewer local ministerial tracks than San José, more than Los Altos*

Palo Alto rule	PAMC § 18.14.050; PAMC § 18.14.060; PAMC § 18.77.073; PAMC § 18.77.074
Applies to	Multifamily housing on Housing Element sites; 100% affordable and supportive housing; projects using incentive programs
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto makes multifamily projects on qualifying lower-income Housing Element sites a use by right if they meet four conditions, including 20 percent lower-income units, and it adds by-right tracks for affordable housing on college and religious land and for supportive housing. Projects using the local incentive programs that meet objective design standards get a Director decision under a separate streamlined process, which still involves a notice, an optional Architectural Review Board (ARB) study session and an appeal to the City Council. San José, Sunnyvale and Redwood City have broader or more specific local ministerial tracks, and Cupertino has a by-right rule for lower-income Housing Element sites much like Palo Alto's. Menlo Park, Los Altos and Santa Clara have none beyond state mandates in the sections reviewed.

Palo Alto. PAMC § 18.14.050 applies "use by right" status (as defined in Gov. Code § 65583.2(i)) to multifamily projects that meet all four conditions: the site is designated in Appendix D for lower-income households and is either nonvacant and in one prior housing element or vacant and in two or more consecutive prior elements; the site was not previously approved to meet part of the regional housing need allocation; at least 20 percent of units are restricted to lower-income households; and utilities are available. PAMC § 18.14.060 adds by-right treatment, with no discretionary or California Environmental Quality Act (CEQA) review, for qualifying projects on higher education and religious land (Gov. Code § 65913.16) and for supportive housing in zones allowing multifamily use. Both go through PAMC § 18.77.074, a staff review against objective standards by the Planning Director.

> **PALO ALTO** PAMC § 18.77.074(a)(1)
> This section is intended to define a streamlined, ministerial review process for qualifying Housing Development Projects that are submitted pursuant to streamlining provisions of state law, such as AB 2162 (2018), AB 1397 (2017), and SB 35 (2017).

PAMC § 18.77.073 is a different track for projects that comply with objective standards, including those using the incentive programs in entry 4.1. The Director may refer the project to the ARB for non-binding adjustments, notice goes to owners and residents within 600 feet, the decision becomes final 10 days after notice unless appealed, and appeals go to the City Council. Notice and appeal procedures generally are covered in entry 8.3, and the scope of architectural review in entry 8.2. Review under § 18.77.073 must find compliance with objective standards and no specific adverse impact on health or safety.

Comparison.

Jurisdiction	Local by-right or ministerial track beyond state mandates	Citation
Palo Alto	By right on qualifying lower-income Housing Element sites (four conditions, including 20% lower-income units); college, religious-land and supportive housing; Director decision with notice and appeal for incentive-program projects	PAMC §§ 18.14.050, 18.14.060, 18.77.073, 18.77.074

Jurisdiction	Local by-right or ministerial track beyond state mandates	Citation
San José	State ministerial process, plus a local option for housing in three overlays (affordable, mixed-income, Housing Element) and for streamlined infill housing; Director decides, CEQA exempt	San José MC §§ 20.195.200, 20.195.300 to 20.195.330
Santa Clara	None located; AB 2011 projects allowed in commercial zones	Santa Clara CC § 18.12 (AB 2011 provision)
Sunnyvale	By right on about 60 listed sites with 20% lower-income units and no subdivision; ministerial miscellaneous plan permit	Sunnyvale MC §§ 19.73.020, 19.73.030
Mountain View	Director-level "ministerial housing approvals" for state-mandated approvals	Mountain View CC § 36.44.10
Los Altos	None located	Not located
Cupertino	By right for Housing Element Priority Housing Sites with 20% lower-income units (administrative hearing up to 50 units, Planning Commission above); supportive housing of 7 to 50 units; objective-standards findings	Cupertino MC §§ 19.12.030, 19.168.030(B)
Menlo Park	None located	Not located
Redwood City	Ministerial review for 100% affordable projects (two or more units, at least two-thirds residential), up to 3 stories above height limit	Redwood City Zoning Code § 41.15

> **SUNNYVALE** Sunnyvale MC § 19.73.030(a)
> An applicant for a housing development project eligible for by-right zoning approval shall submit a ministerial miscellaneous plan permit for approval of the design pursuant to Section 19.82.020(b). No discretionary permit or approval is required.

> **REDWOOD CITY** Redwood City Zoning Code § 41.15
> A housing project, including a mixed-use project, shall be subject to ministerial review if it complies with the following:

> **SAN JOSÉ** San José MC § 20.195.300
> This Section may be used instead of, but not in addition to, the State Streamlined Ministerial Approvals allowed pursuant to applicable Government Code Sections, for this Chapter of the San José Municipal Code.

Difference and effect. Palo Alto's by-right status for Housing Element sites mirrors the state requirement that lower-income sites carried forward from prior elements be by right, and Sunnyvale applies the same rule through a parcel list, and Cupertino through its Priority Housing Sites with a Director or Planning Commission hearing. Palo Alto's list is the Appendix D designation rather than a table in the code. The difference that matters for projects is that Palo Alto's incentive-program track keeps a notice, an optional ARB study session and a Council appeal, so it is not ministerial. San José's local option and Redwood City's 100% affordable option decide by staff without that step. Salience is moderate: most projects use state streamlining or the incentive programs, so the effect depends on site and project type.

Context. Redwood City added § 41.15 on July 27, 2026 (Ord. 1130-892), so it is recent. Palo Alto amended §§ 18.14.050 to 18.14.060 and 18.77.074 in 2024 and 2025.

5 Inclusionary housing and redevelopment of existing housing

5.1 Inclusionary affordable-unit requirements for ownership and rental housing

Mixed ●●● High *Ownership similar to peers; rental is fee-only, unlike most peers*

Palo Alto rule	PAMC § 16.65.025; PAMC § 16.65.030; PAMC § 16.65.040; PAMC § 16.65.080; PAMC § 18.14.020
Applies to	Residential ownership projects of 3 or more units; residential rental projects; mixed-use projects with housing
Rule source	Municipal code
Status	Current

Summary. Palo Alto requires on-site affordable units in ownership projects of three or more units: 15 percent on sites under five acres, 20 percent on sites of five acres or more and for townhomes in the Neighborhood Village (NV) districts, and 25 percent when rental housing is converted or removed. Market-rate rental projects have no on-site requirement outside the NV districts and the El Camino Real Focus Area; they pay a housing impact fee instead (see entry 5.2). All eight comparison cities set an on-site rental requirement for at least some projects, usually 15 to 20 percent, with the requirement starting at 3 units in Sunnyvale, 5 in Menlo Park, Los Altos and Cupertino, 10 in Santa Clara and 20 in San José and Redwood City (Redwood City charges a fee for 5 to 19 units). Palo Alto's ownership percentage is in the common range (Cupertino sets 20 percent), and its three-unit threshold is lower than every peer's except Mountain View, which has none, and Cupertino, which offers a fee or one-unit option from the first unit.

Palo Alto. PAMC § 16.65.030 sets the ownership percentages. Two-thirds of the affordable units go to households at 80 to 100 percent of area median income (AMI) and one-third to households at 100 to 120 percent (four-fifths and one-fifth for conversions). Projects of one or two units are exempt (PAMC § 16.65.025(a)). Rental projects are routed to fees:

> **PALO ALTO** PAMC § 16.65.040
> all mixed use, nonresidential and residential rental projects shall pay housing impact fees as specified in Section 16.65.060 to mitigate the projects' impacts on the need for affordable housing

The exceptions are rental projects in the NV districts, which provide 15 percent of units at lower-income rents (PAMC § 16.65.040(a)(2)), and sites in the El Camino Real Focus Area, which provide 20 percent at up to 80 percent of AMI in place of the basic requirement (PAMC § 18.14.020). The City Council may approve off-site units, land, rehabilitation or an in-lieu fee for ownership projects only after the applicant shows each higher-priority option is infeasible (PAMC § 16.65.080(b)).

Comparison. Percentages are of total units, excluding density bonus units where the code says so.

Jurisdiction	Ownership	Rental	Minimum project size	Citation
Palo Alto	15% (under 5 acres); 20% (5+ acres; NV townhomes); 25% (conversions); 80–120% AMI	Fee only (applicant may elect affordable rent instead, PAMC § 16.65.080(c)); 15% lower-income in NV; 20% at 80% AMI in El Camino Real Focus Area	3 units (ownership)	PAMC §§ 16.65.025, 16.65.030, 16.65.040, 18.14.020

Jurisdiction	Ownership	Rental	Minimum project size	Citation
San José	15% at up to 120% AMI (10% if 30+ du/acre)	15%: 5% each at moderate, 60% AMI, 80% AMI	20 units	San José MC §§ 5.08.320, 5.08.400
Santa Clara	15%, average up to 100% AMI	15%, average up to 100% AMI (under 10 units: one unit or fee)	10 units (smaller: one unit or fee)	Santa Clara CC §§ 17.40.080, 17.40.090
Sunnyvale	15% (7.5% in some Village Mixed Use sites)	15%: 10% low, 5% very low	7 units (ownership); 3 units (rental)	Sunnyvale MC §§ 19.67.030, 19.67.050, 19.77.030, 19.77.050, 19.77.070
Mountain View	15% moderate (average 100% AMI); 25% for rowhouses and townhouses	15%, average up to 65% AMI	All residential development	Mountain View CC § 36.40.10
Los Altos	15%, majority moderate	20% low or 15% very low (10+ units); 15% (5–9 units, or fee)	5 units	Los Altos MC § 14.28.020
Cupertino	20% (5+ units); 1–4 units: fee or one BMR unit	15% (5+ units); 1–4 units: fee or one BMR unit	1 unit (fee or one BMR unit); 5 units for the percentage	BMR Manual §§ 4.2–4.3, 5.2–5.3 (non-code; Cupertino MC § 19.172.020 adopts it by reference)[19]
Menlo Park	10% (under 20 units); 15% (20+)	Same	5 units	Menlo Park MC § 16.96.020
Redwood City	15% moderate	20%: 10% moderate, 5% low, 5% very low	20 units on site; 5–19 units pay fee	Redwood City Zoning Code §§ 29.3, 29.4

> **SAN JOSÉ** San José MC § 5.08.400
> Rental Residential Development: Five percent (5%) of the total Dwelling Units in the Residential Development shall be made available for rent at an Affordable Housing Cost to Moderate Income Households

> **SUNNYVALE** Sunnyvale MC § 19.77.050
> At least 15% of the total number of rental units in a project shall be developed as affordable rental units

> **MOUNTAIN VIEW** Mountain View CC § 36.40.10
> All residential development as defined in Sec. 36.40.05 are subject to the BMR program and shall provide at least fifteen percent (15%) of the total number of dwelling units as affordable units.

Difference and effect. For ownership housing, Palo Alto's 15 percent matches San José, Santa Clara, Sunnyvale, Mountain View, Los Altos and Redwood City (Menlo Park sets 10 percent under 20 units; Cupertino sets 20 percent for projects of five or more units), and its 20 percent tier and 25 percent conversion tier are comparable to Cupertino's 20 percent and Mountain View's 25 percent for townhomes. The three-unit threshold applies the requirement to smaller projects than any other city except Mountain View, which has none, and Cupertino, where projects of one to four units pay a fee or provide one unit; San José starts at 20 units. For rental housing, a Palo Alto project outside the NV districts and the Focus Area pays a per-square-foot fee instead of reserving units (an applicant may instead propose affordable rents,

[19]City of Cupertino, *Below Market Rate (BMR) Housing Mitigation Program Procedural Manual* (adopted July 2, 2024), https://www.cupertino.gov/files/assets/city/v/2/residents/documents/bmr-housing-mitigation-procedures-manual-july-2024.pdf. Opened 2026-10-13. Non-code source.

PAMC § 16.65.080(c)). The other cities require 15 to 20 percent on site for rental projects above their size thresholds (3 to 20 units; Cupertino 5 units), with fee or alternative options that vary by city; in Redwood City, as in Palo Alto, rental projects of 5 to 19 units pay a fee. The rental difference lowers the physical set-aside Palo Alto rental projects carry. The fee that replaces it is described in entry 5.2. Salience is high because the percentage applies to most multifamily and subdivision projects.

Context. Projects that use the state density bonus law keep affordable units that qualify toward the bonus, and Palo Alto excludes density bonus units from the unit count (PAMC § 16.65.030(a)(4)). Builder's remedy projects in the El Camino Real Focus Area may provide units under the standard in Government Code § 65589.5 instead of the 20 percent rule (PAMC § 18.14.020). Palo Alto amended Chapter 16.65 in 2024 (Ord. 5634), and Mountain View (Ord. 9.2026) and Redwood City (Ord. 1130-892) amended their programs in 2026. Rental and fee options in several cities can also be altered by individual council approval, so the table shows the base rule. Cupertino's code defers the percentages to the Residential Housing Mitigation Program in its Housing Element and the council-adopted BMR manual, and states that the city's objective is to obtain actual units rather than fee payments (Cupertino MC § 19.172.020(B)).[20]

5.2 Housing impact (linkage) fees on commercial and rental residential development

More restrictive ●●○ Moderate *Highest office/R&D rate of 7 cities with confirmed rates*

Palo Alto rule	PAMC § 16.65.025; PAMC § 16.65.040; PAMC § 16.65.060
Applies to	Office; research and development (R&D); retail; hotel; market-rate rental housing; fractional-unit payments in ownership projects
Rule source	Not in code (see summary)
Status	Current

Summary. Palo Alto charges a housing impact fee on all new nonresidential floor area and on market-rate rental housing. The amounts are in the City's fee schedule, not the PAMC. For fiscal year 2026–27 the fee is $80.63 per square foot for office and R&D, $27.20 for retail and hotel, and $26.71 for rental apartments. The office/R&D rates confirmed in other cities' FY 2026–27 schedules range from $12.25 (Los Altos) to $36.36 (Cupertino; Mountain View charges $35.62 above 10,000 square feet), so Palo Alto's is more than twice every confirmed rate and 6.6 times Los Altos's. Los Altos's commercial/retail rate of $35.10 exceeds Palo Alto's $27.20. San José's linkage rates and Redwood City's housing rates could not be located in the schedules obtained. Palo Alto has no minimum project size for most uses; Menlo Park, Redwood City, Mountain View, Sunnyvale and Santa Clara reduce or exempt small projects.

Palo Alto. The PAMC states the legal limit and defers the amounts:

> **PALO ALTO** PAMC § 16.65.060
> Housing impact fees shall not exceed the cost of mitigating the impact of mixed-use, nonresidential and residential rental projects on the need for affordable housing in the city.

The City's fee information sheet (as of August 17, 2026) lists Office/R&D $80.63 per square foot, Hotel $27.20, Retail/Other $27.20 and Apartment (rentals) $26.71. It also lists $100.18 (single-family detached), $66.78 (single-family attached) and $66.38 (condominium) per square foot as in-lieu fees that apply only to

[20] City of Cupertino, *Below Market Rate (BMR) Housing Mitigation Program Procedural Manual* (adopted July 2, 2024), https://www.cupertino.gov/files/assets/city/v/2/residents/documents/bmr-housing-mitigation-procedures-manual-july-2024.pdf. Opened 2026-10-13. Non-code source.

fractional units or where Council accepts payment instead of on-site units.[21] PAMC § 16.65.025 exempts one- and two-unit projects, ADUs, places of worship, schools, hospitals and similar uses, and retail, eating, personal and automotive service uses of 1,500 square feet or less; larger projects of those types pay on all square footage.

Comparison. Dollars per square foot, FY 2026–27 schedules. Commercial rates are on net new floor area.

Jurisdiction	Office/R&D	Retail / hotel	Size threshold or reduction	Citation
Palo Alto	$80.63	$27.20	Retail and service uses of 1,500 sq ft or less exempt	PAMC §§ 16.65.025, 16.65.060; fee sheet[22]
San José	Not located (linkage rates are in a separate Housing Department schedule)[23]	Not located	Not located	San José MC ch. 5.11
Santa Clara	$15.51 (under 20,000 sq ft); $31.03 (20,000 sq ft or more)	Retail $7.76 (no fee under 5,000 sq ft); hotel $7.76	Mixed-use commercial up to 20,000 sq ft exempt at 30+ du/acre	Santa Clara CC §§ 17.40.070, 17.40.100; fee schedule[24]
Sunnyvale	$13.00 (first 25,000 sq ft); $25.00 (remainder)	Retail and lodging $12.00	Reduced rate on first 25,000 sq ft of office/R&D and industrial	Sunnyvale MC § 19.75.030; fee schedule[25]
Mountain View	$17.29 (first 10,000 sq ft); $35.62 (above)	Retail/hotel $2.20 (first 25,000); $3.78 (above)	Half-rate tier on first 10,000 (office) or 25,000 (retail, hotel) sq ft	Mountain View CC § 36.40.65; fee schedule[26]
Los Altos	$12.25[27]	Commercial/retail $35.10	Any net increase in floor area	Los Altos MC § 3.62.070

[21] City of Palo Alto, *Development Impact and In-Lieu Fees (as of August 17, 2026)*, https://www.paloalto.gov/files/assets/public/v/5/development-services/planning-review/6.-planning-fees/fy27-impact-fee-information-sheet.pdf. Opened 2026-10-12. Non-code source.

[22] City of Palo Alto, *Development Impact and In-Lieu Fees (as of August 17, 2026)*, https://www.paloalto.gov/files/assets/public/v/5/development-services/planning-review/6.-planning-fees/fy27-impact-fee-information-sheet.pdf. Opened 2026-10-12. Non-code source.

[23] City of San José, *2026-2027 Proposed Fees & Charges Report* (May 2026), proposed schedule not yet adopted; copy obtained from city website, October 2026. Non-code source.

[24] City of Santa Clara, *FY 2027 Adopted Municipal Fee Schedule* (Res. 26-9552, April 21, 2026); copy obtained from city website, October 2026. Non-code source.

[25] City of Sunnyvale, *Fee Schedule, Fiscal Year 2026-27*, sections L2 to L4; copy obtained from city website, October 2026. Non-code source.

[26] City of Mountain View, *FY 2026-27 Master Fee Schedule*, Below-Market-Rate and Housing Impact fees; copy obtained from city website, October 2026. Non-code source.

[27] City of Los Altos, *Development Impact Fee Schedule* (adopted; undated copy obtained from the city website, October 2026), Commercial Linkage Fee; residential in-lieu rates from *Fee Schedule FY 2026-27*. Non-code source.

Jurisdiction	Office/R&D	Retail / hotel	Size threshold or reduction	Citation
Cupertino	$36.36 (indexed each July 1)	Commercial/retail $15.34; hotel $18.18	Net new floor area; no minimum size; replacement floor area, government and institutional buildings exempt (program rules, non-code)	Fee schedule, Schedule C (FY 2026–27)[28]
Menlo Park	$23.26 (Group A)	$12.62 (Group B, other commercial)	Projects under 10,000 sq ft exempt	Menlo Park MC § 16.96.030; city page[29]
Redwood City	Not located (master fee schedule refers to a separate impact fee document)[30]	Not located	Projects of 5,000 sq ft or less exempt	Redwood City Zoning Code § 29.5

Residential rental in-lieu or impact rates in the same schedules, in dollars per square foot, are not directly comparable because the cities use different bases: Palo Alto $26.71 (rental apartments); Santa Clara $31.03 (any tenure); Sunnyvale $33.00 (7 or more units) and $16.50 (3 to 6 units); Cupertino $30.68 (up to 35 dwelling units per acre) and $38.35 (over 35), charged to projects of 1 to 4 units and for fractional units; Mountain View $98.00 (rental BMR in-lieu, applies to fractional units or Council-approved alternatives, effective 8/22/2026); Los Altos $111.15 (multifamily rental inclusionary in-lieu); San José $10.81 to $49.74 (proposed, by market area, unit count and density). Menlo Park and Redwood City rates were not located.

> **SUNNYVALE** Sunnyvale MC § 19.75.030
> A reduced fee shall apply to the first twenty-five thousand square feet for commercial, industrial and research and development projects.

> **MENLO PARK** Menlo Park MC § 16.96.030
> Commercial development projects of less than ten thousand (10,000) square feet;

Difference and effect. Palo Alto's office and R&D rate exceeds every confirmed rate in the comparison set (Los Altos's retail rate is higher than Palo Alto's), and it applies from the first square foot for most uses, where Menlo Park, Redwood City, Mountain View, Sunnyvale and Santa Clara reduce or exempt small projects. Cupertino, like Palo Alto, has no size threshold, but its retail and hotel rates ($15.34 and $18.18) are 56 and 67 percent of Palo Alto's $27.20. The fee is paid before building permit issuance (PAMC § 16.65.060(b)) and adds directly to office and R&D construction cost. Palo Alto's rental rate of $26.71 is below Sunnyvale's, Santa Clara's and Cupertino's, so the rental result runs the other way, but in Palo Alto it replaces the on-site rental set-aside that the other cities require (see entry 5.1). Salience is moderate: the fee reaches a narrower class of projects than the inclusionary rule, but the per-square-foot amount is large for office and R&D.

Context. Santa Clara, Mountain View and Cupertino index fees annually (Cupertino each July 1, by the

[28] City of Cupertino, *Fee Schedules FY 2026-27*, Resolution 26-047, fees effective July 1, 2026, Schedule C – Planning (Housing Mitigation In-Lieu Fees, listed for information); copy obtained from the city website, October 2026.

[29] City of Menlo Park, *Commercial development BMR requirements* (fees for July 1, 2026 to June 30, 2027), https://www.menlopark.gov/Government/Departments/Community-Development/Housing/Developers/Commercial-development-BMR-requirements. Opened 2026-10-12. Non-code source.

[30] City of Redwood City, *Master Fee Schedule, Effective 7-1-2026*; copy obtained from city website, October 2026. Non-code source.

San Francisco consumer price index), and San José's inclusionary rates in the proposed schedule fall slightly for 2026–27. Menlo Park's code still prints $11.89 and $6.48; the city applies annually adjusted figures under its guidelines. An applicant in Palo Alto may propose on-site units or another alternative in place of a fee, subject to Council findings (PAMC § 16.65.080(f), (g)).

5.3 Tenant relocation payments when rental housing is demolished or redeveloped

Mixed ●●○ Moderate *Fixed payment for all incomes; fewer process steps than Mountain View*

Palo Alto rule	PAMC § 9.68.020; PAMC § 9.68.050; PAMC § 9.68.060
Applies to	Redevelopment of occupied rental housing; demolition of apartments; owner-initiated no-fault terminations
Rule source	Municipal code
Status	Current

Summary. Palo Alto requires a fixed relocation payment, by bedroom count, whenever a landlord ends a tenancy for a reason other than tenant fault in a building or lot with 10 or more rental units. The base payments were $7,000 (studio) to $17,000 (three or more bedrooms) when set and rise each year with a rent index, with an added $3,000 for low-income, elderly, disabled or minor renters. The payment does not depend on household income. Mountain View, Menlo Park and Redwood City tie larger payments to months of rent but limit them to households under an income ceiling. Mountain View also adds a project-level unit inventory and a right of first refusal at the application stage.

Palo Alto. Section 9.68.020(f) lists intent to demolish or substantially remodel among the no-fault grounds. The operative payment:

> **PALO ALTO** PAMC § 9.68.060
> Whenever a landlord seeks an eviction for any reason other than to comply with regulations relating to the qualifications of tenancy established by a governmental entity or at-fault just cause other than temporary displacement of 31 days or fewer, the landlord shall provide a relocation assistance payment as follows:

Half is due when notice is given and the rest when the renter vacates (PAMC § 9.68.060(b)). Smaller covered tenancies receive one month's rent or a final-month rent waiver under PAMC § 9.68.050. Buildings with controlled or subsidized rents are excluded (PAMC § 9.68.060(a)(7)). The current indexed amounts are published on the City's website; this review did not locate that page, so the indexed figures are not stated here.

Comparison.

Jurisdiction	Relocation requirement for demolition or other no-fault ending of tenancy	Citation
Palo Alto	$7,000–$17,000 by bedroom count (indexed), 10+ unit buildings, all incomes; +$3,000 for qualifying renters; one month's rent in smaller covered tenancies	PAMC §§ 9.68.050, 9.68.060
San José	Amount set by council resolution; applies to Ellis Act withdrawals and no-fault just cause; amounts not located	San José MC §§ 17.23.1150, 17.23.1250
Santa Clara	Not located in the code	—
Sunnyvale	2 months' rent for no-fault just cause	Sunnyvale MC § 19.71.050

Jurisdiction	Relocation requirement for demolition or other no-fault ending of tenancy	Citation
Mountain View	3 months' median rent plus services and moving help, plus $8,000 for special-circumstances households; households up to 120% of county median income plus $5,000	Mountain View CC §§ 46.2-1.15, 46.2-1.20
Los Altos	Not located in the code	—
Cupertino	Not located in the code	—
Menlo Park	3 months' rent (HUD fair market rent) plus deposit refund and 60-day agency service; 4 months for special-circumstances households; income up to 80% of county median; properties of 5+ units	Menlo Park MC §§ 8.56.010, 8.56.050
Redwood City	1 month's rent for any no-fault termination, plus, for households up to 80% of county median, a total of 3 months of fair market rent	Redwood City MC ch. 42, § 42.6

> **MOUNTAIN VIEW** Mountain View CC § 46.2-1.20
> The cash equivalent of three (3) months' rent, based on the median monthly rent for a Comparable Rental Unit as determined by the City of Mountain View

> **MENLO PARK** Menlo Park MC § 8.56.050
> The cash equivalent of three (3) months' rent shall be paid to the residential household renting a unit.

Difference and effect. Palo Alto's fixed payment applies to every household in a 10-unit-plus building, while the three peers with larger payments pay only households under 80 or 120 percent of area median income. Whether the dollar amount is higher or lower than three months' rent depends on the unit's rent, which the PAMC does not tie to the payment; for a one-bedroom unit renting above $3,000 a month, three months' rent exceeds the $9,000 base payment. Palo Alto's 10-unit threshold excludes buildings with 5 to 9 units that Menlo Park covers. Mountain View's application-stage inventory, one-year redevelopment notice and right of first refusal add process steps that Palo Alto's chapter does not have (Mountain View CC § 46.2-2.5). The effect on a project is a per-unit cost that rises with the number of occupied units cleared. Salience is moderate because the cost is fixed per unit and applies only where occupied rental buildings are redeveloped.

Context. State law applies in every city to demolition of protected housing units: lower-income occupants receive relocation benefits equivalent to those paid by public entities and a right of first refusal for a comparable unit, and may remain until six months before construction (Gov. Code § 66300.6).[31]

[31]California Government Code § 66300.6, text read at https://california.public.law/codes/ca_gov't_code_section_66300.6; canonical text at https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=GOV&sectionNum=66300.6. Opened 2026-10-12.

5.4 Limits on converting rental apartments to condominiums

More restrictive ●○○ Low *Vacancy gate like Los Altos, Cupertino; stricter than Menlo Park*

Palo Alto rule	PAMC § 21.40.030; PAMC § 21.40.040; PAMC § 21.40.050; PAMC § 16.65.030
Applies to	Conversion of 3 or more rental units to condominiums, community apartments or stock cooperatives
Rule source	Municipal code
Status	Current

Summary. Palo Alto accepts a map for converting three or more rental units only when the city's rental vacancy rate exceeds 3 percent and the conversion is no more than 40 percent larger than the surplus. The alternative is a conversion that provides one below-market-rate rental unit for every two units converted and has consent from tenants of two-thirds of the units. A converted ownership project must also provide 25 percent affordable units. Los Altos and Cupertino use similar vacancy gates (Cupertino bars conversion when market-area vacancy is under 5 percent), Sunnyvale caps conversions at 175 units a year, and Mountain View bars conversions that reduce its apartment count.

Palo Alto. Chapter 21.40 applies to conversions of three or more rental units:

> **PALO ALTO** PAMC § 21.40.050
> No application for consideration of a tentative or preliminary parcel map for a subdivision to be created from a conversion may be filed with the city unless there is a vacancy surplus as of the most recent determination pursuant to this chapter.

The director measures vacancy twice a year, in April and November, from utility meter records (PAMC § 21.40.040). A "vacancy surplus" is the number of vacant units above a 3 percent vacancy rate (PAMC § 21.40.020). PAMC § 16.65.030(a)(3) separately sets a 25 percent affordable-unit requirement for projects that convert rental housing to condominiums.

Comparison.

Jurisdiction	Conversion limit	Citation
Palo Alto	Vacancy surplus above 3% required, 40% cap; or 1 BMR rental per 2 converted units plus two-thirds tenant consent	PAMC §§ 21.40.040, 21.40.050
San José	Conversion permit regulations; no vacancy gate located	San José MC ch. 20.170
Santa Clara	Not located	—
Sunnyvale	Finding required if more than 175 units approved for conversion in prior 12 months	Sunnyvale MC § 19.70.020
Mountain View	No conversion that reduces apartment count below the 2022 baseline; majority-tenant petition exception	Mountain View CC §§ 28.14.10, 28.14.15
Los Altos	No tentative map unless vacancy surplus (vacancy at or below 5% is a shortage); 40% cap	Los Altos MC §§ 14.26.030, 14.26.050
Cupertino	No conversion if apartment vacancy in the housing market area is under 5% at application and averaged 5% over the prior six months; relocation plan, tenant purchase right and General Plan finding required	Cupertino MC § 19.116.030
Menlo Park	Planning Commission or Council finding of consistency with public health, safety, welfare, and housing element	Menlo Park MC § 15.34.030
Redwood City	Application and report requirements; no numeric limit located	Redwood City MC §§ 30.62, 30.63

> **LOS ALTOS** Los Altos MC § 14.26.050
> Unless there is a vacancy surplus as of the most recent determination pursuant to Section 14.26.040 of this chapter, no application for the approval of a tentative map for the conversion or redevelopment of an existing apartment building into a community housing project subject to the provisions of this chapter shall be filed.

> **SUNNYVALE** Sunnyvale MC § 19.70.020
> unless a finding can be made that "the conversion will not adversely impact the community's ability to provide housing for all economic segments of the community."

Difference and effect. Palo Alto, Los Altos, Cupertino, Sunnyvale and Mountain View each limit conversions by market-wide measures, while San José, Menlo Park and Redwood City review conversions project by project. Palo Alto's vacancy benchmark is 3 percent, and Los Altos's and Cupertino's are 5 percent; Cupertino measures vacancy across a defined housing market area rather than the city alone. In Palo Alto the 40 percent cap applies only to the vacancy-surplus route (PAMC § 21.40.050(a)(1)); the 25 percent affordable-unit requirement applies to any converted ownership project. The route that bypasses the vacancy test (BMR rentals plus two-thirds tenant consent) is demanding. Salience is low.

6 Commercial, office and R&D development

6.1 Annual and citywide caps on new office and R&D floor area

More restrictive ●●● High *Only code with citywide and annual caps; Cupertino allocates in General Plan*

Palo Alto rule	PAMC § 18.40.210; PAMC § 18.40.220
Applies to	New office, research and development (R&D) and medical office construction; conversion of existing space to office
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto limits approvals of new office and R&D floor area in two ways. PAMC § 18.40.210 allows no more than 50,000 net new square feet per fiscal year in a mapped area covering downtown, the California Avenue area and El Camino Real. PAMC § 18.40.220 caps net new office and R&D space citywide at 850,000 square feet, measured from January 1, 2015. None of the other eight cities' codes contains a citywide or annual numerical cap on office floor area. Cupertino's municipal code (Title 19) has no allocation or cap; its General Plan, a non-code policy document, assigns office, commercial, hotel and residential allocations by planning area (Table LU-1). Sunnyvale's zoning code sets a district-level pool of net new office, R&D and industrial floor area (the Moffett Park "development reserve," Sunnyvale MC § 19.29.100), with allocation procedures in the Moffett Park Specific Plan; Menlo Park's El Camino Real/Downtown Specific Plan sets plan-area caps.

Palo Alto. The annual limit applies to the office annual limit area shown on a map attached to Ord. 5439 and covers R&D, administrative office, general business office, professional office and medical office over 5,000 net new square feet. Unused capacity carries over for one year, and no single fiscal year may exceed 100,000 square feet. Projects of 2,000 net new square feet or less (5,000 for medical or deed-restricted nonprofit office), self-mitigating projects that house more workers than they employ, and City office space are exempt. Capacity is allocated in the order projects are approved.

> **PALO ALTO** PAMC § 18.40.210(c)
> No more than 50,000 net new square feet of office annual limit land uses per fiscal year (July 1 to June 30) shall be approved by the city in the office annual limit area.

The citywide cap adopts Comprehensive Plan Policy L-1.10, enacted by citizen initiative:

> **PALO ALTO** PAMC § 18.40.220
> Cap new square feet of office/R&D development citywide at 850,000 square feet, exempting medical office uses in the Stanford University Medical Center (SUMC) vicinity.

Through December 31, 2030, § 18.40.220 can be amended or repealed only by a vote of the people, except that the City Council may lower the cap.

Comparison.

Jurisdiction	Cap on new office/R&D floor area	Citation
Palo Alto	50,000 sq ft per fiscal year in mapped area; 850,000 sq ft citywide (from 2015)	PAMC §§ 18.40.210, 18.40.220
San José	None located	San José MC Title 20
Santa Clara	None located	Santa Clara CC Title 18
Sunnyvale	No citywide cap. Moffett Park: bonus floor area drawn from a "development reserve" of net new office, R&D and industrial space	Sunnyvale MC § 19.29.100

Jurisdiction	Cap on new office/R&D floor area	Citation
Mountain View	None located in zoning code (precise plans not reviewed)	Mountain View CC ch. 36
Los Altos	None located	Los Altos MC Title 14
Cupertino	None in Title 19 or Title 20. The General Plan (not the code) assigns office floor area by planning area in Table LU-1 (policy LU-1.2)	Cupertino MC Title 19 (none); General Plan Table LU-1[32]
Menlo Park	No cap in zoning chapters; El Camino Real/Downtown plan sets development caps through the specific plan	Menlo Park MC § 16.58.020
Redwood City	None located	Redwood City Zoning Code

> **SUNNYVALE** Sunnyvale MC § 19.29.100(a)
> The development reserve allocates bonus FAR to each neighborhood in Moffett Park to ensure growth targets can be met across the site.

> **MENLO PARK** Menlo Park MC § 16.58.020
> uses, development regulations, guidelines, definitions, off-street parking requirements, and other parameters for public and private development are established through the El Camino Real/Downtown specific plan.

Difference and effect. Under the annual limit, an office project of more than 2,000 net new square feet in the mapped area competes for a share of 50,000 square feet each year, so one mid-sized project can use the year's allocation and later applicants wait for the next fiscal year (§ 18.40.210(f)(3)). The citywide cap is a hard stop that only a vote of the people can remove before 2031, apart from the Council's power to lower it. The code text does not show how much of the 850,000 square feet has been used. Comparison cities regulate office intensity through floor area ratio and height (see entry 6.2) and, in some plan areas, through plan-level capacity. A project that is cap-exempt (small, self-mitigating, City-owned) faces no numerical limit. Salience is high for office and R&D projects because the cap can decide whether a project can be approved in a given year, and no comparison city's code contains a citywide or annual equivalent.

Cupertino's General Plan allocation works differently. Table LU-1 lists, for each planning area, built and buildout totals for commercial and office square feet, hotel rooms and housing units, with a citywide office buildout of 11,470,005 square feet and 2,553,826 square feet shown as available.[33] Policy LU-1.2 directs the City to maintain the table, allows allocations to be transferred among planning areas, and reserves a "Major Employers" office allocation. Cupertino's zoning and specific-plan chapters (Titles 19 and 20) do not mention the table, so the limit operates through General Plan consistency, not through a code section. It is area-based and long-horizon (2014 to 2040), unlike Palo Alto's annual and citywide caps.

Context. Sections 18.40.210 and 18.40.220 are shown with Ord. 5439 (2018) and Ord. 5446 (2018) as their latest history entries. Sunnyvale's Moffett Park chapter is Ord. 3218-23. The Menlo Park plan's caps are set in the specific plan document, which is not in the code text reviewed. A December 2017 Menlo Park Planning Commission staff report stated that approved projects had used 74 percent of the plan's net new

[32] City of Cupertino, *General Plan, Community Vision 2015-2040, Chapter 3: Land Use and Community Design Element*, Policy LU-1.2 and Table LU-1 (Citywide Development Allocation Between 2014-2040), https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/planning/general-plan/chapter-3-land-use-and-com.pdf. Opened 2026-10-13.

[33] City of Cupertino, *General Plan, Community Vision 2015-2040, Chapter 3: Land Use and Community Design Element*, Policy LU-1.2 and Table LU-1 (Citywide Development Allocation Between 2014-2040), https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/planning/general-plan/chapter-3-land-use-and-com.pdf. Opened 2026-10-13.

non-residential cap and that at 80 percent of either cap staff would return to Council.[34] Whether that cap has since been raised was not checked. Mountain View's precise plans and Redwood City's Downtown Precise Plan were not reviewed. The Cupertino table figures come from the 2017 edition of the Land Use and Community Design chapter on cupertino.gov; the City may have updated the table since, and some cells in the PDF text are garbled. Cupertino's FY 2026-27 planning fee schedule also charges a General Plan Office Allocation Fee on new office construction and rebuilds, in addition to its standard planning fees.[35]

6.2 Floor area ratio, height and size limits in commercial, office and R&D districts

More restrictive ●●○ Moderate *Lower than Santa Clara and Menlo Park bonus tiers; similar to Mountain View*

Palo Alto rule	PAMC § 18.16.050; PAMC § 18.16.060; PAMC § 18.18.060; PAMC § 18.20.040
Applies to	New nonresidential commercial, office and R&D buildings and additions
Rule source	Municipal code
Status	Current

Summary. Palo Alto's base floor area ratio (FAR) for nonresidential buildings is 0.4:1 in the CN and CS districts, 0.5:1 in MOR and GM, 0.4:1 in ROLM and RP, and 1.0:1 in the downtown CD-C subdistrict. Heights are 25 to 50 feet in commercial districts and 35 to 50 feet in office and industrial districts. Santa Clara allows FAR up to 1.0 in its regional commercial zone and 1.0 to 2.0 in its office/R&D zones with heights of 100 to 200 feet. San José's zoning sets no FAR and heights up to 65 feet in commercial and 120 feet in its Transit Employment Center district. Mountain View, Menlo Park, Redwood City and Los Altos set base FARs near 0.35 to 0.45 in comparable districts. Palo Alto also caps office size in CN and CS, caps the size of new nonresidential projects in the CD district, and bars new office floor area in the CD-S and CD-N subdistricts once a site's office space reaches 5,000 square feet (§ 18.18.060(f)(2)).

Palo Alto. Table 3 of PAMC § 18.16.060(a) sets the standards for exclusively nonresidential development in the commercial districts:

> **PALO ALTO** PAMC § 18.16.060(a)
> Table 3 specifies the development standards for exclusively non-residential uses and alterations to non-residential uses or structures in the CN, CC, CC(2) and CS districts.

CN allows 25 feet and 2 stories; CC and CS allow 50 feet; CC(2) allows 37 feet with a 2.0:1 FAR. The FAR cell for the CC district is blank in the code text reviewed. Heights fall to 35 feet within 150 feet of a residential district. CD-C and CD-S allow 50 feet and CD-N 25 feet; § 18.18.060(a) limits new nonresidential construction or expansion in each CD subdistrict to 25,000 square feet of gross floor area (or 15,000 above existing, whichever is greater), and CD FAR may rise with transferred development rights and seismic or historic bonuses to a 3.0:1 total in CD-C. In the CN district, § 18.16.050(b) limits office to 25 percent of the lot, with a floor of 2,500 and a ceiling of 5,000 square feet, unless a conditional use permit allows more:

> **PALO ALTO** PAMC § 18.16.050(b)(1)(A)
> Total floor area of permitted office uses on a lot shall not exceed 25% of the lot area, provided:

Section 18.20.040 sets MOR at 0.5:1 and 50 feet, ROLM and RP at 0.4:1 and 35 feet, and GM at 0.5:1 and 50

[34] City of Menlo Park Planning Commission, *Regular Meeting Minutes* (December 4, 2017), https://www.menlopark.gov/files/sharedassets/public/v/1/agendas-and-minutes/planning-commission/2017-meetings/20171204-planning-minutes.pdf. Opened 2026-10-12.

[35] City of Cupertino, *Fee Schedules FY 2026-27*, Resolution 26-047, fees effective July 1, 2026, Schedule C – Planning, note 3; copy obtained from the city website, October 2026.

feet.

Comparison. Rows give base nonresidential standards for the nearest commercial and office/R&D districts; each city's plan areas can differ.

Jurisdiction	FAR / height	Citation
Palo Alto	CN, CS 0.4; CD-C 1.0; MOR 0.5; ROLM, RP 0.4. Height 25 to 50 ft (35 ft in ROLM/RP)	PAMC §§ 18.16.060, 18.18.060, 18.20.040
San José	No FAR in zoning. CN, CP 50 ft; CG 65 ft; CO 35 ft; IP, LI 50 ft; TEC 120 ft	San José MC §§ 20.40.200, 20.50.200
Santa Clara	C-N 0.5 / 32 ft; C-C 0.8 / 50 ft; C-R 1.0 / 80 ft; LO-RD 1.0 / 100 ft; HO-RD 2.0 / 200 ft	Santa Clara CC §§ 18.12.030, 18.16.010, 18.16.030
Sunnyvale	C-1 40 ft; C-2 75 ft; no FAR. M-S, M-3 office/R&D 35% FAR (70% to 100% on intensification sites)	Sunnyvale MC §§ 19.32.020, 19.32.070
Mountain View	CN, CO 0.35 / 35 ft; CRA 0.35 (office, R&D) / 45 ft; CS 0.40 / no maximum; ML 0.35	Mountain View CC §§ 36.18.35 to 36.18.55, 36.20.30
Los Altos	CN nonresidential 35% FAR / 30 ft; CD nonresidential 30 ft; OA nonresidential 30 ft	Los Altos MC §§ 14.40.070, 14.40.140, 14.44.120, 14.34.130
Cupertino	No FAR in the zoning tables. Base heights: CG 30 ft; OA 30 ft (2 stories); OP 30 ft (3 stories); ML 40 ft (2 stories); MP 30 ft (3 stories). CG, OP, ML and MP heights yield to the General Plan or specific plan, where intensity is set	Cupertino MC §§ 19.60.060, 19.68.050, 19.72.060
Menlo Park	C-2 40% FAR / 30 ft; O 45% plus 10% commercial / 35 ft (100% and 67.5 ft at bonus level)	Menlo Park MC §§ 16.38.040, 16.43.050
Redwood City	CN 40% / 35 ft; CP 0.80 / 100 ft; CG 75 ft; CB 100 ft; PO 35 ft	Redwood City Zoning Code §§ 13.5, 13.12, 14.5, 15.5, 16.3, 11.5

> **SANTA CLARA** Santa Clara CC § 18.16.010
> The maximum FAR is 2.00.

> **MENLO PARK** Menlo Park MC § 16.38.040
> The floor area ratio shall not exceed forty percent (40%).

Difference and effect. Palo Alto's base FARs of 0.4 to 0.5 match Mountain View, Menlo Park C-2 and Redwood City CN, and are lower than Santa Clara's zones (0.5 to 2.0) and than the Menlo Park O district's bonus tier. San José and Sunnyvale set no FAR for commercial districts, so building envelope and parking decide yield. Heights of 50 feet in CC, CS and CD match Santa Clara C-C and San José CN, and are below San José CG (65), Sunnyvale C-2 (75), Redwood City CG (75) and Santa Clara office zones (100 to 200). Los Altos is lower (30 feet). Cupertino's base heights of 30 to 40 feet are also lower, and its zoning tables set no FAR; the General Plan and specific plans set intensity and allow more height than the base figures, so Cupertino cannot be placed on the same scale. The CD-C 1.0:1 FAR and the 25,000 square foot project cap bound the size of new downtown commercial buildings; the CN office ceiling of 5,000 square feet bounds neighborhood office. Housing and mixed-use projects use separate, higher standards in the same chapters (see entry 3.2). Salience is moderate because the limits apply to every new commercial project but many sites are already built near these ratios. Palo Alto also limits new office through entry 6.1.

Context. Plan-area standards (Mountain View precise plans, Sunnyvale's Moffett Park and Downtown plans, Menlo Park's Bayfront and El Camino Real/Downtown plans, and Cupertino's General Plan and Heart of the City plan) can allow more than the base figures above and were not compared.

6.3 Ground-floor retail preservation, retail-only combining districts and formula retail

More restrictive ●●○ Moderate *Broadest retail-conversion ban of the nine; others use narrower district rules*

Palo Alto rule	PAMC § 18.40.180; PAMC § 18.30(A); PAMC § 18.30(C); PAMC § 18.76.015; PAMC § 18.16.050
Applies to	Redevelopment or change of use of ground-floor retail, eating and drinking and personal service space; conversion to office; mixed-use projects
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto prohibits replacing any ground-floor retail or retail-like use that existed on March 2, 2015 with a non-retail use anywhere the use is permitted, and a rebuilt retail space cannot be smaller except for upper-floor access. Two combining districts add use limits on California Avenue, University Avenue and other mapped frontages, and California Avenue formula retail needs a conditional use permit. No other city in the comparison set, including Cupertino, has a citywide conversion ban in its code. San José, Sunnyvale and Los Altos have narrower replacement or minimum-area rules. The housing side of these rules is in entry 3.5.

Palo Alto. Section 18.40.180(a)(1) applies to any ground-floor retail or retail-like use "permitted or operating" on March 2, 2015, including legal nonconforming uses and unpermitted uses that would be permitted:

> **PALO ALTO** PAMC § 18.40.180(a)(1)
> Any ground floor Retail or Retail-Like use permitted or operating as of March 2, 2015 may be replaced only by another Retail or Retail-Like use, as permitted in the applicable district.

An owner may seek a waiver or adjustment on two grounds: an unconstitutional taking, or, outside the GF and R combining districts, a showing that the retail use is not viable and the substitute use supports pedestrian-oriented activity. The Director may act on the request or refer it to the City Council, and the Council's decision is final (§ 18.40.180(c)). Exemptions cover 100 percent affordable housing projects outside the GF and R districts and the El Camino Real nodes, residential projects on Housing Element opportunity sites (with an El Camino Real node exception), and high-density residential or mixed-use projects of 30 or more units per acre, which need to replace only up to 1,500 square feet of retail (§ 18.40.180(c)(4)). Ground-floor office is barred in the CN, CC and CS districts except in listed cases (§ 18.16.050(a)). In the R combining district, § 18.30(A).050 requires a conditional use permit for formula retail on California Avenue, and § 18.76.015 adds findings for formula retail, beauty shops, nail salons, barbershops and financial services:

> **PALO ALTO** PAMC § 18.76.015
> A conditional use permit shall not be granted in a R-Combining district for a formula retail business, or a beauty shop, nail salon, barbership, or financial services use, unless it is found, in addition to the findings required by section 18.76.010, that:

Comparison.

Jurisdiction	Rule on ground-floor retail loss	Citation
Palo Alto	Citywide ban on replacing 2015 ground-floor retail with non-retail; waiver by showing of non-viability or takings; formula retail on California Avenue by CUP	PAMC §§ 18.40.180, 18.30(A).050
San José	Replacement of existing commercial space in the Willow Glen, Japantown and North 13th Street overlays; none located citywide	San José MC § 20.65.260
Santa Clara	None located in zoning code outside the downtown form-based code	Santa Clara CC Title 18

Jurisdiction	Rule on ground-floor retail loss	Citation
Sunnyvale	Minimum ground-floor commercial area for mixed use on El Camino Real (7,000 sq ft or more by lot size)	Sunnyvale MC § 19.36.090
Mountain View	None located in zoning code	Mountain View CC ch. 36
Los Altos	CD district: sites with over 5,000 sq ft of ground-floor retail or restaurant space must retain equal or greater space	Los Altos MC § 14.44.030
Cupertino	None located in Title 19 or Title 20. General Plan policy LU-1.3.1 requires retail as "a substantial component" of commercial mixed-use areas (policy, not code)	Cupertino MC Title 19 (none); General Plan LU-1.3.1[36]
Menlo Park	None located in zoning chapters; specific plan not reviewed	Menlo Park MC § 16.58.020
Redwood City	None located in zoning code	Redwood City Zoning Code

> **SAN JOSÉ** San José MC § 20.65.260, Table 20-142
> Replace existing square footage of commercial or industrial space on site by providing, at a minimum, an equivalent square footage of ground floor commercial space.

> **LOS ALTOS** Los Altos MC § 14.44.030
> provided that any site with over five thousand (5,000) square feet of existing retail or restaurant space on the ground floor shall retain an equal or greater amount of retail and/or restaurant space on the ground floor:

Difference and effect. Palo Alto's rule applies to every commercial district and to every ground-floor retail space in existence in 2015, whatever the project. Los Altos applies a retention rule only in its downtown district and only to sites over 5,000 square feet. San José's replacement rule is limited to three neighborhood overlays. Sunnyvale sets minimum new commercial area rather than a replacement duty. A site owner in Palo Alto who wants a non-retail ground floor must obtain a waiver from the Director or Council, and the applicant bears the burden of evidence (including a 10-year occupancy history for the viability route). The rule adds approval risk and can reduce a project's non-retail yield. The housing exemptions reduce the effect on qualifying residential projects. Salience is moderate because the rule bears on a specific class of sites rather than every project.

Context. Section 18.40.180 was last amended by Res. 10274 (2026) and Ord. 5650 (2025). The code text does not show the content of the 2026 resolution; the El Camino Real node map (Figure 5) may be updated by resolution or administrative regulation. Section 18.40.180(c)(1)(B) refers to "Section 18.40.160" where 18.40.180 appears to be meant. Cupertino's General Plan is not code; it was read for policy LU-1.3.1 only, and the Heart of the City plan was not reviewed.[37] Precise plans and specific plans in Mountain View, Menlo Park, Redwood City and Santa Clara's downtown form-based code were not reviewed for ground-floor retail mandates.

[36] City of Cupertino, *General Plan, Community Vision 2015-2040, Chapter 3: Land Use and Community Design Element*, Policy LU-1.3.1, https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/planning/general-plan/chapter-3-land-use-and-com.pdf. Opened 2026-10-13.

[37] City of Cupertino, *General Plan, Community Vision 2015-2040, Chapter 3: Land Use and Community Design Element*, Policy LU-1.3.1, https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/planning/general-plan/chapter-3-land-use-and-com.pdf. Opened 2026-10-13.

6.4 Architectural review for every sign, including tenant signs

More restrictive ●○○ Low *Only one of nine placing all signs under design review*

Palo Alto rule	PAMC § 16.20.020; PAMC § 16.20.030; PAMC § 16.20.040; PAMC § 16.20.050; PAMC § 18.76.020
Applies to	Permanent and temporary signs for new and existing businesses; tenant improvements that include signage
Rule source	Municipal code
Status	Current

Summary. Palo Alto requires architectural review approval for every sign, not a ministerial sign permit. Signs that meet adopted guidelines and any approved master sign program are processed as minor projects; other signs go to the Architectural Review Board (ARB). Sunnyvale, Santa Clara, Cupertino and Redwood City issue sign permits by staff against numerical standards, and Sunnyvale, Cupertino and Redwood City set a 30-day decision clock. Mountain View routes sign permits through its development review process.

Palo Alto. Section 16.20.020(a) conditions every sign on design review:

> **PALO ALTO** PAMC § 16.20.020(a)
> No person shall erect or cause to be erected any sign upon any fence, post, pole, tree, building, or any other structure, or attached to any standing vehicle in the city without first applying for and receiving architectural review approval of the sign's location, design and dimensions pursuant to Chapter 18.76 (Permits and Approvals).

Section 16.20.020(b) allows review to impose regulations "more restrictive than those set forth in this chapter." Under § 18.76.020, signs that meet applicable guidelines and conform to an approved master sign program are minor projects, while signs that do not, master sign programs and sign exceptions are major projects. A master sign program lets later signs go up "without further design review" (§ 16.20.030). Temporary signs are limited to 30 days, with one 15-day extension and one permit per business per year (§ 16.20.050). Signs erected without approval pay double fees (§ 16.20.060). The chapter's area tables (Tables 1 to 3) are not reproduced in the published code text.

Comparison.

Jurisdiction	Sign approval route	Citation
Palo Alto	Architectural review for every sign; ARB for non-conforming-to-guidelines signs	PAMC §§ 16.20.020, 18.76.020
San José	Director sign permit, administrative, no hearing or notice	San José MC §§ 23.02.1300, 23.02.1330
Santa Clara	Sign permit for all non-exempt signs, Director or Commission	Santa Clara CC § 18.42.040
Sunnyvale	Ministerial sign permit; 30-day staff decision	Sunnyvale MC §§ 19.44.070, 19.44.110
Mountain View	Sign permit through development review	Mountain View CC § 36.36.10
Los Altos	Sign permit from Director	Los Altos MC § 14.68.050
Cupertino	Director sign permit; decision within 30 calendar days; criteria include a design-criteria conformance check	Cupertino MC §§ 19.104.030, 19.104.050
Menlo Park	Director reviews applications; timing set by Director	Menlo Park MC § 16.92.020
Redwood City	Director approves compliant signs; 30-day decision or deemed approved	Redwood City MC § 3.113

> **SUNNYVALE** Sunnyvale MC § 19.44.110(a)
> All sign permit applications shall be initially reviewed by the director as a ministerial matter.

> **REDWOOD CITY** Redwood City MC § 3.113
> The Director shall approve all sign permit applications which fully comply with the requirements of this Article and all other applicable laws, rules, regulations and requirements.

Difference and effect. In Palo Alto a tenant's new storefront sign is a design decision. Where the sign meets guidelines, the process is a director-level minor project. Where it does not, the sign needs an ARB hearing, which takes longer. Sunnyvale, Cupertino and Redwood City decide compliant signs within 30 days at staff level. Sign permit review is rarely the controlling item for a tenant improvement, so salience is low, but it is an extra approval step for most change-of-tenant projects. The code text does not state a decision deadline for Palo Alto signs. Scope questions for architectural review generally are in entry 8.2.

7 Parking, loading and transportation demand management

7.1 Off-street parking minimums for multifamily housing

Mixed ●●● High *Higher than 5 of 8 for 2-bedroom units; below Sunnyvale and Mountain View*

Palo Alto rule	PAMC § 18.52.040; PAMC § 18.52.050
Applies to	Multifamily housing; mixed-use with residential
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto requires 1 space for a studio or 1-bedroom unit and 2 spaces for a unit with 2 or more bedrooms, at least one space per unit covered, and no separate guest parking. San José has no citywide minimum. Redwood City and Cupertino require 1 space per unit, Santa Clara requires 1.5 and Los Altos 1.5 for 2- and 3-bedroom units, and Mountain View and Sunnyvale require more than Palo Alto once guest or unassigned spaces are counted. Within one-half mile of major transit, Palo Alto's code requires no vehicle parking, as state law directs, so the ratios mainly govern sites away from the downtown and California Avenue Caltrain stations and frequent-bus corridors.

Palo Alto. PAMC § 18.52.040, Table 1, sets 1 space per micro unit (450 square feet or less), studio and 1-bedroom unit, and 2 per unit with 2 or more bedrooms. Tandem spaces may count for units needing two spaces, up to 25 percent of required spaces in projects of more than four units. Senior housing is 0.75 per unit. Section 18.52.040(a)(1), which Ord. 5651 (2025) last amended, restates the state transit rule. Projects within one-half mile of public transit must still provide loading, bicycle, electric vehicle and accessible spaces:

> **PALO ALTO** PAMC § 18.52.040(a)(1)
> For projects within one-half mile of public transit, as defined in California Government Code Section 65863.2: ... Except as provided in this subdivision (a)(1), no off-street vehicle parking shall be required.

Comparison. Rows show vehicle spaces per unit for market-rate multifamily housing outside transit-exempt areas.

Jurisdiction	Requirement	Citation
Palo Alto	Studio/1 BR: 1. 2+ BR: 2. At least 1 per unit covered. No guest spaces	PAMC § 18.52.040, Table 1
San José	None citywide; 2.0 per unit maximum in pedestrian-oriented districts	San José MC §§ 20.90.800, 20.90.060 (Table 20-211)
Santa Clara	Studio/1 BR: 1. 2+ BR: 1.5 (1 assigned, rest unbundled); in mixed-use zones 2+ BR: 2	Santa Clara CC § 18.38.030, Table 3-3
Sunnyvale	1 covered assigned space per unit plus unassigned spaces: 1 BR 1.5 to 2.25; 2 BR 2.0 to 2.4, by covered-space type	Sunnyvale MC § 19.46.060, Table 19.46.060
Mountain View	Studio and 1 BR up to 650 sq ft: 1.5. Larger 1 BR and 2+ BR: 2. Guest spaces equal to 15% of required spaces	Mountain View CC § 36.32.50
Los Altos	Studio/1 BR: 1. 2-3 BR: 1.5. 4+ BR: 2.5. No guest spaces	Los Altos MC § 14.74.130
Cupertino	R-3, R-4: 1 per unit (covered, structured or open), any unit size; townhomes 1 per unit covered or garage; no guest spaces. Table is a guideline in planned development (P) zones	Cupertino MC §§ 19.124.040(A), (F)

Jurisdiction	Requirement	Citation
Menlo Park	R-4: studio 1, 1 BR 1.5, 2+ BR 2, plus 1 guest space per 3 units. R-MU: 1 minimum, 1.5 maximum	Menlo Park MC §§ 16.72.020(7), 16.45.080
Redwood City	1 per unit; none for affordable or senior housing	Redwood City Zoning Code §§ 30.4(B), 30.5(A)

> **MENLO PARK** Menlo Park MC § 16.72.020
> Units with two (2) or more bedrooms require two (2) off-street parking spaces per unit; one (1) bedroom units require one and one-half (1 1/2) off-street parking spaces per unit; studio units require one (1) off-street parking space per unit;

> **SUNNYVALE** Sunnyvale MC § 19.46.060(b)
> Multiple-family dwellings are required to provide at least one covered assigned space per unit and additional unassigned spaces in accordance with Section 19.46.040 (General requirements for residential parking) and Table 19.46.060 (Parking for Multiple-Family Dwellings) unless exempted by Section 19.46.030.

> **SANTA CLARA** Santa Clara CC § 18.38.030(B)
> Notwithstanding any other provision of this Code, no parking is required for any use within one-half mile of a major transit stop, unless the Director of Community Development makes any of the following written findings, supported by substantial evidence, within 30 days of an application becoming complete, in which case the City's standard parking requirements shall apply:

Difference and effect. For studios and 1-bedroom units, Palo Alto's ratio of 1 matches Los Altos, Santa Clara and Cupertino and is lower than Sunnyvale, Mountain View and Menlo Park R-4. For units with 2 or more bedrooms, 2 spaces is higher than Santa Clara, Los Altos, Cupertino and Redwood City (1 to 1.5) and lower than Sunnyvale and Mountain View once guest or unassigned spaces are added. Palo Alto adds no guest requirement, which Mountain View, Sunnyvale and Menlo Park R-4 do. The effect therefore runs in both directions. Each space in a podium or underground garage adds construction cost per unit, so the 2-space ratio bears most on family-sized units.

State law narrows the rule's reach. Within one-half mile of a major transit stop, Government Code § 65863.2 (AB 2097, effective January 1, 2023) bars minimum parking requirements, with an exception for written findings that does not apply to housing projects that set aside at least 20 percent of units for lower-income, moderate-income, student, senior or disabled households or that have fewer than 20 units.[38] Palo Alto's code states the exemption without a findings route. Sunnyvale and Redwood City do the same, and the Mountain View and Santa Clara codes keep a findings route. The density bonus law sets its own ratios for qualifying projects (PAMC § 18.52.040(a) defers to Chapter 18.15), and 100 percent affordable projects may request up to a 100 percent reduction under PAMC § 18.52.050, Table 4. Salience is high because the transit-exempt areas cover only part of the city, and the ratios still govern multifamily sites outside them.

Context. Ord. 5651 (2025) is the latest amendment to §§ 18.52.030, 18.52.040 and 18.52.050; the code text does not show which changes it made. The Santa Clara figures are from its Zoning Code, Title 18. Cupertino's ratio is in its Title 19 table and does not vary by bedroom count; planned development projects, where much of Cupertino's multifamily housing is approved, treat the table as a guideline, and the specific plans were not read.

[38] Cal. Gov. Code § 65863.2, https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=GOV&sectionNum=65863.2 (text read at https://california.public.law/codes/ca_gov't_code_section_65863.2). Opened 2026-10-12.

7.2 Off-street parking minimums for office, R&D, retail and restaurants

More restrictive ●●○ Moderate *Highest office ratio outside two districts; among highest for retail and restaurants*

Palo Alto rule	PAMC § 18.52.040; PAMC § 18.52.070
Applies to	Office; research and development (R&D); retail; restaurants; mixed-use commercial
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto requires 1 space per 250 square feet of gross floor area for office and R&D in most districts (4.0 per 1,000 square feet), 1 per 300 in the Research Park (RP) and Research, Office and Limited Manufacturing (ROLM) districts, 1 per 200 for retail and about 1 per 60 square feet of public area for restaurants. San José has no minimum. Of the other eight cities, only Redwood City outside its downtown core and Menlo Park's C-1-C district match Palo Alto's office ratio, and Palo Alto's restaurant rate is the highest of the cities that set one by floor area (Cupertino's seat-based rate is not directly comparable).

Palo Alto. Table 1 of PAMC § 18.52.040 sets the rates above, and also 1 per 250 square feet for banks and 1 per 200 for personal services. Table 2 applies 1 per 250 square feet to all non-residential uses in the Downtown University Avenue parking assessment district and lower rates for some uses on California Avenue. Requirements apply to additions as well as new buildings, but only to the added floor area:

> **PALO ALTO** PAMC § 18.52.030
> For additions or enlargements of any existing building or use, ... the additional parking shall be required only for such addition, enlargement, or change and not for the entire building or use.

Comparison. Spaces per 1,000 square feet of gross floor area unless stated. Ratios outside transit-exempt areas.

Jurisdiction	Office	R&D	Retail	Restaurant	Citation
Palo Alto	4.0 (3.33 in RP, ROLM)	4.0 (3.33 in RP, ROLM)	5.0 (intensive); 2.9 (extensive)	1 per 60 sq ft public area + 1 per 200 other	PAMC § 18.52.040, Table 1
San José	None (1.0 near arena/Diridon)	None	None	None	San José MC § 20.90.800
Santa Clara	3.33	1.33	5.0	5.0	Santa Clara CC § 18.38.030
Sunnyvale	3.3 (min), 4 (max)	2 (min), 4 (max)	4 (min), 5 (max)	9 (min), 13 (max)	Sunnyvale MC § 19.46.100, Tables (a), (b)
Mountain View	3.33	3.33	4.0 (general)	1 per 2.5 seats or 10 per 1,000, greater	Mountain View CC § 36.32.50
Los Altos	3.33 (net)	Not located	5.0 (intensive); 2.0 (extensive)	1 per 3 seats + 1 per 3 employees	Los Altos MC § 14.74.130
Cupertino	3.51 (1 per 285 sq ft; CG, OP, ML, OA); medical 5.7	3.51 (office/prototype manufacturing, ML or OA); manufacturing 2.2	4.0 (1 per 250 sq ft, CG)	By seats: 1 per 4 seats (3 with bar or fast food) + 1 per employee	Cupertino MC § 19.124.040(A)
Menlo Park	5.0 (C-1); 4.0 (C-1-C); 2.0 (R-MU); 6.0 (C-2)	3.33 (M-2, M-3 uses); 1.5 (R-MU)	2.5 (R-MU, C-2 nonres. 6.0)	2.5 (R-MU)	Menlo Park MC §§ 16.72.030, 16.72.040, 16.72.050, 16.45.080

Jurisdiction	Office	R&D	Retail	Restaurant	Citation
Redwood City	4.0 for uses under 100 PM peak-hour trips; 3.33 at 100+ trips or in downtown core	4.0 + employees	5.0	1 per 3 seats	Redwood City Zoning Code § 30.5(B)

> **REDWOOD CITY** Redwood City Zoning Code § 30.5
> Within the downtown core (one thousand five hundred (1,500) ft. radius), requires one (1) space for every three hundred (300) square feet of gross floor area.

> **MOUNTAIN VIEW** Mountain View CC § 36.32.50
> Each land use shall provide the minimum number of off-street parking spaces required by this Section, inclusive of accessible and electric vehicle (EV) charging spaces required per Chapter 8 of the city code.

Difference and effect. Palo Alto's 4.0 per 1,000 for office is higher than Santa Clara, Sunnyvale, Mountain View, Los Altos (3.3) and Cupertino (3.5), equal to Redwood City's rate for smaller uses outside its downtown core (Redwood City drops to 3.33 for uses generating 100 or more PM peak-hour trips) and to Menlo Park's C-1-C, and below Menlo Park's C-1 and C-2. Sunnyvale and Menlo Park also set maximums, which Palo Alto does not. Palo Alto's R&D rate is 2 to 3 times Sunnyvale's and Santa Clara's, and above Cupertino's 3.5. Cupertino's retail rate (4.0) is below Palo Alto's intensive-retail 5.0. Palo Alto's restaurant rate is about 17 per 1,000 square feet of public area, above the other cities that use area or seats; Cupertino sets restaurant rates by seats and employees, which cannot be converted to a square-foot rate. Higher ratios increase parking area per building or push projects underground, and reduce allowable commercial floor area on sites where parking limits yield. Salience is moderate because much of the downtown University Avenue and California Avenue areas is within the state's transit exemption, and the Director may reduce ratios (see entry 7.4).

Context. Sunnyvale and Menlo Park use specific plans for their downtowns and corridors (Sunnyvale MC § 19.46.030(c); Menlo Park MC ch. 16.35 and the El Camino Real/Downtown Specific Plan), which can set different rates. Mountain View's precise plans supersede its chapter (Mountain View CC § 36.32.40). Cupertino's table also sits alongside specific plans (Heart of the City, North De Anza) that were not read.

7.3 Transportation demand management plan triggers and enforcement

Mixed ●●○ Moderate *Mid-range; lower trigger than most, no fixed targets or fee in code*

Palo Alto rule	PAMC § 18.52.030(i); PAMC § 18.52.050(d)
Applies to	Projects generating 50 or more peak-hour trips; projects seeking parking reductions; projects relying on AB 2097
Rule source	Municipal code
Status	Current

Summary. Palo Alto requires a Transportation Demand Management (TDM) plan for any project that generates 50 or more net new peak-hour trips, claims a trip reduction for transit or TDM, requests a parking reduction, or uses the state's no-minimum rule near transit. The code sets no numeric target or annual fee, and leaves content to the Director's guidelines. San José, Redwood City and Mountain View set unit or floor-area triggers with numeric targets or annual fees. Los Altos and Cupertino have no such

program in their codes, and Santa Clara relies on a regional employer program.

Palo Alto. TDM plans are triggered by trips, not size:

> **PALO ALTO** PAMC § 18.52.030(i)
> A Transportation Demand Management (TDM) Plan to reduce and manage the number of single-occupant motor vehicle trips generated by the project shall be prepared and submitted by the applicant in the following circumstances: … For all projects that generate 50 or more net new weekday (AM or PM peak hour) or weekend peak hour trips;

Plans also apply to projects claiming a reduction in trips for transit proximity or TDM, projects requesting a parking reduction, and projects with reduced parking under Government Code § 65863.2 (AB 2097). Under § 18.52.050(d), plans set performance targets for parking or trip reduction, name a single responsible entity, and require monitoring reports two years after occupancy and each year after that. The Director may require modifications and impose administrative penalties if deficiencies are not addressed within six months. Measures may include limiting assigned parking to one space per residential unit; the code does not require unbundling.

Comparison.

Jurisdiction	Trigger	Targets, fees and enforcement	Citation
Palo Alto	50+ net new peak-hour trips; any parking reduction or trip-reduction claim; AB 2097 projects	Project-specific targets; annual reports; administrative penalties; no fee in code	PAMC §§ 18.52.030(i), 18.52.050(d)
San José	16+ single-family or 26+ other units; 10,000+ sq ft commute uses; thresholds by use	25-point target; annual compliance reports; recorded covenant; monitoring for 300+ units	San José MC §§ 20.90.900-20.90.910
Santa Clara	No project-level mandate; employer trip reduction through regional program	Bay Area Air Quality Management District rule	Santa Clara CC § 10.15.020
Sunnyvale	10+ residential units; high-intensity industrial and office	Council-adopted standards; stop-work order and withheld occupancy	Sunnyvale MC §§ 19.45.030, 19.45.040
Mountain View	200+ net new daily vehicle trips	Annual TDM fee by resolution; monitoring; enforcement	Mountain View CC §§ 19.122, 19.123
Los Altos	None located	None located	Not located
Cupertino	None located	None located	Not located
Menlo Park	Special district (16.35) and Office: 10,000+ sq ft. Life Sciences and R-MU: all new construction	Trips 35% below standard rates (Special); 20% (Office, Life Sciences, R-MU)	Menlo Park MC §§ 16.35.070, 16.43.100, 16.44.090, 16.45.090
Redwood City	25+ units (5+ with an HOA); 10,000+ sq ft or 10+ employees	Drive-alone targets 33% to 52%; annual report and fee	Redwood City MC §§ 48.3, 48.4, 48.7

> **SUNNYVALE** Sunnyvale MC § 19.45.040
> A TDM Program is required of all new developments and redevelopments of ten or more residential units, including residential components of mixed-use developments.

> **REDWOOD CITY** Redwood City MC § 48.3
> New residential development either: (1) with twenty-five (25) or more units of single or multi-family homes; or (2) with five (5) or more units and a homeowner's association.

> **SANTA CLARA** Santa Clara CC § 10.15.020
> Within the City of Santa Clara, the implementation of trip reduction and travel demand requirements pursuant to Government Code Section 65089.3 shall be satisfied through the administration, implementation, and enforcement by the Bay Area Air Quality Management District

Difference and effect. Any project asking for a parking reduction triggers a plan regardless of size. That brings small projects into TDM, which San José, Mountain View and Redwood City exempt below their size thresholds, and adds annual monitoring after occupancy. Palo Alto's code sets no fixed mode-share target (Redwood City) or point target (San José) and states no fee, so the standard is negotiated project by project. The effect runs in both directions. Menlo Park's code sets numeric trip-reduction standards (20 to 35 percent below standard rates) and applies them to all new construction in two districts.

Context. Mountain View replaced its 1994 TDM article (City Code ch. 19, art. X) with a new article in May 2026 (Ord. 8.2026), the most recent revision among the cities. Ord. 5651 (2025) is the latest amendment to PAMC § 18.52.030.

7.4 Administrative parking reductions and their caps

Mixed ●○○ Low *Only city with a fixed percentage cap and 10-space floor*

Palo Alto rule	PAMC § 18.52.050; PAMC § 18.52.030
Applies to	Nonresidential and multifamily projects outside transit-exempt areas; affordable housing
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto lets the Director reduce required parking by fixed percentages for shared use, transit proximity, TDM programs and affordable housing. Reductions combine up to 30 percent (40 percent for affordable housing), cannot leave a site below 10 spaces, and require a Transportation Demand Management (TDM) plan. Most nearby cities allow reductions through a use permit or administrative permit without a stated overall cap.

Palo Alto. PAMC § 18.52.050, Table 4, sets maximum reductions of 20 percent each for shared parking, housing near transit, and transportation alternatives; 20 to 40 percent for affordable and single room occupancy units by income level; and up to 100 percent for 100 percent affordable housing. Projects using the reduced senior-housing ratio get no further reductions. Two limits apply across the table:

> **PALO ALTO** PAMC § 18.52.050
> No reductions may be granted that would result in provision of less than ten (10) spaces on a site.

> **PALO ALTO** PAMC § 18.52.050(a)
> Parking reductions may be granted for any combination of circumstances, prescribed by this chapter, so long as in total no more than a 30% reduction of the total parking demand otherwise required occurs

The same subsection continues "or no less than a 40% reduction for affordable housing projects," which Table 4 reads as a 40 percent maximum.

Comparison.

Jurisdiction	Reduction mechanism	Citation
Palo Alto	Director adjustment; 20% per category; 30% combined (40% affordable); 10-space floor; TDM plan required	PAMC §§ 18.52.050, 18.52.030(i)
San José	No minimums to reduce; Council may exempt a parking assessment district	San José MC § 20.90.230
Santa Clara	Administrative permit: residential up to 20% (bicycle, transit, car-share); nonresidential up to 50% with 3 TDM measures; shared parking by conditional use permit	Santa Clara CC § 18.38.040
Sunnyvale	Up to 3% for employee showers; shared parking by use permit; parking management plan	Sunnyvale MC §§ 19.46.100(d), (e), 19.46.160
Mountain View	Reduction by conditional use permit; shared parking by use permit; no percentage cap stated	Mountain View CC §§ 36.32.65, 36.32.70
Los Altos	Joint use by conditional use permit; no percentage cap located	Los Altos MC § 14.74.040
Cupertino	Exceptions by Director (minor) or Planning Commission (major) on findings; alternative parking standards with a parking study and single owner; shared-parking time-of-day formula; no percentage cap	Cupertino MC §§ 19.124.040(G), (H), 19.124.050, 19.124.060
Menlo Park	Commercial and industrial reductions by administrative permit; landscape reserve	Menlo Park MC § 16.72.010(1), (4)
Redwood City	Joint use; downtown in-lieu fee	Redwood City Zoning Code §§ 30.12, 30.3

> **MOUNTAIN VIEW** Mountain View CC § 36.32.65
> The zoning administrator may grant a reduction in off-street parking requirements in compliance with Division 6 of Article XVI (Conditional Use Permits).

> **SANTA CLARA** Santa Clara CC § 18.38.040(D)
> In addition to the exceptions in Subsections A. and B. for shared and off-site parking, the Review Authority may approve an Administrative Permit for a parking reduction in accordance with the following provisions.

> **MENLO PARK** Menlo Park MC § 16.72.010
> Reductions in parking requirements for commercial and industrial land uses may be allowed through an administrative permit as outlined in Chapter 16.82.

Difference and effect. Palo Alto's formula gives applicants a predictable but bounded reduction; the 30 percent cap and the 10-space floor limit small sites and projects needing larger cuts. Mountain View, Cupertino and Menlo Park state no percentage cap, though their permits are discretionary. Santa Clara's nonresidential limit (50 percent) is higher than Palo Alto's, and its residential limit (20 percent) is lower than Palo Alto's combined 30 percent. For housing near transit, state law supersedes the table: no reduction is needed where the minimum does not apply (see entry 7.1). Palo Alto's section also requires the Director to approve a shared-parking adjustment when an applicant meets the state shared-parking statute (PAMC § 18.52.050(e)); the code cites it as Government Code § 65683.1, but the statute is § 65863.1, effective January 1, 2024. That statute applies in every city. Salience is low because the table matters mainly for nonresidential and small projects outside transit areas.

Context. Section 18.52.050 was last amended by Ord. 5651 (2025).

7.5 Garage and covered-space requirements for single-family houses

Mixed ●○○ Low *Mid-range; fewer spaces than Sunnyvale and Cupertino, fewer covered than Santa Clara*

Palo Alto rule	PAMC § 18.52.040; PAMC § 18.12.060
Applies to	Single-family houses; additions and remodels to single-family houses
Rule source	Municipal code
Status	Current

Summary. Palo Alto requires 2 spaces per single-family house, at least one of them covered, with tandem spaces allowed. Sunnyvale and Cupertino require 4 spaces with 2 covered (in Cupertino, 2 garage and 2 open), and Santa Clara requires both of its 2 spaces to be covered. San José has no minimum, and Redwood City requires 2 spaces that may be uncovered. Mountain View, Los Altos and Menlo Park match Palo Alto's 2 spaces with one covered. The difference mainly affects remodels and additions that touch a garage.

Palo Alto. Table 1 of PAMC § 18.52.040 requires 2 spaces in all districts other than open space (OS), where 4 are required. PAMC § 18.12.060 repeats the R-1 rule and adds yard limits:

> **PALO ALTO** PAMC § 18.12.060
> No required parking space shall be located in a required front yard.

Tandem parking is permitted for single-family uses (§ 18.12.060(d)). Underground parking is prohibited for single-family uses without a variance, and an underground garage counts toward floor area (§ 18.12.060(e)). Accessory dwelling units (ADUs) and junior ADUs need no parking.

Comparison.

Jurisdiction	Requirement for a single-family house	Citation
Palo Alto	2 spaces, 1 covered; tandem allowed; none in required front yard	PAMC §§ 18.52.040, 18.12.060
San José	No minimum	San José MC § 20.90.800
Santa Clara	2 spaces, both in a covered garage or carport (20 x 20 ft interior)	Santa Clara CC § 18.38.030, Table 3-3
Sunnyvale	4 spaces, 2 covered and not in tandem; driveway 17 x 20 feet counts as 2	Sunnyvale MC § 19.46.050(a)
Mountain View	2 spaces, 1 covered; garage or carport required	Mountain View CC §§ 36.32.50, 36.32.20
Los Altos	2 stalls, 1 covered	Los Altos MC § 14.74.130
Cupertino	R-1: 4 spaces, 2 garage and 2 open; 2 more if no on-street parking is available	Cupertino MC § 19.124.040(A), (B)
Menlo Park	2 spaces, at least 1 in garage or carport	Menlo Park MC § 16.72.020(1)
Redwood City	2 spaces, covered or uncovered; tandem and setback parking allowed	Redwood City Zoning Code § 30.5(A)(1)

> **SUNNYVALE** Sunnyvale MC § 19.46.050
> Each single-family dwelling and two-family dwelling shall provide a minimum of four spaces total, two of which shall be covered and not in tandem unless exempted by Section 19.46.030.

> **REDWOOD CITY** Redwood City Zoning Code § 30.5
> Single-Family Dwellings. Two (2) spaces per unit which may be covered or uncovered. The spaces shall be

> located on a paved area and may be located in any setback.

Difference and effect. Palo Alto's rule is the same as Mountain View's, Los Altos's and Menlo Park's. Sunnyvale and Cupertino double the count; Sunnyvale bars tandem for its covered spaces, while Cupertino allows residential tandem by Director exception; Santa Clara requires a two-car garage or carport; and Sunnyvale's code also requires an upgrade to two covered spaces when an addition reaches four bedrooms or 1,800 square feet (Sunnyvale MC § 19.46.050(b)). Redwood City allows uncovered spaces and parking in any setback, which leaves more of a lot buildable. In Palo Alto, a covered space can be a garage or carport, but it competes with floor area limits on small lots. The rule is a design and yield constraint for some lots, so the effect is small and runs in both directions.

Context. Two-family units built under SB 9 need 1 space per unit, with none within one-half mile walking distance of high-quality transit or within one block of a car share vehicle (PAMC § 18.12.060, Table 4). Redwood City uses the same SB 9 rule (Zoning Code § 30.5(A)(2)). Santa Clara also exempts additions to a single-family house with an existing nonconforming two-car garage from added parking if the garage meets 17 by 17 feet inside (Santa Clara CC § 18.38.020(B)).

7.6 In-lieu parking fee for downtown nonresidential development

Mixed ●○○ Low *One of two cities with a downtown in-lieu parking fee*

Palo Alto rule	PAMC § 16.57.010; PAMC § 16.57.030; PAMC § 18.52.070
Applies to	Nonresidential development in the University Avenue parking assessment district
Rule source	Municipal code
Status	Current

Summary. Palo Alto allows eligible nonresidential projects in the University Avenue parking assessment district to pay a fee instead of providing required spaces. The code sets the fee at $30,250 per 250 square feet of floor area, indexed to inflation. Of the other eight cities, only Redwood City has a parking in-lieu fee, which council sets by resolution for its Downtown Parking Zone. The code text found for the other cities has no such option.

Palo Alto. PAMC § 18.52.070(d) makes the fee available only for sites with specified constraints, such as demolition of a designated historic structure, lots under 10,000 square feet where on-site parking is infeasible, unusual configuration, curb cut restrictions or physical constraints. Ord. 5460 (2019) barred office space above the ground floor from the program through August 1, 2025; that exclusion has now lapsed. Chapter 16.57 sets the amount:

> **PALO ALTO** PAMC § 16.57.030
> The fee shall be $30,250.00 per two hundred fifty square feet of gross floor area, and has been calculated based upon the feasibility study.

Subsection (c) adjusts the rate annually for inflation under § 16.64.110, and subsection (b) recalculates it when the City Council approves a public parking structure. The current inflation-adjusted amount is set outside the chapter and was not located.

Comparison.

Jurisdiction	In-lieu parking fee	Citation
Palo Alto	Yes: University Avenue district, nonresidential; $30,250 per 250 sq ft (base rate), indexed	PAMC §§ 16.57.030, 18.52.070(d)
San José	None; Council may exempt an assessment district	San José MC § 20.90.230
Santa Clara	None located in ch. 18.38	Santa Clara CC § 18.38.040
Sunnyvale	None located	Not located
Mountain View	None located	Not located
Los Altos	None; downtown parking district credit for existing floor area	Los Altos MC § 14.74.100
Cupertino	None located; no in-lieu parking fee in Title 19 or elsewhere in the code	Not located
Menlo Park	In-lieu fee for EV spaces only, in SP-ECR/D downtown area	Menlo Park MC § 16.72.010(5)(E)
Redwood City	Yes: Downtown Parking Zone; fee by resolution; each paid space counts as 2	Redwood City Zoning Code § 30.3

> **REDWOOD CITY** Redwood City Zoning Code § 30.3
> All required parking spaces which are satisfied by payment of the in-lieu fee shall count as two (2) spaces toward the fulfillment of the minimum requirement.

Difference and effect. The Palo Alto option lets small downtown sites develop without on-site parking, at a cost the code states per 250 square feet. A site that pays the fee at the base rate would owe $121 per square foot of floor area, which is a cost and not a parking obligation. Redwood City's program credits each fee-paid space as two and leaves the amount to council resolution. Because the fee applies to one district and the state transit rule already removes minimums near the Caltrain station for many downtown projects, salience is low. The effect runs in both directions: the option eases site constraints and the fee adds cost.

Context. Los Altos's downtown district exempts existing floor area up to 100 percent of lot area for parcels that joined its parking district (Los Altos MC § 14.74.100).

7.7 Tandem spaces and mechanical lifts for required parking

Mixed ●○○ Low *Between Mountain View (no tandem) and Los Altos, Cupertino, Redwood City (no cap)*

Palo Alto rule	PAMC § 18.54.020(b)(4); PAMC § 18.54.020(d)
Applies to	Multifamily housing; office and other nonresidential projects with structured parking
Rule source	Municipal code
Status	Current

Summary. Palo Alto lets tandem spaces count toward multifamily parking, capped at 25 percent of required spaces in projects of more than four units, and allows mechanical lifts for multifamily, office, hotel and several other uses after a Director-approved analysis. Mountain View bars tandem spaces for multifamily housing. Sunnyvale allows tandem for covered spaces for up to half the units. Los Altos and Redwood City set no percentage cap on tandem spaces tied to one unit, and Cupertino leaves residential tandem to a discretionary Director exception with no cap in the code, and Los Altos limits lifts to residential spaces assigned to a unit.

Palo Alto. Section 18.54.020(d) governs tandem parking:

> **PALO ALTO** PAMC § 18.54.020(d)
> For projects with more than four (4) units, not more than 25% of the required parking spaces shall be in a tandem configuration.

Tandem spaces are allowed only for units requiring two spaces and only where both spaces serve the same unit. Section 18.54.020(b)(4) lets mechanical lifts satisfy requirements for multifamily, office, hotel, automotive, industrial and institutional uses. Lifts must be inside an enclosed facility, may not serve accessible or loading spaces, and must let any single vehicle be removed without moving another. Non-residential projects must keep at least 2 spaces or 10 percent of spaces as standard spaces. The applicant submits a qualified professional's report on operation, maintenance and queuing.

Comparison.

Jurisdiction	Tandem	Mechanical lifts	Citation
Palo Alto	Same-unit only; 25% of required spaces (projects over 4 units)	Allowed for several uses with Director-approved analysis	PAMC § 18.54.020(b)(4), (d)
San José	Not applicable; no vehicle minimum	Not located	San José MC § 20.90.800
Santa Clara	None located in ch. 18.38	Allowed only in Patrick Henry Specific Plan zones	Santa Clara CC § 18.38.030(D)
Sunnyvale	Covered tandem for up to 50% of units; none for unassigned spaces	Independently accessible lifts count as covered assigned spaces; lifts not independently accessible count as tandem	Sunnyvale MC §§ 19.46.060(b), 19.46.020
Mountain View	Not for multifamily; allowed for single- and two-family units	Not located	Mountain View CC § 36.32.80(n)
Los Altos	Same-unit residential only; no cap located; 9 x 36 foot space	Residential only, same-unit; 14-foot clearance and backup power	Los Altos MC § 14.74.070
Cupertino	Director may approve tandem in residential zones on findings; no percentage cap in code	Not located	Cupertino MC §§ 19.124.040(I), 19.124.050(A)
Menlo Park	Not located	Not located	Not located
Redwood City	Same-unit tandem permitted; no cap	Not located	Redwood City Zoning Code § 30.5(A)

> **MOUNTAIN VIEW** Mountain View CC § 36.32.80
> Tandem parking shall not be permitted to satisfy off-street parking requirements except where appropriate for developments of single- or two (2) family units

> **SUNNYVALE** Sunnyvale MC § 19.46.060
> Providing two covered tandem parking spaces may satisfy covered space requirements for up to fifty percent of the units in a multiple-family development.

> **LOS ALTOS** Los Altos MC § 14.74.070
> Mechanical lift parking stalls shall only be allowed for required parking assigned to the same residential dwelling unit.

Difference and effect. Where a project needs two spaces per unit, as Palo Alto's does for 2-bedroom units, tandem and lift spaces reduce garage area per space. Palo Alto's 25 percent cap lets a project use tandem stalls for at most one in four required spaces, which is lower than Sunnyvale's 50 percent of units and the uncapped rules in Los Altos and Redwood City and Cupertino's case-by-case approval, and higher than Mountain View's bar. Palo Alto's lift rule applies to more use types than Los Altos's. The rules matter

mainly on constrained infill sites outside the areas where state law removes parking minimums. Palo Alto is more permissive than Mountain View and more restrictive than Sunnyvale, Los Altos and Redwood City, and more predictable than Cupertino, which sets no standard.

8 Design review and permit procedures

8.1 Expiration and extension of planning approvals

More restrictive ●●○ Moderate *Shortest initial term; matched by Menlo Park and Cupertino's minor permits*

Palo Alto rule	PAMC § 18.77.090; PAMC § 18.77.100
Applies to	Architectural review approvals; conditional use permits; variances; other planning approvals
Rule source	Municipal code
Status	Current

Summary. A Palo Alto planning approval expires after 12 months if use or construction has not commenced. The Planning Director may extend it once, by at most 12 months. Seven of the eight comparison cities allow an initial term of two years or longer, and several allow two or more extensions. Menlo Park, at one year plus a one-year extension, is the same as Palo Alto. The shorter term means larger projects must obtain building permits and begin work sooner or seek an extension.

> **PALO ALTO** PAMC § 18.77.090(a)
> Permits and approvals shall automatically expire after twelve months, unless otherwise provided in the permit or approval, from and after the date of issuance of the permit or approval if within such twelve month period, the proposed use of the site or the construction of buildings has not commenced, pursuant to and in accordance with the provisions of the permit or approval.

Comparison.

Jurisdiction	Initial term	Extensions	Citation
Palo Alto	12 months	One, up to 12 months, by Director without hearing	PAMC § 18.77.090(a)
San José	24 months	Director may grant up to two 1-year extensions	San José MC § 20.100.400; § 20.100.500
Santa Clara	24 months	Director, up to two 12-month; findings of no changed law and hardship	Santa Clara CC § 18.128.060; § 18.128.070
Sunnyvale	2 years	Director, total up to 1 year	Sunnyvale MC § 19.98.110; § 19.98.120
Mountain View	2 years	Zoning administrator after hearing: one 2-year or two 1-year	Mountain View CC § 36.56.65
Los Altos	2 years (use permits 24 months)	One 12-month by zoning administrator	Los Altos MC § 14.01.050; § 14.80.100
Cupertino	2 years (1 year for sign, exception and R-1 permits)	Applied for with the Director before expiration; decided by the approval body in Table 19.12.030; for the same period as the initial term; no limit on repeats stated; a building permit application filed and accepted (fees paid, control number issued) avoids expiry	Cupertino MC § 19.12.030 (Table 19.12.030); § 19.12.180
Menlo Park	1 year	Director, up to 1 year, for good cause	Menlo Park MC § 16.82.170; § 16.82.460
Redwood City	3 years	Zoning administrator, two 1-year; maximum 5 years total	Redwood City Zoning Code § 41.9

> **MOUNTAIN VIEW** Mountain View CC § 36.56.65
> any permit or entitlement not used within two (2) years of approval shall become void.

> **REDWOOD CITY** Redwood City Zoning Code § 41.9
> A permit expires three (3) years from the effective date.

Difference and effect. The maximum life of a Palo Alto approval without a building permit is 24 months, against 36 to 48 months in San José, Santa Clara and Mountain View, 48 months or more in Cupertino (two years plus a two-year extension, with no cap on further extensions stated), 36 months in Sunnyvale and Los Altos, and 60 months in Redwood City. Menlo Park's maximum is also 24 months. Projects that need financing, state tax-credit awards or phased construction can run past 12 months before a building permit issues. Section 18.77.090(c) ties approvals granted with a vesting tentative map to the map's life, which removes the short term for projects that use one. Amendments do not extend the term unless the amendment says so (Section 18.77.090(b)).

Triggers also differ. Palo Alto requires only that the use or construction "has not commenced". Santa Clara requires a building permit and continuous on-site construction before a permit is "exercised", Cupertino stops the clock once a building permit application is "filed and accepted" with fees paid (Section 19.12.180(A)(1)(a)), and Los Altos treats a building permit issuance as establishing the project. The salience is moderate: it affects every approval but only matters to projects that cannot start within a year.

Context. Section 18.77.100 separately voids a permit after 12 months of discontinued use or destruction of the building. State law extends some approvals independently of these local terms; the code text does not show how that interacts with Section 18.77.090.

8.2 Architectural review triggers and decision-making body

Mixed ●●○ Moderate *Board hearing for more project types than 6 of 8; single-family exempt*

Palo Alto rule	PAMC § 18.76.020; PAMC § 18.77.070; PAMC § 2.21.010
Applies to	Multifamily housing (3+ units); commercial and office buildings; additions of 5,000 square feet or more; signs
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto requires a public hearing before its five-member Architectural Review Board (ARB) for "major projects": multifamily projects of three or more units, new buildings or additions of 5,000 square feet or more, and any project not exempt from the California Environmental Quality Act (CEQA). The Planning Director then decides on the board's recommendation. Single-family and two-family homes are exempt from architectural review, whereas five comparison cities apply some design review to new two-story homes. In Santa Clara, Mountain View, Cupertino and Redwood City the decision rests with staff or a zoning administrator, and Sunnyvale, Los Altos and Menlo Park send large projects to the planning commission.

> **PALO ALTO** PAMC § 18.76.020(b)
> (B) Any multiple-family residential construction project that contains three or more units;

> **PALO ALTO** PAMC § 18.76.020(b)
> (A) Single-family and two-family residences, except as provided under subsections (b)(2)(C) and (b)(2)(D).

Comparison. Rows describe a new multifamily or non-residential building.

Jurisdiction	Review body for new multifamily or commercial buildings	Citation
Palo Alto	ARB hearing (recommendation), then Director decides; applies to 3+ unit multifamily, 5,000+ sq ft, non-CEQA-exempt; single-family and two-family exempt; housing projects meeting objective standards exempt (see entry 8.4)	PAMC § 18.76.020; § 18.77.070
San José	Site development permit for any new building or exterior alteration; Director decides after a public hearing	San José MC § 20.100.610; § 20.100.620
Santa Clara	Director decides; "Development Review Hearing" for new multifamily of any size and non-residential over 5,000 sq ft	Santa Clara CC § 18.120.020
Sunnyvale	Planning commission hearing for new 3+ unit multifamily in R-2 to R-5; Director for most non-residential	Sunnyvale MC § 19.80.040
Mountain View	Development review permit for all new construction; zoning administrator decides, appeal to council	Mountain View CC § 36.44.55; § 36.44.65
Los Altos	Planning commission for multifamily of 6+ units and all new non-residential; zoning administrator for smaller	Los Altos MC § 14.77.030; § 14.77.040
Cupertino	Architectural and site approval for new structures and exterior changes outside R-1; Table 19.12.030 lists the Director as final body (planning commission for housing on priority housing sites above 50 units, note P), with appeal to planning commission then council; public meeting, mailed notice to adjacent owners; R-1 two-story homes need residential design review	Cupertino MC § 19.12.020; § 19.12.030; § 19.168.030; § 19.28.140
Menlo Park	Planning commission, architectural committee or Director for any building other than single-family, duplex and accessory buildings	Menlo Park MC § 16.68.020
Redwood City	Zoning administrator without hearing; planning commission above 3 stories or 45 feet	Redwood City Zoning Code § 45.3; § 41.4

> **SANTA CLARA** Santa Clara CC § 18.120.020
> The Director shall approve or deny the architectural design without a public hearing, unless the type of project is listed in Subsection D (Public Hearing Required), below.

> **LOS ALTOS** Los Altos MC § 14.77.040
> Any multi-family housing or mixed-use development with six or more dwelling units;

> **REDWOOD CITY** Redwood City Zoning Code § 45.3
> Architectural Permits shall be decided by the Zoning Administrator without a public hearing, except as described below or otherwise required in Section 41.4 (Review Authorities for All Permits).

Difference and effect. Palo Alto's three-unit multifamily threshold matches Sunnyvale's, which sends those projects to the planning commission, and is lower than Los Altos's six units. The ARB hearing is a required step for every major project, with notice to owners and residents within 600 feet (see entry 8.3). For small multifamily and commercial projects this adds a scheduled public hearing that Santa Clara, Mountain View, Cupertino, Redwood City and, for non-residential work away from homes, Sunnyvale resolve at staff level. For housing development projects that meet objective standards, Palo Alto bypasses the board and uses the Director-only process in Section 18.77.073, and state streamlining laws bypass it for other projects.

The effect runs the other way for single-family and two-family homes. Palo Alto exempts them from architectural review (second-story review is covered in entry 1.2), whereas San José, Santa Clara, Sunnyvale, Los Altos and Cupertino (residential design review for two-story R-1 homes, Section 19.28.140) require some design review for new two-story homes. Redwood City and Mountain View also review some single-family work; Menlo Park exempts single-family homes as Palo Alto does. The effect therefore differs by project type, and the salience is moderate: it matters most for 3- to 10-unit residential projects and

mid-sized commercial work.

Context. The history note on Section 18.77.070 shows an amendment by Ord. 5646 in 2025. Section 18.77.070(c)(4) limits a housing development project subject to major review to two ARB meetings unless the applicant asks for more. Mountain View (Ord. 3.2026, 10.2026), Sunnyvale (Ord. 3258-26) and Redwood City (Ord. 1130-892) also amended their procedure sections in 2026.

8.3 Notice radius, appeal period and appeal path

Mixed ●●○ Moderate *Second-widest notice radius; shortest appeal chain for ARB projects*

Palo Alto rule	PAMC § 18.77.060; PAMC § 18.77.070; PAMC § 18.77.080; PAMC § 18.78
Applies to	All discretionary projects (architectural review, conditional use permits, variances)
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto mails hearing notice to owners and residents within 600 feet, wider than the 300 feet used in six of the eight comparison cities and second only to Mountain View's 750 feet. Any party may appeal an ARB-reviewed Director decision, and the appeal goes straight to the City Council, where it sits on the consent calendar unless three councilmembers pull it. There is no planning commission step for architectural review appeals. For minor projects, hearing requests are limited to the applicant, the property owner and adjacent owners or tenants, with no fee. The chapter states no appeal fee.

> **PALO ALTO** PAMC § 18.77.070(c)
> Notice of the hearing shall be given at least 10 days prior to the hearing by publication in a local newspaper, by posting in a public place, and by mailing to the applicant, the hearing requestor, if applicable, and all residents and owners of property within 600 feet of the project.

> **PALO ALTO** PAMC § 18.77.070(f)
> Remove the appeal from the consent calendar, which shall require three votes, and direct that the appeal be set for a new noticed hearing before the city council

Comparison.

Jurisdiction	Notice radius (who)	Appeal period; who may appeal	Appeal body	Citation
Palo Alto	600 ft (owners and residents)	14 days after notice mailed (10 for minor projects); "any party" may appeal or request a CUP/variance hearing; minor-project hearing requests limited to applicant, owner, adjacent owners or tenants, no fee	Council (consent calendar, 45 days); for CUPs and variances, commission hearing first	PAMC § 18.77.060; § 18.77.070; § 18.77.080
San José	300 ft (owners and occupants)	10 days; applicant, or owner or tenant within 1,000 ft; fee	Planning commission, then council for some permits; de novo	San José MC § 20.100.190; § 20.100.230; § 20.100.240

Jurisdiction	Notice radius (who)	Appeal period; who may appeal	Appeal body	Citation
Santa Clara	300 ft (owners)	7 days; interested person; fee	Planning commission or council; council or commissioner "Call for Review"	Santa Clara CC § 18.146; § 18.144
Sunnyvale	300 ft (owners)	15 days; any aggrieved person; automatic stay	Planning commission, then council; two councilmembers may call up	Sunnyvale MC § 19.98.040; § 19.98.070
Mountain View	750 ft (owners and tenants)	10 days; written appeal with fee	Council	Mountain View CC § 36.56.20; § 36.56.50
Los Altos	300 ft (owners)	14 days; applicant, or owner or resident within 300 ft	Zoning administrator, commission, then council	Los Altos MC § 14.01.130; § 14.01.100
Cupertino	300 ft (owners) for development permits; Gov. Code § 65905 radius for conditional use permits and variances; adjacent owners only for architectural and site approval; site posting	14 days; any person aggrieved or affected; fee set by resolution	Planning commission, then council (one appeal only for by-right housing); council decision final	Cupertino MC § 19.12.030 (Table); § 19.12.110; § 19.12.170
Menlo Park	300 ft (owners), mailed 15 days before	15 days; any person; fee	Council, three-fifths vote to reverse; call-up	Menlo Park MC § 16.84.020; § 16.86
Redwood City	Not located in code; "as required by state law"	15 days; "any affected person"	Planning commission, then council; call-ups	Redwood City Zoning Code § 41.5; § 41.7; § 41.8

> **MOUNTAIN VIEW** Mountain View CC § 36.56.20
> Tenants and owners of real property within seven hundred fifty (750) feet of project sites

> **SAN JOSÉ** San José MC § 20.100.230
> An appeal may be filed by the applicant or any property owner or any tenant of property within one thousand feet of the subject site.

Difference and effect. A 600-foot radius reaches more neighbors than 300 feet, and Palo Alto also notifies residents (renters) as well as owners, as do San José and Mountain View. Wider notice raises the number of people able to request a hearing or file an appeal on a given project. Palo Alto's appeal paths are shorter than most: an ARB project goes from Director to Council with no commission step, whereas San José, Sunnyvale, Los Altos, Cupertino and Redwood City add a commission tier. A council appeal that is not pulled from the consent calendar ends the process, so the added time depends on whether three members pull it. The chapter text does not state an appeal fee, and Palo Alto limits standing only for minor-project hearing requests (18.77.070(b)(4)), while Los Altos limits standing to the applicant and owners and residents within 300 feet and Santa Clara and San José charge filing fees in code, and Cupertino provides for a fee set by council resolution (Section 19.12.170(B)(2)). Cupertino also requires a notice posted on the site itself (Section 19.12.110(F)); Palo Alto's chapter requires posting only "in a public place".

Housing development projects that qualify for the streamlined process in Section 18.77.073 use a 10-day appeal period, and appeals of those projects are limited by state law to specific, adverse health or safety impacts.

Context. Ord. 5646 (2025) amended Section 18.77.070; the code text does not show which subsections changed. The fee schedule was not reviewed, so appeal fees are not compared.

8.4 Codified objective design standards for housing

Unclear ●●○ Moderate *Codified in the zoning code; others mostly outside their codes*

Palo Alto rule	PAMC § 18.24.010; PAMC § 18.76.025; PAMC § 18.77.073
Applies to	Multifamily housing (3+ units); supportive and transitional housing; residential mixed-use
Rule source	Municipal code
Status	Current

Summary. Palo Alto's zoning code contains objective design standards in Chapter 18.24, about 770 lines of measurable requirements for site access, building orientation, massing, façade design, entries, open space and materials. They apply to housing development projects of three or more units in multifamily, commercial, downtown, office, public-facility and North Ventura districts and the PTOD combining district. A project that meets them goes through Director-only review; a project that departs from any one is reviewed by the Architectural Review Board against general design criteria. Most comparison cities keep objective standards outside their codes, so the code text does not allow a full comparison.

> **PALO ALTO** PAMC § 18.24.010(c)
> Housing Development Projects are required to comply with objective standards in order to take advantage of streamlined review pursuant to Section 18.77.073.

> **PALO ALTO** PAMC § 18.24.010(c)
> Projects meeting objective standards are automatically assumed to meet contextual design criteria.

Comparison.

Jurisdiction	Objective design standards in code	Citation
Palo Alto	Full chapter; housing meeting them gets Director-only review; opting out sends the project to ARB	PAMC § 18.24.010
San José	Referenced, not set out: site development permit finding requires conformity to "the City's objective design standards"	San José MC § 20.100.630
Santa Clara	Not located in corpus	not located
Sunnyvale	Referenced for by-right housing (ministerial review against objective "design standards") and SB 9; not set out for multifamily	Sunnyvale MC § 19.73.040(a); § 19.78
Mountain View	Referenced: administrative housing approval requires findings of conformance with "applicable objective standards"; standards not in corpus	Mountain View CC § 36.44.75(b)
Los Altos	Referenced: design review uses "adopted Objective Design Standards" that are "supplemental" to the chapter; separate standards for SB 9	Los Altos MC § 14.77.010; § 14.64.100
Cupertino	Referenced, not set out: by-right housing findings require conformity to "objective design standards"; Director-level administrative review for up to 50 units on priority housing sites	Cupertino MC § 19.168.030(B); § 19.12.030 n. P
Menlo Park	Not located; code references limited to ADUs	Menlo Park MC § 16.79
Redwood City	Not located in corpus	not located

> **SAN JOSÉ** San José MC § 20.100.630
> and shall conform to the City's objective design standards.

> **LOS ALTOS** Los Altos MC § 14.77.010
> Design review is used to enhance the aesthetic qualities of proposed development within the City by utilizing adopted Objective Design Standards which are supplemental to this chapter.

Difference and effect. Palo Alto's standards are in the municipal code and set a defined path: a project that meets them is assumed to satisfy the design criteria, and one that does not is subject to the discretionary architectural review findings in Section 18.76.020(d). The practical effect for housing applicants is a choice between a measurable checklist and a board hearing. Where a comparison city's standards sit outside its code, as appears to be the case for San José, Los Altos and Cupertino, they function in a similar way, but the code text does not show their content or reach. The direction therefore cannot be stated for the group; the comparison is limited to where the standards live and what follows from meeting them.

Chapter 18.24 applies only to housing development projects as defined in state law. Non-housing projects follow the context-based design criteria and architectural review.

Context. State law (the Housing Accountability Act and the streamlining statutes) requires objective standards for projects it protects, so every comparison city applies some objective standards whether or not they are in the code. A web search turned up a reference to Santa Clara objective design standards in its Zoning Code; the page was not opened and the text is not in the code text reviewed.

8.5 Decision-maker for conditional use permits and variances

More permissive ●○○ Low *CUPs staff-level, unlike 4 of 8; variances typical*

Palo Alto rule	PAMC § 18.76.010; PAMC § 18.76.030; PAMC § 18.77.060
Applies to	Commercial uses requiring a conditional use permit; projects needing a variance
Rule source	Municipal code
Status	Current

Summary. In Palo Alto the Planning Director decides conditional use permits (CUPs), variances and neighborhood preservation exceptions. The Director issues a proposed written decision, notice goes to owners and residents within 600 feet, and the decision becomes final after 14 days unless someone requests a hearing; only then does the Planning and Transportation Commission hold a hearing and recommend to the City Council. For CUPs this differs from four of eight comparison cities (San José, Santa Clara, Los Altos, Menlo Park), which use the planning commission; Cupertino assigns each use to the Director, the commission or the City Council in its district tables, with a public hearing in either case. For variances Palo Alto is close to the norm: six of eight (San José, Sunnyvale, Mountain View, Los Altos, Cupertino, Redwood City) also decide at staff or zoning-administrator level, though with a hearing in every case.

> **PALO ALTO** PAMC § 18.77.060(c)
> Any party, including the applicant, may request a hearing of the planning and transportation commission on the proposed director's decision by filing a written request with the planning division.

Comparison.

Jurisdiction	CUP / use permit	Variance	Citation
Palo Alto	Director proposed decision; commission hearing on request; council consent calendar	Director proposed decision; hearing on request	PAMC § 18.77.050; § 18.77.060

Jurisdiction	CUP / use permit	Variance	Citation
San José	Planning commission	Director after public hearing; appeal to commission	San José MC § 20.100.220 (Table 20-260); § 20.100.1310
Santa Clara	Planning commission (minor use permits: Director)	Planning commission	Santa Clara CC § 18.112.020 (Table 6-1)
Sunnyvale	Minor: Director after hearing; major: planning commission	Director after hearing; commission on appeal	Sunnyvale MC § 19.88.020; § 19.84.040
Mountain View	Zoning administrator; appeal to council	Zoning administrator	Mountain View CC § 36.44.10 (Table 36.44-1)
Los Altos	Planning commission	Zoning administrator after required hearing; commission on appeal	Los Altos MC § 14.80.040; § 14.81.030
Cupertino	Director, planning commission or City Council, by use ("CUP - Admin.", "CUP - PC" or "CUP - CC" in district use tables); public hearing	Director for site development and parking variances after public hearing; appeal to commission, then council	Cupertino MC § 19.12.030 (Table); § 19.12.040(C); § 19.20.020 use table key
Menlo Park	Planning commission	Planning commission	Menlo Park MC § 16.82.010; § 16.82.360
Redwood City	Zoning administrator at public hearing	Zoning administrator at public hearing	Redwood City Zoning Code § 42.3; § 43.3

> **MENLO PARK** Menlo Park MC § 16.82.010
> The planning commission may approve, deny, or conditionally approve an application for a use permit.

> **REDWOOD CITY** Redwood City Zoning Code § 42.3
> Use Permits shall be decided by the Zoning Administrator at a public hearing, except as otherwise required in Section 41.4 (Review Authorities for All Permits).

Difference and effect. For CUPs, Palo Alto moves the decision to staff and holds a public hearing only if a party asks. Mountain View and Redwood City decide CUPs at zoning-administrator level but hold a hearing for every application, and Sunnyvale splits minor (Director) from major (commission) permits. An uncontested CUP in Palo Alto is approved on a 14-day clock with no commission meeting, while one in San José, Santa Clara, Los Altos or Menlo Park always reaches a commission, and a Cupertino CUP does so for uses assigned to the commission or council. A contested Palo Alto CUP adds a commission hearing and a council consent-calendar step. Because the difference is mainly about the hearing trigger and applies to CUP uses, salience is low.

For variances, the decision-maker level matches six of eight cities; the only difference is that the hearing is on request rather than mandatory. Palo Alto also limits what a variance can reach: Section 18.76.030(b)(1) allows variances to site development and parking regulations but excludes "limitations on residential density and size of establishment". Other cities' variance scope limits were not compared. Neighborhood preservation exceptions (Section 18.76.040) and design enhancement exceptions (Section 18.76.050) apply narrowly and are recorded in the coverage file.

Context. The CUP findings in Section 18.76.010(c) are general (not detrimental; consistent with the Comprehensive Plan). The mechanism is separate from state-law housing streamlining described in entry 4.3.

9 Historic preservation

9.1 Exterior alteration and demolition review of historic buildings

Mixed ●●○ Moderate *Advisory for houses, 60-day to 1-year delay for demolition; strictest downtown*

Palo Alto rule	PAMC § 16.49.050; PAMC § 16.49.060; PAMC § 16.49.070; PAMC § 16.49.090
Applies to	Demolition and redevelopment of inventory buildings; alterations and additions to historic houses and downtown buildings
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto treats historic single-family and duplex alterations as advisory: the Historic Resources Board (HRB) recommends and compliance is voluntary. Demolition of a significant building outside downtown is delayed 60 days, extendable by Council to one year. Downtown, demolition of a Category 1 or 2 building requires a Council finding of no reasonable economic use or of no significant effect on the chapter's purposes, or a building official or fire chief determination of an imminent hazard. Seven of the other eight cities require a permit with findings for any change to a designated property, with no voluntary track for houses (Cupertino's code has no historic review); Santa Clara requires an environmental impact report to demolish a listed or eligible property.

Palo Alto. For single-family and duplex residences, PAMC § 16.49.050(a)(1)(B) provides:

> **PALO ALTO** PAMC § 16.49.050(a)(1)(B)
> Compliance of the property owner with the recommendations shall be voluntary, not mandatory.

Commercial and multifamily buildings go to architectural review, which refers them to the HRB. Accessory dwelling units and junior accessory dwelling units on inventory properties are excluded from the review. A historic house that adds a second story is also subject to single-family individual review (PAMC § 18.04.030; see entry 1.2). For demolition outside downtown, § 16.49.070(a) provides:

> **PALO ALTO** PAMC § 16.49.070(a)
> The chief building official may not take action on the application for sixty days following receipt of a completed application.

The Council may extend the period up to one year on a recommendation from the board (§ 16.49.070(c)). Downtown, § 16.49.060(a) bars demolition of a significant building unless the Council finds the property retains no reasonable economic use (counting transferable development rights and rehabilitation cost) or that demolition will not significantly affect the chapter's purposes, or the chief building official or fire chief determines an imminent hazard exists. Unlawful demolition downtown carries misdemeanor and civil penalties and a 20-year limit on floor area ratio where development rights had been transferred from the lot, subject to relief provisions (§ 16.49.090(a)(4)).

Comparison.

Jurisdiction	Alteration of designated property	Demolition of designated property	Citation
Palo Alto	Houses: advisory board review; others: architectural review with board referral	60 days, up to 1 year (downtown Cat. 3–4; Cat. 1–2 and districts outside downtown); downtown Cat. 1–2: Council findings	PAMC § 16.49.050–.070

Jurisdiction	Alteration of designated property	Demolition of designated property	Citation
San José	Historic preservation permit; denial unless Council override	Same permit; Council may override by finding overriding benefits	San José MC § 13.48.210, .240
Santa Clara	Significant Properties Alteration permit; Director, after commission for major work	EIR; approval only if "no viable alternatives"	Santa Clara CC § 18.130.050, .060
Sunnyvale	Landmark or resource alteration permit from commission	Permit plus 60-day advertising and notice for register structures	Sunnyvale MC § 19.96.090, .095, .100
Mountain View	Historic preservation permit, Zoning Administrator hearing; Council decides for register-eligible buildings	Permit; pre-demolition meeting on alternatives	Mountain View CC § 36.54.75, .85, .90
Los Altos	Historic alteration permit; commission recommends, Zoning Administrator decides	Same permit	Los Altos MC § 14.93.050, .060
Cupertino	None; no historic preservation chapter in code	None; no historic demolition rule in code (state Historical Building Code adopted, ch. 16.62)	Cupertino MC ch. 16.62
Menlo Park	Architectural control approval for landmarks	Planning Commission may suspend action up to 180 days, plus 180 more	Menlo Park MC § 16.54.050, .060
Redwood City	Commission approval after committee review	Same, with public hearing	Redwood City MC § 40.8–40.10

> **SANTA CLARA** Santa Clara CC § 18.130.060
> The HLC shall recommend approval of a Demolition Permit, and the Council shall approve a Demolition Permit, only if there are no viable alternatives for saving the property, and such alternatives have been fully addressed in an Environmental Impact Report.

> **MENLO PARK** Menlo Park MC § 16.54.060
> If the application for architectural control proposes alterations, demolition or removal of a landmark, the planning commission may approve the application or suspend action on the application for a period not to exceed one hundred eighty days.

Difference and effect. Palo Alto's advisory track for historic houses is not matched by any other city in the set; seven of the eight others require a permit with findings for designated properties, and Cupertino's code imposes no historic review at all. For houses the Palo Alto rule therefore lowers approval risk but also delays a demolition only by the 60-day period, unless Council extends it. Santa Clara's EIR requirement lengthens and raises the cost of demolishing a listed or eligible property, and San José, Los Altos and Redwood City condition demolition on a permit. Downtown, Palo Alto's economic-use test has no equivalent in the other eight codes, though it applies to a short list of Category 1–2 downtown buildings. The effect runs in both directions: easier for houses, harder downtown.

Context. The code history shows Ord. 5656 (2025) amended § 16.49.050, which now excludes accessory dwelling units on inventory properties. Los Altos revised its chapter in October 2025 (Ord. 2025-538). Santa Clara treats an accessory dwelling unit on an HRI property as needing a permit (Santa Clara CC § 18.130.050(A)(2)).

9.2 Floor area, exception and tax incentives for historic properties

Mixed ●●○ Moderate *Strong floor-area incentives for houses and downtown; no Mills Act program in code*

Palo Alto rule	PAMC § 18.04.030; PAMC § 18.12.120; PAMC § 18.12.140; PAMC § 18.18.070; PAMC § 18.18.080; PAMC § 18.52.070
Applies to	Single-family additions to historic houses; downtown rehabilitation and redevelopment projects
Rule source	Municipal code
Status	Current

Summary. Palo Alto gives historic single-family homes a basement exclusion and up to 500 square feet of attic exclusion from floor area, a 250 square foot home improvement exception, and a lot-split option for two-residence parcels. Downtown, rehabilitating a Category 1 or 2 building earns a floor area bonus of 2,500 square feet or 25 percent, transferable to other downtown sites. Mountain View, Sunnyvale and San José offer exceptions, fee waivers or tax contracts, but not floor area exclusions of this kind. Palo Alto's code has no Mills Act chapter, while San José, Los Altos and Mountain View regulate property-tax contracts. Cupertino's code has neither incentives nor a Mills Act chapter.

Palo Alto. Residences listed as Category 1 through 4, contributing structures in a local district, and houses on the National or California Register exclude new or existing basement area and up to 500 square feet of unusable attic space from gross floor area (PAMC § 18.04.030(a)(65); see entry 1.1). Section 18.12.120 lets the Director grant additional floor area:

> **PALO ALTO** PAMC § 18.12.120
> For any residence designated on the city's Historic Inventory as a Category 1 through 4 historic structure as defined in Section 16.49.020 of the Palo Alto Municipal Code or any contributing structure within a locally designated historic district, to allow up to 250 square feet of floor area in excess of that allowed on the site

The exception requires conformance with the Secretary of the Interior's Standards and a recorded covenant. A parcel with two residences, one of them historic, can be divided into lots of 4,000 square feet in R-1 (2,000 square feet if both are historic and covenanted) without adding units, provided the Historic Resources Board finds a residence qualifies for the inventory and a perpetual covenant is recorded (§ 18.12.140(c)). Downtown (CD district), the code grants:

> **PALO ALTO** PAMC § 18.18.070(a)(3)
> A building that is in Historic Category 1 or 2, and is undergoing historic rehabilitation, but is not in Seismic Category I, II, or III, shall be allowed to increase its floor area by 2,500 square feet or 25% of the existing building, whichever is greater, without having this increase count toward the FAR

A building that is also seismically rehabilitated receives 5,000 square feet or 50 percent. Bonus area can be transferred to receiver sites under § 18.18.080, up to 10,000 square feet per receiver and 1.0 additional floor area ratio (FAR) inside the downtown parking assessment district (0.5 outside it), and a Category 1–2 building of 50 feet or less that was most recently residential is exempt from on-site parking when converted to commercial use with approved exterior rehabilitation and no loss of existing parking (§ 18.52.070). The bonuses require a recorded covenant, a historic structure report at the applicant's expense, and Historic Resources Board review. PAMC contains no Mills Act provision; a June 2017 staff report to the board describes one contract (Squire House) and a proposed pilot program.[39]

[39] City of Palo Alto Historic Resources Board, *Mills Act Discussion* staff report ID 8201 (June 8, 2017), https://www.cityofpaloalto.org/files/assets/public/agendas-minutes-reports/agendas-minutes/historic-resources-board/2017/mills-act-id-8201.pdf. Opened 2026-10-12. Current contract count not confirmed.

Comparison.

Jurisdiction	Dimensional or floor area incentives	Tax contract	Citation
Palo Alto	FAR exclusions, 250 sq ft exception, downtown bonus and transfer	None in code	PAMC § 18.04.030, 18.12.120, 18.18.070
San José	None found in Part 3	Mills Act contracts, minimum 10 years, landmarks only	San José MC § 13.48.500–.520
Santa Clara	Not located	Mills Act contracts exist (cited in code)	Santa Clara CC § 18.130.050(C)(7)
Sunnyvale	Setback and height exceptions for landmark additions; reconstruction exempt	Not located	Sunnyvale MC § 19.96.080
Mountain View	Variances, FAR and setback exceptions, BMR and park credits, fee waivers	Mills Act; optional tax rebate	Mountain View CC § 36.54.80
Los Altos	None found in the chapter	Mills Act program (ch. 14.95)	Los Altos MC § 14.95.040
Cupertino	None; no historic chapter or incentives in code	None in code	Not located
Menlo Park	None; H district caps FAR at 45%	Not located	Menlo Park MC § 16.54.090
Redwood City	None in chapter	Commission reviews contracts; no program chapter	Redwood City MC § 40.5(K)

> **MOUNTAIN VIEW** Mountain View CC § 36.54.80
> Historic resources are eligible for special incentives and benefits as determined and adopted by the city council.

> **SUNNYVALE** Sunnyvale MC § 19.96.080
> Additions to landmarks or structures within landmark districts may be granted exceptions from dimensional requirements provided that the following findings can be made:

Difference and effect. Palo Alto's single-family incentives work through floor area and apply to Category 1 through 4 homes, a wider group than the Category 1–2 homes covered by mandatory review. Whether 500 square feet of attic and a basement matter depends on lot size, since R-1 floor area ratio limits otherwise cap house size. Mountain View's list is broader in type (setbacks, fees, affordable housing credits) but needs council determination. The downtown bonus affects a small group of buildings. Missing Mills Act contracts remove a property-tax incentive that Los Altos, San José and Mountain View provide, but the City's code does not state why.

Context. The state Historical Building Code is adopted in all nine jurisdictions (Cupertino MC ch. 16.62) (PAMC ch. 16.19) and is not treated as a difference.

9.3 Which properties are subject to historic review

Mixed ●●○ Moderate *Narrow code trigger, broad CEQA trigger; middle of the nine cities*

Palo Alto rule	PAMC § 16.49.020; PAMC § 16.49.050; PAMC § 16.49.070
Applies to	Alterations, additions and demolition on older buildings; single-family, multifamily and commercial
Rule source	Code and non-code rules
Status	Current

Summary. Palo Alto's historic preservation chapter applies only to buildings on its historic inventory in Categories 1 and 2, buildings inside the two local historic districts, and, downtown only, Categories 3 and 4. Categories 3 and 4 outside downtown are not subject to the chapter. Separately, under a Comprehensive Plan policy and a staff information bulletin, Palo Alto may require a historic resource evaluation for any discretionary project that touches an unlisted building more than 45 years old. San José, Santa Clara and Menlo Park use similar environmental-review practices; Santa Clara and Los Altos also write an age or eligibility test into their codes. Sunnyvale and Redwood City codes regulate only designated properties; Cupertino's code has no historic review chapter; Mountain View's also reaches alterations to buildings eligible for the National or California Register.

Palo Alto. PAMC § 16.49.020(f) defines which buildings the exterior-alteration rule reaches, and § 16.49.050(a) applies review to them:

> **PALO ALTO** PAMC § 16.49.020
> "Significant building" means any building, group of buildings or site categorized on the historic inventory as number one or number two and all structures within historic districts.

Categories 3 and 4 ("contributing buildings") are covered only in the downtown area (§ 16.49.050(a), § 16.49.070(a)). The City's July 2024 information bulletin calls Category 1–2, downtown Category 3–4 and district properties "Group A." It calls Category 3–4 properties elsewhere, National and California Register listings, and properties found eligible by an evaluation "Group B." Group B properties are reviewed only through CEQA. For unlisted properties the bulletin says the City "may require an HRE report" when a discretionary application proposes demolition, new construction, an addition or substantial exterior alteration and the existing development "is more than 45 years old."[40] Discretionary applications include architectural review, home improvement exceptions and single-family individual review, so a 1970s house needing a second-story review can trigger an evaluation. Ministerial projects such as most ADUs do not.

Comparison.

Jurisdiction	Mandatory code review applies to	Unlisted older or eligible buildings	Citation
Palo Alto	Cat. 1–2 and district buildings citywide; Cat. 3–4 downtown	Evaluation if discretionary project and building over 45 years (non-code bulletin)	PAMC § 16.49.020, .050, .070

[40] City of Palo Alto, *Historic Resources & Permit Review Requirements* (information bulletin, July 2024), https://www.cityofpaloalto.org/files/assets/public/v/1/development-services/planning-review/1.-single-family-and-duplexes/historic-resources-review-info-bulletin-sep.-2024.pdf. Opened 2026-10-12. Menlo Park: *68 Willow Road Historic Resource Evaluation*, https://www.menlopark.gov/files/sharedassets/public/v/1/community-development/documents/projects/under-review/68-will-rd/68-willow-rd_historic-resources-assessment.pdf, quoting Housing Element EIR measure MMRP CR-1a. Opened 2026-10-12.

Jurisdiction	Mandatory code review applies to	Unlisted older or eligible buildings	Citation
San José	City landmarks and landmark districts (HP permit)	Streamlined ministerial approval requires a consultant evaluation of unlisted buildings over 45 years; two-unit R-2 projects need one for pre-1950 units	San José MC § 13.48.210; § 20.195.310; § 20.30.855
Santa Clara	Historic Resource Inventory (HRI) properties (SPA permit)	Demolition permits checked against a "potentially historic" flag; eligible properties need an EIR	Santa Clara CC § 18.130.050, .060
Sunnyvale	Landmarks, landmark districts, designated and council-designated heritage resources	None in code	Sunnyvale MC § 19.96.065
Mountain View	Register properties (HP permit); buildings eligible for National or California Register get council-level review	Eligible buildings covered only for alterations	Mountain View CC § 36.54.85, .90
Los Altos	Historic Resources Inventory properties (historic alteration permit)	Inventory defined as properties over 50 years that are listed	Los Altos MC § 14.93.020, .050
Cupertino	None; no historic preservation chapter. Code refers to historic structures in non-preservation rules (flood variances, density-bonus denial finding, bird-safe glass and lighting exemptions), none a historic review	Not located; General Plan Figure LU-3 lists historic resources	Cupertino MC § 16.52; § 19.56; § 19.102.030(E)(1)
Menlo Park	Designated landmarks (H district)	45-year evaluation by housing-element mitigation measure; no local register	Menlo Park MC § 16.54.050
Redwood City	Landmarks, historic sites, districts	None in code	Redwood City MC § 40.8

> **SANTA CLARA** Santa Clara CC § 18.130.060
> Upon receiving an application for a Demolition Permit for a property not listed on the HRI, the Department shall search the City permit system database to ascertain if the property is noted as "potentially historic" next to the assessor's parcel number.

> **MOUNTAIN VIEW** Mountain View CC § 36.54.90
> Alterations to buildings which are eligible for the National Register of Historic Places or the California Register of Historical Resources shall be reviewed pursuant to Section 36.54.85 a., b., c., and d.

Difference and effect. Palo Alto's code reaches a smaller set of buildings than Santa Clara's (which includes potentially eligible demolitions) and a different set than San José's (permit review of landmarks and districts, plus consultant evaluation under its ministerial rules). Its practical reach is wider because of the 45-year evaluation, which resembles San José's 45-year test and Menlo Park's 45-year measure but applies to a broader range of discretionary applications. Evaluation adds a consultant report and staff review to affected projects. Only a finding of California Register eligibility moves a building into Group B review. Sunnyvale and Redwood City impose no evaluation on unlisted buildings in their codes, Cupertino's code imposes no historic review of any building (its General Plan list and any CEQA practice sit outside the code), and Mountain View's covers only register-eligible buildings, plus any additional buildings the council by resolution adds to predemolition review (§ 36.54.75(d), a discretionary power); each city's CEQA practice may still require one, which the codes do not show. Mountain View designation

by council initiative needs written owner consent (§ 36.54.70(c)); Palo Alto and Los Altos do not require it for designation (Los Altos MC § 14.93.040). The effect runs in both directions, so the rating is moderate.

Context. Palo Alto's TOD combining district excludes sites on the local inventory as of January 1, 2025 from the state transit-oriented housing law (PAMC § 18.14.070(b)); Sunnyvale excludes the Murphy Station district similarly (Sunnyvale MC § 19.96.170).

10 Trees, landscaping and creek setbacks

10.1 Notice, appeals and development moratorium for tree removal

More restrictive ●●○ Moderate *Only one of nine with a moratorium after a permitted removal*

Palo Alto rule	PAMC § 8.10.050(a)(2); PAMC § 8.10.140
Applies to	Owners seeking protected-tree removal permits; projects on parcels where a tree was removed
Rule source	Municipal code
Status	Current

Summary. Palo Alto mails notice of a tree-removal application to owners and residents within 300 feet, lets anyone living within 600 feet request a hearing, and allows a moratorium on development of the parcel for 24 to 36 months after a removal granted outside a development project. No comparison city has a moratorium after a permitted removal. Cupertino's tree chapters allow a stop-work order or "temporary moratorium" only after a violation involving a public tree (ch. 14.12), lifted when a fee is paid. San José, Menlo Park, Mountain View, Los Altos, Cupertino and Redwood City also allow appeals by people other than the applicant, defined by adjacency, residency or being aggrieved. Sunnyvale allows only the owner to appeal, and Santa Clara's code states no appeal procedure.

Palo Alto. Notice goes to owners and residents within 300 feet, to urban forestry partner organizations, by posting on the property and on the website (§ 8.10.140(b)(4)). Appeals must be filed within 14 days of posting. The moratorium applies when a tree is removed under a permit granted with no development proposed:

> **PALO ALTO** PAMC § 8.10.050(a)(2)
> In the event a protected tree is removed pursuant to a protected tree removal permit granted under this subsection (a), a temporary moratorium on development of the subject property may be issued by the urban forester for up to twenty-four months or by, the director of planning and development services, in consultation with the urban forester, for up to thirty-six months, from the date the tree removal occurred.

Completing the required mitigation does not shorten the moratorium, though the urban forester or director may end it early and may require more mitigation. A removal permit expires after 12 months if the tree has not been removed (§ 8.10.140(a)(5)).

Comparison.

Jurisdiction	Third-party notice and appeal	Post-removal development limit	Citation
Palo Alto	Notice within 300 ft; hearing request by owners and residents within 600 ft, 14 days	Moratorium up to 24 or 36 months	PAMC §§ 8.10.050(a)(2), 8.10.140
San José	Tentative decision mailed to adjacent and opposite owners and occupants; hearing request, then Planning Commission appeal, 10 days	None in code	San José MC §§ 13.32.090, 13.32.120
Santa Clara	Department decides; no third-party appeal located	None	Santa Clara CC § 12.35.090(c)
Sunnyvale	No public notice or hearing; only the owner may appeal	None	Sunnyvale MC §§ 19.94.060, 19.94.065
Mountain View	Any person aggrieved or affected may appeal, 10 days; automatic stay	None; two-year bar on reapplying after a denial	Mountain View CC § 32.31

Jurisdiction	Third-party notice and appeal	Post-removal development limit	Citation
Los Altos	Any interested party may appeal to council, 10 days	None	Los Altos MC § 11.08.130
Cupertino	Notice and posting only for specimen trees over 24 in. (single trunk), heritage, development and privacy-planting trees, and removals over the cap; any person aggrieved or affected may appeal, 14 days	None after a permitted removal; stop-work or temporary moratorium after a violation involving a public tree, until the fee is paid	Cupertino MC §§ 14.18.130, 14.18.190, 19.12.170, 14.12.140
Menlo Park	Residents may appeal development and utility removals, 15 days; 300 ft notice	Six-month bar on reapplying after denial	Menlo Park MC §§ 13.24.050(b), 13.24.060
Redwood City	Any aggrieved person may appeal to City Manager	None	Redwood City MC § 35.8

> **SUNNYVALE** Sunnyvale MC § 19.94.065(b)
> A decision by the director of community development on a tree removal permit may only be appealed by the owner of the subject property.

> **CUPERTINO** Cupertino MC § 14.12.140(A)
> If a violation occurs, the City may issue a stop work order or temporary moratorium suspending and prohibiting all further activity on the property pursuant to the grading, demolition, and/or building permit(s) until the Public Tree Damage or Removal Fee has been determined by the City and paid by the permittee.

> **MOUNTAIN VIEW** Mountain View CC § 32.31(c)
> An appeal shall automatically stay issuance or denial of the permit until the appeal has been completed.

Difference and effect. Palo Alto's 600-foot appeal radius is a fixed geography, where San José uses adjacent and opposite parcels and Menlo Park's notice radius is 300 feet. Mountain View, Menlo Park, Los Altos and Cupertino open appeals to a wider group (anyone affected, any resident, any interested party), and Mountain View's appeal stays the permit automatically. Among the nine cities a moratorium following a permitted removal is unique to Palo Alto. Cupertino's stop-work remedy is a different instrument: it applies to violations involving public trees under chapter 14.12, suspends work under grading, demolition or building permits, and ends when the damage or removal fee is determined and paid. Under Palo Alto's rule, an owner who removes a hazardous or declining tree without a development plan cannot, for up to three years, file for a new project on that parcel. Because it applies only to removals outside development, it affects owners who remove a tree and later decide to build or add. Salience is moderate because the moratorium can block a project for up to three years on an affected parcel, but the code does not say how often it is imposed.

Application fees also differ. Palo Alto charges $460 per protected tree removal (FY 2026). San José's FY 2026-27 schedule lists $2,587 (proposed schedule, no change from FY 2025-26) for a live tree on a single-family or duplex lot and $2,985 for other uses, plus noticing fees. Santa Clara charges $320 (single-family) or $612 (other), Sunnyvale $402, Los Altos $314.57 for the first tree, and Mountain View $178 for a heritage tree application. Cupertino charges $483 for the first tree and $190 for each additional tree without arborist review, or $884 and $285 with arborist review (FY 2026-27).[41] Redwood City's and Menlo Park's current fees were not located.[42]

[41] City of Cupertino, *Fee Schedules FY 2026-27*, Resolution 26-047, fees effective July 1, 2026, Schedule C – Planning (Tree Removal Permit); copy obtained from the city website, October 2026.

[42] FY 2026-27 fee schedules of San José (item 27), Santa Clara, Sunnyvale (item C14), Los Altos and Mountain View,

Context. Cupertino's stop-work remedy (Cupertino MC § 14.12.140(A)) is in the public tree chapter and does not apply to protected private trees under chapter 14.18; its text is quoted below. Outside the comparison set, San Mateo County has a moratorium after unpermitted removals. Both apply to violations, while Palo Alto's applies after a permitted removal. Palo Alto's appeal provisions were amended by Ord. 5557 (2022) and Ord. 5612 (2024). Mountain View's appeal section was last amended in 2013 (Ord. 1.13).

10.2 Tree replacement requirements and in-lieu fees

More restrictive ●●○ Moderate *Higher fixed minimum than cities that state a ratio*

Palo Alto rule	PAMC § 8.10.055; PAMC § 8.10.030; PAMC § 8.10.120
Applies to	Any project removing a protected tree; development projects removing trees of 4 inches or more
Rule source	Code and non-code rules
Status	Change adopted or pending (see Context)

Summary. The PAMC leaves Palo Alto's replacement ratio to the urban forester under the Tree Technical Manual. The manual requires at least two 24-inch box trees for any protected tree and more for large canopies, and the city's 2026 in-lieu fee is $1,250 per 24-inch box tree. Other cities set simpler ratios or fees: Santa Clara 1:1 for single-family lots, Los Altos 1:1 by canopy, Mountain View a $1,881 fee per replacement tree in FY 2026-27, and Cupertino one 24-inch box tree for a tree up to 12 inches and two for 12 to 36 inches, with an in-lieu fee set at replacement cost, and Menlo Park fees from $100 to $7,000 by trunk size. The manual is under revision, so the ratios may change.

Palo Alto. Section 8.10.055 delegates the ratio and fee:

> **PALO ALTO** PAMC § 8.10.055(b)
> In the event a protected tree is removed pursuant to Section 8.10.050 (a)(1)(ii), (iii), or (iv), (b), (c), (d), or (e), the tree removed shall be replaced in accordance with the standards and specifications in the Tree and Landscape Technical Manual, including but not limited to prioritization of locally native species, satisfaction of right tree in the right place principles, and incorporation of a secondary goal of net tree canopy increase on the property within fifteen years.

For a tree removed because it is dead, hazardous or a nuisance, subsection (a) leaves mitigation, ratio or fee to the urban forester. The 2016 Tree Technical Manual, Table 3-1, sets the number of 24-inch box trees by canopy width: two for 4 to 9 feet, three for 10 to 27 feet, four for 28 to 40 feet, six for 40 to 56 feet, and a combination with the value standard above 60 feet, with a minimum of two trees for any protected tree.[43] Palo Alto's Tree Ordinance page lists a 2026 in-lieu fee of $1,250 per 24-inch box tree and says trees of 4 inches in diameter or more removed for development are subject to replacement.[44] The permit fee is $460 per protected tree removal in the FY 2026 fee schedule.[45]

supplied locally in user_docs with no URLs recorded; City of Palo Alto, *Fiscal Year 2026 Adopted Municipal Fee Schedule*, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2026-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12.

[43] City of Palo Alto, *Tree Technical Manual Standards & Specifications* (2016), § 3.20, Table 3-1, https://www.cityofpaloalto.org/files/assets/public/v/1/public-works/tree-section/ufmp/tree-technical-manual/cover-corecombined_cpa_ttm-2016-final-copy.pdf. Opened 2026-10-12.

[44] City of Palo Alto, *Tree Ordinance Information*, https://www.paloalto.gov/Departments/Public-Works/Public-Services/Palo-Altos-Urban-Forest/Tree-Ordinance-Information. Opened 2026-10-12.

[45] City of Palo Alto, *Fiscal Year 2026 Adopted Municipal Fee Schedule*, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2026-adopted-municipal-fee-schedule.pdf,

Comparison.

Jurisdiction	Replacement rule	In-lieu or related fee	Citation
Palo Alto	At least two 24-in. box trees per protected tree; more by canopy (manual)	$1,250 per 24-in. box tree (2026)	PAMC § 8.10.055; manual Table 3-1
San José	Suitable replacement "roughly proportionate"; ADU removals 1:1 minimum	Off-site replacement $1,000 per tree (FY 2026-27)	San José MC §§ 13.32.110, 20.80.177
Santa Clara	Single-family 1:1 (15-gal.); multifamily and commercial 2:1 (24-in. box) or 4:1 (15-gal.)	City tree planting $2,111 per tree (FY 2027)	Santa Clara CC § 12.35.090(c)(7)
Sunnyvale	Case by case; minimum 24-in. box	$551 (24-in. box) to $2,205 (48-in. box) without a planning application	Sunnyvale MC §§ 19.94.080, 19.94.090
Mountain View	Director sets number and size; fee at least cost of 24-in. box tree	$1,881 per tree (FY 2026-27)	Mountain View CC § 32.35(b)
Los Altos	1:1 by mature canopy; 24-in. box	$1,258.29 (FY 2026-27)	Los Altos MC § 11.08.120
Cupertino	Guideline table: up to 12 in. trunk, one 24-in. box (not applicable in R-1, A, A1, RHS or R-2 zones except development and privacy-planting trees); over 12 to 36 in., two 24-in. box or one 36-in. box; over 36 in., one 36-in. box; heritage, one 48-in. box	In-lieu fee = purchase and installation cost set by Director (trees to 36 in.); ISA appraisal value (heritage or over 36 in.); 1.5x if planting is feasible on R-1, A, A1, RHS, R-2 lots; no dollar figure in code	Cupertino MC § 14.18.160
Menlo Park	Development: appraised value; other removals: matrix by trunk size	$100 to $7,000 by trunk size	Menlo Park MC § 13.24.090
Redwood City	No replacement ratio for permitted removals; replacement for unauthorized removals	Not located in FY 2026-27 schedule	Redwood City MC § 35.7

> **SANTA CLARA** Santa Clara CC § 12.35.090(c)(7)
> At the discretion of the Department of Community Development, replacement trees will be required as a condition of issuance of a tree removal permit, or as a condition of any discretionary permit for development or redevelopment that involves the removal of a tree at the following replacement ratios:

> **CUPERTINO** Cupertino MC § 14.18.160
> In cases where it is physically feasible to plant, but the applicant chooses to pay the in-lieu fee instead of planting a replacement tree on the subject property, payment shall be equivalent to one and one-half the calculated in-lieu tree replacement fee.

> **LOS ALTOS** Los Altos MC § 11.08.120
> Replace the tree 1:1 with a tree of a similar size canopy at maturity.

Difference and effect. Palo Alto's code gives no number, so the requirement sits in the manual. Its floor of two 24-inch box trees per protected tree is higher than the 1:1 ratios Santa Clara (single-family) and Los Altos state, and than Cupertino's guideline of one 24-inch box tree for trees up to 12 inches (Cupertino's table is a basis the approval authority may use, not a fixed rule, and equals Palo Alto's two trees for mid-size trees), and its table adds trees as canopy widens: a 30-foot canopy needs four 24-inch box trees, or $5,000 at the in-lieu rate. Los Altos also scales to canopy, but at one tree's mature canopy per removed tree. For nondevelopment removals, Menlo Park's guidelines set $5,000 for trunks over 40 to 50 inches and

Tree Removal. Opened 2026-10-12.

$7,000 above 50 inches. Palo Alto's $1,250 per tree is close to Los Altos ($1,258), above San José ($1,000) and below Mountain View ($1,881), but the count multiplies it. Cupertino's code states no dollar in-lieu rate; its public street-tree planting schedule lists $584 for a 24-inch tree (FY 2026-27), but the schedule does not say that figure is the in-lieu rate.[46] Salience is moderate because the cost is one-time but grows with tree size and affects every removal on a development site.

Context. The city is revising the manual: a draft Tree and Landscape Technical Manual had a comment period from December 2, 2024 to March 3, 2025, and the 2016 manual remains usable until adoption, with the ordinance controlling conflicts.[47] The 2016 Table 3-1 may therefore be replaced. The FY 2027 Palo Alto fee schedule was not opened, so the $460 fee is for FY 2026. Fees for the other cities are from their FY 2026-27 schedules, and Menlo Park's matrix is from its heritage tree replacement page.[48][49]

10.3 When a protected tree may be removed for development

More restrictive ●●○ Moderate *Narrowest development-removal tests of the nine cities*

Palo Alto rule	PAMC § 8.10.050
Applies to	Additions, remodels and new homes on R-1, RE, R-2 and RMD lots; subdivisions and lot splits; multifamily and commercial development
Rule source	Municipal code
Status	Current

Summary. Palo Alto allows removal of a protected tree for development on a single-family or low-density lot only if construction would kill the tree and no financially feasible design alternative exists, or if keeping it would cut the buildable area by more than 25 percent. In a subdivision, removal is limited to trees that block access or must go to repair a geologic hazard. The other eight cities treat reasonable use or economic development of the property as a ground for removal, usually in one general finding, without cost or area tests. The effect is that Palo Alto trees constrain site design more directly. The ordinance exempts ADUs from these tests.

Palo Alto. PAMC § 8.10.050 sets different tests by project type. For development on R-1, RE, R-2 and RMD parcels other than subdivisions:

> **PALO ALTO** PAMC § 8.10.050(b)(1)
> The tree is so close to the proposed development that construction would result in the death of the tree, and there is no financially feasible design alternative that would permit preservation of the tree, where financially feasible means an alternative that preserves the tree unless retaining the tree would increase project cost by more than twice the reproduction cost of the tree or ten percent of the given project valuation, whichever is greater.

Section 8.10.050(b)(2) and (d)(1) add the 25 percent buildable-area test, counting every tree protection zone

[46] City of Cupertino, *Fee Schedules FY 2026-27*, Resolution 26-047, fees effective July 1, 2026, Schedule B – Engineering (New Public Tree Cost Schedule); copy obtained from the city website, October 2026.

[47] City of Palo Alto, *Tree Ordinance Information*, https://www.paloalto.gov/Departments/Public-Works/Public-Services/Palo-Altos-Urban-Forest/Tree-Ordinance-Information. Opened 2026-10-12.

[48] City of Menlo Park, *Heritage tree replacement requirements*, https://www.menlopark.gov/Government/Departments/Public-Works/Maintenance-Division/Trees/Heritage-tree-replacement-requirements. Opened 2026-10-12.

[49] FY 2026-27 fee schedules of San José (Tree Removal Permit, item 27), Santa Clara (City Tree Planting), Sunnyvale (items K4-K5), Mountain View (Heritage Tree, Tree Replacement) and Los Altos (In-Lieu Tree Replacement Fee), supplied locally in user_docs; no URLs recorded. Opened 2026-10-12.

that affects buildable area. Removal to accommodate an ADU built under PAMC § 18.09.030 is allowed without these tests. For subdivisions:

> **PALO ALTO** PAMC § 8.10.050(c)(1)
> Removal is unavoidable due to restricted access to the property or deemed necessary to repair a geologic hazard (landslide, repairs, etc.), in which case only the protected tree or trees necessary to allow access to the property or repair the geologic hazard may be removed.

For other development requiring Title 18 approval, a third route exists: discretionary review finds the final project follows "right tree in the right place" principles and yields a net canopy increase within 15 years (§ 8.10.050(d)(3)). A tree report by a city-listed arborist is required in every case.

Comparison.

Jurisdiction	Development-related ground for removal	Citation
Palo Alto	Tree would die from construction and no alternative within 2x tree reproduction cost or 10% of project valuation; or more than 25% buildable-area loss; subdivisions: access or geologic repair only	PAMC § 8.10.050(b)-(d)
San José	One finding suffices, including that the tree's location "unreasonably restricts the economic development of the parcel"	San José MC § 13.32.100(A)
Santa Clara	Tree restricts economic enjoyment "in a manner not typically experienced by owners of similarly zoned" property and no reasonable alternative; or trunk within 5 ft of a residence	Santa Clara CC § 12.35.090(c)(4)
Sunnyvale	Tree restricts reasonable use or economic potential, judged on listed criteria	Sunnyvale MC § 19.94.060(c)
Mountain View	Removal needed for improvements or reasonable and conforming use, balanced against preservation	Mountain View CC § 32.35(a)
Los Altos	Preservation impedes use of property and no reasonable or feasible alternative	Los Altos MC § 11.08.100(A)
Cupertino	Tree location restricts economic enjoyment "in a manner not typically experienced by owners of similarly zoned and situated property" and no reasonable alternative to preserve it; or tree interferes with proposed essential structures and cannot be remedied by relocation or modification	Cupertino MC § 14.18.180(A)(1)-(2)
Menlo Park	Interferes with development and no financially feasible, reasonable design alternative	Menlo Park MC § 13.24.050(a)(5)
Redwood City	Necessity of removal for improvements, with four other factors	Redwood City MC § 35.4(A)

> **SAN JOSÉ** San José MC § 13.32.100(A)(2)
> That the location of the tree with respect to a proposed improvement unreasonably restricts the economic development of the parcel in question; or

> **MENLO PARK** Menlo Park MC § 13.24.050(a)(5)
> Development. The heritage tree interferes with proposed development, repair, alteration or improvement of a site or the heritage tree is causing/contributing to structural damage to a habitable building (excluding amenities, such as walkways, patios, pools and fire pits); and there is no financially feasible and reasonable design alternative that would permit preservation of the heritage tree while achieving the applicant's reasonable development objectives or reasonable economic enjoyment of the property using the methodology established in the administrative guidelines.

Difference and effect. Menlo Park's test is the closest to Palo Alto's, since both ask whether a feasible alternative exists; Cupertino's has the same structure as Santa Clara's, asking whether any reasonable alternative to preserve the tree exists. Only Palo Alto fixes the cost ceiling (twice the tree's reproduction

cost or 10 percent of project valuation) and the 25 percent area trigger in the code. The other cities, Cupertino included, leave the weighing to the decision-maker. Palo Alto's subdivision rule has no counterpart: Redwood City treats tentative map approval as the removal permit (§ 35.6), and San José handles trees in the development permit (§ 13.32.080). The rule therefore bears most on lot splits under SB 9, additions near large oaks or redwoods, and infill on small lots. It is moderate because it applies only to lots that have protected trees. The code does not state how often a feasible alternative is found, and this report did not review permit outcomes.

Context. Ord. 5612 (2024) is the latest amendment to § 8.10.050.

10.4 Which private trees are protected

Mixed ●●○ Moderate *General threshold higher than 4 of 8; native-species thresholds mid-range*

Palo Alto rule	PAMC § 8.10.020; PAMC § 8.10.050
Applies to	Single-family and multifamily lots; commercial sites; additions, remodels, ADUs and new construction on lots with trees
Rule source	Municipal code
Status	Current

Summary. Palo Alto protects six native tree species at 11.5 inches in diameter, coast redwoods at 18 inches, and any other tree at 15 inches, except species on the state's high-water-use list and weeds. San José, Sunnyvale and Redwood City protect any tree of 38 inches in circumference (about 12.1 inches in diameter), and Los Altos protects any tree of 12 inches in diameter. Cupertino protects listed species (native oaks and six others) at 12 inches in diameter, plus heritage trees of any species with no size threshold. The general threshold in Palo Alto is therefore higher than in four of the eight comparison cities, but the definition also covers trees designated during earlier development approvals and mitigation trees planted under the ordinance, and its definition of removal reaches paving or trenching in the tree protection zone.

Palo Alto. PAMC § 8.10.020(k) lists seven classes of protected tree. Class (1) is six locally native species (bigleaf maple, California incense cedar, coast live oak, blue oak, California black oak, valley oak) at 11.5 inches in diameter, measured 4.5 feet above grade. Class (2) is coast redwood at 18 inches. Class (3) is any other species at 15 inches:

> **PALO ALTO** PAMC § 8.10.020(k)(3)
> Any tree, other than a Coast Redwood Tree, fifteen inches in diameter (forty-seven inches in circumference) or more when measured four and one-half feet (fifty-four inches) above natural grade of any species except those invasive species described as weeds in Section 8.08.010 and those species classified as high water users by the Water Use Classification of Landscape Species list (WUCOLS) approved by the California Department of Water Resources.

Classes (4) through (7) add trees designated for protection in a current or past development approval, trees under a carbon or mitigation agreement, council-designated heritage trees, and replacement mitigation trees. On parcels other than R-1, RE, R-2 and RMD, trees of the exempted species may also be designated protected.

Comparison. Thresholds are trunk size at 4.5 feet above grade, converted to diameter where the code gives circumference.

Jurisdiction	Threshold	Citation
Palo Alto	6 native species 11.5 in.; coast redwood 18 in.; other species 15 in. (excludes weeds and high-water-use species); plus designated and mitigation trees	PAMC § 8.10.020(k)
San José	Any tree 38 in. circumference (about 12.1 in.); heritage trees by council list	San José MC §§ 13.32.020(L), 13.32.140
Santa Clara	12 in. for listed species (native oaks, redwood, bay, buckeye, sycamore, bigleaf maple, two cedars, camphor); any other tree 38 in. diameter; heritage trees	Santa Clara CC § 12.35.080
Sunnyvale	Any tree 38 in. circumference (about 12.1 in.)	Sunnyvale MC § 19.94.030
Mountain View	Heritage trees: 48 in. circumference (about 15.3 in.); oak, redwood or cedar 12 in. circumference (about 3.8 in.)	Mountain View CC § 32.23(c)
Los Altos	12 in. diameter any tree; 10 in. native species; heritage and condition-of-approval trees	Los Altos MC § 11.08.050
Cupertino	Listed species only (native oaks, buckeye, bigleaf maple, deodar and blue atlas cedar, bay, western sycamore): 12 in. diameter, single trunk (24 in. multi-trunk); no size threshold for other species except heritage trees (any species), approved development trees and privacy plantings	Cupertino MC §§ 14.18.020(Q), 14.18.050
Menlo Park	Heritage trees: 15 in. diameter; native oak 10 in.	Menlo Park MC § 13.24.020(5)
Redwood City	Any tree 38 in. circumference (about 12.1 in.), measured 6 to 36 in. above ground	Redwood City MC § 35.1

> **SUNNYVALE** Sunnyvale MC § 19.94.030
> means a tree thirty-eight inches or greater in circumference measured four and one-half feet above ground for single-trunk trees.

> **MOUNTAIN VIEW** Mountain View CC § 32.23(c)
> Any quercus (oak), sequoia (redwood), or cedrus (cedar) tree with a circumference of twelve (12) inches or more when measured at fifty-four (54) inches above natural grade;

Difference and effect. For an ordinary non-native tree, Palo Alto's 15-inch threshold matches Menlo Park and is close to Mountain View's, and is higher than San José, Sunnyvale, Los Altos and Redwood City, which reach trees of about 12 inches. Santa Clara reaches only listed species at 12 inches and other trees at 38 inches in diameter, so it protects fewer trees than Palo Alto. Cupertino also lists species, at 12 inches for a single trunk, and protects no other species by size apart from heritage, development and privacy-planting trees, so it covers fewer trees than Palo Alto for non-native trees and about the same for native oaks (12 inches against 11.5). Palo Alto's exclusion of high-water-use species has no counterpart in the other eight codes. Mountain View's oak, redwood and cedar threshold is the smallest in the set. The effect runs in both directions: fewer mid-size trees are covered than in San José or Sunnyvale, while the designated-tree and mitigation-tree classes, the list of native species, and the definition of removal in § 8.10.020(n) (see entry 10.6) widen what a project must work around. Salience is moderate because the threshold decides whether a given lot triggers the removal rules in entry 10.3 at all, but the share of lots affected was not measured.

Context. The Tree Technical Manual's 2016 text uses older definitions; the Municipal Code controls where they conflict (PAMC § 8.10.030). Los Altos rewrote its chapter in February 2024 (Ord. 2024-506).

10.5 Setbacks and vegetation rules along creeks

More restrictive ●○○ Low *Redwood City alone has a comparable general setback; Cupertino's hillside wider*

Palo Alto rule	PAMC § 18.40.140; PAMC § 18.40.130(c)
Applies to	Development on parcels abutting or within 50 feet of a creek bank
Rule source	Municipal code
Status	Current

Summary. Palo Alto bars structures, decks, pools and parking within the greater of 20 feet from the top of bank or a 2:1 slope line, requires native riparian vegetation within 100 feet of the top of bank to be kept, and puts parcels within 50 feet of a stream under review for most non-single-family development. Redwood City bars structures within 20 feet of the top of bank, and Los Altos has a 40- to 80-foot setback on one stretch of Adobe Creek. San José's zoning code uses a 100-foot riparian corridor distance in its ADU rule for lots of half an acre or more, and has no general setback. Cupertino requires a streamside modification permit for most work on properties abutting a stream in any zone, and sets a 50-foot (lots under 1 acre) or 100-foot (1 acre or more) setback in its residential hillside zone. Santa Clara, Sunnyvale, Mountain View and Menlo Park have no creek setback in the code text reviewed.

Palo Alto. Section 18.40.140(b) defines a streamside review area as properties abutting a stream or within 50 feet of the top of bank. It applies to development in all zones except R-1, R-2 and RMD, and to discretionary projects in those zones:

> **PALO ALTO** PAMC § 18.40.140(b)(3)(a)
> Slope stability protection area. All development shall be located outside the slope stability protection area. The slope stability protection area shall extend to a point 20 feet landward from the top of bank or to a point measured at a ratio of 2:1 (horizontal: vertical) landward from the toe of bank, whichever is greater.

The director of public works may grant exceptions with a geotechnical slope stability analysis. New fences must sit at least 5 feet from the top of bank, native riparian vegetation within 100 feet must be retained unless removal is approved, and loading docks and trash enclosures must be at least 50 feet from the top of bank.

Comparison.

Jurisdiction	Creek-edge rule in code	Citation
Palo Alto	No structures, decks, pools or parking within 20 ft of top of bank or 2:1 slope line; 100 ft native vegetation retention; review area 50 ft	PAMC § 18.40.140
San José	No general creek setback located in Title 20; ADU on a lot of half an acre or more must be more than 100 ft from riparian corridor	San José MC § 20.80.175(f)
Santa Clara	Not located in code	Not located
Sunnyvale	Not located in code	Not located
Mountain View	Not located in code	Not located
Los Altos	Adobe Creek only: 40 ft (parcels 3 acres or less) or 80 ft, or easement or 100-year flood plain if greater	Los Altos MC § 6.32.040
Cupertino	Residential hillside (RHS) zone: new development 50 ft (lot under 1 acre) or 100 ft (1 acre or more) from top of bank or riparian vegetation dripline, whichever is greater, for General Plan-mapped watercourses; all zones: streamside modification permit for work on properties abutting a stream, with exemptions (under 3 cu. yd. earthwork, fences to 6 ft, accessory structures to 120 sq. ft., work within existing footprint, landscaping on existing single-family lots); standards set by council resolution	Cupertino MC §§ 19.40.050(G), 9.19.030, 9.19.040

Jurisdiction	Creek-edge rule in code	Citation
Menlo Park	Not located in code	Not located
Redwood City	No structure within 20 ft of top of bank or 30 ft of centerline	Redwood City Zoning Code § 32.3

> **CUPERTINO** Cupertino MC § 9.19.030(A)
> No person shall do or cause to be done any modification located on properties adjacent to a stream unless a streamside modification permit for the modification has been issued and is in effect.

> **REDWOOD CITY** Redwood City Zoning Code § 32.3
> Creek Setbacks. No structure shall be allowed within thirty (30) feet of the center line of any watercourse or within twenty (20) feet of the top of a bank of a watercourse (whichever is further from the centerline of the watercourse) unless all of the requirements listed in Chapter 27A are met.

> **LOS ALTOS** Los Altos MC § 6.32.040
> Every parcel adjacent to Adobe Creek from Shoup Park to O'Keefe Lane, and subdivided after August 13, 1985, shall be subject to a setback of (A) forty (40) feet, if three acres in size or less, or eighty (80) feet, if larger, from the top of the nearest bank thereof

Difference and effect. Palo Alto's 20-foot slope zone equals Redwood City's 20-foot setback and is shorter than Cupertino's 50- to 100-foot hillside setback, which applies only in the RHS zone; Cupertino's permit requirement reaches every zone, while Palo Alto's applies to non-R-1, R-2 and RMD development and discretionary projects. Palo Alto also Palo Alto adds the 2:1 slope test, which exceeds 20 feet on steep banks, plus vegetation retention and planting rules. The share of parcels affected was not mapped. Creek setbacks in the other cities may sit in general plan policies, specific plans or council policies that this review did not open. Salience is low because the rule applies to a narrow set of parcels.

10.6 Tree protection zones, arborist reports and securities during construction

More restrictive ●○○ Low *Formula-based zone; arborist chosen from city list*

Palo Alto rule	PAMC § 8.10.020(d); PAMC § 8.10.020(n); PAMC § 8.10.020(p); PAMC § 8.10.070(d); PAMC § 8.10.080
Applies to	Construction, grading, paving and utility work near protected trees
Rule source	Code and non-code rules
Status	Current

Summary. Palo Alto fixes the tree protection zone at a circle with a radius of 10 times the trunk diameter, and treats trenching, grade changes or paving inside it as "removal" when the work foreseeably harms the tree. Tree reports must come from an arborist on the city's approved list. San José, Santa Clara, Sunnyvale, Los Altos and Cupertino protect the area under the dripline (the canopy edge). Menlo Park uses an area of 10 times the trunk diameter for heritage trees, though its code does not say radius.

Palo Alto. The ordinance defines the zone and makes damage inside it a removal:

> **PALO ALTO** PAMC § 8.10.020(p)
> "Tree Protection Zone" means the area defined by a circle with a radius ten times the diameter of the trunk when measured four and one-half feet (fifty-four inches) above natural grade.

A 15-inch tree has a zone with a radius of 12.5 feet. Section 8.10.020(n)(2) defines removal to include "trenching, excavating, altering the grade, or paving within the tree protection zone of a tree," among other

acts that foreseeably kill or permanently damage a tree. A tree report must be prepared by a "designated arborist," drawn from a list the urban forester approves and hired at the applicant's expense; if a project has a public hearing, the city chooses the arborist at the applicant's expense (§ 8.10.020(d)). Construction must follow the manual's protection standards (§ 8.10.070(d)). The 2016 manual allows the director to require a security deposit of 25 to 100 percent of the value of trees to be preserved.[50]

Comparison.

Jurisdiction	Protected area	Arborist and security requirements	Citation
Palo Alto	Radius of 10x trunk diameter	City-approved arborist; security 25-100% of tree value (manual)	PAMC §§ 8.10.020(d), (p)
San José	Dripline; no equipment, storage or fill; fencing at dripline	Certified arborist report if director requires	San José MC §§ 13.32.130, 13.32.050
Santa Clara	Dripline; 4-ft fence; survey and protection plan for discretionary projects	ISA-certified arborist	Santa Clara CC §§ 12.35.100(a), (d)
Sunnyvale	Dripline; 4-ft fence	ISA-certified arborist; bond up to 5 years for the tree's value	Sunnyvale MC §§ 19.94.110, 19.94.120
Mountain View	No cut, fill or compaction within 4 ft of a heritage tree's base; permit for work within the dripline	Arborist report may be required; bond for replacements	Mountain View CC §§ 32.25(c), 32.27(a), 32.35(b)
Los Altos	Dripline; 5-ft fence	Certified arborist	Los Altos MC § 11.08.140
Cupertino	Dripline; 6-ft fence; no construction inside it without Director authorization; no storage or parking inside it	Plan by licensed landscape architect or ISA-certified arborist; financial guarantee required	Cupertino MC §§ 14.18.200, 14.18.210, App. A
Menlo Park	Area of 10x trunk diameter, heritage trees	City-approved certified arborist; plan before any permit	Menlo Park MC § 13.24.030(c)
Redwood City	Fencing for retained trees on subdivisions only	None	Redwood City MC § 35.6

> **MENLO PARK** Menlo Park MC § 13.24.030(c)
> Any work performed within an area ten (10) times the diameter of a heritage tree (i.e., the tree protection zone) shall require submittal and implementation of a tree protection plan for review and approval by the public works director prior to issuance of any permit for grading or construction.

> **SUNNYVALE** Sunnyvale MC § 19.94.110(e)
> The approving body shall have the authority to require a developer to post a bond with the City for the value of any tree required to remain as a condition of permit approval during development activities on a site.

Difference and effect. Palo Alto and Menlo Park define the zone by a formula based on trunk diameter. San José, Santa Clara, Sunnyvale, Los Altos and Cupertino use the dripline, which depends on canopy shape. The practical effect in Palo Alto is that foundations, driveways, utilities and basement excavations inside the zone are treated as potential removals, which brings them into entry 10.3. Requiring a city-listed arborist adds a step compared with cities that accept any certified arborist. Salience is low because the difference lies in how the protected area is drawn and who prepares the report, and the code does not show how often it changes project footprints.

[50] City of Palo Alto, *Tree Technical Manual Standards & Specifications* (2016), § 3.26, https://www.cityofpaloalto.org/files/assets/public/v/1/public-works/tree-section/ufmp/tree-technical-manual/cover-corecombined_cpa_ttm-2016-final-copy.pdf. Opened 2026-10-12.

11 Building and fire code amendments

11.1 Automatic sprinkler triggers for additions, basements and remodels of existing buildings

More restrictive ●●○ Moderate *Stricter than San José, Cupertino and Mountain View; Los Altos stricter still*

Palo Alto rule	PAMC § 16.06.120; PAMC § 16.04.260; PAMC § 15.04.280
Applies to	Additions and remodels of existing single-family homes, duplexes and townhouses; additions to existing commercial buildings; new basements
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto requires automatic sprinklers throughout an existing building when an addition brings the fire area above 3,600 square feet or equals at least 50% of the existing floor area, when any basement is added or altered for use, or when at least 50% of the roof structure or exterior walls is removed or replaced. Of the eight comparison cities, Los Altos sets lower thresholds (an addition over 750 square feet or 50%). Redwood City, Santa Clara and Sunnyvale set triggers of similar size. San José and Cupertino (which exempts additions of 500 square feet or less) set higher ones, as does Mountain View. Menlo Park's rule is not in the city code. A major remodel of an older home can therefore trigger a whole-house sprinkler retrofit in Palo Alto where it would not in San José or Mountain View; Cupertino reaches a rebuild of an existing one- or two-family dwelling as the Building Official defines it, but has no 50% roof or wall test.

Palo Alto. The residential code amendment (PAMC § 16.06.120) covers one- and two-family dwellings. The building code (§ 16.04.260) and fire code (§ 15.04.280) carry parallel text for other occupancies.

> **PALO ALTO** PAMC § 16.06.120
> An automatic sprinkler system shall be provided throughout all existing buildings when modifications are made that create an increase in fire area to more than 3,600 square feet or when the addition is equal to or greater than 50% of the existing building square footage, whichever is more restrictive.

> **PALO ALTO** PAMC § 16.06.120
> An automatic fire sprinkler system is required when either the roof structure, exterior walls, or combination of both has been removed, altered and/or replaced in at least 50% of the existing structure.

The same section requires sprinklers in any new basement used for storage, utility, occupancy or habitable space regardless of size, and in an existing basement that is altered for such use or expanded by 50% or more. If only the basement is altered, only the basement is sprinklered. The text contains no multi-year look-back for cumulative additions.

Comparison. Rows show the trigger for an existing one- or two-family dwelling unless noted.

Jurisdiction	Trigger for existing buildings	Citation
Palo Alto	Addition making fire area over 3,600 sq ft, or addition of 50% or more; 50% of roof or exterior walls replaced; any new or altered basement	PAMC § 16.06.120
San José	Addition over 500 sq ft that takes the building over 3,600 sq ft; nonresidential: addition taking building over 10,000 sq ft	San José MC § 17.12.630(A)
Santa Clara	Addition over 1,200 sq ft, or total over 3,600 sq ft; any new basement or basement expanded over 50%	Santa Clara CC § 15.17.030
Sunnyvale	Additions or conversions exceeding 50% of habitable area; nonresidential 3,600 sq ft and over: any addition over 500 sq ft	Sunnyvale MC §§ 16.17.080, 16.52.903

Jurisdiction	Trigger for existing buildings	Citation
Mountain View	Addition of 100% of existing area (cumulative over 3 years), or total over 4,100 sq ft; one- and two-family alterations exempt	Mountain View CC § 8.40.15
Los Altos	Addition over 50% or over 750 sq ft (3-year cumulative); all basements	Los Altos MC §§ 12.08.020, 12.06.020
Cupertino	Addition making a Group R fire area over 3,600 sq ft (exempt if addition is 500 sq ft or less and water supply requirements are met); nonresidential addition making fire area over 3,600 sq ft; no basement or roof/wall replacement trigger located	Cupertino MC §§ 16.04.260, 16.06.040
Menlo Park	Not located (set by the fire district, not the city code)	n/a
Redwood City	Addition of 1,000 sq ft or more, or over 50% of foundation or framing replaced (5-year cumulative)	Redwood City MC § 12.18

> **LOS ALTOS** Los Altos MC § 12.08.020
> Additions over fifty (50) percent and/or seven hundred and (750) square feet as referenced above, shall be treated as a new structure regarding installation of fire sprinkler systems.

> **SAN JOSÉ** San José MC § 17.12.630
> Throughout existing one- and two-family dwellings where an increase of over 500 square feet is made to the floor area that results in the building exceeding 3,600 square feet.

> **REDWOOD CITY** Redwood City MC § 12.18
> All one and two family (duplex) residential dwellings and structures which add one thousand (1,000) square feet or more floor area

Difference and effect. The triggers act on different bases, so a single number misleads. Palo Alto's 50% test is relative to the existing house, so a 1,000-square-foot house triggers at a 500-square-foot addition, while a 3,000-square-foot house triggers at more than 600 square feet because the total passes 3,600. Mountain View, San José and Cupertino leave most mid-sized additions below their thresholds. Palo Alto also counts replacement of 50% of the roof structure or exterior walls, which captures extensive remodels with no added floor area. Cupertino tests only the 3,600 square-foot total, as San José does, and has no look-back; its residential code also covers a "rebuild" of an existing one- or two-family dwelling "as defined by the Building Official". For existing one- and two-family dwellings, only Redwood City (50% of foundation or framing) has a comparable test. Sunnyvale and Mountain View apply 50% alteration tests only to non-residential buildings (Sunnyvale: buildings of 3,600 sq ft or more, within 12 months; Mountain View: more than 50% modified). The retrofit adds a sprinkler system, and its cost, to the project. State law requires sprinklers in new one- and two-family dwellings and townhouses in every city, so only existing-building triggers differ.

Relative to AB 130, Palo Alto's Ordinance 5674 (introduced October 6 and passed October 20, 2025; the code history gives November 20, 2025, probably the effective date) finds that its residential-affecting changes are substantially equivalent to amendments in effect on September 30, 2025, which is the first exception in AB 130.[51][52] The Residential Code ordinance (No. 5676) was not opened, and the code text does not state

[51] City of Palo Alto, Ordinance No. 5674 (passed October 20, 2025), Section 4, https://www.paloalto.gov/files/assets/public/v/1/development-services/building-division/adoptive-ordinances/2025-edition/ord-5674-cbc.pdf. Opened 2026-10-12.

[52] California Building Standards Commission, *Information Bulletin 25-03: AB 130 and Impact on Process for Local Amendments to Title 24* (September 22, 2025), https://www.dgs.ca.gov/-/media/Divisions/BSC/06-News/Information-Bulletins/2025/BSC-Bulletin-25-03-AB130-FINAL.pdf. Opened 2026-10-12.

which exception San José (November 18, 2025), Santa Clara (November 4, 2025), Sunnyvale and Los Altos rely on. Mountain View (September 9, 2025) and Redwood City (September 29, 2025) adopted before the October 1, 2025 start.

11.2 Building permit expiration, extension limits and expired-permit penalties

More restrictive ●●○ Moderate *Only city with a 48-month permit term; shares penalty scale with Los Altos*

Palo Alto rule	PAMC § 16.04.130; PAMC § 16.62.010; PAMC § 16.62.020; PAMC § 16.62.030; PAMC § 16.62.050
Applies to	Residential additions, remodels and demolition; any building permit that stalls
Rule source	Municipal code
Status	Amended since January 2025

Summary. A Palo Alto building permit expires 12 months after issuance if work has not started, or after 12 months without progress to the next inspection. The building official may grant three extensions of up to 180 days each, and the City Council must approve any further one. Every permit must reach final inspection within 48 months of issuance. For residential work, a permit that is not renewed within 30 days of expiry accrues penalties of $200 to $800 per day. Los Altos adopted the same penalty scale in October 2025 but its text limits extensions to one or two (it states both). Cupertino, Sunnyvale and San José have no daily penalty. The other four cities have no local amendment in their codes.

Palo Alto. PAMC § 16.04.130 amends section 105.5 of the California Building Code:

> **PALO ALTO** PAMC § 16.04.130
> Every permit issued shall become invalid unless the work on the site authorized by such permit is commenced within 12 months after its issuance, or if the work authorized on the site by such permit is suspended or abandoned for a period of 12 months after the time the work is commenced.

Section 105.5.1 adds the term limit: all work must be completed and final inspection issued within 48 months of issuance, after which the permit is void. Extensions may require revised plans to meet current codes and fees. PAMC § 16.62.020 requires renewal within 30 days of expiry, and § 16.62.030 sets the penalty:

> **PALO ALTO** PAMC § 16.62.030
> A property owner shall be subject to the following penalties for violation of section 16.62.020:

The penalty is $0 for days 0 to 30, $200 per day for days 31 to 60, $400 per day for days 61 to 120, and $800 per day after that, to a maximum of $30,000 over the first 120 days. The chief building official may reduce or waive it, and a reduction of more than $10,000 needs City Manager approval. Under § 16.62.050 the official may require a six-foot wood fence around a site whose permit has been expired for more than 30 days.

Comparison.

Jurisdiction	Expiration and extensions	Daily penalty	Citation
Palo Alto	12 months; 3 extensions of 180 days, then Council; 48-month term	$200–$800 per day after 30 days (residential)	PAMC §§ 16.04.130, 16.62.030

Jurisdiction	Expiration and extensions	Daily penalty	Citation
San José	12 months to start; 180 days suspended; extensions of 180 days, plus one of 360 days in special circumstances; inspection needed every 180 days; new permit at full fees	None located	San José MC § 24.02.340
Santa Clara	Adopts state Administrative Code; no local amendment located	None located	Santa Clara CC § 15.05.010
Sunnyvale	12 months; unlimited extensions of 180 days; half fee to restart within one year	None located	Sunnyvale MC § 16.16.030
Mountain View	Adopts state Administrative Code; no local amendment located	None located	Mountain View CC § 8.24.10
Los Altos	12 months; extensions of 180 days (text says both one and two)	Same scale as Palo Alto	Los Altos MC §§ 12.06.020, 12.30.030
Cupertino	12 months; one or more extensions of 180 days each, on written request showing justifiable cause; no outer term limit	None located	Cupertino MC § 16.04.050
Menlo Park	No expiration amendment located	None located	Menlo Park MC § 12.06.010
Redwood City	No expiration amendment located	None located	Redwood City MC art. IV, V

> **LOS ALTOS** Los Altos MC § 12.30.030
> A property owner shall be subject to the following penalties for violation of Section 12.30.020:

> **SAN JOSÉ** San José MC § 24.02.340
> All permits shall expire by limitation of time and become null and void unless an inspection indicating substantial progress in construction has been requested and performed every one hundred eighty (180) days or sooner.

Difference and effect. San José's inspection-every-180-days rule is stricter on pace than Palo Alto's 12-month window, but it has no outer limit and no daily penalty. Palo Alto's distinctive features are the 48-month ceiling and the penalty schedule, which can reach $30,000 in the first 120 days. They bear on large remodels and rebuilds that run beyond four years or stall between inspections. The rating is moderate: the rules reach only projects that stall, but those projects face the highest costs in the group. The penalty chapter covers residential work only.

The code text does not state the default expiration period in the state Administrative Code, which governs in the four cities with no local amendment, so those cities are not compared on duration. Los Altos describes its section 105.5 as an administrative clarification that does not modify a building standard. Palo Alto's Ordinance 5674 finds its residential-affecting amendments substantially equivalent to those in effect on September 30, 2025, which is an AB 130 exception.[53]

[53] City of Palo Alto, Ordinance No. 5674 (passed October 20, 2025), Section 4, https://www.paloalto.gov/files/assets/public/v/1/development-services/building-division/adoptive-ordinances/2025-edition/ord-5674-cbc.pdf. Opened 2026-10-12.

11.3 Sprinkler requirement for small new nonresidential buildings

More restrictive ●○○ Low *Lowest size threshold of the cities that set one (350 sq ft)*

Palo Alto rule	PAMC § 16.04.260; PAMC § 15.04.280
Applies to	New nonresidential buildings and accessory structures; small commercial and utility buildings
Rule source	Municipal code
Status	Current

Summary. Palo Alto requires automatic sprinklers in every new building or structure, with an exception only for nonresidential buildings of 350 square feet or less that have no plumbing fixtures. San José exempts new buildings up to 6,200 square feet, Redwood City those under 3,000, Santa Clara those up to 1,200, Los Altos and Cupertino those up to 1,200 outside the wildland-urban interface (500 inside it), and Sunnyvale and Mountain View those up to 1,000. For new housing the comparison does not matter, because the Residential Code already requires sprinklers in new one- and two-family dwellings and townhouses (Redwood City MC § 12.17.1 cites Residential Code sections R313.1 and R313.2).

Palo Alto. PAMC § 16.04.260 (building code) and § 15.04.280 (fire code) amend section 903.2 of the state codes:

> **PALO ALTO** PAMC § 16.04.260
> An automatic sprinkler system shall be provided throughout all new buildings and structures.

The exception covers nonresidential occupancies of 350 square feet or less with no plumbing fixtures. The same section separately requires sprinklers in all new nonresidential trash enclosures that do not meet a noncombustible, 20-foot-separation exception, and in phone booths and pods and fume hoods in sprinklered buildings.

Comparison. Rows show the size at or below which a new nonresidential building does not need sprinklers under local rules.

Jurisdiction	Size exemption for new nonresidential buildings	Citation
Palo Alto	350 sq ft and no plumbing fixtures	PAMC § 16.04.260
San José	New buildings of 6,200 sq ft or less (also required at 4 or more stories)	San José MC § 17.12.630(A)
Santa Clara	1,200 sq ft or less; parking and solar structures up to 5,000 sq ft	Santa Clara CC § 15.60.180
Sunnyvale	1,000 sq ft or less (not R-3 or townhouses); open parking structures up to 5,000 sq ft	Sunnyvale MC § 16.52.903(c)
Mountain View	1,000 sq ft or less; open parking structures up to 5,000 sq ft	Mountain View CC § 14.22.10
Los Altos	1,200 sq ft of fire area, or 500 sq ft in the wildland-urban interface	Los Altos MC § 12.06.020
Cupertino	1,200 sq ft of fire area outside the wildland-urban interface; 500 sq ft in it; parking and solar structures up to 5,000 sq ft	Cupertino MC § 16.04.260
Menlo Park	Not located (set by the fire district, not the city code)	n/a
Redwood City	Under 3,000 sq ft	Redwood City MC § 12.18

> **MOUNTAIN VIEW** Mountain View CC § 14.22.10
> An approved automatic sprinkler system shall be installed throughout all new buildings and structures.

> **SANTA CLARA** Santa Clara CC § 15.60.180
> An automatic sprinkler system shall be installed throughout all new buildings and structures greater than 1,200 square feet.

Difference and effect. Palo Alto's exemption is the narrowest of the cities that set one, so small detached commercial, storage or utility buildings that would be exempt in San José, Redwood City, Santa Clara, Sunnyvale, Mountain View, Los Altos or Cupertino (outside the wildland-urban interface) need a sprinkler system, and a water service sized for it, in Palo Alto. The affected group is small: accessory commercial structures, kiosks and similar buildings. The effect is a higher cost for those projects and none on housing yield, so the rating is low.

These local amendments are not subject to AB 130 for nonresidential buildings. Mixed-use buildings with housing are covered by the residential moratorium, and Palo Alto's Ordinance 5674 finds that its amendments affecting residential units are substantially equivalent to ones in effect on September 30, 2025.[54][55]

11.4 Seismic hazard identification and retrofit programs for existing buildings

More permissive ●○○ Low *Report-only program; San José alone mandates retrofit*

Palo Alto rule	PAMC § 16.42.030; PAMC § 16.42.040; PAMC § 16.42.070
Applies to	Existing unreinforced masonry buildings; older high-occupancy buildings; owners of older buildings undergoing change of use or sale
Rule source	Municipal code
Status	Current

Summary. Palo Alto's 1986 seismic hazards program requires owners of unreinforced masonry buildings and certain large older buildings to submit an engineering report and a letter of intent. It does not require retrofit. San José adopted a mandatory retrofit program for older wood-frame buildings with weak lower stories (effective April 1, 2025), with construction deadlines in 2031 to 2033. Santa Clara and Menlo Park have report-based programs for unreinforced masonry. No program for Sunnyvale, Mountain View, Los Altos, Cupertino or Redwood City was found in the code text reviewed.

Palo Alto. PAMC Chapter 16.42 covers three categories. Section 16.42.030(a) lists them:

> **PALO ALTO** PAMC § 16.42.030
> Buildings constructed of unreinforced masonry (URM), except those of less than one thousand nine hundred square feet containing six or fewer occupants;

The others are buildings built before January 1, 1935 with 100 or more occupants, and buildings built before August 1, 1976 with 300 or more occupants. Reports were due 1.5 to 2.5 years after notice (§ 16.42.040), and a letter of intent was due within one year of the report (§ 16.42.070(b)). Reports must recommend a strengthening solution (§ 16.42.050(e)(5)), and failure to report or to submit the letter is unlawful (§ 16.42.090). The chapter has no retrofit standard or deadline and does not mention wood-frame soft-story housing.

Comparison.

[54] City of Palo Alto, Ordinance No. 5674 (passed October 20, 2025), Section 4, https://www.paloalto.gov/files/assets/public/v/1/development-services/building-division/adoptive-ordinances/2025-edition/ord-5674-cbc.pdf. Opened 2026-10-12.

[55] California Building Standards Commission, *Information Bulletin 25-03: AB 130 and Impact on Process for Local Amendments to Title 24* (September 22, 2025), https://www.dgs.ca.gov/-/media/Divisions/BSC/06-News/Information-Bulletins/2025/BSC-Bulletin-25-03-AB130-FINAL.pdf. Opened 2026-10-12.

Jurisdiction	Program	Citation
Palo Alto	Engineering report recommending strengthening, and letter of intent; URM and large older buildings; no retrofit required; unlawful to fail to report	PAMC ch. 16.42
San José	Mandatory retrofit of pre-1990 wood-frame buildings with 3 or more units and a weak story; completion 2031–2033; separate URM identification chapter	San José MC §§ 17.41.550, 17.74.020
Santa Clara	URM engineering report within one year of notice; detached residential buildings under five units, warehouses, upgraded and historic buildings exempt	Santa Clara CC §§ 15.55.040, 15.55.050
Sunnyvale	Not located	n/a
Mountain View	Not located	n/a
Los Altos	Not located	n/a
Cupertino	Not located	n/a
Menlo Park	URM engineering report and letter of intent; owner chooses mitigation	Menlo Park MC §§ 12.46.030, 12.46.080
Redwood City	Not located	n/a

> **SAN JOSÉ** San José MC § 17.41.550
> A Subject Building built before January 1, 1978 and containing five (5) or more Dwelling Units and not assigned to Groups 2 or 3 shall be assigned to Group 1.

> **MENLO PARK** Menlo Park MC § 12.46.030
> Owners of all URM buildings in the city, except as exempted in subsection (b) of this section, shall be required to have an engineering report submitted to the city's building division

Difference and effect. San José is the only city of the nine in the code text reviewed that requires seismic strengthening of existing buildings, and it limits the program to multifamily wood-frame buildings. That requirement imposes retrofit costs on owners that Palo Alto does not. In Palo Alto the chapter imposes report, notice and letter-of-intent duties, enforced as unlawful omissions, on owners of the covered buildings. The rating is low because it bears on few redevelopment projects.

The code text for Sunnyvale, Mountain View, Los Altos, Cupertino and Redwood City shows no comparable chapter. A search for the terms "unreinforced", "soft story" and "target story" found none, but a program in a document outside the codes reviewed cannot be excluded.

12 Energy, electrification and EV charging

12.1 Mandatory CALGreen tiers, embodied carbon and certification requirements

More restrictive ●●● High *Unique to Palo Alto in scope; Mountain View, San José and Cupertino use certification*

Palo Alto rule	PAMC § 16.14.080; PAMC § 16.14.240; PAMC § 16.14.285; PAMC § 16.14.355
Applies to	New low-rise residential; residential additions and alterations; nonresidential additions and tenant improvements; large new nonresidential
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto is the only one of the nine cities whose code makes the optional CALGreen Tier 1 and Tier 2 measures mandatory. Tier 2 applies to every new low-rise residential building and substantial remodel, Tier 1 to residential additions and alterations over 1,000 square feet, and Tier 1 or Tier 2 to nonresidential additions and larger alterations. Mountain View, San José and Cupertino instead require green building certification or its intent for larger projects (Cupertino: more than nine homes, or nonresidential buildings of 25,000 square feet or more). Palo Alto also lowered its embodied carbon trigger for nonresidential buildings to 25,000 square feet in 2026.

Palo Alto. Ordinance 5678 (2025) carries forward the tier structure.

> **PALO ALTO** PAMC § 16.14.080
> 301.2.1 Low-Rise residential new construction - Tier 2 adopted. All new constructed or substantial remodel projects must meet CALGreen Mandatory plus Tier 2 measures, as amended by this chapter and as applicable to the scope of work.

Nonresidential alterations of 5,000 square feet that replace at least two of HVAC, envelope, hot water or lighting must meet Tier 1; nonresidential additions of 1,000 square feet or more must meet Tier 2. Each can instead earn LEED Silver (Tier 1) or LEED Gold (Tier 2) through the Green Business Certification Inc. process. The tier checklists in Appendices A4 and A5 (Sections A4.601.4, A4.601.5, A5.601.2 and A5.601.3) are not in the code text reviewed, so the measures themselves are not described here. Tier 1 and Tier 2 projects must also meet a low-carbon concrete standard (§ 16.14.240). For nonresidential buildings, § 16.14.355 sets the life-cycle assessment trigger:

> **PALO ALTO** PAMC § 16.14.355
> Effective July 1, 2024, non-residential projects consisting of newly constructed building(s) with a combined floor area of 100,000 square feet or greater shall comply with either Section 5.409.2 or Section 5.409.3.

The same section states that from January 1, 2026 “the combined floor area shall be 25,000 square feet or greater.”

Comparison.

Jurisdiction	Mandatory tiers or certification	Embodied carbon or life-cycle assessment	Citation
Palo Alto	CALGreen Tier 2 for all new low-rise residential; Tier 1 for residential additions over 1,000 sq ft and some nonresidential work	Life-cycle assessment at 25,000 sq ft from 2026; low-carbon concrete for tiered projects	PAMC §§ 16.14.080, 16.14.240, 16.14.355

Jurisdiction	Mandatory tiers or certification	Embodied carbon or life-cycle assessment	Citation
San José	GreenPoint or LEED checklist for small projects; LEED Silver (large commercial) or LEED Certified or GreenPoint (10+ units)	None located	San José MC §§ 17.84.120, 17.84.220
Santa Clara	None located	None located	Santa Clara CC § 15.38
Sunnyvale	None located	None located	Sunnyvale MC § 16.43
Mountain View	"Meet the intent of" LEED Gold for new multifamily, nonresidential and hotel projects; no third-party certification	None located	Mountain View CC § 8.64.25
Los Altos	Compliance by mandatory checklist, GreenPoint, LEED or equivalent, at the Building Official's choice	None located	Los Altos MC § 12.26.020
Cupertino	GreenPoint Rated (50 points) or LEED Silver for new residential projects of more than nine homes; LEED Certified (25,000 to 50,000 sq ft) or LEED Silver (over 50,000 sq ft) for new nonresidential; CALGreen minimum only for smaller projects; no CALGreen tiers (no appendix chapters adopted)	None located	Cupertino MC §§ 16.58.015, 16.58.230
Menlo Park	None located	None located	Menlo Park MC § 12.18
Redwood City	None located	None located	Redwood City MC § 9.40

> **SAN JOSÉ** San José MC § 17.84.220
> All tier two commercial industrial projects for which this chapter is applicable must receive the minimum green building certification of LEED Silver and tier two residential projects shall receive the minimum green building certification of LEED Certified or GreenPoint Rated.

> **MOUNTAIN VIEW** Mountain View CC § 8.64.25
> The city does not require projects to be certified by a third-party green building organization unless certification is required per zoning regulations (e.g. Precise Plan) or a condition of approval for a zoning permit.

Difference and effect. A new single-family home or small multifamily building in Palo Alto must satisfy the Tier 2 elective and prerequisite measures in addition to the state mandatory code, a layer the other eight cities do not apply by tier (San José's chapter 17.84 applies to projects over its size thresholds and dates to 2009). The effect is a longer checklist, a third-party green building inspector requirement listed in the City's amendments summary,[56] and design choices tied to Tier 2 prerequisites. The cost and schedule effect of the tier measures could not be quantified from the code text because the tier checklists are absent. San José's "tier one" and "tier two" terms refer to project size, not to CALGreen tiers.

AB 130 applies to the residential tiers: they were carried forward in October 2025, and the City's staff report treats them as existing amendments eligible for renewal. Its statement that nonresidential provisions are outside the moratorium applies to the nonresidential tiers and the embodied carbon trigger.[57]

[56]City of Palo Alto, City Council Staff Report 2507-5020 (September 8, 2025), Timing Considerations, Table 1 and Attachment A, https://efiling.energy.ca.gov/GetDocument.aspx?DocumentContentId=104679&tn=267651. Opened 2026-10-12.

[57]City of Palo Alto, City Council Staff Report 2507-5020 (September 8, 2025), Timing Considerations, Table 1 and

Context. No city enforces an all-electric or gas-piping ban on new buildings. Palo Alto's Council suspended enforcement of its all-electric requirement on February 26, 2024 after *California Restaurant Association v. City of Berkeley* (9th Cir.), per the City's green building page; its PAMC §§ 16.14.090 and 16.14.300 ("Full electrification") have no readable operative text in the code text reviewed.[58] San José MC § 17.845.010(E) makes its prohibition operative only if *Berkeley* is overturned or disapproved, or the legislature or federal law authorizes local control of natural gas infrastructure. AB 130 bars most new local residential standards from October 1, 2025 to June 1, 2031.[59] The City's proposed update page also lists a LEED alternative and a 25,000 square foot embodied carbon threshold, both now in the code, and net building emissions requirements not found in the code text reviewed.[60] San José's separate energy and water benchmarking ordinance (San José MC ch. 17.85, privately owned buildings of 20,000 square feet or more and City-owned buildings of 15,000 or more) is a post-occupancy rule, and Palo Alto's nearest analog, § 16.14.360 (Energy STAR Portfolio Manager), has no readable text in the code text reviewed.

12.2 Energy and electrification requirements for existing single-family homes

More restrictive ●●○ Moderate *Broadest of the nine; Menlo Park's remodel menu is the closest*

Palo Alto rule	PAMC § 16.17.060; PAMC § 16.17.120; PAMC § 16.17.140; PAMC § 16.17.170
Applies to	Single-family additions and alterations; air conditioner replacement
Rule source	Municipal code
Status	Change adopted or pending (see Context)

Summary. Palo Alto requires single-family additions and alterations over 1,000 square feet in homes permitted before 2011 to earn 12 points from a menu of efficiency and electrification measures. From January 1, 2027 it also conditions air conditioner replacement on a heat pump or added efficiency work. Menlo Park has a smaller remodel menu and a heat pump rule on condenser replacement, Mountain View and Sunnyvale regulate air conditioner replacement only, Los Altos has air conditioner text modeled on Palo Alto's, and San José, Santa Clara, Cupertino and Redwood City have no such rule.

Palo Alto. Ordinance 5665 (September 2025) added Section 150.0(w) to the energy code for a "covered single-family project," defined by the building's pre-2011 permit date and a 1,000 square foot threshold for additions and alterations. The CEC approved the ordinance on January 21, 2026.[61]

Attachment A, https://efiling.energy.ca.gov/GetDocument.aspx?DocumentContentId=104679&tn=267651. Opened 2026-10-12.

[58] City of Palo Alto, *Green Building Code Requirements*, https://www.paloalto.gov/Departments/Planning-Development-Services/Development-Services/Green-Building/Green-Building-Code-Requirements. Opened 2026-10-12. The page describes the 2023–2025 cycle and may predate the 2025 ordinances.

[59] California Building Standards Commission, *Information Bulletin 25-03* (September 22, 2025), https://www.dgs.ca.gov/-/media/Divisions/BSC/06-News/Information-Bulletins/2025/BSC-Bulletin-25-03-AB130-FINAL.pdf. Opened 2026-10-12.

[60] City of Palo Alto, *Proposed 2026-2028 Green Building and Local Energy Code Update*, https://www.paloalto.gov/Departments/Planning-Development-Services/Development-Services/Green-Building/Green-Building-Code-Requirements/Proposed-2026-2028-Green-Building-and-Local-Energy-Code-Update. Opened 2026-10-12.

[61] California Energy Commission, *Backup Materials, January 21, 2026 Business Meeting, Item 03c: City of Palo Alto* (Executive Director memorandum, January 9, 2026), https://www.energy.ca.gov/filebrowser/download/9187?fid=9187. Opened 2026-10-12.

> **PALO ALTO** PAMC § 16.17.120
> (w) A covered single-family project shall install a set of measures based on the building vintage from the Measure Menu Table, … to achieve a total measure point score that is equal to or greater than the target score in Table 150.0-I.

The target is 12 points in Climate Zone 4. A heat pump water heater replacing a gas unit scores 12 points on its own, and attic insulation, duct and window measures score 1 to 11 points each, depending on building vintage.[62] Applicants may request an exemption on hardship grounds, including compliance cost above 20% of project valuation (16.17.120, Exception 5). The air conditioner provisions in § 16.17.140 apply only to permit applications submitted on or after January 1, 2027, which is the only date the ordinance text states.

Comparison.

Jurisdiction	Remodel or addition requirement	Air conditioner replacement	Citation
Palo Alto	12-point menu; pre-2011 homes; additions or alterations over 1,000 sq ft	Heat pump or added efficiency measures; from Jan. 1, 2027	PAMC §§ 16.17.060, 16.17.120, 16.17.140
San José	None	None	San José MC § 24.12.100
Santa Clara	None	None	Santa Clara CC §§ 15.36, 15.38
Sunnyvale	Electric-readiness only (see entry 12.4)	Heat pump as primary heat, or added efficiency measures	Sunnyvale MC §§ 16.42.040, 16.43.070
Mountain View	None beyond electric readiness	Heat pump as primary heat, or added efficiency measures	Mountain View CC § 8.94.05
Los Altos	Electric-readiness only	Same structure as Palo Alto's (new air conditioners must add attic insulation and air sealing; heat pumps need not); no CEC approval located	Los Altos MC § 12.16.020
Cupertino	None located	None located	Cupertino MC §§ 16.54, 16.58
Menlo Park	Two of nine measures; pre-2011 homes; valuation of $100,000 or more	Heat pump replaces condenser unless cost difference exceeds 20% or added efficiency work is done	Menlo Park MC §§ 12.16.010, 12.16.020, 12.18.110
Redwood City	None	None	Redwood City MC § 9.40

> **MENLO PARK** Menlo Park MC § 12.16.020
> An alteration to a single-family building originally constructed prior to 2011, with a stated project valuation of $100,000 or more, is required to submit documentation that two items from the following list of energy efficiency measures are included in the scope of work, in addition to any requirements imposed under California Energy Code Section 150.2.

> **MOUNTAIN VIEW** Mountain View CC § 8.94.05
> When a space-conditioning system serving an existing single-family dwelling unit is altered in climate zone 4 (Mountain View) by installation or replacement of an air conditioner, the altered system shall comply with either a or b below in addition to the requirements for installation specified by Title 24, Part 6, Sections 150.2(b)1E and

[62] City of Palo Alto, Ordinance No. 5665, Tables 150.0-I and 150.0-J, https://www.paloalto.gov/files/assets/public/v/1/development-services/building-division/adoptive-ordinances/2025-edition/urgent_ord_5665-cenc-1.pdf. Opened 2026-10-12.

> 150.2(b)1F:

Difference and effect. Palo Alto's trigger depends on floor area (over 1,000 square feet), Menlo Park's on cost ($100,000), and the other cities have none. Because one gas-to-heat-pump water heater swap satisfies Palo Alto's target, the effect on many projects is a water heater change rather than a package of envelope work; the requirement applies to the whole dwelling unit, not only the altered portion. The staff report's cost table for the air conditioner rule shows incremental costs of $652 (new air handler) and $1,670 (existing furnace retained), with estimated lifecycle savings of $556 and $2,132.[63]

AB 130 limits each city's ability to add residential standards from October 1, 2025 to June 1, 2031. Palo Alto adopted Ordinance 5665 as an emergency ordinance on September 16, 2025, before that date, and cites the emergency and general-plan exceptions. Mountain View (September 9, 2025) also acted before October 1. Menlo Park's current ordinance (1127, November 4, 2025) came after it and replaced Ordinance 1124 of August 26, 2025; the exception it relies on is not stated in the code text reviewed. Sunnyvale's air conditioner rule is in Ordinance 3244-25 (August 26, 2025), re-adopted October 21, 2025.

Context. The CEC approved Palo Alto on January 21, 2026, Mountain View on November 12, 2025 and Menlo Park on April 27, 2026.[64] The CEC memorandum on Palo Alto notes that approved standards may stop being enforceable if the state revises the Energy Code.[65] Sunnyvale, Los Altos and Santa Clara do not appear on the approved list, so whether the efficiency elements of their amendments are enforceable under Public Resources Code § 25402.1(h)(2) is not established by the sources opened. Palo Alto's proposed gas water heater replacement rule (starting 2027) is not in the code text.

12.3 Electric vehicle charging requirements for new construction

Mixed ●●○ Moderate *Mid-range; below Sunnyvale and Mountain View for multifamily*

Palo Alto rule	PAMC § 16.14.160; PAMC § 16.14.400; PAMC § 16.15.010
Applies to	New single-family, multifamily, hotel and nonresidential construction with parking
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto makes the Appendix A4 and A5 charging measures mandatory for all new construction. It requires one Level 2 charger or Level 2-ready space per multifamily unit, and a nonresidential table that reaches 45% EV-capable spaces for large lots. Sunnyvale and Mountain View require more charger installations at multifamily buildings (Sunnyvale and Mountain View also set common-use charger percentages that Palo Alto's text lacks), Santa Clara requires more at nonresidential buildings, and San José, Los Altos and Redwood City apply the state minimum with no local amendment in their codes. Cupertino's code restates the state residential minimum and sets no local nonresidential charging table. The cost

[63] City of Palo Alto, City Council Staff Report 2507-5020 (September 8, 2025), Tables 3 and 4 and Attachment B, https://efiling.energy.ca.gov/GetDocument.aspx?DocumentContentId=104679&tn=267651. Opened 2026-10-12.

[64] California Energy Commission, *Local Ordinances Exceeding the 2025 Energy Code*, https://www.energy.ca.gov/programs-and-topics/programs/building-energy-efficiency-standards/2025-building-energy-efficiency-0. Opened 2026-10-12. Menlo Park and Mountain View scope from CEC backup materials, https://www.energy.ca.gov/filebrowser/download/9549?fid=9549 and https://www.energy.ca.gov/filebrowser/download/8748?fid=8748. Opened 2026-10-12.

[65] California Energy Commission, *Backup Materials, January 21, 2026 Business Meeting, Item 03c: City of Palo Alto* (Executive Director memorandum, January 9, 2026), https://www.energy.ca.gov/filebrowser/download/9187?fid=9187. Opened 2026-10-12.

falls mainly on multifamily and commercial parking.

Palo Alto. Ordinance 5678 (2025) deletes the voluntary Appendix A4 charging measure and adopts a mandatory replacement that applies in addition to the state's Section 4.106.4.

> **PALO ALTO** PAMC § 16.14.160
> (a) Resident parking. The property owner shall provide at least one Level 2 electrical vehicle supply equipment (EVSE) or one Level 2 EV Ready space for each residential unit in the structure.

New single-family, duplex and townhouse homes need one Level 2 charger or one EV-ready space per residence, with no requirement for an accessory dwelling unit (A4.106.8.1). For nonresidential buildings, § 16.14.400 adopts the measure as mandatory and offers three compliance paths (EV-capable spaces, the Tier 2 station table, or a power-allocation table); under the table path, and for a lot of 76 to 100 spaces it requires 40 EV-capable spaces and 20 charging stations (30 for office and retail); each station counts against one capable space.

Comparison.

Jurisdiction	New multifamily	New nonresidential (lot of 76 to 100 spaces, other than office or retail where noted)	Citation
Palo Alto	1 Level 2 charger or Level 2-ready space per unit	40 EV-capable and 20 stations (30 office and retail); 45% capable at 201+ spaces	PAMC §§ 16.14.160, 16.14.400
San José	State minimum (no local amendment)	State minimum	San José MC § 24.10.100
Santa Clara	1 Level 2-ready space per unit for the first 20 units; 25% Level 2 and 75% low-power Level 2 above that	35% EV-capable plus 35% stations (retail 15% and 15%)	Santa Clara CC §§ 15.38.040, 15.38.050
Sunnyvale	40% of unit spaces Level 2-ready, rest low-power receptacles, plus Level 2 chargers at 10% of assigned spaces; Level 2 chargers at 25% of unassigned or common-use spaces	35% Level 2 stations plus 35% capable (70 of 100), plus a fast charger per 100 spaces	Sunnyvale MC §§ 16.43.050, 16.43.060
Mountain View	Low-power Level 2 receptacle per unit plus Level 2 chargers at 40% (20 units or fewer) or 15% (21 or more) of spaces	40 capable and 13 stations; 45% capable at 201+; fast charger per 100 spaces	Mountain View CC §§ 8.72.20, 8.82.05
Los Altos	No EV charger requirement located; EV receptacles appear only as load-management options in the energy code	State minimum	Los Altos MC §§ 12.16.020, 12.26.010
Cupertino	Single-family, duplex and townhouse: 40-ampere 208/240-volt circuit in raceway (restates the state minimum); multifamily text not readable in the code text reviewed; no local increase located	None located	Cupertino MC § 16.58.400
Menlo Park	Low-power Level 2 receptacle per unit plus 25% of common spaces with Level 2 chargers	26 capable and 13 stations; 30% capable at 201+	Menlo Park MC §§ 12.18.050, 12.18.130
Redwood City	State minimum (no local amendment)	State minimum	Redwood City MC § 9.40

> **SUNNYVALE** Sunnyvale MC § 16.43.050
> Multifamily parking facilities with assigned parking. Where dwelling units are provided with assigned parking spaces, 10% of the number of assigned parking spaces shall be equipped with Level 2 EV chargers.

> **MOUNTAIN VIEW** Mountain View CC § 8.72.20
> For properties with 21 or more units, fifteen (15) percent of total parking spaces must have EVCS Level 2 charger installed, with a minimum of twenty five (25) percent of unassigned or common use parking spaces being installed with EVCS Level 2 EV chargers made available for use by all residents or guests.

Difference and effect. For a typical multifamily building, Palo Alto's per-unit Level 2 requirement is more demanding than the low-power receptacles required in Mountain View and Menlo Park, but the two cities add charger installations (Mountain View 15% to 40% of spaces, Menlo Park 25% of common spaces) that Palo Alto's code text does not state. A City staff report summary also lists guest-parking percentages for Palo Alto that the code text of the A4 section does not show; those would narrow the gap.[66] Charger counts, not conduit, drive the cost differences, which is why the direction runs both ways. Palo Alto's nonresidential table uses the same structure as Mountain View's and Menlo Park's. For a lot of 76 to 100 spaces its EV-capable count equals Mountain View's and exceeds Menlo Park's, and its station count (20) exceeds both (13). Santa Clara and Sunnyvale set percentages instead of a table and reach 70 of 100 spaces.

AB 130 covers the residential charging provisions. Palo Alto's Ordinance 5678 and Santa Clara's Ordinance 2081 (November 4, 2025), Menlo Park's Ordinance 1127 (November 4, 2025) and Sunnyvale's Ordinance 3248-25 (October 21, 2025) postdate October 1, 2025. The code text does not say which AB 130 exception each relies on. Palo Alto's staff report describes its October 2025 green building package as carrying forward existing amendments, including EV requirements.[67] Nonresidential charging rules are outside the moratorium.[68]

Context. Palo Alto's expedited permitting for charging stations is in PAMC § 16.15.010; San José MC § 17.88, Sunnyvale MC § 16.70, Menlo Park MC § 12.24 and Redwood City MC §§ 9.219–9.220 have comparable procedures and are not compared here.

[66] City of Palo Alto, City Council Staff Report 2507-5020 (September 8, 2025), Attachment A, https://efiling.energy.ca.gov/GetDocument.aspx?DocumentContentId=104679&tn=267651. Opened 2026-10-12. The report's Table 1 lists "Carry forward previous local Green Building Code amendments" and "EV Readiness" for October 2025.

[67] City of Palo Alto, City Council Staff Report 2507-5020 (September 8, 2025), Attachment A, https://efiling.energy.ca.gov/GetDocument.aspx?DocumentContentId=104679&tn=267651. Opened 2026-10-12. The report's Table 1 lists "Carry forward previous local Green Building Code amendments" and "EV Readiness" for October 2025.

[68] California Building Standards Commission, *Information Bulletin 25-03* (September 22, 2025), https://www.dgs.ca.gov/-/media/Divisions/BSC/06-News/Information-Bulletins/2025/BSC-Bulletin-25-03-AB130-FINAL.pdf. Opened 2026-10-12. The bulletin addresses residential units; the nonresidential statement rests on the Palo Alto staff report in note 1.

12.4 Electric-readiness wiring and space for gas appliances

More restrictive ●○○ Low *Among the broadest; Mountain View's also covers new and existing buildings*

Palo Alto rule	PAMC § 16.17.090; PAMC § 16.17.120; PAMC § 16.17.150; PAMC § 16.14.190
Applies to	New construction; substantial remodels; remodels that add or alter gas appliance circuits
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto requires new buildings and substantial remodels to be wired and laid out for later electric appliances wherever gas or propane equipment is installed. It extends parts of the requirement to ordinary remodels and additions when the affected system is included in the work. Mountain View, Menlo Park, Sunnyvale and Los Altos have comparable rules; Cupertino has one for nonresidential gas systems only; San José, Santa Clara and Redwood City have none. The cost is small per project, but the rule applies to every project that installs gas equipment.

Palo Alto. For single-family buildings, Section 150.0(t) requires a 240-volt circuit, reserved panel space and an exterior compressor location where a gas furnace is installed, and Section 150.0(x) adds range, dryer and water heater readiness for alterations (Ordinance 5665). For nonresidential buildings, § 16.17.090 applies:

> **PALO ALTO** PAMC § 16.17.090
> Where nonresidential systems using gas or propane are installed, the construction drawings shall indicate electrical infrastructure and physical space accommodating the future installation of an electric appliance in the following ways, as certified by a registered design professional or licensed electrical contractor.

The single-family note in § 16.17.120 extends the rule to remodels:

> **PALO ALTO** PAMC § 16.17.120
> The electric readiness requirements of Sections 150.0 (n), (t), (u) and (v) apply to residential remodels or additions when the applicable system is included in the remodel.

Comparison.

Jurisdiction	Electric-readiness rule	Citation
Palo Alto	New buildings and substantial remodels (all types); single-family remodels when the system is included; nonresidential gas systems	PAMC §§ 16.17.090, 16.17.120, 16.17.150
San José	None	San José MC § 24.12.100
Santa Clara	None	Santa Clara CC §§ 15.36, 15.38
Sunnyvale	Single-family remodels: range, dryer, water heater and outdoor gas appliances	Sunnyvale MC § 16.42.040
Mountain View	New and existing residential, hotels and nonresidential; new single-family homes, duplexes and ADUs	Mountain View CC §§ 8.74.05, 8.84.05
Los Altos	Single-family remodels (range, dryer, water heater, outdoor)	Los Altos MC § 12.16.020
Cupertino	Nonresidential systems using gas or propane (text nearly identical to Palo Alto's § 16.17.090); no residential rule located	Cupertino MC § 16.54.020 (Energy Code § 130.6)
Menlo Park	Additions and alterations that replace the main panel or add circuits near a gas appliance	Menlo Park MC §§ 12.18.020, 12.18.070
Redwood City	None	Redwood City MC § 9.40

> **MOUNTAIN VIEW** Mountain View CC § 8.74.05
> Where any system(s) using gas or propane is (are) installed in a dwelling unit or common area, the construction drawings shall indicate electrical infrastructure and physical space accommodating the future installation of an electric equivalent of that appliance that serves the same function, which must be certified by a registered design professional or licensed electrical contractor

> **SUNNYVALE** Sunnyvale MC § 16.42.040
> Where a branch circuit is added or altered within three feet of a gas or propane clothes dryer and the work requires an electrical permit, install electrical components in accordance with the California Electrical Code.

Difference and effect. Palo Alto's rule triggers on new construction and on remodels that include the gas system; Sunnyvale, Los Altos and Menlo Park trigger on electrical work near an existing gas appliance. Palo Alto's single-family text includes the same range, dryer and water heater provisions as Sunnyvale's and Los Altos's, which resemble each other closely. The added cost is a conduit, a reserved breaker and a labeled location, and the benefit lies in avoiding later panel work. Palo Alto's own infeasibility exemption (§ 16.17.170) lists a conflict with the building code, lack of commercially available materials and unconstitutional taking as grounds.

AB 130 covers the residential parts. Palo Alto adopted Ordinance 5665 in September 2025 and Ordinance 5681 later in 2025 (the code text gives no month); Los Altos adopted its rule on October 28, 2025, Sunnyvale on October 21, 2025 and Menlo Park on November 4, 2025, all after the October 1 start of the moratorium. The exceptions each city relies on are not stated in the code text reviewed. The CEC's approval summaries describe electric-readiness provisions as part of the approved Palo Alto and Menlo Park ordinances and nonresidential readiness in Mountain View's.[69]

Context. Whether the readiness provisions of Sunnyvale and Los Altos, which are not on the CEC approved list, needed CEC approval is not established by the sources opened.

[69] California Energy Commission, *Backup Materials, Business Meetings of January 21, 2026 (Palo Alto), April 27, 2026 (Menlo Park) and November 12, 2025 (Mountain View)*, https://www.energy.ca.gov/filebrowser/download/9187?fid=9187, https://www.energy.ca.gov/filebrowser/download/9549?fid=9549 and https://www.energy.ca.gov/filebrowser/download/8748?fid=8748. Opened 2026-10-12.

13 Solar, storage and interconnection

13.1 Building permit fees for residential rooftop solar

More restrictive ●●○ Moderate *Highest located fee; about 3 to 5 times the others*

Palo Alto rule	PAMC § 16.63.050
Applies to	Residential rooftop solar installations (single-family, duplex, condominium)
Rule source	Not in code (see summary)
Status	Current

Summary. Palo Alto's building permit fee for a residential rooftop photovoltaic (PV) system of 10 kilowatts (kW) or less is $1,548 in the Fiscal Year (FY) 2027 municipal fee schedule (in effect from July 1, 2026), and $685 through the automated SolarAPP+ path. This is a non-code rule: the amounts are set in the Planning and Development Services section of the annual municipal fee schedule, not in the PAMC. The seven other cities with a located fee charge about $314 to $450 for a typical system. Palo Alto's fee is the highest of the cities whose fee was located (San José's was not), and adds roughly $1,100 to the permitting cost of a typical rooftop installation compared with the nearby cities' building fees.

Palo Alto. PAMC § 16.63.050(c) provides that an applicant submits the permit application "together with any required permit processing and inspection fees"; the amounts are in the fee schedule. The FY 2027 Adopted Municipal Fee Schedule lists:[70]

- residential single-family, duplex and condominium PV systems of 10 kW or less: $1,548 per permit;
- systems greater than 10 kW: $1,953 per permit;
- reinstallation of an existing system: $1,047 per permit;
- SolarAPP+ PV (instant permit): $685 per permit, plus a $25 SolarAPP+ administration fee charged during the approval process.[71]

The FY 2026 amounts were $1,481 for a system of 10 kW or less and $655 through SolarAPP+. All comparison figures are from FY 2026-27 schedules.

Comparison. Fees are for a residential PV system of 15 kW or less unless noted.

Jurisdiction	Building permit fee	Citation
Palo Alto	$1,548 (10 kW or less); $685 via SolarAPP+	Municipal Fee Schedule FY 2027, p. 67
San José	Not located in the FY 2026-27 proposed fee document	San José Fees and Charges 2026-27

[70] City of Palo Alto, *Fiscal Year 2027 Adopted Municipal Fee Schedule*, Planning and Development Services, Electrical Permits, pp. 66–67, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2027-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12. FY 2026 figures: *Fiscal Year 2026 Adopted Municipal Fee Schedule*, p. 63, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2026-adopted-municipal-fee-schedule.pdf.

[71] City of Palo Alto, *Apply for a Residential SolarAPP+ Permit*, https://www.paloalto.gov/Departments/Planning-Development-Services/Development-Services/Start-the-Permit-Process/Apply-for-a-Residential-SolarAPP-Permit. Opened 2026-10-12.

Jurisdiction	Building permit fee	Citation
Santa Clara	$450 plus $15 per kW above 15 kW; separate Fire Prevention fee of $463 for residential PV	Municipal Fee Schedule FY 2027
Sunnyvale	$388 (single-family, two-family, townhome)	Master Fee Schedule FY 2026-27, item D3
Cupertino	$450 (15 kW or less); $15 per kW above 15 kW; 5.8% technology fee per permit; SolarAPP+ $25 fee paid to SolarAPP+	Schedule D, Res. 26-047 (effective July 1, 2026)
Mountain View	State cap: $450 plus $15 per kW above 15 kW; same fee through SolarAPP+ plus convenience fee paid to SolarAPP+	Master Fee Schedule FY 2026-27
Los Altos	$314.57 (15 kW or less); $10.48 per kW above 15 kW	Fee Schedule FY 2026-27
Menlo Park	"State Limit" (no dollar amount stated); SolarAPP+ processor fee paid separately	Master Fee Schedule effective October 12, 2026
Redwood City	$450 (15 kW or less); $450 plus $15 per kW for 16 kW or more	Master Fee Schedule FY 2026-27

> **PALO ALTO** PAMC § 16.63.050(c)
> The applicant may submit the permit application and associated documentation to the City's Development Services by personal, mailed, or electronic submittal together with any required permit processing and inspection fees.

Difference and effect. Government Code § 66015 caps residential solar permit fees at $450 plus $15 per kW above 15 kW, and allows a higher fee only if the city adopts, by resolution or ordinance, a written finding with substantial evidence that the reasonable cost of issuing the permit exceeds the cap, together with determinations that it has adopted streamlined solar permitting (subdivisions (a)(2) and (c)).[72] Cupertino, Mountain View, Menlo Park, Santa Clara and Redwood City set their fees at or tied to that cap; Cupertino's code requires its solar fees to comply with § 66015 (Cupertino MC § 16.28.050(h)). Palo Alto's $1,548 is above it. The fee schedule does not cite findings under the exception, and none were located for this report. The gap is a one-time cost per installation, small against a typical system cost but large relative to the other cities' fees. It is not a deciding factor for feasibility, so salience is moderate. Palo Alto's SolarAPP+ fee of $685 narrows the gap for contractors who can use that path (see entry 13.3). Santa Clara's separate Fire Prevention fee of $463 brings its residential total to about $913 before its 3.37 percent technology fee, the nearest to Palo Alto's.

Context. Cupertino's amount is from its FY 2026-27 Schedule D (Resolution 26-047, Table 3), unchanged from FY 2025-26;[73] Cupertino's 20 percent planning review fee applies to new construction and additions, not to rooftop PV. Fees in this entry are for building permits only. The City of Palo Alto Utilities (CPAU) charges a separate interconnection review fee of $520 for generators of 10 kW or less; see entry 13.4. Mountain View's fee line shows an effective date of August 22, 2026. San José's online permit page, which would show its solar fee, returned an access error and could not be opened.

[72] Cal. Gov. Code § 66015, https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=GOV&sectionNum=66015 (text read at https://california.public.law/codes/ca_gov't_code_section_66015). Opened 2026-10-12.

[73] City of Cupertino, *Fee Schedules FY 2026-27*, Resolution 26-047, fees effective July 1, 2026, Schedule D – Building, Table 3; copy obtained from the city website, October 2026. SolarAPP+ $25 fee: City of Cupertino, *Instant Solar Permit - SolarAPP+*, https://www.cupertino.gov/Your-City/Departments/Community-Development/Building/Permits/Instant-Solar-Permit-SolarAPP, opened 2026-10-13.

13.2 Permitting and fees for residential battery storage systems

More restrictive ●●○ Moderate *Highest located fee; no automated path for stand-alone batteries*

Palo Alto rule	PAMC § 16.63.060
Applies to	Residential battery energy storage systems, with or without solar; multifamily and commercial storage
Rule source	Not in code (see summary)
Status	Current

Summary. Chapter 16.63 of the PAMC covers rooftop solar and does not mention storage; Palo Alto regulates residential energy storage systems (ESS) through a building permit, a Planning and Development Services checklist and a fee schedule, all non-code. The FY 2027 fee for a single-family or duplex ESS is $1,944 per permit, and a stand-alone battery cannot use SolarAPP+. A battery added to solar through SolarAPP+ costs $1,392 for the combined permit. Cupertino charges $718 for up to three units, Los Altos $419.43 and Menlo Park about $549 for the electrical plan check and inspection. A CPAU interconnection agreement must be approved before the permit application.

Palo Alto (non-code: municipal fee schedule and city guidelines). The FY 2027 Adopted Municipal Fee Schedule lists ESS at $1,944 per permit for single-family residential and duplex, and $3,404 per permit for multifamily and commercial; "SolarAPP+ PV and ESS" is $1,392 per permit and "available as instant permit."[74] The city's Residential Energy Storage Systems guideline states that "Applying for and obtaining pre-approval for a City of Palo Alto Utilities (CPAU) Interconnection Agreement is a crucial pre-requisite to applying for an energy storage building permit," and requires plans showing the system's kilowatt and kilowatt-hour capacity, three-line electrical diagram, equipment listing, and a location at least 1 foot above base flood elevation where in a flood zone.[75] The SolarAPP+ page limits combined PV and ESS projects to 38.4 kW for each and lists "standalone energy storage" among exclusions.[76] CPAU charges $520 to review the interconnection of storage of 10 kW or less (Rate Schedule E-15; see entry 13.4).

Comparison. Fees are for residential storage; "SolarAPP+ with storage" is from the SolarAPP+ jurisdiction list.[77]

Jurisdiction	Building or electrical permit fee for residential ESS	SolarAPP+ with storage
Palo Alto	$1,944 (FY 2027); $1,392 for combined SolarAPP+ PV and ESS	Yes; stand-alone excluded
San José	Fee not located; fire permit for ESS billed at hourly plan check and inspection rates	Not on the list

[74] City of Palo Alto, *Fiscal Year 2027 Adopted Municipal Fee Schedule*, Planning and Development Services, pp. 66–67, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2027-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12.

[75] City of Palo Alto, *Residential Energy Storage Systems (ESS)* guideline, https://www.paloalto.gov/files/assets/public/v/4/development-services/building-permits/pa_residential-energy-storage-pa_01282025.pdf. Opened 2026-10-12.

[76] City of Palo Alto, *Apply for a Residential SolarAPP+ Permit*, https://www.paloalto.gov/Departments/Planning-Development-Services/Development-Services/Start-the-Permit-Process/Apply-for-a-Residential-SolarAPP-Permit. Opened 2026-10-12.

[77] SolarAPP+ Foundation, *Where is SolarAPP+ Available?*, https://www.gosolarapp.org/where-is-solarapp-available. Opened 2026-10-12. Menlo Park: City of Menlo Park, *Photovoltaic Real Time (PRT) Permit*, https://www.menlopark.gov/Government/Departments/Community-Development/Building/Photovoltaic-Real-Time-PRT-Permit, opened 2026-10-12.

Jurisdiction	Building or electrical permit fee for residential ESS	SolarAPP+ with storage
Santa Clara	Building fee not located; Fire Prevention construction permit $618 for residential (R3) ESS	Yes
Sunnyvale	Building fee not located; Fire operational permit for ESS $1,338 initial, $977 renewal (residential exemption not stated)	Yes
Mountain View	Per-permit fee from Tables 1-B and 1-D (no single amount in the schedule)	Yes
Los Altos	$419.43	Yes
Cupertino	$746 for up to three battery units; $439 each additional unit (FY 2026-27)	Yes (page does not address stand-alone batteries)
Menlo Park	$229.45 plan check plus $319.84 inspection, plus $66.00 permit issuance	No; real-time permit excludes batteries
Redwood City	Not located	Yes

Sources: Cupertino Schedule D, Resolution 26-047, Table 3 (FY 2026-27);[78] Santa Clara FY 2027 Adopted Municipal Fee Schedule; Sunnyvale FY 2026-27 Master Fee Schedule; Mountain View FY 2026-27 Master Fee Schedule (BESS line); Los Altos FY 2026-27 Fee Schedule; Menlo Park Master Fee Schedule effective October 12, 2026; San José 2026-27 Fees and Charges.

Difference and effect. Palo Alto's $1,944 fee is about 2.6 to 4.6 times the amounts located for Cupertino ($746), Los Altos ($419.43) and Menlo Park ($549 for plan check and inspection, $615 with the issuance fee). State law requires the automated platform to handle storage paired with solar (Government Code § 65850.52), so Palo Alto's combined path complies; the difference is that Palo Alto has no automated route for a stand-alone battery, which Menlo Park also lacks for any battery. Homeowners adding a battery to existing solar therefore go through plan review after CPAU pre-approval, at the full fee. Fire-code review adds cost in Santa Clara and Sunnyvale; this report did not find whether Palo Alto's Fire Department charges separately for residential storage. Salience is moderate: the fee gap applies to each residential battery project but not to feasibility.

Context. Cupertino amends the residential code's energy storage provisions (Cupertino MC § 16.06.050) to require 3 feet between ESS units and heat detection, without a separate residential permit procedure in the code. Local fire code amendments for large ESS installations (Santa Clara CC § 15.60.210; Sunnyvale MC § 16.52.1207) address large-scale fire testing and quantities in the California Fire Code and were not found to affect residential batteries. The Palo Alto guideline is dated 2022 and revised July 2024; its listed codes are the 2019 editions.

[78] City of Cupertino, *Fee Schedules FY 2026-27*, Resolution 26-047, fees effective July 1, 2026, Schedule D – Building, Table 3; copy obtained from the city website, October 2026. SolarAPP+ with storage: Cupertino SolarAPP+ page, https://www.cupertino.gov/Your-City/Departments/Community-Development/Building/Permits/Instant-Solar-Permit-SolarAPP, opened 2026-10-13 (service temporarily unavailable).

13.3 Automated permitting, review deadlines and inspection for residential rooftop solar

Mixed ●●○ Moderate *Listed on SolarAPP+ with storage, but no panel upgrades; no code deadline*

Palo Alto rule	PAMC § 16.63.050; PAMC § 16.63.060
Applies to	Residential rooftop solar installations; solar with battery storage
Rule source	Code and non-code rules
Status	Current

Summary. Palo Alto accepts residential rooftop solar through SolarAPP+, the federal automated permitting platform, including solar paired with a battery. Its SolarAPP+ path excludes projects with an electrical service panel upgrade, which the SolarAPP+ list shows Sunnyvale and Los Altos accepting. PAMC Chapter 16.63 sets no review deadline, whereas Mountain View (3 business days), Cupertino (5 business days for electronic applications), Redwood City (1 to 3 business days) and Menlo Park (deemed approved at 45 days) do. Palo Alto also requires the CPAU interconnection agreement before the permit application and utility sign-off before final inspection. The codes of the eight cities with a solar chapter, and state law, limit eligible systems to one inspection.

Palo Alto. PAMC Chapter 16.63 (Ord. 5353, 2015) implements Government Code § 65850.5. It requires an eligibility checklist and standard plan, one consolidated inspection, and utility approval before inspection:

> **PALO ALTO** PAMC § 16.63.060(f)
> Issuance of the permit does not authorize an applicant to connect the small residential rooftop energy system to City of Palo Alto Utilities' electricity grid. The applicant is responsible for obtaining such approval or permission from City of Palo Alto Utilities before requesting a building inspection.

The code does not state a number of days for review or for scheduling the inspection. The SolarAPP+ path is a non-code process described on the city's website: it is limited to licensed contractors, roof-mounted single-family systems, PV and storage each at 38.4 kW or less, and electric service of 400 amperes or less. It excludes historic registry homes, ground-mounted systems, standalone storage and service panel upgrades. The page states that an approved CPAU interconnection agreement is a prerequisite and does not state a processing time.[79]

Comparison. SolarAPP+ columns are from the SolarAPP+ jurisdiction list (opened 2026-10-12);[80] code columns are from each city's code.

Jurisdiction	On SolarAPP+ list; with storage; panel upgrade; breaker derate	Code review deadline	Code
Palo Alto	Yes; yes; no; no	None stated	PAMC § 16.63.060
San José	Not listed; city runs its own online permit (page not opened)	None stated	San José MC ch. 17.86
Santa Clara	Yes; yes; yes; no	None stated	Santa Clara CC § 15.90.020
Sunnyvale	Yes; yes; yes; yes	None stated	Sunnyvale MC § 16.66.030

[79] City of Palo Alto, *Apply for a Residential SolarAPP+ Permit*, https://www.paloalto.gov/Departments/Planning-Development-Services/Development-Services/Start-the-Permit-Process/Apply-for-a-Residential-SolarAPP-Permit. Opened 2026-10-12.

[80] SolarAPP+ Foundation, *Where is SolarAPP+ Available?* and its locations file, https://www.gosolarapp.org/where-is-solarapp-available. Opened 2026-10-12. The page is undated.

Jurisdiction	On SolarAPP+ list; with storage; panel upgrade; breaker derate	Code review deadline	Code
Mountain View	Yes; yes; yes; no	3 business days	Mountain View CC § 8.16.35
Los Altos	Yes; yes; yes; yes	No solar chapter in corpus	Not located
Cupertino	Yes; yes; yes; yes (city page: temporarily unavailable while the business license system is upgraded)	5 business days for electronic applications; inspection within 2 business days of request	Cupertino MC §§ 16.28.060(a), (e), (f)
Menlo Park	Yes; no; yes; no	45 days, then deemed approved	Menlo Park MC § 12.22.060
Redwood City	Yes; yes; yes; no	1 to 3 business days; inspection within 2 business days on request	Redwood City MC § 9.216

> **MENLO PARK** Menlo Park MC § 12.22.060
> If an application for the installation of a solar system is not denied in writing within forty-five (45) days of receipt of a complete application, the application shall be deemed approved, unless the delay is the result of a reasonable request for additional information.

> **MOUNTAIN VIEW** Mountain View CC § 8.16.35
> Upon confirmation of the application being complete and meeting the requirements of the applicable codes, the application shall be approved and issuance of all required permits or authorizations within three (3) business days of receipt of a complete application submission pursuant to this Division.

Difference and effect. State law requires cities of 5,000 or more residents to operate an online, automated platform that issues permits in real time for residential solar and paired storage up to 38.4 kW (Government Code § 65850.52; deadlines September 30, 2023 for jurisdictions over 50,000 residents and September 30, 2024 for smaller cities).[81] All nine cities except San José appear on the SolarAPP+ list; San José is understood to run its own system, which this report did not confirm. The state mandate therefore limits how much the cities differ on basic availability. The differences are at the edges. Only Palo Alto lacks both panel-upgrade and derate support. Panel upgrades often accompany solar in all-electric homes, and those projects fall back to Palo Alto's standard review, which has no code deadline. Menlo Park does not accept storage through SolarAPP+. Palo Alto's utility sequencing (interconnection agreement first) is also stated in the code and website, while Mountain View's code places the same responsibility on the applicant without a pre-application step. Salience is moderate because the automated path covers the simple project and the exclusions affect a narrower class.

Context. Cupertino's Chapter 16.28 (Ord. 15-2133, amended 2022) requires a nondiscretionary review within 5 business days for electronic applications and one inspection for eligible residential systems; its SolarAPP+ page was marked unavailable on 2026-10-13.[82] The Energy Commission's SB 379 compliance dashboard is interactive and its city-level status could not be read, so this entry relies on the SolarAPP+ list. The statute's compliance dates are September 2023 and September 2024.

[81] Cal. Gov. Code § 65850.52, https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=GOV&sectionNum=65850.52 (text read at https://california.public.law/codes/ca_gov't_code_section_65850.52). Opened 2026-10-12.

[82] City of Cupertino, *Instant Solar Permit - SolarAPP+*, https://www.cupertino.gov/Your-City/Departments/Community-Development/Building/Permits/Instant-Solar-Permit-SolarAPP. Opened 2026-10-13. It states that "The instant permit service is not available at this time" and directs applicants to email permitcenter@cupertino.gov; the SolarAPP+ list (footnote 2) still shows Cupertino with storage, panel upgrade and breaker derate.

13.4 Compensation for exported solar energy and utility interconnection

Unclear ●●○ Moderate *Flat CPAU export rate; PG&E cities use hourly CPUC-set values*

Palo Alto rule	PAMC § 16.63.060
Applies to	Residential and commercial solar customers; solar with battery storage
Rule source	Not in code (see summary)
Status	Amended since January 2025

Summary. Palo Alto and Santa Clara are served by municipal electric utilities and the other seven cities by PG&E, so the value of exported solar energy comes from three different non-code sources. Palo Alto customers installed since January 2018 are paid a flat export rate in City of Palo Alto Utilities (CPAU) Rate Schedule E-EEC-1: $0.0990 per kilowatt-hour (kWh), effective July 1, 2026. Santa Clara customers are served by Silicon Valley Power under its own net metering schedule. Customers in the other seven cities fall under the Pacific Gas and Electric (PG&E) Net Billing Tariff, where export credits vary by hour and are set by the California Public Utilities Commission (CPUC). This report could not establish which regime pays more in practice.

Palo Alto (non-code: CPAU rate schedule and rules). CPAU's net energy metering page says systems installed before November 2016 (or with a reservation before January 1, 2018) are on NEM 1, paid at retail rates for exports for 20 years from interconnection; systems installed after January 1, 2018 are on NEM 2 and "compensated at the Export Electricity Compensation (EEC-1) rate."[83] Schedule E-EEC-1, effective July 1, 2026, states a single rate for all exported electricity and says it "may not apply in conjunction with any time-of-use Rate Schedule."[84] Interconnection is governed by CPAU Rule and Regulation 27. Schedule E-15, effective January 1, 2026, charges $520 for interconnection review of PV or storage systems of 10 kW or less.[85] PAMC § 16.63.060(f) makes CPAU approval a condition of the building inspection (see entry 13.3).

Comparison.

Jurisdiction	Electric utility and generation supplier	Export compensation for new solar customers
Palo Alto	CPAU (municipal)	Flat $0.0990 per kWh (E-EEC-1, July 2026); $520 interconnection review for 10 kW or less
San José	PG&E with San José Clean Energy	PG&E Net Billing Tariff; San José Clean Energy generation-side terms not located
Santa Clara	Silicon Valley Power (municipal)	Schedule NM, annual excess-energy payment rate (document returned an access error; not opened)
Sunnyvale	PG&E with Silicon Valley Clean Energy	Net Billing Tariff; hourly export credit plus annual net surplus compensation
Mountain View	PG&E with Silicon Valley Clean Energy	Same as Sunnyvale
Los Altos	PG&E with Silicon Valley Clean Energy	Same as Sunnyvale
Cupertino	PG&E with Silicon Valley Clean Energy	Same as Sunnyvale

[83] City of Palo Alto, *Net Energy Metering* and *NEM 2*, https://www.paloalto.gov/Departments/Utilities/Electrification/Electrify-My-Home/Consider-Solar/Net-Energy-Metering. Opened 2026-10-12.

[84] CPAU, *Export Electricity Compensation, Utility Rate Schedule E-EEC-1*, effective 2026-07-01, https://www.paloalto.gov/files/assets/public/v/7/utilities/rates-schedules-for-utilities/residential-utility-rates/e-eec-1_effective_2026-07-01.pdf. Opened 2026-10-12.

[85] CPAU, *Electric Service Connection Charges, Utility Rate Schedule E-15*, effective 2026-01-01, https://www.paloalto.gov/files/assets/public/v/3/utilities/rates-schedules-for-utilities/service-calls-connection-fees-and-applicable-discounts/rate-schedule-e-15_effective_2026-01-01_clean.pdf. Opened 2026-10-12.

Jurisdiction	Electric utility and generation supplier	Export compensation for new solar customers
Menlo Park	PG&E with Peninsula Clean Energy	Net Billing Tariff; Peninsula Clean Energy generation-side terms not located
Redwood City	PG&E with Peninsula Clean Energy	Same as Menlo Park

PG&E Net Billing Tariff (non-code: CPUC-approved tariff). For customers who applied between April 15, 2023 and December 31, 2027, PG&E's Schedule NBT pays "a 'locked-in' nine-year schedule of values for each hour" from the CPUC Avoided Cost Calculator, then averaged hourly values.[86] Silicon Valley Clean Energy's Schedule NEM-SVCE confirms a monthly Energy Export Credit plus an end-of-year Net Surplus Compensation payment for NBT customers.[87] This report did not obtain an official average export value in dollars per kWh for the PG&E tariff, so it does not compare the numbers.

Difference and effect. Palo Alto's rate is flat across hours, and the rate schedule states no multi-year lock. The PG&E tariff is hourly and locked for nine years from interconnection. E-EEC-1 was revised effective July 1, 2026 (it supersedes a sheet dated September 1, 2025, whose rate was not opened), so the export rate can change when CPAU revises the schedule. Because the two methods weight midday and evening exports differently, which one pays more depends on the customer's export profile and battery use, and the direction cannot be set from the sources opened. Salience is moderate: it changes payback period for every new Palo Alto system but not feasibility.

Context. Palo Alto's E-EEC-1 and E-15 both carry 2026 effective dates. The federal residential solar and battery tax credits expired on December 31, 2025, per CPAU's website.[88] Silicon Valley Power's page and tariff could not be opened (403 error), so Santa Clara's figures are not stated.

13.5 Local solar requirements for new buildings beyond the state baseline

More permissive ●○○ Low *No local PV size or battery mandate; Santa Clara and Mountain View have one*

Palo Alto rule	PAMC § 16.17.070
Applies to	New nonresidential, high-rise multifamily and single-family buildings
Rule source	Municipal code
Status	Current

Summary. Palo Alto's only local amendment to the state solar-readiness rule is a tree-canopy conflict clause; it adds no photovoltaic (PV) size or battery requirement beyond the California Energy Code. Santa Clara sets minimum PV sizes for new nonresidential and high-rise residential buildings, Mountain View's green building table requires PV and battery systems in new construction by reference to state sections, and Sunnyvale requires solar water heating for new residential buildings unless exempted. Palo Alto's reach codes on electrification are covered in entry 12.1.

Palo Alto. PAMC § 16.17.070 amends Energy Code Section 110.10 only to add a rule for existing trees:

[86] PG&E, Electric Schedule NBT, Sheet 10, as filed in Advice Letter 7096-E (December 2023), https://www.pge.com/tariffs/assets/pdf/adviceletter/ELEC_7096-E.pdf. Opened 2026-10-12.

[87] Silicon Valley Clean Energy, Resolution No. 2026-06 and Electric Schedule NEM-SVCE (March 11, 2026), https://svcleanenergy.org/wp-content/uploads/2026-06-Resolution-Approving-to-Update-the-Electric-Schedule-SVCE-NEM-scrubbed.pdf. Opened 2026-10-12.

[88] City of Palo Alto, *Consider Solar*, https://www.paloalto.gov/Departments/Utilities/Electrification/Electrify-My-Home/Consider-Solar. Opened 2026-10-12.

> **PALO ALTO** PAMC § 16.17.070
> In the event of a conflict between the provisions of this Code, the Solar Shade Act of 2009, and the Palo Alto Tree Ordinance (Chapter 8.10), the most protective of existing tree canopies shall prevail.

The Zoning Code's CN, CC, CS and CD district design criteria say only "Encourage installation of photovoltaic panels" (PAMC §§ 18.16, 18.18). Palo Alto's Chapter 2.48 treats the utility solar program as a municipal solar utility for state tax purposes and is not a development requirement.

Comparison.

Jurisdiction	Local solar requirement for new buildings	Citation
Palo Alto	None beyond state; tree canopy prevails over solar zone	PAMC § 16.17.070
San José	None located	San José MC Title 17
Santa Clara	Minimum 3 kW PV (under 10,000 sq ft) or 5 kW (10,000 sq ft or more) for new nonresidential and high-rise residential; solar thermal alternative	Santa Clara CC § 15.36.030
Sunnyvale	Solar water heating as primary domestic hot water source for new residential, with exemptions for shading or lifecycle cost	Sunnyvale MC §§ 16.46.030, 16.46.040
Mountain View	PV (single-family, ADU), maximum PV and battery system for multifamily over three stories and nonresidential, by reference to state sections	Mountain View CC Table 101.10 (ch. 8, art. XII)
Los Altos	None located	Los Altos MC § 12.16.020
Cupertino	None located	Cupertino MC chs. 16.54, 16.58
Menlo Park	None located	Menlo Park MC Title 12
Redwood City	None located	Redwood City MC ch. 9

> **SANTA CLARA** Santa Clara CC § 15.36.030(b)
> Hotel/motel occupancies and high-rise multifamily buildings with ten habitable stories or fewer, that do not have a photovoltaic system installed, shall comply with the requirements of Section 110.10(b) through 110.10(d) and Table 110.10-A.

> **SUNNYVALE** Sunnyvale MC § 16.46.030(a)
> Any other provision of this title to the contrary notwithstanding, no building permit shall be issued by the department of community development for a new residential building as specified in paragraph (b) hereof unless said building's design includes a solar energy system as the primary means of heating domestic potable water.

Difference and effect. For a new office or retail building under 10,000 square feet, Santa Clara requires at least 3 kW of PV where Palo Alto's code adds nothing to the state rule. The state Energy Code already requires PV on most new buildings, so the local additions change the size of the system rather than whether one is installed. Mountain View's table repeats state section references, and whether it adds anything beyond the state path was not established. Sunnyvale's solar water heating clause predates heat pump water heaters and its present practical effect was not tested. Because Palo Alto imposes no additional requirement, the direction is permissive; the number of projects affected is small, so salience is low.

Context. Santa Clara's Ordinance 2081 (November 2025) adopted the amendments.

14 Site work, water, hazards and construction operations

14.1 Construction dewatering for basements and below-grade garages

More restrictive ●●○ Moderate *Unique to Palo Alto among the nine cities*

Palo Alto rule	PAMC § 16.28.060; PAMC § 16.28.155; PAMC § 16.28.156
Applies to	Residential and commercial projects with basements or underground garages below the water table
Rule source	Municipal code
Status	Current

Summary. Palo Alto regulates temporary construction dewatering with a dedicated permit scheme. Pumping that discharges to the storm drain or sewer is limited by default to April 1 through October 31 (November through March only by exemption on application, with immediate cessation orders possible), residential underground structures may be pumped for at most ten weeks plus a two-week start-up period, and projects pumping more than 30 gallons per minute must truck pumped water to parks and schools and supply neighbors. None of the eight comparison cities has a code section with comparable limits. They regulate dewatering only through general discharge rules, so a basement that needs pumping faces added study, schedule and operating requirements in Palo Alto.

Palo Alto. PAMC § 16.28.060 requires a permit to "engage in temporary construction-related dewatering." Section 16.28.155 sets two tracks. Groundwater exclusion (for example a secant wall) must hold discharge to 30 gallons per minute or less, percolate water on site where feasible, and install a monitoring well. Above 30 gallons per minute, controlled pumping applies. It requires a hydrogeological study stamped by a licensed hydrogeologist, a groundwater use plan, and a pre-construction condition survey of structures on adjacent parcels. Pumping depth is capped at 3 feet below the slab depth before the slab is poured and 1 foot after. The pumping operator must haul water to irrigation sites for 8 hours per week for the first six weeks and 8 hours per day, five days per week, thereafter. The November–March exemption requires showing that the receiving system can handle a ten-year storm, or, for exclusion techniques, an average discharge of 10 gallons per minute or less (§§ 16.28.155(d)(4), (g)(1)). Section 16.28.156 adds sampling and treatment steps inside the groundwater plume area.

> **PALO ALTO** PAMC § 16.28.155(g)(1)
> Dewatering shall only occur April 1 through October 31, if discharge to the storm drain or sanitary sewer system is required.

> **PALO ALTO** PAMC § 16.28.155(g)(2)
> Groundwater pumping for underground residential structures shall be limited to ten weeks, with an additional two week start-up period.

Comparison.

Jurisdiction	Dewatering-specific limits	Citation
Palo Alto	Permit; April–October discharge window; 10-week residential pumping cap; study, condition survey, water-reuse hauling	PAMC §§ 16.28.060, 16.28.155
San José	None located; dewatering water is defined as a non-potable water source in the water-conservation chapter	San José MC § 15.10.060
Santa Clara	General duty to implement dewatering controls on construction sites; no numeric limits	Santa Clara CC § 13.20.050(a)

Jurisdiction	Dewatering-specific limits	Citation
Sunnyvale	Groundwater to sanitary sewer prohibited unless the director finds no reasonable alternative	Sunnyvale MC § 12.12.050
Mountain View	Storm drain discharge allowed if free of organic solvents and filtered	Mountain View CC § 35.32.3.3(C)
Los Altos	Prior city engineer approval to discharge to storm drain; filtration may be required	Los Altos MC § 10.08.430(C)
Cupertino	No dewatering section located; non-stormwater discharges to the storm drain are prohibited unless exempt, and single-family pumped groundwater is categorically allowed	Cupertino MC § 9.18.040(A), (E)(6)
Menlo Park	Not located	—
Redwood City	Not located	—

> **SUNNYVALE** Sunnyvale MC § 12.12.050
> Stormwater, groundwater, rainwater, street drainage, subsurface drainage or yard drainage shall not be discharged through direct or indirect connections to a sanitary sewer unless granted written approval by the director.

> **LOS ALTOS** Los Altos MC § 10.08.430
> Prior approval shall be obtained from the city engineer or designee to discharge water pumped from construction sites to the storm drain.

Difference and effect. Cupertino's stormwater chapter is similar: it allows single-family homes' pumped groundwater and conditionally exempts other discharges under the Municipal Regional Permit (§ 9.18.040(F)), with no seasonal, duration or depth limits. The comparison cities control where pumped water may go and what it must contain. Palo Alto also limits when, how long and how deeply a site may pump, and it directs how the water is used. The seasonal window and the ten-week cap bear most on projects with excavation in the wet season or in high groundwater, where pumping would otherwise run longer. The study, adjacent-property survey and trucking obligations add consultant cost and a schedule dependency before and during excavation. Exclusion techniques such as secant walls stay under the 30 gallons per minute limit and avoid the controlled-pumping track, which affects design choices for deep basements. Salience is moderate because the rules apply only to projects that dewater, mainly single-family basements and underground garages in multifamily and commercial projects.

Context. The code history lists Ord. 5425 (2018) and Ord. 5410 (2017) as the sources of these sections. The comparison cities' engineering departments may impose dewatering conditions through permits or standard details that are not in their codes; none was reviewed.

14.2 Deconstruction, salvage survey and construction waste diversion

More restrictive ●●○ Moderate *Highest diversion target; only third-party salvage survey requirement*

Palo Alto rule	PAMC § 5.24.030; PAMC § 5.24.040; PAMC § 5.24.050; PAMC § 16.14.150; PAMC § 16.14.250; PAMC § 16.14.430
Applies to	Whole-structure demolition (residential and commercial); construction and alterations valued at $25,000 or more
Rule source	Municipal code
Status	Current

Summary. Palo Alto requires a salvage survey by an approved reuse organization before any whole-structure demolition permit issues, requires the materials on the survey to be delivered to a reuse organization with proof, and requires deconstruction to divert the maximum feasible amount of material. Its local green building amendments raise the construction waste diversion requirement to 80 percent for projects valued at $25,000 or more. The other cities require 50 to 65 percent diversion or the CALGreen figure (Cupertino and Mountain View 65 percent, Redwood City 60 percent, Menlo Park CALGreen as amended), and none requires a third-party salvage survey; Menlo Park, Mountain View and Redwood City require only that salvageable material be made available before demolition.

Palo Alto. PAMC Chapter 5.24 applies to all residential and commercial projects that include whole-structure demolition, except accessory dwelling unit (ADU) demolitions. Section 5.24.080 excludes dangerous structures outright and, as determined by the Director of Public Works, buildings with no suitable materials. Section 16.14.250 adopts CALGreen Appendix A4 section A4.408.1 as mandatory, with an 80 percent reduction for projects valued at $25,000 or more, and § 16.14.430 sets the same 80 percent for nonresidential projects (CALGreen's state baseline is 65 percent). Section 16.14.150 points the deconstruction measure back to Chapter 5.24.

> **PALO ALTO** PAMC § 5.24.040(a)
> All applicants and other persons who undertake a covered project shall complete a salvage survey provided by a reuse organization or other third party approved by the city, prior to the issuance of a demolition permit.

> **PALO ALTO** PAMC § 5.24.050(a)
> All applicants and other persons who undertake a covered project where materials can be recycled or composted shall deconstruct buildings and structures in a manner to divert the maximum feasible amount of materials and debris from disposal in landfills.

Comparison.

Jurisdiction	Pre-demolition salvage rule	Diversion target	Citation
Palo Alto	Salvage survey and certified delivery of items; deconstruct to maximum feasible diversion	80% for projects of $25,000 or more	PAMC §§ 5.24.040, 5.24.050, 16.14.250, 16.14.430
San José	None located; diversion deposit program	Per deposit program rules set by regulation	San José MC §§ 9.10.2410, 9.10.2450
Santa Clara	None	50%, or CALGreen if more restrictive	Santa Clara CC § 8.25.285
Sunnyvale	None located	At least 65%	Sunnyvale MC § 16.74.030
Cupertino	None; waste management plan approved before permit	65%, or CALGreen if more restrictive	Cupertino MC §§ 16.72.040, 16.72.050
Mountain View	Offer for salvage 5 working days before demolition of 25% or more	65%	Mountain View CC §§ 16.64, 16.65
Los Altos	Applicants "shall consider" deconstruction	65%	Los Altos MC §§ 6.14.030, 6.14.080(D)
Menlo Park	Make fixtures available 7 working days before demolition	Per CALGreen as amended	Menlo Park MC §§ 12.48.020, 12.48.030
Redwood City	Make structure available for deconstruction; written reason if none	60% (50% for some nonresidential)	Redwood City MC §§ 9.192, 9.193

> **MENLO PARK** Menlo Park MC § 12.48.020(a)
> Interior building fixtures and finishes such as doors, cabinets, plumbing and electrical fixtures and floor finishes in structures planned for demolition shall be made available for salvage and recovery prior to demolition.

> **MOUNTAIN VIEW** Mountain View CC § 16.64
> Every covered project involving demolition of twenty-five (25) percent or more shall be made available for deconstruction, salvage and recovery at least five (5) working days prior to the commencement of demolition or construction activities.

Difference and effect. Other cities ask owners to make materials available or to consider deconstruction. Palo Alto adds a third-party survey that itemizes materials and weights, a delivery certification, and an enforceable standard of "maximum feasible" diversion. Together with an 80 percent diversion target, this adds a pre-permit step, hand-dismantling labor and documentation to teardown-and-rebuild and redevelopment projects. The lower-cost pathways are the exclusions for dangerous structures and buildings without suitable materials. Salience is moderate because the survey applies only to whole-structure demolitions, which are a minority of permits, while the 80 percent target reaches most projects above $25,000.

Context. Sunnyvale MC § 16.74.030(b) sets a 65 percent minimum tied to CALGreen, with details in program guidelines I did not review; San José's percentage depends on regulations I did not locate. Ord. 5472 (2019) adopted Chapter 5.24, applicable to demolition applications completed on or after July 1, 2020.

14.3 Flood-zone basement ban and elevation above base flood

More restrictive ●○○ Low *Basement ban shared with 3 of 8; 1-foot freeboard like Redwood City, Cupertino*

Palo Alto rule	PAMC § 16.52.130
Applies to	New and substantially improved buildings in FEMA special flood hazard areas
Rule source	Municipal code
Status	Current

Summary. In a special flood hazard area, Palo Alto prohibits new residential basements and the expansion of existing ones, and requires the lowest floor of new or substantially improved residential buildings to sit at least 1 foot above the base flood elevation. FEMA's minimum is the base flood elevation itself. Cupertino, Menlo Park and Redwood City also bar residential basements, and Cupertino and Redwood City also require 1 foot of freeboard. San José, Sunnyvale, Mountain View, Los Altos and Santa Clara do not bar residential basements in their flood ordinances, which instead point to the building code.

> **PALO ALTO** PAMC § 16.52.130(e)
> For residential structures located within a Special Flood Hazard Area: (A) No new basements shall be constructed; and (B) No existing basements shall be expanded.

Subsection (c)(1) sets the elevation: one foot above base flood elevation in most zones, 2 feet above highest adjacent grade in an unnumbered A zone, and depth plus 1 foot in AO zones. Nonresidential buildings may instead be dry floodproofed with an engineer's certificate and a recorded flood emergency plan. "Substantial improvement" means work costing 50 percent or more of the structure's market value.

Comparison.

Jurisdiction	Residential basements in flood zone	Elevation rule	Citation
Palo Alto	Prohibited (new and expansion)	Base flood elevation + 1 ft	PAMC § 16.52.130(c), (e)
San José	Allowed if lowest floor, including basement, is elevated to base flood elevation	At base flood elevation	San José MC § 17.08 (Part 5)
Santa Clara	Not stated in floodplain chapter; building code applies	Building code	Santa Clara CC § 15.45.050
Sunnyvale	Allowed if elevated to design flood elevation or dry floodproofed (Group U structures)	Design flood elevation (ASCE 24)	Sunnyvale MC § 16.62.300
Mountain View	Lowest floor, including basement, to design flood elevation	Design flood elevation (ASCE 24)	Mountain View CC ch. 48, art. VI
Los Altos	Lowest floor, including basement, to design flood elevation	Design flood elevation (ASCE 24)	Los Altos MC § 12.40 (art. 10)
Cupertino	Prohibited (all subgrade enclosed areas, including below-grade garages)	BFE + 1 ft (AE, AH, unnumbered A); depth + 1 ft (AO)	Cupertino MC §§ 16.52.010(II), 16.52.043(A)
Menlo Park	Subgrade enclosed areas prohibited in residential	Building code for houses	Menlo Park MC § 12.42.20
Redwood City	Subgrade enclosed areas prohibited in residential	Base flood elevation + 1 ft	Redwood City MC §§ 41.6, 41.18

> **MENLO PARK** Menlo Park MC § 12.42.20
> For residential structures, all subgrade enclosed areas are prohibited as they are considered to be basements. This prohibition includes below-grade garages and storage areas.

> **REDWOOD CITY** Redwood City MC § 41.18
> In all other zones, elevated to a minimum of one (1) foot above the base flood elevation or the design flood elevation, whichever is higher.

Difference and effect. The prohibition removes basements as a design option on flood-zone residential lots, and the freeboard raises first-floor height by a foot over FEMA's minimum. Both are standard features of Cupertino and the two San Mateo County cities too, so the difference is chiefly against the other Santa Clara County cities. Where those cities use a design flood elevation under the building code, its freeboard may match or exceed Palo Alto's; I did not confirm the code's figure. Salience is low because the rule bites only on the part of Palo Alto in a mapped flood zone, and it excludes only one design feature.

Context. Ord. 5580 (2023) is the latest amendment to § 16.52.130. Section 16.52.130(d) lets existing crawl spaces remain under strict depth and drainage conditions.

14.4 Grease control devices for food facilities

More restrictive ●○○ Low *Most detailed device standards; five of eight other codes require a device*

Palo Alto rule	PAMC § 16.13.040; PAMC § 16.13.140; PAMC § 16.13.150; PAMC § 16.13.160
Applies to	New, remodeled and tenant-improved restaurants and other food facilities
Rule source	Code and non-code rules
Status	Amended since January 2025

Summary. San José, Santa Clara, Sunnyvale, Los Altos and Redwood City require food facilities to install a grease interceptor or control device; requirements for Mountain View and Menlo Park were not located, and Cupertino's code mentions grease removal devices only in its stormwater source-control rules, which presuppose a device where a cleaning sink exists but do not require food facilities to install one. Palo Alto's Chapter 16.13 (Ord. 5672, 2025) leaves the technical standards to the Palo Alto Regulations for Food Facilities, adopted by Council Resolution 10249 in October 2025.[89] Those regulations prefer outdoor, at-grade devices on private property, bar shared devices, gravity-only flow, concrete tanks and food waste disposers, and require a designated cleaning sink connected to the device. Other cities' codes state a device requirement and refer sizing to the plumbing code.

Palo Alto. The code sections are short and incorporate the regulations.

> **PALO ALTO** PAMC § 16.13.140
> Food facilities shall install and operate a grease control device and with required connected fixtures in compliance with the Palo Alto Regulations for Food Facilities.

The regulations apply to any project that installs or replaces a device. From January 1, 2026, new devices cannot be shared by facilities, cannot receive pumped flow unless the Director approves, and cannot be made of concrete or metal. Unless the Director and Santa Clara County approve otherwise, devices go outdoors on private property at finished grade, not in garages or basements. A project may use a combined system where existing space prevents a standard device.

Comparison.

Jurisdiction	Requirement in code	Citation
Palo Alto	Device required; detailed siting, material, sizing and fixture rules in adopted regulations	PAMC §§ 16.13.140–16.13.160
San José	Discharge must first pass an approved grease control device	San José MC §§ 15.14.565(B), 15.14.630
Santa Clara	Device of size and design approved by Director; 30-minute minimum retention	Santa Clara CC § 13.10.380
Sunnyvale	Device of city-approved type; cleaning at least every six months	Sunnyvale MC § 12.12.026
Mountain View	Not located	—
Los Altos	Interceptor for each grease-generating activity in new or remodeled facilities	Los Altos MC § 10.08.280
Cupertino	No general device mandate located in code; food facilities must have a cleaning sink connected to a grease removal device, and dumpster-area drains connect to one	Cupertino MC § 9.18.210(H)

[89] City of Palo Alto, *Palo Alto Regulations for Food Facilities Related to Water Pollution Prevention and Management of Fats, Oils, and Grease* (adopted October 30, 2025), https://www.paloalto.gov/files/content/public/v/19/departments/public-works/watershed-protection/sewer-use-stormwater-and-fats-oils-and-grease-fog-regulations/fog-regulations-final_102325.pdf. Opened 2026-10-12.

Jurisdiction	Requirement in code	Citation
Menlo Park	Not located	—
Redwood City	New food service establishments and qualifying remodels or tenant improvements must install interceptors or traps; BMPs, records, fixture prohibitions	Redwood City MC §§ 27.92–27.95

> **LOS ALTOS** Los Altos MC § 10.08.280
> The owner of every newly constructed, remodeled, or converted commercial or industrial facility with one or more grease generating activities, including food service facilities with new or replacement kitchens, for which a building permit is issued on or after January 1, 1992, shall install or cause to be installed a grease interceptor for each grease generating activity

> **SANTA CLARA** Santa Clara CC § 13.10.380(a)
> Any food service establishment, or other type of business or establishment where grease or other viscous, obstructing, or objectionable materials may be discharged into a public or private sewage main or disposal system, shall have a grease control device and related plumbing of a size and design approved by the Director.

Difference and effect. The trigger to install a device is common to the cities where a requirement was located. The difference is in siting and design: an outdoor, at-grade device needs space on the lot and a trenched lateral, which can be hard to meet in a tenant space in an existing multi-tenant building or a mixed-use project with below-grade parking. The regulations allow alternative compliance where space is constrained. Salience is low because the effect falls on food-service tenant improvements, and the comparison cities' non-code design guidance was not reviewed.

Context. Redwood City, Santa Clara and Sunnyvale also regulate devices through their sewer use rules and pretreatment programs, whose manuals I did not review.

14.5 Recycled-water dual plumbing and irrigation requirements

More restrictive ●○○ Low *Lowest numeric size trigger; Menlo Park has none in its districts*

Palo Alto rule	PAMC § 16.12.030; PAMC § 16.12.035
Applies to	Nonresidential and multifamily buildings above size thresholds; new landscapes other than single-family homes
Rule source	Municipal code
Status	Current

Summary. Palo Alto requires dual plumbing for future recycled-water toilet flushing in new or remodeled buildings above 10,000 square feet inside a recycled water project area, and above 50,000 square feet (or 50 or more toilets and urinals) elsewhere. Mountain View requires it only for new nonresidential buildings above 25,000 square feet, Redwood City conditions new commercial, industrial, institutional and multifamily projects in its service area, and Menlo Park requires it for all new buildings in at least 10 zoning districts with no size threshold. San José, Santa Clara, Sunnyvale, Los Altos and Cupertino have no comparable trigger in the code text reviewed.

> **PALO ALTO** PAMC § 16.12.035(a)
> All applications for building permits for new or remodeled buildings or groups of buildings within the boundaries of a recycled water project area, filed after the adoption of this chapter, where the building square footage total, including both the original square footage and any addition, is greater than 10,000 square feet or where

> installation of twenty-five or more toilets and urinals is proposed, shall incorporate dual plumbing

Dual plumbing does not apply to single-family homes, and remodels trigger it only for restrooms within the remodel area (§ 16.12.035(c)). Section 16.12.030 requires irrigation plans and on-site connection infrastructure for recycled water in projects other than single-family homes within a project area, or elsewhere where landscape exceeds 1,500 square feet.

Comparison.

Jurisdiction	Dual-plumbing trigger	Citation
Palo Alto	Over 10,000 sq ft in project area, or 25+ fixtures; over 50,000 sq ft or 50+ fixtures elsewhere; includes remodels	PAMC § 16.12.035
San José	None located	—
Santa Clara	None located	—
Sunnyvale	None located	—
Mountain View	New nonresidential over 25,000 sq ft, citywide	Mountain View CC § 8.50.15
Los Altos	None located	—
Cupertino	None located; landscape ordinance only requires recycled-water irrigation systems to allow current and future use	Cupertino MC § 14.15.090
Menlo Park	All new buildings, no size threshold, in at least 10 districts (R-3, C-1, C-1-C, C-2, C-MU, O, LS, R-MU and others)	Menlo Park MC §§ 16.20.050, 16.30.050, 16.35.110, 16.36.050, 16.38.070, 16.40.050, 16.43.140, 16.44.130, 16.45.130, 16.95.050
Redwood City	New commercial, industrial, institutional and multifamily projects in service area, by condition	Redwood City MC § 38.52

> **MOUNTAIN VIEW** Mountain View CC § 8.50.15
> All new nonresidential buildings or groups of new nonresidential buildings where the total square footage of the building(s) is greater than twenty-five thousand (25,000) square feet, shall incorporate dual plumbing in the design and construction of the building(s) to allow the use of recycled water, when it becomes available, for flushing toilets and urinals and priming floor traps.

> **MENLO PARK** Menlo Park MC § 16.45.130
> All new buildings shall be dual plumbed for the internal use of recycled water.

Difference and effect. Palo Alto's 10,000 square foot trigger inside project areas is the lowest numeric trigger in the group and reaches remodels, which the others do not address. Menlo Park's has no size threshold but applies only in listed districts. The cost is a second set of piping and labeling in mid-size office, retail and multifamily buildings, built before recycled water is available. Salience is low because project areas are limited and the requirement leaves single-family homes out.

Context. Ord. 5510 (2020) is the latest amendment. San José and Santa Clara operate recycled-water systems under their utility codes, and I did not find plumbing mandates for buildings there.

14.6 Permitted construction hours and weekend work

Mixed ●○○ Low *Weekday start later than 7 of 8; Saturday work allowed unlike 4*

Palo Alto rule	PAMC § 9.10.060
Applies to	All construction, alteration, demolition and repair under a building permit
Rule source	Municipal code
Status	Current

Summary. Palo Alto allows permitted construction from 8 a.m. to 6 p.m. Monday through Friday and 9 a.m. to 6 p.m. on Saturday, and prohibits it on Sundays and holidays. The same hours apply in residential and non-residential zones. Palo Alto starts an hour later on weekdays than most comparison cities, allows contractor work on Saturdays where Mountain View, San José (near homes) and Menlo Park do not, and ends earlier than Redwood City.

Palo Alto. PAMC Chapter 9.10 sets the hours as exceptions to the noise limits. Residential-zone construction is covered by subsection (c).

> **PALO ALTO** PAMC § 9.10.060(c)
> Construction, alteration, demolition or repair activities conducted in a residential zone, authorized by valid city building permit, shall be prohibited on Sundays and holidays and is prohibited on all other days except during the hours of eight a.m. and six p.m. Monday through Friday, nine a.m. and six p.m. on Saturday

Comparison.

Jurisdiction	Weekdays	Saturday	Sunday/holidays	Citation
Palo Alto	8 a.m.–6 p.m.	9 a.m.–6 p.m.	Prohibited	PAMC § 9.10.060(b)–(c)
San José	7 a.m.–7 p.m. within 500 ft of a residence, where a development permit is required	Prohibited within 500 ft	Prohibited within 500 ft	San José MC § 20.100.450
Santa Clara	7 a.m.–6 p.m. within 300 ft of residential zoning	9 a.m.–6 p.m.	Prohibited	Santa Clara CC § 9.10.230
Sunnyvale	7 a.m.–6 p.m.	8 a.m.–5 p.m.	Prohibited	Sunnyvale MC § 16.08.030
Mountain View	7 a.m.–6 p.m.	Prohibited without chief building official approval	Prohibited	Mountain View CC § 8.06.05
Los Altos	7 a.m.–5:30 p.m. single-family; 7 a.m.–7 p.m. other zones	9 a.m.–3 p.m.; 9 a.m.–6 p.m. other zones	Prohibited	Los Altos MC § 6.16.070
Cupertino	7 a.m.–8 p.m. (night work barred unless it meets nighttime noise limits)	9 a.m.–6 p.m.; grading, demolition, street and underground utility work barred within 750 ft of residential areas	9 a.m.–6 p.m. for ordinary construction (same exclusions); holidays barred except homeowner work	Cupertino MC §§ 10.48.010, 10.48.029, 10.48.053
Menlo Park	8 a.m.–6 p.m.	Owner-performed work only, 9 a.m.–5 p.m.	Owner-performed work only	Menlo Park MC § 8.06.040(a)
Redwood City	7 a.m.–8 p.m. (noisy work 9 a.m.–4 p.m.)	Not allowed under 24.32	Not allowed under 24.32	Redwood City MC § 24.32

> **MOUNTAIN VIEW** Mountain View CC § 8.06.05
> No construction activity shall commence prior to 7:00 a.m. nor continue later than 6:00 p.m., Monday through Friday. No work is permitted on Saturday, Sunday, recognized holidays, or outside of these hours unless prior written approval is granted by the chief building official.

> **SUNNYVALE** Sunnyvale MC § 16.08.030
> Construction activity shall be permitted between the hours of seven a.m. and six p.m. daily Monday through Friday. Saturday hours of operation shall be between eight a.m. and five p.m.

Difference and effect. The effect runs in both directions. The 8 a.m. start cuts one hour from the weekday window that Santa Clara, Sunnyvale, Mountain View, Los Altos and Cupertino allow, and one hour of evening that San José allows (to 7 p.m.) and two hours that Cupertino and Redwood City allow (to 8 p.m.). Cupertino also allows ordinary construction on Sundays, from 9 a.m. to 6 p.m. Saturday work, by contrast, is allowed in Palo Alto where Mountain View, Redwood City and (for contractors) Menlo Park bar it. Total weekly hours therefore sit near the middle of the group, with Cupertino among the longest. Salience is low because the difference is an hour or two a day; the entry mainly matters to schedule on large demolition and excavation projects.

Context. Cupertino sets its hours through the noise ordinance (daytime and nighttime definitions and § 10.48.053) rather than a building-permit hours section. Los Altos limits tool and equipment use under its noise chapter rather than setting a stand-alone construction hours section, and San José's section applies only where a development permit is required. Redwood City's Saturday treatment follows from § 24.32 listing weekdays only. Mountain View amended its section in September 2025 (Ord. 9.2025).

15 Subdivisions and public improvements

15.1 Minimum and maximum lot size and flag-lot limits for new single-family lots

Mixed ●●○ Moderate *Only unconditional R-1 flag-lot ban; only new-lot size cap; mid-range minimum*

Palo Alto rule	PAMC § 18.12.040; PAMC § 21.20.100; PAMC § 21.20.301
Applies to	Subdivision of single-family (R-1) parcels; flag lots; lot splits outside SB 9
Rule source	Municipal code
Status	Current

Summary. In the R-1 district Palo Alto requires new lots of at least 6,000 square feet, 60 feet wide and 100 feet deep, and also caps new lots at 9,999 square feet in the base district. Flag lots are prohibited in R-1 with no exceptions, except where a historic resource covenant is recorded. The other eight cities set minimums between 5,000 and 10,000 square feet, none caps lot area in its single-family district, and all but Palo Alto allow flag, interior or panhandle lots at least in some areas or circumstances (Sunnyvale and Los Altos restrict them). The flag-lot ban reduces the lots a deep parcel can yield, while the size cap works the other way by preventing large new lots.

> **PALO ALTO** PAMC § 21.20.301
> Notwithstanding the foregoing, the creation of flag lots, as defined in Title 18 of this code, shall be prohibited in the R-1 single- family residence district, and no exceptions shall be granted therefore;

The minimum site area in the base R-1 district is 6,000 square feet (7,000, 8,000, 10,000 and 20,000 in the numbered subdistricts), with 60 feet of width and 100 feet of depth in every subdistrict (PAMC § 18.12.040, Table 2). Section 18.12.040(d) adds a maximum: no new lot may equal or exceed twice the district minimum, and in the 6,000-square-foot district no new lot may exceed 9,999 square feet, subject to four exceptions that include a resulting lot count that stays the same or increases. Where a flag lot is allowed (historic covenant cases), it must exceed the zone's lot area requirement by at least 20 percent excluding the access strip, with a 15-foot-wide access strip, 10 feet paved, over land in the same ownership (PAMC § 21.20.301(a)). Lots on curved or cul-de-sac streets also need 60 feet of width at the setback line, an average depth of 100 feet and 6,000 square feet (PAMC § 21.20.100).

Comparison.

Jurisdiction	Minimum lot (single-family district)	Flag or panhandle lots	Citation
Palo Alto	6,000 sq ft, 60 ft wide, 100 ft deep (R-1); maximum 9,999 sq ft	Prohibited in R-1 unless historic covenant; 20% larger area	PAMC §§ 18.12.040, 21.20.301
San José	R-1-8: 5,445 sq ft; R-1-5: 8,000 sq ft; subdivision code default 6,000 sq ft, 55 ft average width	Defined (corridor under 27 ft); no prohibition located; director may waive public-street access	San José MC §§ 20.30.200, 19.36.170, 19.36.190, 20.200.410
Santa Clara	R1-6L: 6,000 sq ft, 60 ft frontage; R1-8L: 8,000 sq ft, 70 ft	No restriction located	Santa Clara CC § 18.10.030
Sunnyvale	R-0: 6,000 sq ft, 57 ft interior width; R-1: 8,000 sq ft, 76 ft	Interior lots (including flag lots) not approved except on 6-lane streets, lots over 200 ft deep, or topographic need	Sunnyvale MC §§ 19.30.020, 18.12.120(c)
Mountain View	R1: 6,000 sq ft, 60 ft (corner 70 ft); suffix zones to 10,000 sq ft	Allowed; PUD permit for 3 or more lots; at most 2 behind a fronting lot	Mountain View CC §§ 36.10.15, 36.10.35

Jurisdiction	Minimum lot (single-family district)	Flag or panhandle lots	Citation
Los Altos	R1-10: 10,000 sq ft, 80 ft wide, 100 ft deep	Conditional use permit; 15,000 sq ft; 20 ft corridor; not permitted in R1-10 small-lot (Residential 3) areas	Los Altos MC §§ 14.06.010(C), 14.06.030, 14.06.040, 14.06.050
Cupertino	R1-5: 5,000 sq ft net, 50 ft wide; R1-6 and larger: district number × 1,000 sq ft, 60 ft; R1-a: 10,000 sq ft, 75 ft	Allowed in R1; access area 20-25 ft wide; access strip excluded from lot area	Cupertino MC §§ 19.28.060, 18.32.120, 19.08.030
Menlo Park	R-1-U: 7,000 sq ft, 65 ft wide, 100 ft deep	Panhandle lots allowed, up to 3, with Planning Commission approval	Menlo Park MC §§ 16.16.030, 15.16.060, 15.16.080
Redwood City	R-1: 6,000 sq ft, 50 ft average width, 35 ft frontage	Panhandle lots allowed with 35 ft frontage	Redwood City Zoning Code §§ 5.3, 5.4; Redwood City MC § 30.36

> **MOUNTAIN VIEW** Mountain View CC § 36.10.35
> At least one (1) of the lots in a flag lot subdivision or other subdivision that includes parcels without the required frontage on a public street shall have the street frontage normally required by the applicable zoning district.

> **LOS ALTOS** Los Altos MC § 14.06.040
> The minimum site area shall be ten thousand (10,000) square feet, except that on corner lots the minimum site area shall be eleven thousand (11,000) square feet and on flag lots the minimum site area shall be fifteen thousand (15,000) square feet.

Difference and effect. Base minimums are similar: Palo Alto's 6,000 square feet matches Mountain View, Santa Clara's R1-6L and Redwood City, matches Cupertino's R1-6, is above San José's R-1-8 (5,445) and Cupertino's R1-5 (5,000), and is below Sunnyvale, Los Altos and the larger Santa Clara zone. The distinguishing rules are the flag-lot ban and the maximum lot size. Seven cities allow flag or panhandle lots in their general single-family districts (Los Altos bars them in small-lot areas, and Sunnyvale allows interior lots only in three circumstances). Cupertino allows them in R1 and sets a 20-foot minimum and 25-foot maximum access width (Cupertino MC §§ 19.28.060, 18.32.120). Palo Alto's ban admits one exception, a recorded historic covenant. No other city sets a maximum lot area in its single-family district; Sunnyvale's 4,000-square-foot cap applies to the R-1.7/PD district only, and San José limits lot depth to 2.5 times average width (San José MC § 19.36.230). In Palo Alto a deep R-1 parcel cannot be divided into a front lot and a rear flag lot; each new lot needs frontage. The maximum lot size has the opposite tendency: it bars a new lot of 12,000 square feet or more, so a large parcel can only be divided into smaller lots, which raises or leaves unchanged the lot count, subject to its exceptions. It does limit lot combination. The direction is therefore mixed. Salience is moderate because state law bypasses these rules for the large share of splits done under SB 9, which has its own lot standards (see entry 2.3), leaving the local rules to govern splits that do not use SB 9.

Context. The flag-lot ban dates to Ordinance 5051 (2009) and was amended by Ordinance 5476 (2019), per the history note at PAMC § 21.20.301. Lot-size minimums in numbered subdistricts are set by the zoning map. San José's Table 20-60 labels districts by dwelling units per acre, so R-1-8 carries the 5,445-square-foot minimum.

15.2 Undergrounding of utility lines for new development and service upgrades

Mixed ●●○ Moderate *No remodel trigger or in-lieu fee; Sunnyvale, Los Altos, Cupertino stricter*

Palo Alto rule	PAMC § 12.16.010; PAMC § 12.16.050; PAMC § 21.28.200
Applies to	New buildings; subdivisions; additions and service upgrades; utility service connections
Rule source	Code and non-code rules
Status	Current

Summary. Palo Alto's code requires poles and overhead lines for new construction to be placed underground unless the Director of Utilities finds underground installation infeasible, and requires all public utilities in subdivisions to be underground. The code has no remodel or service-upgrade trigger, no frontage undergrounding requirement and no in-lieu fee. The Utilities Department's Rule and Regulation 20 (non-code) sets the service configuration: overhead remains the standard for single-family homes in existing overhead areas, with underground required in wildfire-threat areas, for commercial and industrial services and for new subdivisions. Other cities tie undergrounding to different triggers.

> **PALO ALTO** PAMC § 12.16.010
> The director of utilities, or designee, may authorize poles, overhead lines and associated overhead structures for new construction when the director determines that an installation in an underground location in any particular instance would not be feasible or practicable.

PAMC § 12.16.010 applies the requirement to facilities "constructed" after July 1, 1965, and the Director's decision is final. Chapter 12.16 otherwise operates through Council-designated underground utility districts (§§ 12.16.020, 12.16.040). Title 21 provides that "All public utilities shall be installed underground" in subdivisions (PAMC § 21.28.200). Rule and Regulation 20 of the City of Palo Alto Utilities (CPAU) provides that the standard service to single-family homes in existing overhead areas is overhead, that all new, relocated or modified services in areas with elevated wildfire threat as determined by CPAU are underground, and that new commercial, industrial and subdivision services are underground, with the customer supplying on-site conductors at its expense.[90]

Comparison.

Jurisdiction	Trigger for undergrounding	Remodels and upgrades	In-lieu or deferral	Citation
Palo Alto (city-owned electric utility)	New construction (Director may waive); subdivisions; districts	No trigger in code; CPAU Rule 20 wildfire-area rule for modified services	None in code	PAMC §§ 12.16.010, 21.28.200
San José (PG&E)	Subdivision utilities; Director may waive	None located	None located	San José MC § 19.32.060
Santa Clara (city-owned electric utility)	Subdivision lots and peripheral streets in Underground District; outside district only if likely within 10 years	None located	In-lieu fee in Underground District	Santa Clara CC § 17.05.610(f)

[90] City of Palo Alto Utilities, *Rule and Regulation 20, Special Electric Utility Regulations* (file dated June 2026), https://www.cityofpaloalto.org/files/assets/public/v/3/utilities/rules-and-regulations/rule-20-special-electric-utility-regulations.pdf. Opened 2026-10-12.

Jurisdiction	Trigger for undergrounding	Remodels and upgrades	In-lieu or deferral	Citation
Sunnyvale (PG&E)	New development, redevelopment, subdivision, change of use; laterals when service is increased	Laterals underground when service increased, except single-family; many size exemptions	In-lieu fee or deferral at Director's discretion	Sunnyvale MC §§ 19.38.090, 19.38.095
Mountain View (PG&E)	Divisions of land, including overhead facilities on abutting streets	None located	None located	Mountain View CC § 28.9.15
Los Altos (PG&E)	All new and relocated services; additions over 50% of floor area or 750 sq ft	Yes, with three-year aggregation	No waiver; narrow access exception	Los Altos MC § 12.38.020
Cupertino (PG&E)	Utility distribution facilities serving a new development area; subdivision utilities and overhead lines on both sides of peripheral streets	None located; separate Council-designated districts for existing lines	In-lieu fee on peripheral streets (subdivisions of 5 or more by Planning Commission waiver; 4 or fewer by City Engineer)	Cupertino MC §§ 14.24.030, 18.32.070, 14.20.030
Menlo Park (PG&E)	Service connections to new structures; subdivisions; frontage lines for projects of 10,000 sq ft or more in LS, O and R-MU districts	Where main service is changed; single-family and duplexes exempt outside districts	Planning Commission may allow other arrangements	Menlo Park MC §§ 16.76.020, 15.16.190, 16.44.110
Redwood City (PG&E)	New commercial building (frontage and on site); subdivisions of 5 or more lots	Not triggered by remodels	$100 per linear foot of frontage in lieu (FY 2026-27)	Redwood City MC §§ 18.242, 11.60; Redwood City MC § 30.35

> **SUNNYVALE** Sunnyvale MC § 19.38.090
> All utilities and communication services associated with new development, redevelopment, subdivision or change in use shall be placed underground unless otherwise exempted by this section.

> **LOS ALTOS** Los Altos MC § 12.38.020
> It is the intent of the city to ensure that all new utility services and relocated existing utility services are placed underground, including additions exceeding fifty (50) percent of floor area and/or seven hundred and fifty (750) square feet or more, excluding basements and any non-habitable floor areas.

> **REDWOOD CITY** Redwood City MC § 18.242
> Upon the construction of any new commercial building, the electrical, telephone and cable TV lines will be installed underground along the street frontage as well as on the subject property.

Difference and effect. Palo Alto's code text is broad for new construction but has no remodel trigger and no frontage requirement, and in practice the CPAU rule keeps overhead service as the standard for single-family homes in existing overhead areas. Los Altos requires undergrounding with additions over 750 square feet or 50 percent of floor area and grants no waivers, and Sunnyvale requires it with new development and redevelopment, with detailed size exemptions and an in-lieu option. Redwood City (new commercial buildings) and Menlo Park (projects of 10,000 square feet or more in three districts) require

frontage undergrounding. Cupertino requires subdivisions to underground lines along peripheral streets on both sides, with an in-lieu fee available (Cupertino MC § 18.32.070), and requires new development areas to underground distribution facilities (Cupertino MC § 14.24.030); it has no remodel trigger located. Projects that trigger these rules elsewhere can add the cost of trenching and service conversion; in Palo Alto the same projects generally do not, except in wildfire-threat areas, subdivisions and non-single-family services. Salience is moderate because the cost falls mainly on remodels and small-lot redevelopment.

Palo Alto and Santa Clara own their electric utilities, so their utility rules are set by the city; the other seven cities are served by Pacific Gas and Electric (PG&E), whose Commission-approved tariff rules govern line extensions and service conversions. The PG&E tariff text was not opened for this entry.

Context. Los Altos adopted Chapter 12.38 in Ordinance 2025-542 (October 2025). Redwood City amended § 18.242 in December 2025 and July 2026. Redwood City's FY 2026-27 fee schedule lists the underground in-lieu fee, and states it applies also to new residential buildings of four or more units, minor subdivisions of four or fewer lots and overhead service lines of any new residential building, a scope broader than the commercial-building text of § 18.242(A).[91]

15.3 Who approves tentative maps, parcel maps and final maps

Mixed ●●○ Moderate *Council decides major maps, as in 4 of 8; minor maps staff-level*

Palo Alto rule	PAMC § 21.12.090; PAMC § 21.16.210; PAMC § 21.11.030; PAMC § 21.32.010
Applies to	Subdivisions of five or more lots; minor subdivisions (four or fewer lots); lot line adjustments
Rule source	Municipal code
Status	Amended since January 2025

Summary. In Palo Alto a tentative map for a major subdivision goes to a public hearing before the Planning Commission and then to the City Council for decision. A preliminary parcel map for a minor subdivision is decided by the Director of Planning after a public hearing, with authority to forward the map to Council under PAMC § 18.40.170. Final and parcel maps are approved by the City Engineer and Director, with final maps then going to Council. Other cities place the decision with the council, the planning commission or staff in different combinations.

> **PALO ALTO** PAMC § 21.12.090
> Within fifty days of the filing date of a tentative map, the planning commission shall hold a public hearing at either a regular or special meeting of the planning commission and thereafter shall recommend to the city council approval, conditional approval, or denial of the map, and any conditions upon which such approval should be granted.

For a preliminary parcel map the Director "shall approve, conditionally approve, or deny" the map after a public hearing, and may defer the application for Council decision under PAMC § 18.40.170 in the circumstances listed there (multiple entitlements, City-property agreements, overriding-considerations statements, or as the Director deems appropriate), after seeking a Commission or Architectural Review Board recommendation if the Director chooses (PAMC § 21.12.090(e)). Exceptions to Title 18 or Title 21 standards are granted only by Council after Commission recommendation (PAMC § 21.32.010). Parcel maps are approved by the Director of Planning after City Engineer certification, and final maps go to Council (PAMC § 21.16.210). Qualifying Senate Bill (SB) 684 subdivisions of ten or fewer parcels are processed

[91] City of Redwood City, *FY 2026-27 Master Fee Schedule* (effective July 1, 2026), section E.1 (Underground In-Lieu Fee, Resolution 14481); copy supplied in the project files, URL not located.

ministerially, and the final map may be approved by the City Engineer and Director (PAMC § 21.11.030, adopted 2025).

Comparison.

Jurisdiction	Tentative map (5+ lots)	Tentative parcel map (4 or fewer)	Citation
Palo Alto	Planning Commission recommends; Council decides	Director of Planning, after public hearing	PAMC § 21.12.090
San José	Director	Director	San José MC § 19.12.130
Santa Clara	Planning Commission recommends; Council decides	Council decides	Santa Clara CC §§ 17.05.300(g)-(h), 17.05.400
Sunnyvale	Planning Commission	Planning Commission	Sunnyvale MC § 18.04.030(b)
Mountain View	Subdivision committee recommends; Council decides; Director for qualifying housing	Subdivision committee, appealable to Council; Director for qualifying housing	Mountain View CC §§ 28.3.25, 28.5.20, 28.20.05
Los Altos	Commission recommends; Council decides; Zoning Administrator for housing projects of 5 or fewer units	Not separately stated; 13.12.050(C) addresses only the final-map waiver for divisions of fewer than five lots	Los Altos MC §§ 13.12.050, 13.04.030
Cupertino	Planning Commission recommends; Commission recommends; every recommendation goes to Council, which may review and deny	Director of Community Development, within 50 days; appeal to Planning Commission	Cupertino MC §§ 18.16.040, 18.16.070, 18.20.030, 18.20.060
Menlo Park	Commission recommends; Council decides	Planning Commission, final unless appealed; City Engineer if project already permitted	Menlo Park MC §§ 15.20.050, 15.28.080, 15.28.085
Redwood City	City Engineer recommends; Planning Commission decides; Council hears appeals	City Engineer decides; Commission hears appeals	Redwood City MC § 30.8, Table 30-1

> **SAN JOSÉ** San José MC § 19.12.130
> the director shall report in writing on the map submitted to him, and the report shall approve, conditionally approve or disapprove the tentative map at the public hearing or action held thereon.

> **MENLO PARK** Menlo Park MC § 15.28.080
> Planning commission action on the tentative parcel map shall be final unless the planning commission decision is appealed to the City Council.

Difference and effect. Council is the final decision-maker on major tentative maps in Palo Alto, Santa Clara, Mountain View (outside the housing track), Los Altos and Menlo Park, so five cities add a council hearing. In Cupertino every Commission recommendation goes to Council, which "may review" the map and may deny it (Cupertino MC § 18.16.070); the code does not use the word "approve" for the Council step. San José, Sunnyvale and Redwood City decide at director or commission level. For minor subdivisions Palo Alto is among the faster tracks: Director-level, as in San José, Cupertino and Redwood City, rather than Council (Santa Clara) or Commission (Sunnyvale, Menlo Park). The effect is a split by project size, so the direction runs both ways. Many of the smallest splits use SB 9 or SB 684 ministerial tracks that each city administers at staff level, which reduces the salience of the council step.

Context. Mountain View's housing-development track in Article XV of Chapter 28 was added by Ordinance 11.2026 (June 2026), and Redwood City's Table 30-1 was amended by Ordinance 2562 (July 2026), per the history notes in the code text reviewed. Palo Alto's Ordinance 5651 (2025) amended § 21.12.090.

15.4 Required frontage improvements (curb, gutter, sidewalk, paving, street trees)

Unclear ●●○ Moderate *Only subdivisions trigger code requirements; four others add project triggers*

Palo Alto rule	PAMC § 21.28.010; PAMC § 21.28.070; PAMC § 21.28.110; PAMC § 21.24.010; PAMC § 12.08.010
Applies to	Subdivisions; new buildings and large additions on lots with street frontage
Rule source	Municipal code
Status	Current

Summary. Palo Alto's code requires curb, gutter, sidewalk and street improvements as a condition of subdivision, built to City Engineer standards, with Council or the Director able to find them unnecessary. The sections reviewed contain no general requirement that a new building or addition on an existing lot improve its street frontage. Santa Clara, Cupertino, Redwood City and Menlo Park write frontage requirements into the code for development projects. Whether Palo Alto imposes frontage work on single-lot projects through conditions of approval or Public Works policy was not established.

> **PALO ALTO** PAMC § 21.28.010
> The improvements set forth in this chapter shall be required of all subdivisions unless the city council or director of planning, in the case of a preliminary parcel map, finds that due to the particular circumstances of the subdivision said improvements are not necessary, are not desirable, or that alternatives are desired for the public health, safety and welfare.

Curbs, gutters and sidewalks are "installed to locations and grades approved by the city engineer" (PAMC §§ 21.28.070, 21.28.110), the subdivider pays the cost (§ 21.28.010), and rights-of-way and easements are dedicated on the map (§ 21.24.010). Chapter 12.08 requires a permit for work in the right-of-way but does not itself require improvements. Setback lines under Chapter 20.08 prohibit building between the street line and the setback line.

Comparison.

Jurisdiction	Frontage rule outside land division	Rule for subdivisions	Citation
Palo Alto	None located	Curb, gutter, sidewalk to City Engineer standards; waivable	PAMC §§ 21.28.010, 21.28.070, 21.28.110
San José	None located	Sidewalk may be omitted; parcels of fewer than 5 lots limited to reasonable improvements	San José MC §§ 19.32.080, 19.40.010
Santa Clara	Perimeter streets dedicated and improved to half width by developer	Frontage improved to ultimate section; deferral allowed	Santa Clara CC §§ 17.05.610(b), 17.05.620, 17.15.140
Sunnyvale	None located	Curbs, gutters, sidewalks, paving, street trees	Sunnyvale MC § 18.08.020
Mountain View	None located	Duty to improve; design standards	Mountain View CC §§ 28.8.05, 28.8.50
Los Altos	None located	Streets and thoroughfares standards	Los Altos MC § 13.20.010
Cupertino	Building permit or discretionary approval on land adjacent to an unimproved street: improvements the City Engineer deems necessary, or installation or deferred agreement	Frontage improved to ultimate adopted section; deferral for 4 or fewer parcels	Cupertino MC §§ 14.04.040, 14.04.020, 18.32.030, 18.32.080

Jurisdiction	Frontage rule outside land division	Rule for subdivisions	Citation
Menlo Park	New construction or additions of 10,000 sq ft or more in LS, O and R-MU districts; plan-line dedication outside single-family zones	Paved streets, curbs, sidewalks, street trees	Menlo Park MC §§ 16.44.110, 16.43.120, 16.45.110, 16.66.010, 15.16.150
Redwood City	New buildings and substantial remodels	Curb, gutter, sidewalk to standards	Redwood City MC §§ 18.238-18.241; § 30.42

> **SANTA CLARA** Santa Clara CC § 17.05.610
> The frontage of each lot shall be improved to its ultimate adopted geometric section, including street structural section, curbs, sidewalks, driveway approaches and transitions.

> **REDWOOD CITY** Redwood City MC § 18.238
> Upon the construction of a new building, any damaged curb, gutter, and sidewalk adjacent to the property shall be replaced or repaired in accordance with the Redwood City Engineering Standards.

> **MENLO PARK** Menlo Park MC § 16.44.110
> For new construction and/or building additions of ten thousand (10,000) or more square feet of gross floor area or for tenant improvements on a site where the cumulative construction value exceeds five hundred thousand dollars ($500,000) over a five (5) year period, the public works director shall require the project to provide street improvements on public street edges of the property that comply with adopted city of Menlo Park street construction requirements for the adjacent street type.

Difference and effect. Redwood City extends curb, gutter and sidewalk across the frontage of a new building when the adjacent frontage is already improved, repaves to match, and plants street trees about every 30 feet on listed streets (Redwood City MC §§ 18.238, 18.239, 18.241). Redwood City applies the same duties to residential remodels over 1,000 square feet. Cupertino applies a project trigger only where the street is unimproved, covering building permits, planned development permits, use permits and architectural and site approvals, and allows installation agreements, deferred agreements and in-lieu payments (Cupertino MC §§ 14.04.040, 14.04.060). Menlo Park applies a 10,000-square-foot threshold to new construction and additions in its life sciences, office and residential mixed-use districts (Menlo Park MC §§ 16.44.110, 16.43.120, 16.45.110). These rules add cost to projects on lots that are not being subdivided. Palo Alto's code puts the obligation at the subdivision stage, so a single-lot project would face frontage work only if imposed as a permit condition, which this review did not confirm; the direction of the difference is therefore uncertain. Salience is moderate because frontage work can be a large share of cost on small infill projects.

Context. Redwood City amended its Article XIV definitions in July 2026 (Ordinance 2562). For lot splits under SB 9, state law limits off-site requirements; see entry 2.3.

16 Development impact fees

16.1 Illustrative impact fee totals for an apartment building and a single-family rebuild

Unclear ●●● High *Mid-range for apartments; lowest for a replacement house*

Palo Alto rule	PAMC § 16.58; PAMC § 16.59; PAMC § 21.50
Applies to	Multifamily rental housing; single-family teardown and rebuild
Rule source	Not in code (see summary)
Status	Current

Summary. For a 100-unit rental building of 90,000 square feet (900 square feet per unit), city park, facility and transportation impact fees come to about $5.1 to $5.4 million in Palo Alto, or $51,500 to $53,500 per unit. Of the other eight cities, Sunnyvale ($5.6 million), Cupertino ($5.8 to $6.4 million) and Mountain View ($7.1 to $7.9 million) are higher; Los Altos, Redwood City and Santa Clara are $0.5 to $1.9 million lower; San José and Menlo Park are lower still, and Menlo Park charges no park fee without a subdivision map. A 2,500-square-foot house replacing an existing house pays $0 in Palo Alto. These figures are illustrative arithmetic on published rates, not estimates for any project.

Scope. Included: park or parkland in-lieu fees, other capital facility fees and transportation impact fees set by each city. Excluded: school fees, affordable housing in-lieu and linkage fees (see entry 5.1 and entry 5.2), public art, utility connection and capacity fees, construction and transfer taxes, permit and plan-check fees, and area-specific fees. The Palo Alto transportation fee is not a published rate per unit; it uses an assumed 0.4 to 0.6 net new PM peak hour trips per unit, which is not taken from a Palo Alto document.

Prototype 1: 100 rental apartments, 90,000 square feet, no subdivision map.

Jurisdiction	Park fee	Other facility fees (community center, library, public safety, general government)	Transportation fee	Total = park + other facility + transportation	Basis
Palo Alto	$4,002,300	$742,400	$404,000 to $606,000 (assumed)	$5.15M to $5.35M	FY 2027 schedule
San José	$0.80M to $2.26M	None located	None located	$0.80M to $2.26M	2018 Exhibit A, multifamily 5+: $8,000 (Alviso) to $22,600 (Downtown, North San José); $22,600 applies where most new apartments are sited
Santa Clara	$3.43M to $3.71M	None located	$66,509	$3.50M to $3.77M	FY 2027 adopted; Mitigation Fee Act rate by ZIP code
Sunnyvale	$5,292,540	None located	$315,800	$5.61M	FY 2026-27; south of Route 237, before state-law reductions

Jurisdiction	Park fee	Other facility fees (community center, library, public safety, general government)	Transportation fee	Total = park + other facility + transportation	Basis
Mountain View	$6.80M to $7.58M	None located	$351,378	$7.15M to $7.93M	FY 2026-27 schedule; 26+ units/acre land value range
Los Altos	$3,973,500	$73,800	$566,100	$4.61M	Los Altos adopted Development Impact Fee Schedule
Cupertino	$5.40M to $6.00M	None located	$421,500	$5.82M to $6.42M	Schedule B - Engineering, Resolution 25-058, fees effective Sept. 1, 2025 (park rates unchanged in FY 2026-27 Resolution 26-047; transportation fee not listed there); park in-lieu by density, 20+ units/acre $54,000, 10 to 20 $60,000
Menlo Park	$0 (no map); $7.84M with a map	None	$654,893	$0.65M; $8.49M with a map	FY 2026 master fee schedule; storm drain connection fee ($150 per unit) excluded as a utility fee
Redwood City	$4,173,073	None located	$128,700 to $207,900	$4.30M to $4.38M	Park fee from city web page, not confirmed in schedule

Arithmetic, Palo Alto: park $44.47 × 90,000 = $4,002,300; community center $3.43 × 90,000 = $308,700; library $2.04 × 90,000 = $183,600; public safety $1,107 × 100 = $110,700; general government $1,394 × 100 = $139,400; other facility fees subtotal $742,400 ($308,700 + $183,600 + $110,700 + $139,400); park plus other facility fees $4,744,700; transportation $10,099 × 100 units × 0.4 to 0.6 trips = $403,960 to $605,940. If a map were required (condominiums), Palo Alto's in-lieu fee would be $56,402 × 100 = $5,640,200 in place of the $4,002,300 park fee. Sunnyvale: 0.009 acre × 43,560 sq ft × $135 = $52,925.40 per unit. Mountain View: 0.0060 acre × 43,560 sq ft × $260 to $290 = $67,954 to $75,794 per unit. Cupertino: park in-lieu $54,000 (20+ units per acre) to $60,000 (10 to 20 units per acre) × 100 units = $5,400,000 to $6,000,000; transportation, multi-family $4,215 × 100 units = $421,500; total $5,821,500 to $6,421,500. The site density is not specified, so both bands are shown; Cupertino MC § 13.08.060 sets the in-lieu fee and the city may instead require land dedication (§ 13.08.030).

Prototype 2: 2,500-square-foot single-family house replacing an existing house.

Jurisdiction	Fee	Basis
Palo Alto	$0	Replacement of a unit is not "new development"
Cupertino	Not determined; $111,797 if no credit	Park in-lieu $105,000 (0 to 5 units per acre) plus transportation $6,797 per single-family unit; Cupertino MC § 13.08.090 credits existing units for which park fees were previously collected; no transportation credit located
Menlo Park	$0	Credit for demolished unit; recreation fee only with a map
Redwood City	Transportation $0; park fee not determined	Existing-use credit; schedule not located
Santa Clara	Not determined; $52,295 to $56,333 if no demolition credit	Park $50,799 to $54,837 plus traffic $1,496 per unit
Sunnyvale	$5,095 transportation if no credit; no park fee	Per new dwelling unit
Mountain View	Transportation $0 (net new); park fee not determined	Net new units
Los Altos	Not determined; $34,725 if charged on all 2,500 sq ft	$13.89 per sq ft; schedule does not state a demolition credit
San José	Park fee for single-family detached $13,000 to $58,800 by MLS area before any demolition credit (not located); no transportation fee located	2018 Exhibit A

For reference, a new 2,500-square-foot house on a vacant lot in Palo Alto pays $55,751 in facility fees plus the transportation fee (see entry 16.5).

Difference and effect. On apartments, Palo Alto's total is within the middle of the range for cities with complete data (three of the eight other cities are higher). The ranking depends on the transportation assumption for Palo Alto and on the Mountain View land value chosen within its range. On a replacement house, Palo Alto and Menlo Park charge nothing, while Santa Clara and Sunnyvale may charge $5,000 to $55,000, and Cupertino may charge more if no park credit applies. The rating is high because these fees are among the largest city charges on housing, and the direction is unclear because the comparison depends on project type.

Context. Rates and sources are in the footnotes of entry 16.2, entry 16.6 and entry 16.3. Cupertino figures use the fee schedule effective September 1, 2025, the latest located. Mountain View, Redwood City and Los Altos figures carry the caveats stated in those entries.

16.2 Park fees on new multifamily housing

Unclear ●●● High *Mid-range; Sunnyvale, Mountain View and Cupertino higher*

Palo Alto rule	PAMC § 16.58.020; PAMC § 16.58.030; PAMC § 21.50.030; PAMC § 21.50.050; PAMC § 21.50.070
Applies to	Multifamily rental and ownership housing; mixed-use with housing
Rule source	Not in code (see summary)
Status	Current

Summary. Palo Alto charges a park development fee of $44.47 per square foot of multifamily floor area (FY 2027), which is about $40,000 for a 900-square-foot unit. The amount is set in the municipal fee schedule, not in the code. A separate parkland dedication in-lieu fee of $56,402 per multifamily unit replaces the park fee only where a subdivision or parcel map is required. Of the other eight cities, San José, Santa Clara, Los

Altos and Redwood City charge amounts of the same order, Sunnyvale, Cupertino and Mountain View charge more, and Menlo Park charges none on a rental building that needs no subdivision map. Because Palo Alto's fee scales with floor area, small units pay less than in cities that charge per unit.

Palo Alto. PAMC § 16.58.020(a) imposes the fee on every new residential unit, and § 16.58.030(i) exempts subdivisions that pay the in-lieu fee under Chapter 21.50.

> **PALO ALTO** PAMC § 16.58.020
> A fee, known as a "park development fee," to fund acquisition of land and improvements for neighborhood and district parks, in an amount as set forth in the municipal fee schedule.

The fee schedule for FY 2027 lists $18.75 per square foot for single-family and $44.47 per square foot for multifamily.[92] PAMC § 21.50.070(b) sets a base land value of $5.7 million per acre, adjusted annually under § 16.64.110, and the fee sheet shows the adjusted in-lieu amounts as $81,829 per single-family unit and $56,402 per multifamily unit.

Comparison. Park fee for one multifamily unit of 900 square feet, in dollars. "Map" means a subdivision or parcel map is required.

Jurisdiction	Park fee, multifamily	Citation
Palo Alto	$44.47/sq ft = $40,023; $56,402 per unit if map (in lieu)	PAMC §§ 16.58.020, 21.50.050
San José	$8,000 to $22,600 per unit for 5+ unit projects, by area ($22,600 Downtown and North San José; 2018 schedule, 2017 land values)	San José MC ch. 14.25
Santa Clara	$34,342 to $37,073 per unit (no map); $38,289 to $41,438 (map), by ZIP code	Santa Clara CC § 17.35
Sunnyvale	$52,925 per unit at over 14 units/acre ($135/sq ft land × 0.009 acre)	Sunnyvale MC § 19.74
Mountain View	$67,954 to $75,794 per unit at 26+ units/acre ($260 to $290/sq ft land × 0.006 acre)	Mountain View CC ch. 41
Los Altos	$44.15/sq ft = $39,735 (adopted impact fee schedule)	Los Altos MC ch. 13.24
Cupertino	$54,000 to $105,000 per unit by density (0 to 5 units/acre $105,000; 5 to 10 $60,000; 10 to 20 $60,000; 20+ $54,000); the city may instead require land dedication	Cupertino MC § 13.08.060, § 13.08.030
Menlo Park	None without a map; $78,400 per unit with a map	Menlo Park MC § 15.16.020
Redwood City	$41,731 per unit (city web page; not confirmed in the schedule)	Redwood City MC § 18.259

> **SUNNYVALE** Sunnyvale MC § 19.74.020
> As a condition of approval of any multifamily, residential housing project, other than a subdivision as defined in Chapter 18.10 of this code, the owner and/or developer shall dedicate land, pay a fee, or both, at the option of the city, for park or recreational purposes according to the following standards:

> **MENLO PARK** Menlo Park MC § 15.16.020
> The dedication of land or the payment of fees, or a combination of both, shall be required for park and recreational purposes as a condition to the approval of a tentative subdivision or parcel map required for, enabling, or resulting in residential development on one or more parcels of the subdivision.

Difference and effect. For a 900-square-foot unit, Palo Alto's fee is within about $6,000 of Santa Clara,

[92] City of Palo Alto, *Development Impact and In-Lieu Fees* information sheet (as of August 17, 2026) and *Fiscal Year 2027 Adopted Municipal Fee Schedule*, pp. 77-79, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2027-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12.

Los Altos and Redwood City, above every San José area rate for 5+ unit projects, and $13,000 to $36,000 below Sunnyvale, Cupertino (at 10 or more units per acre) and Mountain View. Cities differ in structure: Palo Alto and Los Altos charge by floor area, so a 600-square-foot unit pays two-thirds of the fee on a 900-square-foot unit; the others, including Cupertino, charge by unit or by density-based land formula. Menlo Park charges nothing on a rental building that needs no map, which Palo Alto does not match. The park fee is the largest city impact fee on multifamily housing in Palo Alto, about 84 percent of the facility fees in entry 16.1. The rating is high for that reason, and the direction is unclear because Palo Alto is neither highest nor lowest.

Context. Cupertino's rates are a per-unit table by density, and its code says Public Works updates land values annually.[93] Mountain View sets its land value ranges by resolution, and the FY 2026-27 schedule carries the ranges adopted June 10, 2025.[94] Santa Clara adopted new FY 2026-27 values on April 21, 2026.[95] San José's amounts come from its 2018 schedule by MLS area, which the city's developer page still lists; the proposed FY 2026-27 fees report has no park fees.[96] Los Altos's impact fee schedule is undated.[97] Redwood City's figure indexes its 2022 rate of $40,710.[98]

[93] City of Cupertino, *Schedule B - Engineering*, Resolution 25-058, fees effective September 1, 2025, https://cupertino.gov/files/assets/city/v/3/departments/documents/finance/forms-amp-fees/fy2025-26-fee-schedule-b-engineering-fees-final.pdf (opened 2026-10-13; an FY 2026-27 schedule was not located). Park Land Dedication In-Lieu Fee by density, per dwelling unit: 0 to 5 units/acre $105,000; 5 to 10 $60,000; 10 to 20 $60,000; 20+ $54,000; senior housing $30,000. The FY 2026-27 Schedule B (Resolution 26-047, effective July 1, 2026) lists the same park in-lieu rates.

[94] City of Mountain View, *Fiscal Year 2026-27 Master Fee Schedule*, Attachment H (Park Land Dedication In-Lieu Fee, land values by density category). Copy obtained from the city website, October 2026. Density factor 0.0060 acre per unit from Mountain View CC § 41.6.

[95] City of Santa Clara, *FY 2027 Adopted Municipal Fee Schedule* and Agenda Report 26-260 (April 21, 2026). Copy obtained from the city website, October 2026; report at https://santaclara.legistar.com (file 26-260). Opened 2026-10-12.

[96] City of San José PRNS, *Resources for Developers* (web page, copy saved October 2026), https://www.sanjoseca.gov/your-government/departments-offices/parks-recreation-neighborhood-services/in-the-works/developers-page; City of San José, *Schedule of Parkland In-Lieu Fees, Exhibit A* (effective August 7, 2018). The schedule is by Multiple Listing Service (MLS) area; multifamily 5+ units runs from $8,000 (Alviso) and $9,200 (Alum Rock, South San José) to $22,600 (Downtown) and, as originally adopted, $41,600 (North San José). The page states the council reduced North San José (zone 7B) multifamily 5+ fees in December 2024, and the page's example uses $22,600 for Downtown; the reduced 7B amount is taken to be $22,600 (the Downtown rate, as the November 2024 council memo proposed). Land values date from 2017. Low-income units pay 50 percent. The page says a study to update the program is under way. San José's proposed FY 2026-27 fees report (copy obtained from the city website, October 2026) does not list park fees.

[97] City of Los Altos, *Fiscal Year 26 to 27 Fee Schedule*, copy obtained from the city website, October 2026. Impact fee rates: City of Los Altos, *Development Impact Fee Schedule* (adopted; undated copy obtained from the city website, October 2026).

[98] Strategic Economics, memorandum to the City/County Association of Governments of San Mateo County (January 2, 2024), Table 7, https://ccag.ca.gov/wp-content/uploads/2024/10/Appendix-F-Strategic-Economics-Landscape-Review-of-Impact-Fees.pdf, opened 2026-10-12. The $41,731 figure is from a search-engine excerpt of the city's Park Impact Fees web page, which could not be opened; City of Redwood City, *FY 2026-27 Master Fee Schedule* (effective July 1, 2026; copy obtained from the city website, October 2026) does not list the parks fee.

16.3 Community center, library, public safety and general government impact fees

More restrictive ●●○ Moderate *Only city with four separate facility fees; Los Altos has two*

Palo Alto rule	PAMC § 16.58.020; PAMC § 16.58.080; PAMC § 16.58.090
Applies to	All new residential and nonresidential development
Rule source	Not in code (see summary)
Status	Current

Summary. Palo Alto charges four capital facility fees in addition to its park fee: community center, library, public safety and general government. For multifamily housing they total $7,424 per 900-square-foot unit (FY 2027). In the schedules reviewed, no other city except Los Altos charges a comparable fee for these facilities, and Los Altos's rates come to about $740 per unit. The fees are set in the municipal fee schedule, and PAMC § 16.58.090 indexes them annually.

Palo Alto. PAMC § 16.58.020 establishes community center and library fees, and § 16.58.080 adds the other two:

> **PALO ALTO** PAMC § 16.58.080
> a Public Safety Facility Development Fee, to fund police and fire facilities (including fire apparatus and vehicles) and (ii) a General Government Facility Development Fee, to fund facilities associated with municipal administration.

FY 2027 multifamily rates are $3.43 per square foot (community center), $2.04 (library), $1,107 per unit (public safety) and $1,394 per unit (general government).[99] For a 900-square-foot unit: $3,087 + $1,836 + $1,107 + $1,394 = $7,424. Single-family rates are $1.44 and $0.86 per square foot and $1,383 and $1,743 per unit. Commercial uses pay $1,532 (community center), $913 (library), $764 (public safety) and $972 (general government) per 1,000 square feet, which with the park fee total $24,009 per 1,000 square feet.

Comparison. Fees other than park, transportation, housing and utility fees, for multifamily housing.

Jurisdiction	Non-park facility impact fees	Citation
Palo Alto	Community center, library, public safety, general government: $7,424 per 900 sq ft unit	PAMC §§ 16.58.020, 16.58.080
San José	None located	San José FY 2026-27 proposed fees report
Santa Clara	None located	Santa Clara FY 2027 fee schedule
Sunnyvale	None citywide; "sense of place" fees of $2,023 to $3,870 per unit in three plan areas	Sunnyvale FY 2026-27 fee schedule, item K
Mountain View	None located citywide	Mountain View FY 2026-27 Master Fee Schedule
Los Altos	Public safety $0.34 and general government $0.48 per sq ft ($738 per 900 sq ft unit)	Los Altos Development Impact Fee Schedule

[99] City of Palo Alto, *Fiscal Year 2027 Adopted Municipal Fee Schedule*, p. 78, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2027-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12. Other cities: FY 2026-27 fee schedules, copies obtained from the city websites, October 2026 (Santa Clara FY 2027 adopted; San José proposed, not adopted). City of Los Altos, *Development Impact Fee Schedule* (adopted; undated copy obtained from the city website, October 2026).

Jurisdiction	Non-park facility impact fees	Citation
Cupertino	None located in Schedule B	Cupertino Schedule B - Engineering, Resolution 25-058 (eff. Sept. 1, 2025)[100]
Menlo Park	None; storm drainage connection fee $150 per multifamily unit	Menlo Park Master Fee Schedule
Redwood City	None located	Redwood City FY 2026-27 Master Fee Schedule

Difference and effect. Palo Alto's non-park facility fees add about 19 percent to its park fee on a multifamily unit (7,424 of 40,023) and are fixed regardless of whether a project provides its own community space. The fee schedules reviewed do not show how the other cities fund these facilities. For a 100-unit building the Palo Alto charge is $742,400 beyond the park fee. The effect is restrictive for housing and for commercial projects, but the dollar amount is small next to the park fee, so the rating is moderate. "None located" means the fee schedule copy reviewed contains no such line; it does not rule out a fee in a separate resolution that the schedule omits.

Context. PAMC § 16.58.080(d) makes a new fee effective on the sixty-first day after the council amends the schedule, and PAMC § 16.58.090 adjusts the rates annually for inflation.

16.4 Impact fees on commercial, office and hotel development

More restrictive ●●○ Moderate *Highest facility fee on office located; most cities show none*

Palo Alto rule	PAMC § 16.58; PAMC § 16.59; PAMC § 16.45; PAMC § 16.46; PAMC § 16.60
Applies to	Office; R&D; retail; hotel; industrial
Rule source	Not in code (see summary)
Status	Current

Summary. Palo Alto charges $24,009 per 1,000 net new square feet of commercial space (FY 2027) in park, community center, library, public safety and general government fees, which is $24.01 per square foot, before the trip-based transportation fee. Among the comparison cities, no other schedule reviewed lists citywide park or similar facility fees on office or retail; Sunnyvale has area-specific non-residential "sense of place" fees (East Sunnyvale $1.40 per square foot). Cupertino's Schedule B lists none either. Their transportation fees on office range from $1.73 to $22.56 per square foot, and Palo Alto's housing impact fee on office ($80.63 per square foot) is a separate fee described in entry 5.2.

Palo Alto. PAMC § 16.58.020 applies the fees to "any new development, whether residential or nonresidential", and § 16.58.030(d) exempts retail, eating and personal service additions of 1,500 square feet or less. The FY 2027 schedule lists, per net new 1,000 square feet:[101]

[100] City of Cupertino, *Schedule B - Engineering*, Resolution 25-058, fees effective September 1, 2025, https://cupertino.gov/files/assets/city/v/3/departments/documents/finance/forms-amp-fees/fy2025-26-fee-schedule-b-engineering-fees-final.pdf (opened 2026-10-13). It lists a transportation impact fee and park land dedication in-lieu fee but no community center, library, public safety or general government fee; the building and planning schedules were not read. The FY 2026-27 Schedule B (Resolution 26-047, effective July 1, 2026) likewise lists no such facility fees.

[101] City of Palo Alto, *Fiscal Year 2027 Adopted Municipal Fee Schedule*, pp. 77-79, https://www.paloalto.gov/files/ass

Use	Park	Community center	Library	Public safety	General government	Total
Commercial (including office)	$19,828	$1,532	$913	$764	$972	$24,009
Hotel/motel	$3,375	$261	$155	$760	$972	$5,523
Institutional	$19,828	$1,532	$913	$1,026	$1,300	$24,599
Industrial	$19,828	$1,532	$913	$250	$323	$22,846

PALO ALTO PAMC § 16.58.010

"New development" shall mean, with respect to nonresidential development, any development that creates additional square footage.

Comparison. Fees per square foot of net new office space, excluding housing linkage fees.

Jurisdiction	Facility fees on office	Transportation fee on office	Citation
Palo Alto	$24.01 (commercial rate)	$10,099 per PM peak trip	PAMC §§ 16.58.020, 16.59.060
San José	None located	None located citywide	San José FY 2026-27 proposed fees report
Santa Clara	None located	$1.73	Santa Clara CC § 17.15.330
Sunnyvale	None located	$7.59 (south of Route 237)	Sunnyvale MC ch. 3.50
Mountain View	None located	$6.69	Mountain View CC § 43.5
Los Altos	$4.48 (public safety $1.62, general government $2.86)	$9.45	Los Altos Development Impact Fee Schedule
Cupertino	None located in Schedule B	$19.15	Cupertino Schedule B - Engineering, Resolution 25-058[102]
Menlo Park	None located	$22.56; plus $1.13 El Camino Real/Downtown Specific Plan preparation fee (Master Fee Schedule)	Menlo Park MC ch. 13.26
Redwood City	Parks fee on nonresidential: amount not located	$6.58	Redwood City MC arts. XV, XVI

ets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2027-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12. Other cities: FY 2026-27 fee schedules, copies obtained from the city websites, October 2026 (San José proposed, not adopted; Los Altos fee schedule did not list impact fees); Menlo Park Master Fee Schedule, https://menlopark.gov/files/sharedassets/public/v/1/administrative-services/documents/finance/master-fee-schedule/2026-approved-master-fee-schedule.pdf, opened 2026-10-12; City of Los Altos, *Development Impact Fee Schedule* (adopted; undated copy obtained from the city website, October 2026).

[102] City of Cupertino, *Schedule B - Engineering*, Resolution 25-058, fees effective September 1, 2025, https://cupertino.gov/files/assets/city/v/3/departments/documents/finance/forms-amp-fees/fy2025-26-fee-schedule-b-engineering-fees-final.pdf (opened 2026-10-13; an FY 2026-27 schedule was not located). Transportation Impact Fee, office $19.15 per square foot; retail $10.94; hotel $3,728 per room; no park or other facility fee on nonresidential development located. The FY 2026-27 Schedule B (Resolution 26-047, effective July 1, 2026) likewise lists no such facility fees.

> **REDWOOD CITY** Redwood City MC § 18.258
> The impact fee is hereby imposed as a condition of the issuance of any permit for any Development, unless expressly exempted by this Chapter.

Difference and effect. For 100,000 square feet of new office, Palo Alto's facility fees are $2.40 million before transportation, against a transportation fee of $0.17 million in Santa Clara, $0.67 million in Mountain View, $0.76 million in Sunnyvale, $0.95 million in Los Altos (plus $0.45 million facility fees), $1.92 million in Cupertino and $2.26 million in Menlo Park. Palo Alto's trip-based fee adds to its facility fees; the amount depends on the trip estimate and is not computed here. The difference is restrictive for commercial development, and Redwood City's parks fee on nonresidential uses may narrow it once located. The rating is moderate because exemptions apply to small retail additions and to tenant improvements that add no floor area, and because Redwood City's nonresidential amount is unknown.

Context. Palo Alto's Stanford Research Park and San Antonio-West Bayshore fees (PAMC chs. 16.45, 16.46) apply only in those areas and are not priced here. Sunnyvale and Menlo Park adopt area-specific fees in specific plans, such as Sunnyvale's Moffett Park transportation fee of $8,288 per 1,000 square feet of office.

16.5 Impact fees on a replacement single-family house and on lot splits

Mixed ●●○ Moderate *Replacement house exempt; lot-split fee third highest of seven located*

Palo Alto rule	PAMC § 16.58.010; PAMC § 16.59.020; PAMC § 21.50.030; PAMC § 21.50.050
Applies to	Single-family teardown and rebuild; new single-family houses; lot splits and small subdivisions
Rule source	Code and non-code rules
Status	Current

Summary. A house that replaces an existing house pays no park, community facility or citywide transportation impact fee in Palo Alto, because the code defines "new development" to exclude replacement of a residential unit. A new house on a vacant lot pays about $55,800 in facility fees at 2,500 square feet, plus a transportation fee. A lot split that needs a map pays a parkland in-lieu fee of $81,829 per single-family unit instead of the park fee. Other cities differ on whether a demolished unit earns a credit and on what a split lot pays.

Palo Alto. Chapter 16.58 and Chapter 16.59 both define the base for the fee as a net addition:

> **PALO ALTO** PAMC § 16.58.010
> "New development" shall not mean replacement of an existing residential unit.

For a new house on a vacant parcel, the FY 2027 schedule applies $18.75 per square foot (parks), $1.44 (community center) and $0.86 (library), plus $1,383 (public safety) and $1,743 (general government) per unit.[103] At 2,500 square feet that is $46,875 + $3,600 + $2,150 + $1,383 + $1,743 = $55,751. The citywide transportation impact fee ($10,099 per net new PM peak hour trip) is added; the fee schedule does not state

[103] City of Palo Alto, *Development Impact and In-Lieu Fees* information sheet (as of August 17, 2026), https://www.paloalto.gov/files/assets/public/v/2/development-services/planning-review/6.-planning-fees/fy25-impact-fee-information-sheet.pdf, and *Fiscal Year 2027 Adopted Municipal Fee Schedule*, pp. 77-79. Opened 2026-10-12. Santa Clara, Sunnyvale, Mountain View and Menlo Park amounts: FY 2026-27 fee schedules for each city (Santa Clara FY 2027 adopted; Sunnyvale and Mountain View copies obtained from the city websites, October 2026; Menlo Park Master Fee Schedule, https://menlopark.gov/files/sharedassets/public/v/1/administrative-services/documents/finance/master-fee-schedule/2026-approved-master-fee-schedule.pdf, opened 2026-10-12).

a trip rate per house. A residential subdivision, including a two-lot split, pays the in-lieu amount under PAMC § 21.50.030(b) instead of the park fee (PAMC § 16.58.030(i)).

Comparison. Treatment of a 2,500-square-foot house replacing a demolished house on the same lot.

Jurisdiction	Replacement house	Subdivision park fee, single-family	Citation
Palo Alto	$0 (replacement excluded)	$81,829 per unit	PAMC §§ 16.58.010, 16.59.020, 21.50.050
San José	Credit for a demolished house not located; park fee applies to "new residential units" (single-family detached $13,000 to $58,800 by area, 2018 schedule)	$13,000 to $58,800 (MLS area)	San José MC § 14.25.310
Santa Clara	Code has no replacement credit; park $50,799 to $54,837 and traffic $1,496 per unit unless credited	$56,635 to $61,294 per unit by ZIP code	Santa Clara CC §§ 17.35.020, 17.15.330
Sunnyvale	No park fee (no map); transportation $5,095 per new dwelling unit; credit for a demolished unit not stated	Land-value formula; capped at $60,000 for urban lot splits	Sunnyvale MC §§ 3.50.050, 18.10.060
Mountain View	Transportation fee on net new units: $0; park fee on "new" single-family dwelling, treatment of replacement not stated	Low-density formula, $56,454 to $74,096 per unit	Mountain View CC §§ 41.3, 41.6
Los Altos	Fees are per square foot ($12.12 park, $0.09 public safety, $0.13 general government, $1.55 transportation = $13.89, or $34,725 at 2,500 sq ft); the schedule does not say whether a demolished house is credited	In-lieu fee on subdivision map; amount not located	Los Altos MC § 13.24.010
Cupertino	Credit for existing units only where park fees were previously collected; otherwise $105,000 park (0 to 5 units/acre) plus $6,797 transportation; no transportation credit located	$54,000 to $105,000 per unit by density	Cupertino MC §§ 13.08.060, 13.08.090[104]
Menlo Park	$0 if the credit for the demolished unit covers the transportation fee (credit amount not stated)	$127,400 per unit	Menlo Park MC §§ 13.26.080, 15.16.020
Redwood City	Transportation fee: none; park fee credits existing house, bedroom additions currently exempt	Quimby fee under ch. 30; amount not located	Redwood City MC §§ 18.247, 18.259; Zoning Code ch. 30, art. XII

> **MENLO PARK** Menlo Park MC § 13.26.080
> For new construction, a developer shall receive credit toward the fee based on the gross floor area of existing buildings and/or the number of residential units which are being demolished and the predominant historical

[104] City of Cupertino, *Schedule B - Engineering*, Resolution 25-058, fees effective September 1, 2025, https://cupertino.gov/files/assets/city/v/3/departments/documents/finance/forms-amp-fees/fy2025-26-fee-schedule-b-engineering-fees-final.pdf (opened 2026-10-13; an FY 2026-27 schedule was not located). Park Land Dedication In-Lieu Fee per dwelling unit: 0 to 5 units/acre $105,000; 5 to 10 $60,000; 10 to 20 $60,000; 20+ $54,000; transportation single-family $6,797. Code credit: Cupertino MC § 13.08.090. The FY 2026-27 Schedule B (Resolution 26-047, effective July 1, 2026) lists the same park in-lieu rates.

> use as determined by the public works director or designee.

> **REDWOOD CITY** Redwood City MC § 18.247
> A development that involves the alteration, expansion or replacement of an existing single dwelling unit shall not be subject to the impact fee unless it results in construction of an additional dwelling unit(s) for rent or sale, including an accessory dwelling unit.

Difference and effect. Palo Alto, Menlo Park and Redwood City exempt or credit a replacement house in their code. Santa Clara's park chapter applies to a person who "constructs ... a dwelling unit" and states no credit, so a replacement house may carry a park fee of about $51,000 to $55,000 there; the fee schedule does not say whether a demolished unit is credited. Sunnyvale charges its per-unit transportation fee on each new dwelling unit. Cupertino's code credits existing dwelling units only where park fees were previously collected (§ 13.08.090), so a replacement house may carry a park fee of up to $105,000 there. For lot splits, Menlo Park's $127,400 is the highest per-unit figure located, Cupertino's $105,000 at 0 to 5 units per acre is second and Palo Alto's $81,829 is third; Cupertino's rate falls to $60,000 between 5 and 20 units per acre and to $54,000 above 20. Mountain View and Los Altos amounts are in entry 16.2 and the notes. The effect runs in both directions: teardown-rebuilds are cheaper in Palo Alto than in Santa Clara or possibly Cupertino, while subdivisions cost more than in Santa Clara and, above 5 units per acre, possibly Cupertino.

Context. Palo Alto also exempts accessory dwelling units under 750 square feet from the facility fees (PAMC § 16.58.030(g)); Santa Clara exempts accessory dwelling units from its park chapter (Santa Clara CC § 17.35.090(e)).

16.6 Transportation impact fees on housing and commercial development

Unclear ●●○ Moderate *Only trip-based housing fee of the nine; mid-range per unit*

Palo Alto rule	PAMC § 16.59; PAMC § 16.60; PAMC § 16.45; PAMC § 16.46
Applies to	New housing; office, R&D and retail; projects in the Charleston-Arastradero corridor
Rule source	Code and non-code rules
Status	Current

Summary. Palo Alto charges a citywide transportation impact fee of $10,099 per net new PM peak hour vehicle trip (FY 2027), so the amount for a project depends on a trip estimate, not on units or floor area. The per-unit figures in this entry assume 0.4 to 0.6 net new PM peak hour trips per apartment; that assumption is not taken from a Palo Alto document, and a different trip count changes the comparison. The other eight cities use fixed rates per dwelling unit or per square foot for housing (Mountain View uses a per-trip rate only for low trip-generating uses), and San José has no citywide fee. For housing, the other cities' rates run from $665 (Santa Clara) to $6,549 (Menlo Park) per multifamily unit. At the assumed trip rate, Palo Alto's fee is $4,040 to $6,059 per unit.

Palo Alto. PAMC § 16.59.060 sets the formula.

> **PALO ALTO** PAMC § 16.59.060
> The fee imposed upon a new development shall be calculated by multiplying (i) the number of net new PM peak hour vehicle trips projected to be generated by a new development by (ii) the current fee rate.

Trips are estimated under Valley Transportation Authority guidelines and may be reduced under an enforceable transportation demand management plan (PAMC § 16.59.060(c), (h)). New retail pays 50 percent

of the rate (§ 16.59.060(i)). A replacement house pays nothing because "new development" excludes replacement of a unit (§ 16.59.020(h)). Accessory dwelling units and below-market-rate units above the required number are exempt (§ 16.59.040). A second fee applies in the Charleston-Arastradero corridor ($1,743 per residential unit or $0.51 per square foot of commercial space; PAMC ch. 16.60), and Chapters 16.45 and 16.46 impose separate fees on nonresidential development in the Stanford Research Park and the San Antonio-West Bayshore area.[105]

Comparison. FY 2026-27 rates unless noted. Multifamily rate shown per unit; office per square foot.

Jurisdiction	Multifamily	Office	Citation
Palo Alto	$10,099 per PM peak trip (about $4,040 to $6,059 per unit, assumed)	Trip-based	PAMC § 16.59.060
San José	No citywide fee located (area fees only)	None located	San José MC chs. 14.29, 14.30
Santa Clara	$665 per unit	$1.73	Santa Clara CC § 17.15.330
Sunnyvale	$3,158 per unit (south of Route 237)	$7.59	Sunnyvale MC ch. 3.50
Mountain View	$3,514 per unit	$6.69	Mountain View CC § 43.5
Los Altos	$6.29 per sq ft ($5,661 per 900 sq ft)	$9.45	Los Altos Development Impact Fee Schedule
Cupertino	$4,215 per unit (single-family $6,797)	$19.15	Cupertino Schedule B - Engineering, Resolution 25-058[106]
Menlo Park	$6,549 per unit	$22.56	Menlo Park MC ch. 13.26
Redwood City	$2.31 per livable sq ft ($2,079 per 900 sq ft); $1.43 within 1/2 mile of Caltrain	$6.58; $4.94 within 1/2 mile	Redwood City MC art. XV

> **MENLO PARK** Menlo Park MC § 13.26.050
> The fee shall be applicable to new development in all land use categories identified in the city's zoning ordinance, any construction adding additional floor area to a lot with an existing building, new single-family and multifamily dwelling units, and changes of use from one (1) land use category to a different land use category.

> **SUNNYVALE** Sunnyvale MC § 3.50.050
> Fees shall be charged for each new dwelling unit. No fee is applicable for remodeling or for an addition to an existing unit not resulting in a new unit.

Difference and effect. Palo Alto is the only one of the nine cities whose housing fee is computed from a trip estimate, which lets a project with a binding transportation demand management plan lower its

[105] City of Palo Alto, *Fiscal Year 2027 Adopted Municipal Fee Schedule*, p. 79, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2027-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12.

[106] City of Cupertino, *Schedule B - Engineering*, Resolution 25-058, fees effective September 1, 2025, https://cupertino.gov/files/assets/city/v/3/departments/documents/finance/forms-amp-fees/fy2025-26-fee-schedule-b-engineering-fees-final.pdf (opened 2026-10-13; an FY 2026-27 schedule was not located). Transportation Impact Fee per unit: single-family $6,797, multi-family (apartments, condominiums, townhomes) $4,215; retail $10.94 and office $19.15 per square foot; hotel $3,728 per room; other uses $6,862 per PM trip. A June 26, 2025 council memo states the fee was left unchanged for FY 2025-26 pending review. Cupertino's FY 2026-27 fee schedules (Resolution 26-047) do not list the transportation impact fee, so the September 2025 rate is shown.

bill and makes the amount uncertain until the trip estimate is accepted. Under the trip assumption above, Palo Alto's multifamily fee is higher than Santa Clara's, Sunnyvale's and Mountain View's, and similar to Cupertino's, Menlo Park's and Los Altos's. The rating is moderate: the fee is about 9 to 13 percent of Palo Alto's park and facility fees on a multifamily unit, but it is the one fee that grows with trip generation for retail, office and large single-family projects. Sunnyvale's schedule applies a 9 percent reduction near rail stations to qualifying housing under state law (AB 2553, 2024).[107]

Context. Redwood City adopted a new transportation fee and nexus study in January 2024 and lowered the rates inside the Caltrain half-mile area temporarily until April 1, 2027.[108] Santa Clara's code applies its fee to areas designated by council resolution (Santa Clara CC § 17.15.330); its FY 2027 fee schedule states the current fee is applicable citywide.

[107] City of Sunnyvale, *Fiscal Year 2026-27 Master Fee Schedule*, section G; City of Mountain View, *Fiscal Year 2026-27 Master Fee Schedule*, Public Works, Citywide Transportation Impact; City of Santa Clara, *FY 2027 Adopted Municipal Fee Schedule*, Public Works; City of Redwood City, *FY 2026-27 Master Fee Schedule* (effective July 1, 2026), section J. All copies obtained from the city websites, October 2026. Menlo Park: *Transportation Impact Fee, 2026 Rate Schedule*, https://menlopark.gov/Government/Departments/Public-Works/Transportation-Division/Development-guidelines, opened 2026-10-12. City of Los Altos, *Development Impact Fee Schedule* (adopted; undated copy obtained from the city website, October 2026); the FY 2026-27 general fee schedule does not list impact fees.

[108] City of Redwood City, Ordinance 2532 (January 22, 2024), and *FY 2026-27 Master Fee Schedule*, section J, footnotes (temporary discounts expire April 1, 2027). Copy obtained from the city website, October 2026.

17 Public art, permit fees and transfer tax

17.1 Planning application fees for design review of a multifamily project

More restrictive ●●○ Moderate *Highest published amount; only Santa Clara's flat fee ($36,720) is comparable*

Palo Alto rule	PAMC § Not applicable (municipal fee schedule)
Applies to	New multifamily and mixed-use projects requiring architectural or design review
Rule source	Not in code (see summary)
Status	Current

Summary. Palo Alto charges a $41,836 deposit for a major Architectural Review, plus other application fees, against cost recovery. Santa Clara charges a flat $36,720 for new non-single-family development. Los Altos charges $15,545, Cupertino charges a flat $28,991, Redwood City asks for a $20,000 deposit on a Planned Community Permit, Sunnyvale charges $5,199 at Planning Commission level, and Menlo Park asks for a $3,000 deposit. San José's site development permit for 50 units is about $27,500, and Mountain View bills hourly with no published amount. The schedules cover different processes, so the amounts are indicative.

Palo Alto. The FY 2027 schedule lists "Architectural Review - Major Project" at $41,836 per deposit, "Plus applicable Other Application fees." A minor project reviewed by the Architectural Review Board (ARB) is $13,184 and by staff $6,712. A "Streamlined Housing Development Review" is $28,500 per application, and the comprehensive plan maintenance fee of 0.14 percent of project value is collected at building permit.[109]

Comparison. Typical case: new 50-unit multifamily building, discretionary design review at the usual hearing body. Amounts exclude CEQA, noticing and other separate applications.

Jurisdiction	Fee and basis	Amount
Palo Alto	Architectural Review, major project, deposit; plus other application fees	$41,836 deposit
San José (proposed)	Site Development Permit: $24,719 for 25-99 units + $111 x 25 units (26-50) = $27,494; Citywide Planning Fee 11.97%	$30,785
Santa Clara	Architectural Review, New Development, non-single-family, flat; technology fee 3.37%	$36,720 + $1,237
Sunnyvale	Design Review (except single-family or duplex), Planning Commission; technology fee 5%; staff-level review is $541; by-right review $6,325	$5,199 + $260
Mountain View	Planned Community Permit for new multifamily: "Variable," billed at staff hourly rates ($217 to $249 per hour for Associate to Principal Planner)	Hourly, no estimate
Los Altos	Design Review, Commercial/Multi-Family, Planning Commission; administrative review is $7,477; technology fee 5%	$15,545 + $777
Cupertino	Architectural and Site Approval Permit, Major (all other development projects), flat; technology fee 5.8%; minor is $19,003	$28,991 + $1,681

[109] City of Palo Alto, *Fiscal Year 2027 Adopted Municipal Fee Schedule*, Planning and Development Services, pp. 79-82, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2027-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12.

Jurisdiction	Fee and basis	Amount
Menlo Park	Architectural Control, deposit; Conditional Development Permit or Planned Development Permit deposit is $10,000	$3,000 deposit
Redwood City	Planned Community Permit, deposit (minimum balance $5,000); Small Planned Community Permit deposit is $7,500	$20,000 deposit

Difference and effect. Palo Alto's deposit works out to about $840 per unit for 50 units. Only Santa Clara's flat fee is of the same order; Cupertino's flat $28,991 is about $580 per unit and San José's about $550. Deposits can end up higher or lower than the stated amount when staff time is billed to the project, and the Palo Alto deposit is in addition to environmental review and other application fees. Flat-fee cities (San José, Santa Clara, Sunnyvale, Los Altos, Cupertino) tell an applicant the cost at submittal; Palo Alto, Menlo Park, Redwood City and Mountain View bill against staff time. The $28,500 streamlined housing fee is the amount Palo Alto lists for its streamlined review track. The rating is moderate: the fee is a substantial pre-construction cost for every discretionary multifamily project, but small next to impact fees (see entry 16.1).

Context. San José's schedule is proposed, not adopted.[110] Menlo Park's deposits are from its schedule effective July 2026.[111] The Sunnyvale, Santa Clara, Mountain View, Los Altos and Redwood City amounts come from FY 2026-27 schedules obtained from each city's website in October 2026. Mountain View's staff hourly rates are those in the schedule from August 22, 2026. Cupertino's amounts are from Schedule C of Resolution 26-047, effective July 1, 2026.[112] Cupertino's schedule also lists a Major Conditional Use/Development Permit at $44,767, which a project needing a separate use or development permit could add, and a $1.73 per square foot Planning and Municipal Code fee at building permit for multifamily; neither is in the table. Whether a 50-unit project is 'Major' under Definition G was not checked against the full definitions.

17.2 Public art requirement for private development

More restrictive ●●○ Moderate *One of two uncapped 1% rules covering housing, with Cupertino*

Palo Alto rule	PAMC § 16.61.020; PAMC § 16.61.040; PAMC § 16.61.090
Applies to	Commercial and mixed-use projects of 10,000 square feet or more; residential projects of five or more units (Cupertino: any development of 10,000 square feet or more)
Rule source	Code and non-code rules
Status	Current

Summary. Palo Alto requires on-site public art, or an equal payment to its Public Art Fund, equal to 1 percent of construction valuation on commercial projects of 10,000 square feet or more and on every new

[110] City of San José, *2026-2027 Proposed Fees and Charges Report*, Exhibit F (Site Development Permit); copy obtained from the city website, October 2026. The report says the Site Development exhibit uses the Planned Development structure; which permit a given project needs was not determined.

[111] City of Menlo Park, *Master Fee Schedule* (effective July 2026), Community Development, Planning, https://www.menlopark.gov/files/sharedassets/public/v/2/administrative-services/documents/finance/master-fee-schedule/2026-approved-master-fee-schedule-effective-july-14.pdf. Opened 2026-10-12.

[112] City of Cupertino, *Schedule C, Planning*, Resolution 26-047, fees effective July 1, 2026, https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/building/forms-amp-handouts-amp-fees/fees/fee-schedule-planning-fees.pdf. Opened 2026-10-13.

residential project of five or more units. Cupertino applies a nearly identical 1 percent rule (0.9 percent above $100 million) to every development of 10,000 square feet or more, housing included, with no cap and a discouraged in-lieu payment of 1.25 percent. Los Altos also applies 1 percent to housing, but caps it at $200,000 and ties it to design review. Redwood City applies 1 percent to commercial projects of 50,000 square feet or more, and Sunnyvale applies a 2 percent art or 1.1 percent in-lieu requirement only to nonresidential projects at ten listed intersections or on lots of 2 acres or more. Santa Clara requires art along street frontage only in its downtown form-based code, and San José, Mountain View and Menlo Park have no private-development art requirement in the codes or fee schedules reviewed. Palo Alto and Cupertino are the only two cities whose rules reach multifamily projects citywide without a cap; Palo Alto's trigger is five units, Cupertino's is 10,000 square feet of floor area.

Palo Alto. PAMC § 16.61.020(a) sets the triggers, and § 16.61.040(a) sets the amount. Affordable housing developments (100 percent of units affordable to moderate, low or very low income households), historic renovations, religious buildings, municipal facilities, disaster repairs and seismic retrofits are exempt (§ 16.61.020(b)).

> **PALO ALTO** PAMC § 16.61.020
> This chapter shall apply to all new commercial developments (including mixed use projects), including new construction, remodels, additions and reconstruction that (i) have a floor area of 10,000 square feet or more, and (ii) have a construction value of $200,000 or more, exclusive of costs for architecture, design, engineering and required studies; and all new residential projects of five or more units.

> **PALO ALTO** PAMC § 16.61.040
> A developer may satisfy the requirements of this Chapter by constructing or installing on-site public art valued at 1% of the first $100 million construction valuation, adjusted as described in subsection (b) below, and .9% of construction valuation for valuation in excess of $100 million.

The ceiling is indexed to the Consumer Price Index; the FY 2027 fee schedule states it as $131.80 million.[113] A developer may instead pay the cost of the required art into the Public Art Fund before the building permit is issued (§ 16.61.090).

Comparison.

Jurisdiction	Requirement	Citation
Palo Alto	1% of valuation (0.9% above $131.8 million); commercial 10,000+ sq ft and $200,000+, all new housing of 5+ units; in-lieu payment allowed	PAMC §§ 16.61.020, 16.61.040, 16.61.090
San José	None for private development; Title 22 program covers city capital projects and redevelopment-assisted projects	San José MC § 22.08.020
Santa Clara	Downtown form-based code only: one piece of art every 50 feet of street frontage, no percentage of valuation	Santa Clara CC § 18.26 (Zoning Code § 13.6)
Sunnyvale	Nonresidential only: new main building of any size or addition of 10,000+ sq ft at 10 listed intersections; on lots of 2+ acres, new main building or addition of 30,000+ sq ft. Art worth 2% of valuation, or 1.1% in lieu	Sunnyvale MC §§ 19.52.020, 19.52.030
Mountain View	Not located in code or fee schedule	n/a
Cupertino	Any development of 10,000+ sq ft of new building or expansion: art worth 1% of valuation (0.9% above $100 million), no cap; in-lieu payment of 1.25% allowed but strongly discouraged	Cupertino MC §§ 19.148.020, 19.148.070, 19.148.090

[113] City of Palo Alto, *Fiscal Year 2027 Adopted Municipal Fee Schedule*, "Public Art In-Lieu Fee," https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2027-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12.

Jurisdiction	Requirement	Citation
Los Altos	1% of construction cost, capped at $200,000: 4+ unit projects in R3 districts, nonresidential over $1 million in office and commercial districts, subject to design review	Los Altos MC § 3.52.030
Menlo Park	None located	n/a
Redwood City	Commercial of 50,000+ sq ft, industrial, commercial part of mixed use: art worth 1% of valuation or 1% in lieu	Redwood City MC § 45.090

> **CUPERTINO** Cupertino MC § 19.148.020
> Any development of ten thousand sq. ft. or larger involving construction of new buildings and/or the expansion of existing buildings shall be subject to the requirements of this chapter.

> **SUNNYVALE** Sunnyvale MC § 19.52.030
> Projects shall provide publicly visible art on site that is equal in value to two percent of the project construction valuation.

> **LOS ALTOS** Los Altos MC § 3.52.030
> Private developments of four (4) or more units and subject to design review approval within the R3-4.5, R3-5, R-3-3, R3-1.8 and R3-1 districts shall contribute an amount of one percent (1%) of construction costs to the Los Altos Public Art Fund to be used pursuant to Section 3.52.020.

> **REDWOOD CITY** Redwood City MC § 45.090
> shall provide publicly visible art on-site that is equal in value to at least one (1) percent of the project's construction valuation.

Difference and effect. For a 50-unit apartment building with $20 million of construction valuation, Palo Alto's charge is $200,000. Los Altos's would also be $200,000 because of its cap, if the project is under design review; Cupertino would also charge $200,000; Sunnyvale, Redwood City, San José, Santa Clara, Mountain View and Menlo Park would charge nothing. For a 60,000-square-foot office building valued at $30 million, Palo Alto, Cupertino and Redwood City each charge $300,000, Los Altos $200,000 (cap), and Sunnyvale charges only if the lot is at a listed intersection or is 2 acres or more and the building or addition meets its size thresholds. Palo Alto's five-unit trigger is higher than Los Altos's four-unit trigger (R3 districts only, capped at $200,000), but Palo Alto's rule is uncapped and applies citywide. Cupertino's rule is also uncapped and citywide but keyed to size, so a five-unit project under 10,000 square feet pays in Palo Alto and not in Cupertino, while a larger single-family or commercial building pays in both. Cupertino's in-lieu payment (1.25 percent of valuation) is higher than its 1 percent on-site requirement, while Palo Alto's in-lieu payment equals the cost of the art the project would otherwise install (PAMC § 16.61.090). Because the charge is a share of valuation, it grows with project size and adds to cost on most multifamily and commercial projects. Los Altos's adopted impact fee schedule also lists a "Public Art Development Fee" of 1 percent of construction cost for all development, which the code chapter limits as shown above.[114] The rating is moderate because the cost is about 1 percent of construction on a common project type.

Context. Fee amounts for the percentage rules are set in the code. Palo Alto's FY 2027 schedule restates the requirement and the $131.80 million ceiling.

[114] City of Los Altos, Development Impact Fee Schedule (adopted; undated copy obtained from the city website, October 2026), "Public Art Development Fee, All Development, 1% of Construction Cost." The schedule does not state the $200,000 cap or the design review condition in Los Altos MC § 3.52.030; which governs was not determined. Sunnyvale's FY 2026-27 Master Fee Schedule item K7 lists the in-lieu fee as 1.1 percent of valuation of eligible nonresidential developments.

17.3 Construction taxes and building street impact fees

More permissive ●●○ Moderate *No construction tax, like Santa Clara and Redwood City*

Palo Alto rule	PAMC § Not applicable (no Palo Alto construction tax)
Applies to	New buildings and additions in San José, Sunnyvale, Los Altos, Cupertino, Mountain View and Menlo Park
Rule source	Code and non-code rules
Status	Current

Summary. Palo Alto has no construction excise tax. Its valuation-based charges are the 0.14 percent comprehensive plan maintenance fee shown in entry 17.5 and the public art requirement (entry 17.2). San José levies several stacked construction taxes, Sunnyvale levies 0.54 percent of construction value, Los Altos levies a per-square-foot tax, Cupertino levies a CPI-indexed per-square-foot or per-unit excise tax, Mountain View's code authorizes a tax with rates set by resolution, and Menlo Park charges a 0.58 percent building construction street impact fee. Santa Clara and Redwood City have no such tax in the code text reviewed.

Palo Alto. No construction tax chapter exists in the PAMC; a search of the code text found none. Palo Alto's valuation-based charges are the comprehensive plan maintenance fee and the public art requirement (entry 17.2).

Comparison. Typical case: new 2,500-square-foot house valued at $500,000.

Jurisdiction	Tax or fee	Amount on typical case	Citation
Palo Alto	No construction tax located; comprehensive plan maintenance fee 0.14% of project value (and public art, see entry 17.2)	$0 tax; $700 plan fee	n/a
San José	Building and Structure Construction Tax: 1.75% of 88% of valuation for residential (1.54%); plus Construction Tax $150 per one-family dwelling and Residential Construction Tax $180 per one-family dwelling; Commercial-Residential-Mobilehome Park Building Tax 2.75% of 88% (2.42%) for residential, stated to be in addition. Valuation is the building official's ICC-table valuation	1.54% alone is $7,700 if valuation is $500,000; applicability of the other taxes to houses not confirmed	San José MC §§ 4.46.050, 4.47.040, 4.54.050, 4.64.050
Santa Clara	None located	$0	n/a
Sunnyvale	Construction Tax: 0.54% of total value of work	$2,700	Sunnyvale MC § 3.36.050
Mountain View	Construction tax, rates "fixed by resolution"; rates not located	Not located	Mountain View CC § 29.56
Los Altos	Construction tax per square foot; code says $0.30, FY 2026-27 schedule says $0.42 single-family and $0.70 commercial or multifamily	$1,050 at schedule rate	Los Altos MC § 3.24.030

Jurisdiction	Tax or fee	Amount on typical case	Citation
Cupertino	Construction excise tax (ch. 3.32): 1983 base rates of $1.00 per sq ft of gross building area for industrial, office, commercial and quasi-public uses (50% for BQ uses), $240 per dwelling unit listed for mobilehomes and mobilehome lots, and $80 per hotel or motel room, all raised quarterly by the CPI (§ 3.32.045). No separate rate is listed for ordinary dwellings; replacement units, additions to a dwelling and below-market-rate units are exempt (§ 3.32.070). Current adjusted rates not located	Not located; house case unlikely to be taxed on the code's listed rates	Cupertino MC §§ 3.32.040, 3.32.045, 3.32.070
Menlo Park	Building Construction Street Impact Fee 0.58% of valuation, excluding residential alteration and repair permits	$2,900	Menlo Park master fee schedule
Redwood City	None located	$0	n/a

> **SUNNYVALE** Sunnyvale MC § 3.36.050
> A tax at the rate of fifty-four percent of one percent of the total value of all construction work for which a permit is required pursuant to Chapter 16.12 of this code is hereby imposed upon every person who constructs, or causes to be constructed, any building, structure or portion thereof, or interior improvements thereto, or any mobilehome lot, in the city of Sunnyvale.

> **SAN JOSÉ** San José MC § 4.47.030
> The tax imposed under this chapter is in addition to the taxes imposed under Chapters 4.46, 4.54, and 4.64 of this Code.

Difference and effect. On the typical house Palo Alto charges no construction tax and a $700 comprehensive plan fee, against $2,700 in Sunnyvale, $2,900 in Menlo Park and $1,050 in Los Altos. Cupertino's code lists no rate for a new ordinary house, and its adjusted rates were not located, so no figure is given. Its tax is on floor area or units rather than valuation, so a Cupertino apartment or commercial building would pay by square foot at a rate whose current level is unknown. For a 100,000-square-foot apartment building valued at $30 million, Sunnyvale's tax is $162,000 and Menlo Park's fee is $174,000; San José's rates are higher, though its amount depends on the ICC valuation table and on exemptions and suspensions in its chapters 4.46, 4.54 and 4.64, which were not worked through. The direction is permissive because Palo Alto charges less than the six cities with such a charge. The rating is moderate because the amounts are percentage-based and grow with project size.

Context. Cupertino's rates are posted by its Building Division after each quarterly adjustment; the city's notice template had no figures, and the FY 2026-27 schedules do not list them.[115] San José's construction taxes are in its code, and its 2026-2027 proposed fee report does not list them. Menlo Park's fee is on its schedule effective July 2026.[116] Los Altos's code rate of $0.30 per square foot (§ 3.24.030) states it may be

[115] City of Cupertino, *Construction Tax Notice* (template, revised 06/22/17), https://cupertinoca.prelive.opencities.com/files/assets/city/v/1/business-and-development/documents/construction-tax.pdf. Opened 2026-10-13.

[116] City of Menlo Park, *Master Fee Schedule* (effective July 2026), Community Development, Planning, "Building Construction Street Impact Fee," https://www.menlopark.gov/files/sharedassets/public/v/2/administrative-service

amended for inflation; the schedule rates are the later figures.[117]

17.4 Real property transfer tax rates and high-value tiers

Mixed ●○○ Low *Four times six peer cities' total; below San José, Mountain View at high values*

Palo Alto rule	PAMC § 2.34.020
Applies to	Sales of land and buildings, including acquisition of redevelopment sites
Rule source	Municipal code
Status	Current

Summary. Palo Alto taxes each sale at $1.65 per $500 of consideration (0.33 percent), with no higher tiers. Santa Clara, Sunnyvale, Los Altos, Cupertino, Menlo Park and Redwood City tax at $0.275 per $500 (0.055 percent), one-sixth of Palo Alto's rate. San José adds a tiered tax of 0.75 to 1.5 percent on sales of $2 million or more, and Mountain View raises its rate to 1.5 percent above $6 million. A county tax of $0.55 per $500 also applies, and a city whose rate is one-half of it gets a credit. On a $10 million sale the seller pays $44,000 in Palo Alto (city $33,000 plus county $11,000), $11,000 in the six lower-rate cities, $144,000 in San José and $161,000 in Mountain View.

Palo Alto. PAMC § 2.34.020(a) imposes the tax on each instrument conveying realty when consideration exceeds $100.

> **PALO ALTO** PAMC § 2.34.020
> a tax at the rate of $1.65 for each $500.00, or fractional part thereof, of the value of the consideration.

Santa Clara County's ordinance imposes a county tax of $0.55 per $500 (Santa Clara Co. OC § A30-33) and grants a credit equal to a city's tax only if the city's tax is "equal to one-half the amount" of the county tax (§ A30-40); San Mateo County's chapter 2.93 has the same credit rule (§ 2.93.060). Palo Alto's rate is three times the county rate, so no credit arises and the county tax is added. The six lower-rate cities (Cupertino's rate is in Cupertino MC § 3.04.020; its tax is administered by the county recorder under § 3.04.090) impose half of the county rate, so their city tax is credited against the county tax and the total equals the county tax alone. The statutes themselves (Rev. & Tax. Code §§ 11911 and 11931) could not be opened, so the rules above rest on the county ordinances. Neither ordinance mentions charter status. Whether the credit applies to San José's and Mountain View's higher rates was not confirmed; the totals below add the county tax without credit.

Comparison. Rows give the city tax and the total including the county tax, at $2 million, $5 million and $10 million of consideration.

Jurisdiction	City rate	City tax at $2M / $5M / $10M	Total with county tax	Citation
Palo Alto	$1.65 per $500 (0.33%), no tiers	$6,600 / $16,500 / $33,000	$8,800 / $22,000 / $44,000	PAMC § 2.34.020

s/documents/finance/master-fee-schedule/2026-approved-master-fee-schedule-effective-july-14.pdf. Opened 2026-10-12.

[117] City of Los Altos, *Fiscal Year 26 to 27 Fee Schedule*, "Construction Tax (Established per LAMC Chapter 3.24)"; copy obtained from the city website, October 2026.

Jurisdiction	City rate	City tax at $2M / $5M / $10M	Total with county tax	Citation
San José	$1.65 per $500 plus a general tax on the whole consideration of 0.75% ($2M to $5M), 1.0% (to $10M), 1.5% (over $10M)	$21,600 / $54,000 / $133,000	$23,800 / $59,500 / $144,000	San José MC §§ 4.58.100, 4.59.100
Santa Clara	$0.275 per $500 (0.055%)	$1,100 / $2,750 / $5,500	$2,200 / $5,500 / $11,000	Santa Clara CC § 3.35.020
Sunnyvale	$0.275 per $500	$1,100 / $2,750 / $5,500	$2,200 / $5,500 / $11,000	Sunnyvale MC § 3.08.020
Mountain View	$1.65 per $500 up to $6M; $15 per $1,000 (1.5%) above $6M	$6,600 / $16,500 / $150,000	$8,800 / $22,000 / $161,000	Mountain View CC § 29.63
Los Altos	$0.275 per $500	$1,100 / $2,750 / $5,500	$2,200 / $5,500 / $11,000	Los Altos MC § 3.28.020
Cupertino	$0.275 per $500 (0.055%)	$1,100 / $2,750 / $5,500	$2,200 / $5,500 / $11,000	Cupertino MC § 3.04.020
Menlo Park	$0.275 per $500	$1,100 / $2,750 / $5,500	$2,200 / $5,500 / $11,000	Menlo Park MC § 3.20.020
Redwood City	$0.275 per $500	$1,100 / $2,750 / $5,500	$2,200 / $5,500 / $11,000	Redwood City MC § 32.41

> **SAN JOSÉ** San José MC § 4.59.100
> Where the total value of the consideration is $5,000,000.01 to $10,000,000, the tax rate imposed on the total value of the consideration, including but not limited to the value of the consideration equal to or less than $5,000,000, shall be 1.0%;

> **MOUNTAIN VIEW** Mountain View CC § 29.63
> When the total value of the consideration exceeds six million dollars ($6,000,000), the tax rate imposed shall be fifteen dollars ($15) for each one thousand dollars ($1000) or fractional part thereof.

Difference and effect. Including the county tax, Palo Alto's total is four times that of the six cities at $0.275 per $500, and its city rate alone is six times theirs. Cupertino adds no tier and matches the six. The flat rate is higher than those cities and lower than San José and Mountain View on sales above their thresholds. San José's tiers apply to the whole price, so a sale at $2 million pays $15,000 in tiered tax plus $6,600, and the tax rises sharply at each threshold. San José's code adjusts the $2 million threshold by the Consumer Price Index starting July 1, 2025 and every five years after, rounded to the nearest $100,000 (§ 4.59.100(C)-(D)); the adjusted figure was not located, so $2 million may be superseded. The tax is paid on acquisition of a site or building, not on construction, and is small next to land price, so the rating is low.

Context. The history line for Mountain View CC § 29.63 cites Ordinance 12.2024 (November 5, 2024). County tax figures use $0.55 per $500; San Mateo County's rate was not read as a number.

17.5 Building permit and plan check fees for a single-family house

Unclear ●○○ Low *Mid-range; fifth highest of the nine*

Palo Alto rule	PAMC § Not applicable (municipal fee schedule)
Applies to	New single-family houses and large additions
Rule source	Not in code (see summary)
Status	Current

Summary. The building permit and plan check fees are set in each city's FY 2026-27 fee schedule, not in a code. For a 2,500-square-foot new house with a $500,000 valuation, Palo Alto's schedule produces about $16,300, including a plan check of 125 percent of the permit fee plus planning, public works and fire reviews. The same house costs roughly $6,900 in San José (proposed schedule, excluding inspection hours), $11,700 in Menlo Park, $12,900 in Santa Clara, $15,600 in Sunnyvale, $18,200 in Mountain View, $18,600 in Los Altos, $20,800 in Redwood City and $21,100 in Cupertino. Palo Alto is in the middle. The cities use different bases (floor area or valuation), so the figures depend on the assumed house.

Palo Alto. The single-family schedule is by floor area. A house of 2,001 to 2,500 square feet pays a $5,139 building inspection fee. Building plan check is 125 percent of that fee, planning and zoning plan check 35 percent, public works plan check 35 percent, and fire and life safety plan check 8 percent.[118] The schedule also lists a "Base Fee for Small or Medium Sq. Ft. / Valuation Permits" of $1,277 for houses of 3,000 square feet or less; it does not state whether that amount is added to the area fee, and it is left out of the totals below. A comprehensive plan maintenance fee of 0.14 percent of project value is collected at permit issuance.

Comparison. Typical case: new 2,500-square-foot house, $500,000 valuation, building permit plus plan check plus surcharges that the schedule ties to the permit. State fees (strong motion, green building), separate electrical, plumbing and mechanical permits, impact fees and construction taxes are excluded. See entry 17.3 for taxes and the Menlo Park street impact fee.

Jurisdiction	Basis and arithmetic	Total
Palo Alto	$5,139 (area table) + plan check 125% $6,424 + planning 35% $1,799 + public works 35% $1,799 + fire 8% $411 + comprehensive plan fee 0.14% $700	$16,271
San José (proposed)	Permit processing $1,266 + plan check $4,875 (1,001-3,000 sq ft) + Citywide Planning Fee 11.97% $735; residential inspection billed at $315 per hour, hours not stated	$6,876 plus inspection
Santa Clara	Permit $2,684 + 15 x $211.40 = $5,855; plan review $2,928 + 15 x $146.40 = $5,124; technology 3.37% $370; General Plan surcharge 12.39% $1,360; conformance fee $160	$12,869
Sunnyvale	Valuation table $2,445 + 400 x $13.50 = $7,845; plan check 70% $5,492; energy plan check 10% $785; technology 5% $706; General Plan maintenance 0.15% $750	$15,577
Mountain View	Table 1-A (from August 22, 2026) $3,304 + 400 x $18 = $10,504; technology 5% $525; plan check 65% of both $7,169	$18,198

[118] City of Palo Alto, *Fiscal Year 2027 Adopted Municipal Fee Schedule*, Planning and Development Services, pp. 65-70, https://www.paloalto.gov/files/assets/public/v/1/administrative-services/city-budgets/municipal-fee-schedules/fy-2027-adopted-municipal-fee-schedule.pdf. Opened 2026-10-12.

Jurisdiction	Basis and arithmetic	Total
Los Altos	Table $3,640.86 + 400 x $7.95 = $6,821; plan check 135% $9,208; energy plan check 25% $1,705; General Plan 7% $477; technology 5% $341	$18,553
Cupertino	Schedule D Table 1, R-3 custom homes at 2,500 sq ft: permit tech $266 + plan check $6,320 + inspection $8,032 = $14,618; technology fee 5.8% $848; Planning Division Review 20% of plan check $1,264; Planning and Municipal Code fee $1.73 per sq ft $4,325	$21,055
Menlo Park	Custom single-family size table, wood frame: $7,703.73 + 500 x $2.879 = $9,143; plan review $1,011; technology 9% $823; General Plan update 8% $731	$11,708
Redwood City	Single-family valuation table $4,753.81 + 400 x $29.91 = $16,717 (half paid at plan check); technology 13% $2,173; General Plan maintenance 0.39% $1,950	$20,840

Difference and effect. Palo Alto's total is higher than four of the eight comparison cities and lower than four. The spread from San José to Cupertino is about $14,200 on a $500,000 project, or under 3 percent of valuation. Palo Alto's separate planning and public works plan check percentages add about $3,600 that the other schedules fold into one plan check line. Because Palo Alto charges by floor area, a 2,500-square-foot house with a valuation far above $500,000 pays the same permit fee, while valuation-based cities (Sunnyvale, Mountain View, Los Altos, Redwood City) charge more as valuation rises. Los Altos's schedule sets a minimum valuation of $591.39 per square foot, so a 2,500-square-foot house there would be valued at about $1.48 million and pay a larger fee than shown. The direction is unclear and the rating low because the differences are small relative to project cost and move with the assumed house.

Context. San José's schedule is the 2026-2027 proposed Fees and Charges Report and is not adopted.[119] Menlo Park's schedule took effect in July 2026.[120] Santa Clara's plan review and permit rates are Resolutions 26-9552 and 26-9584. Cupertino's figures are from Schedules C and D of Resolution 26-047, effective July 1, 2026;[121] the schedule does not state the base for the 20 percent Planning Division Review, and I applied it to the plan check cost (applied to the whole $14,618 it would be $2,924 and the total $22,715). Cupertino's Housing Mitigation In-lieu Fee for a detached house ($23.01 per sq ft) is excluded as an impact-type fee. The Sunnyvale, Mountain View, Los Altos, Santa Clara and Redwood City figures come from the FY 2026-27 schedules obtained from each city's website in October 2026; Los Altos's schedule does not state the base for the 135 and 25 percent plan check lines, and I applied them to the permit fee.

[119] City of San José, *2026-2027 Proposed Fees and Charges Report*, Exhibits I and J and the Citywide Planning Fee description (proposed, not adopted); copy obtained from the city website, October 2026.

[120] City of Menlo Park, *Master Fee Schedule* (effective July 2026), Community Development, Building, https://www.menlopark.gov/files/sharedassets/public/v/2/administrative-services/documents/finance/master-fee-schedule/2026-approved-master-fee-schedule-effective-july-14.pdf. Opened 2026-10-12.

[121] City of Cupertino, *Schedule D, Table 1 Plan Check and Inspection Fees* and *Schedule C, Planning*, Resolution 26-047, fees effective July 1, 2026, https://www.cupertino.gov/files/assets/city/v/1/departments/documents/community-development/building/forms-amp-handouts-amp-fees/fees/fee-schedule-building-fees.pdf (building) and .../fee-schedule-planning-fees.pdf. Opened 2026-10-13.

18 Special uses and other zoning provisions

18.1 Contractor yards, work trailers and other temporary uses tied to construction

More restrictive ●○○ Low *Shortest general term; no express rule for construction staging*

Palo Alto rule	PAMC § 18.42.050
Applies to	Larger construction projects needing off-site staging, work trailers or sales offices; temporary uses generally
Rule source	Municipal code
Status	Current

Summary. Palo Alto's general temporary use provision is a Director-issued permit valid for no more than 45 days. The code does not mention construction yards, staging areas or work trailers. Mountain View, Santa Clara and Redwood City each name construction-related temporary uses and allow them for the life of a building permit or for 180 to 360 days at a time. Cupertino's temporary use permit (Director-issued, no stated term) is similar to Palo Alto's in form but states no day limit, and it separately permits construction trailers in its R-3 and R-4 districts for the duration of construction. A project in Palo Alto that needs an off-site staging lot or a work trailer has no express provision to rely on and a 45-day permit term.

> **PALO ALTO** PAMC § 18.42.050(d)
> A temporary use permit, if granted by the director, shall be valid for a specifically stated time period not to exceed forty-five days.

The permit is issued without a hearing or notice and may vary requirements of Title 18 "solely related to the requested temporary use" (§ 18.42.050(b)-(c)). The section contains no extension provision. A search of the code text for "trailer", "construction office" and "staging" in Title 18 found no other rule. On-site construction activity is presumably covered by the building permit, but the code does not say so, and Palo Alto street-occupancy rules in Title 12 were not reviewed.

Comparison.

Jurisdiction	Treatment of construction yards, staging and work trailers	Citation
Palo Alto	No express provision; temporary use permit limited to 45 days	PAMC § 18.42.050
San José	Temporary trailers allowed in commercial, mixed-use and industrial districts, for business continuity during alteration or for antenna trailers; no construction-yard provision located	San José MC §§ 20.80.1700, 20.80.1720
Santa Clara	On-site contractor uses exempt from permit; off-site staging by permit for 180 days, extendable in 180-day increments; work trailers up to 12 months	Santa Clara CC §§ 18.122.040, 18.122.050
Sunnyvale	No temporary construction-use rule; lists "construction yard" as a permanent use needing a miscellaneous plan permit in residential districts and the downtown plan	Sunnyvale MC §§ 19.18, 19.28
Mountain View	Off-site construction yards and work trailers (up to 360 days) by temporary use permit	Mountain View CC § 36.46.10
Los Altos	Temporary uses limited to listed offices, sales offices and seasonal sales; construction yards not listed	Los Altos MC § 14.66.270
Cupertino	Director conditional use permit for temporary uses with no stated term; temporary construction buildings including trailers permitted in R-3 and R-4 for the duration of construction; no contractor-yard provision located	Cupertino MC §§ 19.160.010-.030, 19.20 (use table, item 13)
Menlo Park	Not located in Title 16	Not located

Jurisdiction	Treatment of construction yards, staging and work trailers	Citation
Redwood City	Construction offices and storage sheds within one-quarter mile of a property with an active building permit, by Zoning Administrator permit	Redwood City Zoning Code § 31.19(B)(6)

> **SANTA CLARA** Santa Clara CC § 18.122.040
> On-site contractors' construction and/or storage uses, in conjunction with an approved construction project on the same parcel.

> **REDWOOD CITY** Redwood City Zoning Code § 31.19(B)
> Structures and uses such as construction offices and storage sheds associated with the construction of a building or group of buildings that are located within one-quarter (¼) mile of a property if such property has an active Building Permit; and

Difference and effect. Three comparison cities, and Cupertino for multifamily districts, tie temporary construction uses to the duration of the construction permit, either by exemption (Santa Clara, on site) or by a permit term of 180 to 360 days or the building permit. Title 18 separately allows temporary parking facilities for up to five years by conditional use permit in several districts, which does not cover construction uses. Palo Alto's 45-day term does not fit a multi-year project. The effect falls on the narrow set of larger or constrained-site projects that need staging off the construction site. The salience is low because the mid-size sites that dominate Palo Alto's pipeline usually stage on site, and because the code text does not show how Palo Alto handles this in practice, for example through Public Works permits.

Context. The comparison for Sunnyvale and Menlo Park rests on a text search of their zoning titles, which found no construction-yard provision. Sunnyvale Chapter 19.61 covers temporary unenclosed uses (events and sales) only.

18.2 Demolition permits held until a replacement project is approved

More restrictive ●○○ Low *Citywide rule; only San José and Sunnyvale (HH districts) have related rules*

Palo Alto rule	PAMC § 18.40.160
Applies to	Demolition of single-family homes, duplexes and any residential unit; projects needing discretionary review
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto will not issue a demolition or deconstruction permit for a single-family home or duplex in its low-density and single-family districts (and in the multiple-family districts when the replacement needs no discretionary review) until building permit plans for a replacement project are approved. It also will not issue demolition for any residential unit until a replacement project with at least as many units is approved, and holds any permit for a project that needs discretionary review until that review is approved. San José requires a development permit for most demolitions but exempts a single-family house when building permits for a replacement are issued. A text search found no citywide rule of this kind in Santa Clara, Mountain View, Los Altos, Cupertino, Menlo Park or Redwood City. Sunnyvale ties demolition to a replacement building permit only in its heritage housing (HH) combining districts.

> **PALO ALTO** PAMC § 18.40.160(a)(3)
> For demolition or deconstruction of a residential unit, unless a replacement project has been approved that contains at least as many residential dwelling units as will be demolished.

> **PALO ALTO** PAMC § 18.40.160(a)(2)
> For any project requiring discretionary review under Title 18 or Title 21, unless the application for discretionary review has been approved.

Section 18.40.160(b) allowed early demolition at hazardous-materials sites with an approved remediation plan, but by its terms it was effective "only through March 10, 2026, unless extended by the City Council or superseded by replacement ordinance." The code text shows no extension, so the exception appears to have lapsed on that date; subdivision (a) has no sunset.

Comparison.

Jurisdiction	Link between demolition and replacement	Citation
Palo Alto	Demolition permit withheld until replacement plans approved (single-family, duplex) or replacement units approved (any residential unit)	PAMC § 18.40.160(a)
San José	Development permit required for demolition; single-family house exempt when replacement building permits issued	San José MC §§ 20.80.440, 20.80.450
Santa Clara	Not located	Not located
Sunnyvale	Replacement building permit required before demolition only in HH heritage housing combining districts	Sunnyvale MC § 19.26.080(b)
Mountain View	Not located	Not located
Los Altos	Not located	Not located
Cupertino	Not located; demolition is a building-permit item with a waste-diversion plan (no replacement-project link located)	Cupertino MC §§ 16.04 (§ 105.1), 16.72.050
Menlo Park	Not located	Not located
Redwood City	No demolition-permit hold located; Article 41 approval criterion requires Housing Crisis Act unit-replacement compliance	Redwood City Zoning Code art. 41

> **SAN JOSÉ** San José MC § 20.80.440
> Except as specifically exempted by Section 20.80.450, no demolition permit or removal permit shall be issued unless and until a development permit which specifically approves such demolition or removal has been issued and has become effective pursuant to the provisions of Chapter 20.100 and the provisions of this part.

Difference and effect. Palo Alto's rule applies citywide and sequences approval before clearing the site. It prevents demolishing a house or apartment building before the replacement is approved, which affects phasing, financing and interim vacancy for redevelopment. It does not delay a project that is submitted together with its demolition, so the burden falls on owners who want to clear a site first. State law separately requires replacement of protected units in housing development projects (Gov. Code § 66300.6), which the code cites, so for those units the local rule overlaps state law. Salience is low because most redevelopment applies for demolition and rebuild together. "Not located" means a text search of each corpus found no such provision; it does not establish that none exists.

18.3 Review tiers and design caps for wireless communication facilities

Unclear ●○○ Low *Most procedural steps of the nine cities; height caps mid-range*

Palo Alto rule	PAMC § 18.42.110
Applies to	Wireless towers, building-mounted antennas and small wireless facilities on private property and in the public right-of-way
Rule source	Municipal code
Status	Amended since January 2025

Summary. Palo Alto sorts wireless facility applications into three tiers. Tier 1 is a ministerial approval for federally protected modifications. Tiers 2 and 3 go to the Director with appeal to the City Council, and need a community meeting for neighbors within 600 feet. Towers are capped at 65 feet and building-mounted antennas at 15 feet above the zone's height limit. Other cities use one or two permit levels (Cupertino requires 21-day posted and mailed notice within 300 feet for right-of-way facilities but no meeting), and several prohibit or restrict facilities on single-family lots. Federal law (the shot clock and eligible-facilities rules) limits what any of the nine cities can require, so the practical differences are mostly in notice, appeal and design caps.

> **PALO ALTO** PAMC § 18.42.110(g)(1)
> A Tier 2 WCF Permit shall be reviewed by the Director, who may, in his or her sole discretion, refer an application to the Architectural Review Board. For WCF installations in the public right of way, the Director shall refer applications to the Architectural Review Board for review. The Director's decision shall be appealable directly to the City Council.

Section 18.42.110(c) assigns the tiers. Tier 1 covers an "eligible facilities request." Tier 2 covers collocations that substantially change the support structure, any collocation of a small wireless facility, and other collocations. Tier 3 covers all other siting, including a tower; replacing a streetlight or wood utility pole in place does not by itself trigger Tier 3. Tier 3 also requires conditional use permit findings. Tier 1 decisions are final and not appealable (§ 18.42.110(f)(1)).

> **PALO ALTO** PAMC § 18.42.110(i)(8)
> Except as otherwise permitted by the Spectrum Act, a tower or other stand-alone Tier 3 WCF Project shall not exceed beyond sixty-five (65) feet in height; and

Comparison.

Jurisdiction	Review path and design limits	Citation
Palo Alto	Three tiers; Director decides, Council appeal; community meeting (600 ft) for Tiers 2-3; tower max 65 ft; building-mounted +15 ft; no attachment to Chapter 16.49 historic structures	PAMC § 18.42.110
San José	Residential parcels with a residential use need a conditional use permit; non-residential parcels in residential districts allowed with setbacks (35 ft or 1 ft per ft of pole); height exception to 60 ft for slimline monopole; building-mounted +10 to 15 ft	San José MC §§ 20.30.130, 20.30.140, 20.80.1900, 20.80.1910
Santa Clara	Conditional use permit for new facilities and towers over 70 ft or not slimline monopoles; minor use permit for extending existing slimline facilities of 70 ft or less and for concealed facilities of any height; ministerial clearance for eligible collocations	Santa Clara CC § 18.66.040
Sunnyvale	Permit type set by Table 19.54.080 (exempt, miscellaneous plan, minor use, major use); prohibited on private property in residential districts	Sunnyvale MC §§ 19.54.070, 19.54.080

Jurisdiction	Review path and design limits	Citation
Mountain View	Development review permit in all districts including the public right-of-way (Mountain View CC § 36.44); prohibited on R1 or R2 lots used primarily for a single-family residence	Mountain View CC § 36.06.50(c)
Los Altos	Permit under Chapter 11.12 decided by the city manager, with appeal; locational preference list, less-preferred sites need clear and convincing evidence	Los Altos MC §§ 11.12.040, 14.85.030, 14.85.040
Cupertino	Zoning chapter: permit by Table 19.136.080 (administrative approval, Planning Commission development permit, or height exception); aerial height 55 ft; commercial aerials prohibited on residential properties except RHS. Right-of-way small cells: Director permit, 21-day notice within 300 ft, administrative-hearing appeal	Cupertino MC §§ 19.136.030-.080; 14.30.050-.070
Menlo Park	Small wireless facilities in the right-of-way: Director permit; private-property antennas: dish and ground-mounted antenna rules	Menlo Park MC §§ 13.32.040, 16.93.030
Redwood City	Use permit (Zoning Administrator) in commercial and some other districts; architectural permit for every facility; roof antennas max 20 ft above the roofline; right-of-way small cells under a separate article	Redwood City Zoning Code §§ 38.3, 38.5, 38.8; Redwood City MC § 29.103

> **SANTA CLARA** Santa Clara CC § 18.66.040
> Conditional Use Permit approval is required for all new wireless telecommunication facilities and wireless telecommunication towers that exceed 70 feet in height, or do not meet the definition of slimline monopole subject to this Chapter.

> **MOUNTAIN VIEW** Mountain View CC § 36.06.50(c)
> Communication facilities and antennas, as defined in Section 36.60.03, are allowed in all zoning districts subject to a development review permit (Section 36.44.45), unless prohibited by state and/or federal law, and shall comply with the development standards for the applicable district, except that they are prohibited on any R1 or R2 zoned property used primarily for a single-family residence.

Difference and effect. Palo Alto's procedure adds a mandatory community meeting and a direct Council appeal for non-eligible facilities, and requires Architectural Review Board referral in the right-of-way. Cupertino's right-of-way notice (300 feet, 21 days) is notice only, with no meeting. The permit sections read for the other cities do not state a comparable neighborhood-meeting requirement. The 65-foot tower cap is above Cupertino's 55-foot aerial limit (which a height exception under § 19.136.090 can exceed, so it is not a hard cap) and San José's 60-foot slimline height exception and below Santa Clara's 70-foot threshold for a conditional use permit; the other cities defer to district height limits or do not state a cap. Tier 1 collocations are handled ministerially in Palo Alto, Santa Clara and San José, as federal law requires everywhere.

The effect on development is narrow. These rules govern carriers and tower owners rather than housing or commercial projects, and federal and state shot clocks cap the time every city may take. The direction is unclear because the other cities' permit sections do not show a community-meeting requirement, but it also allows facilities that Mountain View, Sunnyvale, Cupertino (commercial aerials) and others prohibit on single-family sites, subject to Tier 3 findings and the historic-structure bar.

Context. The code history shows Palo Alto's § 18.42.110 last amended by Ord. 5655 (2025). The text of that amendment was not compared with the prior version. Menlo Park's right-of-way chapter was adopted by Ord. 1116 (2024). Redwood City's right-of-way article and Los Altos's detailed application and appeal provisions were read only for the permit-level and decision-maker points shown above.

18.4 Home occupations in garages and accessory buildings

More permissive ●○○ Low *Allows accessory buildings, as do Cupertino, Mountain View; 4 of 8 bar outright*

Palo Alto rule	PAMC § 18.42.060
Applies to	Residential lots with detached accessory buildings, garages or studios used for home businesses
Rule source	Municipal code
Status	Current

Summary. Palo Alto allows a home occupation to use up to 500 square feet of floor area on the site "including accessory buildings," or 25 percent of the dwelling, whichever is less, with no permit. Menlo Park, Santa Clara, Redwood City and Los Altos confine home occupations to the dwelling or bar accessory buildings. Sunnyvale bars them except detached habitable spaces (a partial bar, not counted among the four; 20 percent of the dwelling or 400 square feet), and San José allows 100 square feet in an accessory building. Mountain View allows a garage or accessory structure for one room, and Cupertino allows a main dwelling or accessory building with no area cap located. The difference matters only to owners who want a detached studio or office to serve a home business.

> **PALO ALTO** PAMC § 18.42.060(d)
> Not more than twenty-five percent of the gross floor area of the dwelling unit, or five hundred square feet of gross floor area on the site including accessory buildings, whichever is less, shall be devoted to the home occupation.

Comparison.

Jurisdiction	Accessory buildings for home occupation	Citation
Palo Alto	Allowed; 500 sq ft or 25% of dwelling, whichever is less	PAMC § 18.42.060(d)
San José	Dwelling and attached garage allowed; accessory building limited to 100 sq ft including storage	San José MC § 20.80 Part 9, Table 20-160
Santa Clara	Not allowed; within the dwelling only (Table 4-1 location row)	Santa Clara CC § 18.60.120
Sunnyvale	Not allowed except detached habitable spaces; 20% of dwelling or 400 sq ft	Sunnyvale MC § 19.42.010(b), (d)
Mountain View	Allowed; confined to one room in the dwelling, garage or accessory structure	Mountain View CC § 36.28.85
Los Altos	Conducted within a dwelling	Los Altos MC § 14.02 ("Home occupation")
Cupertino	Allowed; main dwelling or accessory building, garage if required parking stays available; no area cap located in the standards table	Cupertino MC §§ 19.120.020, 19.120.030 (Table 19.120.030, Location)
Menlo Park	Not allowed in an accessory building; permit valid one year	Menlo Park MC §§ 16.04.340, 16.08.080
Redwood City	Entirely within a dwelling	Redwood City Zoning Code § 31.12

> **MENLO PARK** Menlo Park MC § 16.04.340
> Such activity shall not be conducted in an accessory building.

> **SUNNYVALE** Sunnyvale MC § 19.42.010(b)
> The home occupation shall be restricted to the dwelling area and shall not be conducted in the yard, garage or any accessory structure except detached habitable spaces;

Difference and effect. Palo Alto is more permissive than six of the eight comparison cities (similar to Mountain View and Cupertino) on where a home business may sit, and has the highest area cap of the cities that state one (Cupertino's table states none; employee and storage limits otherwise apply). It also imposes no permit (the section applies "where permitted"). The practical effect is on accessory-structure design: a detached studio or office in Palo Alto can serve a home business, while in Menlo Park, Santa Clara or Redwood City it generally cannot. Palo Alto still bars employees other than occupants, advertising and outdoor storage (§ 18.42.060(b), (c), (g)). The definition in PAMC § 18.04.030 describes the activity as conducted "in a dwelling unit," which sits in tension with the accessory-building language in § 18.42.060(d); the operative limit is the quoted section. The Los Altos and Redwood City entries rest on "within a dwelling" wording and were not tested against detached ADUs.

A Jurisdictions and sources

Each code was read in full-text form as of the dates below. Section numbers in the entries link to an online copy of the code text at the section level. For Redwood City's Zoning Code the copy is the official Municode publication. For the other codes it is the GoCodebook mirror (gocodebook.com), which reproduces each publisher's text and supports section-level links. The official publisher is the authoritative source in every case.

Jurisdiction	Cited as	Official publisher	Text current to
Palo Alto	PAMC	American Legal Publishing, https://codelibrary.amlegal.com/codes/paloalto	October 5, 2026 (mirror); official Supp. 82, through Ord. 5704 (June 15, 2026)
San José	San José MC	Municode, https://library.municode.com/ca/san_jose	October 4, 2026
Santa Clara	Santa Clara CC	General Code eCode360, https://ecode360.com/SA4626 (zoning code, Title 18, published separately)	October 4, 2026; zoning September 23, 2026
Sunnyvale	Sunnyvale MC	General Code eCode360, https://ecode360.com/SU5020	October 4, 2026
Mountain View	Mountain View CC	Municode, https://library.municode.com/ca/mountain_view	October 4, 2026
Los Altos	Los Altos MC	Municode, https://library.municode.com/ca/los_altos	October 3, 2026
Cupertino	Cupertino MC	American Legal Publishing, https://codelibrary.amlegal.com/codes/cupertino	October 5, 2026
Menlo Park	Menlo Park MC	General Code eCode360, https://ecode360.com/ME4536	October 4, 2026
Redwood City	Redwood City MC; Redwood City Zoning Code	Municode, https://library.municode.com/ca/redwood_city (city code and zoning code)	City code October 4, 2026; zoning code Supp. 30, through Ord. 1130-892 (July 27, 2026)
Santa Clara County	Santa Clara Co. OC	Municode, https://library.municode.com/ca/santa_clara_county	October 4, 2026
San Mateo County	San Mateo Co. OC	Municode, https://library.municode.com/ca/san_mateo_county	October 4, 2026; zoning September 23, 2026

Fee schedules. Adopted fee schedules are published by resolution rather than in the codes. The following were obtained from city websites in October 2026: San José, *2026-2027 Proposed Fees and Charges*; Santa Clara, *FY 2027 Adopted Municipal Fee Schedule*; Sunnyvale, *FY 2026/27 Master Fee Schedule*; Mountain View, *FY 2026-27 Master Fee Schedule*; Los Altos, *Fiscal Year 2026-27 Fee Schedule*; Redwood City, *FY 2026-27 Master Fee Schedule* (effective July 1, 2026); Cupertino, *Fee Schedules A–D* (Resolution 26-047, effective July 1, 2026). Palo Alto and Menlo Park schedules were read on the cities' websites; the entries cite them in footnotes. San José's document is the proposed schedule, and entries that rely on it say so.

State law. Statutes are cited to the official California Legislative Information site (https://leginfo.legislature.ca.gov). Appendix D lists the state laws the entries rely on.

B Coverage of the Palo Alto Municipal Code

This table records how each development-related chapter or section group of the PAMC was handled. "No material difference" means the provision was compared and found substantially similar to most comparison cities, required by state law in the same form everywhere, or too narrow to matter. Chapters not listed were judged unrelated to development; they include business licensing, animals, traffic regulation, elections and most taxes.

PAMC	Subject	Disposition	Note
Single-family and low-density residential zoning			
18.12.010-.030	R-1 purposes, uses	no material difference	Single-family use rules similar across the nine cities
18.12.040	R-1 site standards	Entry 1.1	FAR, coverage, house size cap
18.12.040 (height, yards)	Height, setbacks, daylight plane	Entry 1.3	Contextual front yard and garage rules included
18.12.050	Encroachments and projections	no material difference	Not compared in detail; typical eave and bay allowances
18.12.060	R-1 parking	covered by parking	Assigned to parking cluster
18.12.070	ADUs in R-1	covered by adu-sb9	Assigned to adu-sb9 cluster
18.12.080	Accessory uses and facilities	no material difference	Not compared in detail
18.12.090	Basements	Entry 1.1	Exclusion from floor area noted; other cities not fully compared
18.12.100	Single Story Overlay	Entry 1.4	Thresholds compared with Sunnyvale and Los Altos
18.12.110	Individual Review	Entry 1.2	Includes 2025 objective two-story standards
18.12.120	Home Improvement Exceptions	Entry 1.5	Summarized there; no city-by-city comparison
18.12.130-.150	Architectural/historic review, grandfathered uses	covered by historic	Historic cluster handles historic review
18.10	RE, R-2, RMD districts	no material difference	Not compared; R-1 is the main district
18.04 (definitions)	Gross floor area, height, daylight plane	Entry 1.1	Counting rules summarized in Table 3
18.40.030-.090	Measurement, accessory buildings, yards, substandard lots, height exceptions	no material difference	Substandard lot limits noted in height entry only
18.70	Noncomplying facilities	Entry 1.5	Remodel and rebuild rules for houses
Accessory dwelling units, SB 9 and small-lot subdivisions			
18.09.010–18.09.030	ADUs exempt from local standards	no material difference	Tracks Gov. Code § 66323; all eight cities similar
18.09.040	ADUs subject to local standards	Entry 2.2	Size and height near state floor
18.09.030(j); 18.09.040(n)	Separate sale of ADUs	Entry 2.1	San José opted in; Palo Alto did not
18.09.050	JADUs	no material difference	500 sq ft cap and owner occupancy follow state law
18.12.070; 18.10.070	ADU cross-references	no material difference	Defer to Chapter 18.09
18.42.180	SB 9 two-unit standards	no material difference	Parking 1/unit in 18.52.040 matches state and others
18.12.040(m)	Two-story objective standards	covered by sf-zoning	See sf-second-story-review

PAMC	Subject	Disposition	Note
18.42.185; 18.42.220	SB 684/1123 up to ten units	no material difference	Mirrors state caps; FAR 1.0/1.25, parking 1 per unit
21.10	Urban lot splits	Entry 2.3	Notice to neighbors
21.11	Streamlined subdivisions, ten or fewer parcels	no material difference	State-mandated; only San José and Redwood City codify
Multifamily and mixed-use residential standards			
18.13 (RM-20/30/40)	Multifamily district standards	Entry 3.1	Height, density, FAR; see also r1-transition-controls, usable-open-space
18.13.045, 18.16.065, 18.18.065	FAR bonus for 3-10 unit projects	Entry 3.1	Mentioned in base envelope entry
18.13.050-18.13.060	Village residential; design criteria	covered by review-procedures	Design review and objective standards
18.16 (CN/CC/CS) residential standards	Housing in commercial districts	Entry 3.2	Also ground-floor-commercial-housing
18.18 (CD) residential standards	Downtown housing standards	Entry 3.2	CD-C weighted unit-size cap of 1,500 sq ft noted in notes
18.29 (North Ventura)	NV residential and mixed-use	Entry 3.2	Standards in Table 2 and 3
18.30(K) (Workforce Housing)	WH combining district	Entry 3.2	Unique to Palo Alto; no analog found
18.34 (PTOD)	California Avenue PTOD	Entry 3.2	40 ft, 40 du/ac; BMR bonus noted
18.14.020	Housing Element site standards	Entry 3.2	Overlaps housing-incentives cluster
18.42.140	Small-lot consolidation (2015 Housing Element)	no material difference	Legacy; refers to superseded sites and RT zones
18.40.230	Rooftop gardens as open space	Entry 3.6	Credit up to 60% in some districts
18.40.240	Refuse areas	no material difference	Not compared in depth; low cost effect
18.40.250	Lighting	no material difference	Not compared in depth; dark-sky purpose
18.40.260	Visual screening	no material difference	Not compared in depth
18.40.280	Bird-friendly design	Entry 3.3	Menlo Park and Mountain View comparable
Housing incentives and streamlined approvals			
18.14.010 to 18.14.020	Housing Element opportunity sites and focus areas	Entry 4.1	Site-specific standards; mf envelope in mf-standards
18.14.030	Housing Incentive Program	Entry 4.1	Local alternative to state density bonus
18.14.040	Affordable Housing Incentive Program	Entry 4.1	100% affordable rentals
18.14.050 to 18.14.060	By-right sites, affordable and supportive housing	Entry 4.3	Mostly implements state law
18.14.070	TOD combining district (SB 79)	Entry 4.2	Interim ordinance, 2026
18.15	Density bonus	no material difference	Tracks state law; only Los Altos on-menu concessions differ, noted in local-density-incentive-programs
18.77.073 to 18.77.074	Streamlined and ministerial housing review	Entry 4.3	Director decision, notice, Council appeal

PAMC	Subject	Disposition	Note
18.79	Preliminary review (prescreening)	no material difference	Council study session for legislative applications; not housing-specific
Inclusionary housing and redevelopment of existing housing			
16.65.010–16.65.040	Inclusionary percentages, exemptions, rental and nonresidential fee trigger	Entry 5.1	Ownership similar to peers; rental on-site requirement absent
16.65.060	Housing impact and in-lieu fees	Entry 5.2	Amounts in fee schedule; six peers' amounts not located
16.65.070–16.65.100	Standards, alternatives, procedures, funds	Entry 5.1	Alternatives covered in the entry; procedure similar across cities
18.14.020 (El Camino Focus Area)	Enhanced on-site BMR on Focus Area sites	Entry 5.1	Cross-cluster with housing zoning
9.68	Rental housing stabilization: just cause, relocation	Entry 5.3	Lease-offer and deposit rules not compared
9.72	Landlord-tenant dispute discussion	not development-related	Dispute process, no effect on development
21.40	Conversion of rental housing to condominiums	Entry 5.4	Low salience; Santa Clara not located
9.76	Mobilehome park conversion	no material difference	Rare; state closure-impact law governs in all cities
9.70	Resale controls, mortgage revenue bond units	not development-related	Administers existing restricted units
Commercial, office and R&D development			
18.16	CN, CC, CS commercial districts: FAR, height, office size	Entry 6.2	Office and establishment size caps included
18.16.040	Commercial use tables (restaurants, retail by right; medical office CUP)	no material difference	Restaurants and retail permitted by right; medical office CUP varies
18.16.050	Ground-floor office limits	Entry 6.3	Folded into retail entry
18.18	Downtown CD standards, 25,000 sq ft cap	Entry 6.2	Housing standards covered by corridor-mixed-use-envelope
18.20	MOR, ROLM, RP, GM office/R&D standards	Entry 6.2	Multifamily in office districts covered elsewhere
18.28	PF, OS, AC districts	no material difference	Public/open space districts; not compared in depth
18.30(A)	Retail (R) combining district	Entry 6.3	Includes formula retail conditional use
18.30(B)	Pedestrian shopping (P) combining district	no material difference	Not separately analyzed; similar pedestrian-use limits
18.30(C)	Ground floor (GF) combining district	Entry 6.3	
18.30(D)-(F)	Hotel, landscape, auto dealership combining districts	no material difference	Narrow, site-specific
18.30(I)	Nonconforming use amortization	no material difference	Legacy provision; narrow
18.36	Hospital district	no material difference	Narrow; Stanford area
18.38	Planned Community district	no material difference	Mountain View, Los Altos, Redwood City have equivalent PC rezonings
18.40.180	Retail preservation	Entry 6.3	
18.40.210	Annual office limit	Entry 6.1	
18.40.220	Citywide office/R&D cap	Entry 6.1	
18.60	Stanford lands	not development-related	Stanford University lands; not comparable

PAMC	Subject	Disposition	Note
18.70	Nonconforming uses (nonresidential)	no material difference	Not analyzed in depth
18.76.015	Findings for specified retail	Entry 6.3	
16.20	Signs	Entry 6.4	Area tables not in corpus
Parking, loading and transportation demand management			
18.52.010-.020	Purpose and definitions	not development-related	Statement of purpose and definitions only
18.52.030(a)-(h)	Basic parking regulations, non-conformance, additions	no material difference	Parking only for added floor area; comparable elsewhere
18.52.030(i)	TDM plan requirement	Entry 7.3	Trip-based trigger; includes AB 2097 projects
18.52.040(a)(1)	No parking within half mile of transit	Entry 7.1	Mirrors Gov. Code 65863.2; similar in most cities
18.52.040 Table 1 residential	Single-family, two-family, multifamily, senior ratios	Entry 7.1	Single-family in sf-house-parking
18.52.040 Table 1 single-family	House ratio, covered space	Entry 7.5	Low salience
18.52.040 Table 1 nonresidential	Office, R&D, retail, restaurant ratios	Entry 7.2	Higher than most; no maximums
18.52.040 Tables 1, 2 bicycle	Bicycle parking ratios	no material difference	Not compared in depth; see _notes.md
18.52.040 Table 3, (d)	Loading spaces	no material difference	Thresholds of 10,000 sq ft; similar scale elsewhere
18.52.045	Adjustments to existing facilities	no material difference	Minor restriping and EV exceptions
18.52.050	Director adjustments, TDM, shared parking	Entry 7.4	30% cap, 10-space floor
18.52.060-.080	Parking assessment districts and CD district	Entry 7.6	District rules specific to downtown
18.54.010-.015	Purpose and definitions	not development-related	Purpose and definitions
18.54.020	Vehicle parking facility design, tandem, lifts	Entry 7.7	Stall size 8.5 x 17.5 similar to San José
18.54.030	Accessible parking	no material difference	Follows state and federal accessibility rules
18.54.040-.050	Parking landscaping, miscellaneous design	covered by trees-landscape	Landscape standards not compared here
18.54.060	Bicycle parking facilities design	no material difference	Not compared in depth
18.12.060	R-1 parking	Entry 7.5	Repeats Table 1; SB 9 one space
16.57	University Avenue in-lieu parking fee	Entry 7.6	$30,250 per 250 sq ft base rate
Title 10	On-street parking, permit parking, enforcement	not development-related	Traffic regulation, not development standards
Design review and permit procedures			
18.76.010, .015	Conditional use permit, retail findings	Entry 8.5	CUP decided by Director; hearing on request
18.76.020	Architectural review triggers and findings	Entry 8.2	Board hearing for 3+ unit multifamily, 5,000+ sq ft
18.76.025	Multifamily exempt from architectural review	Entry 8.4	Streamlined Director-only process; see also housing-incentives

PAMC	Subject	Disposition	Note
18.76.030	Variance	no material difference	Staff-level like 6 of 8; discussed in use-permit-variance-process
18.76.040	Neighborhood preservation exception	no material difference	Narrow: NP combining district only
18.76.050	Design enhancement exception	no material difference	Minor features only; cannot add floor area
18.77.010-.040	Applications, completeness, time limits	no material difference	30-day completeness; defers to Permit Streamlining Act
18.77.050-.060	Staff review process	Entry 8.5	Request-only commission hearing
18.77.070	Architectural review process	Entry 8.2	Also hearing-notice-appeals
18.77.073, .074	Streamlined and ministerial housing	covered by housing-incentives	Cluster 5
18.77.075	Low-density residential review	covered by sf-zoning	See sf-second-story-review
18.77.077	Over the counter review	no material difference	Minor staff approvals; similar elsewhere
18.77.080	Notice	Entry 8.3	600-foot radius
18.77.090-.100	Expiration, duration	Entry 8.1	12 months plus 12
18.77.110	Revocation	no material difference	Common to all cities
18.78	Appeals	Entry 8.3	Council consent-calendar structure
18.80	Rezoning	no material difference	Legislative process; Gov. Code mandates hearings
18.30(G)	Site and design (D) combining district	not located	Not read in detail; low relevance
18.24	Contextual design criteria, objective standards	Entry 8.4	Others' standards mostly outside corpus
18.31	CEQA delegation and appeals	no material difference	State-law framework
18.01.025	Zoning code interpretation	no material difference	Not compared
2.21	Architectural Review Board	Entry 8.2	Five members; three design professionals
11.04	Environmental impact procedure	no material difference	Not read; CEQA implementation
Historic preservation			
16.49.010-.040	Purpose, definitions, inventory categories, designation	Entry 9.3	Categories and criteria determine reach
16.49.050	Exterior alteration review	Entry 9.1	Voluntary for houses
16.49.060-.070	Demolition review	Entry 9.1	60-day delay; downtown findings
16.49.080-.090	Downtown maintenance and enforcement	Entry 9.1	Penalties covered briefly
16.19	California Historical Building Code adoption	no material difference	All nine adopt state code (Cupertino MC ch. 16.62)
2.27	Historic Resources Board	not development-related	Board composition and duties
18.12.140; 18.10.130; 18.13	Historic review and lot split	Entry 9.2	Two-residence parcel subdivision
18.04.030 (GFA)	Historic basement and attic exclusions	Entry 9.2	Cross-ref sf-floor-area-coverage
18.18.070; 18.18.080	Downtown bonuses, TDR	Entry 9.2	Sender and receiver rules
18.14.070	TOD district historic exclusion	Entry 9.3	Mentioned in context
Trees, landscaping and creek setbacks			
8.04	Public trees, shrubs, hedges (street trees)	no material difference	City-owned street tree rules; all cities, Cupertino ch. 14.12 included, regulate similarly

PAMC	Subject	Disposition	Note
8.10.020, 8.10.050	Protected-tree definition and removal criteria	Entry 10.4	Removal tests in tree-removal-development-criteria
8.10.050, 8.10.140	Removal criteria, notice, appeals, moratorium	Entry 10.3	Process in tree-removal-process-and-moratorium
8.10.055, 8.10.030	Replacement and Technical Manual	Entry 10.2	Manual draft update pending
8.10.070, 8.10.080	Care and construction protection	Entry 10.6	Tree protection zone and arborist rules
8.10.090	Heritage tree designation	no material difference	Council designation; comparable in Mountain View, Menlo Park, San José
8.10.092, 8.10.095	WUI and Hospital District tree removal	no material difference	Narrow geography
8.10.100, 8.10.110	Enforcement and remedies	no material difference	Penalties exist in all cities; not compared in detail
18.30(E)	Landscape (L) combining district	no material difference	Narrow overlay; not compared
18.40.130	General landscaping standards	no material difference	Landscape-area rules similar in substance across cities
18.40.140	Stream corridor protection	Entry 10.5	Low salience
18.54.040	Parking-lot landscaping and trees	no material difference	1 tree per 6 stalls, 50% shade in 15 years; see notes
12.32	Water use regulations, MWELO equivalence	no material difference	All nine apply state MWELO (Cupertino ch. 14.15); Palo Alto defers to CALGreen chapter 16.14
Building and fire code amendments			
16.04	California Building Code amendments: sprinklers (903.2)	Entry 11.3	Small-building and addition triggers
16.04.130	Permit expiration (105.5)	Entry 11.2	48-month term; three extensions
16.04	Other CBC amendments (structural, egress, public pools Ch. 31B)	no material difference	Technical amendments; not compared item by item
16.05	Mechanical code amendments	no material difference	Technical; not compared item by item
16.06	Residential code amendments	Entry 11.1	R309 triggers; other items not compared
16.08	Plumbing and electrical code adoption	no material difference	Not compared item by item
15.04	Fire code: sprinklers, design criteria	Entry 11.3	Parallels 16.04.260
15.04	Fire code: access roads (503) and fire flow	no material difference	Appendix B adopted unamended; Santa Clara, Sunnyvale amend
15.04	Fire code: hazardous materials, permits and fees	not development-related	Operational permits and fees
16.18	Swimming pool and spa code	no material difference	Two-of-seven safety features; mirrors state pool law
16.24	Fences	no material difference	4 ft front, 6-7 ft elsewhere; similar to Menlo Park
16.32	Housing code and dangerous buildings	not development-related	Maintenance and abatement
16.36; 16.40	Unsafe buildings and property maintenance	not development-related	Abatement procedures
16.42	Seismic hazards identification	Entry 11.4	Report-only; San José mandates retrofit
16.56	Moving and demolition-related rules	no material difference	Not compared in detail
16.62	Expired permits for residential construction	Entry 11.2	$200-$800 per day penalty

PAMC	Subject	Disposition	Note
16.14; 16.17	CALGreen and energy reach codes	covered by energy-ev	Not repeated
Energy, electrification and EV charging			
16.17.010-.050	Energy Code adoption, administration, penalties	no material difference	Standard adoption of 2025 Energy Code; all nine adopt it (Cupertino MC § 16.54.010)
16.17.060; .120; .140	Single-family remodel reach code; air conditioner replacement	Entry 12.2	Covered single-family project, 12-point menu; air conditioner rule from Jan. 1, 2027
16.17.070	Solar-ready; tree canopy conflict rule	covered by solar-storage	Solar Shade Act and tree ordinance conflict clause
16.17.080; .090; .150	Electric readiness: nonresidential, new buildings, substantial remodels	Entry 12.4	Also noted in green-building-tiers Context
16.17.170-.180	Infeasibility exemption and appeal	no material difference	Procedural; Mountain View and Menlo Park have analogous modification provisions
16.14.010-.070	CALGreen adoption, administration, definitions	no material difference	Definitions support tiers entry; adoption standard
16.14.080	Voluntary tiers made mandatory	Entry 12.1	Tier 1 and 2; LEED alternative path
16.14.090; .300	“Full electrification” sections	Entry 12.1	Operative text absent from corpus; enforcement status unconfirmed
16.14.100	Swimming pool and spa covers	no material difference	Small cost; no peer comparison found
16.14.130-.140; .180	Appendix A4 preface; site preservation; light pollution	no material difference	Low cost and narrow scope
16.14.150; .250	Deconstruction; construction waste	covered by site-water-hazards	Deconstruction A4.105 assigned to cluster 17
16.14.160; .400	Mandatory EV charging, residential and nonresidential	Entry 12.3	Appendix A4/A5 measures made mandatory
16.14.170	Bicycle parking (A4.106.9)	covered by parking	Transportation demand and bicycle parking cluster
16.14.190; .410	Performance approach, electric readiness for newly constructed buildings	Entry 12.4	Text not fully readable in corpus
16.14.200-.220	Irrigation metering; water reuse	covered by trees-landscape	Landscape water use cluster
16.14.230; .260; .270	Frost protection; formaldehyde; thermal insulation	no material difference	Minor technical amendments
16.14.240; .420	Low-carbon concrete; recycled cement	Entry 12.1	Applies to Tier 1 and Tier 2 projects
16.14.280-.290; .295	Nonresidential preface; scoping; stormwater; light pollution	Entry 12.1	Scoping at 25,000 sq ft; stormwater to cluster 17
16.14.330-.350	Invasive species; nonresidential water budget; cooling towers	covered by trees-landscape	Water budget body not readable in corpus
16.14.355	Life-cycle assessment	Entry 12.1	25,000 sq ft from Jan. 1, 2026; state threshold higher
16.14.360-.380	Energy STAR Portfolio Manager, performance reviews	no material difference	Body text absent from corpus; San José has separate benchmarking
16.14.390; .430	Indoor air quality plan; construction waste	no material difference	Minor; waste portion to cluster 17
16.14.120	Special inspection (702.2)	no material difference	Administrative

PAMC	Subject	Disposition	Note
16.15.010	Expedited EV charger permitting	no material difference	State-mandated process; all nine have comparable ordinances (Cupertino MC ch. 16.28)
18.44	Green development (LEED-ND pilot; cross-reference to 16.14)	no material difference	2011 pilot expired; section 18.44.020 only cross-references
12.20	CPAU rules authority and limitations	not development-related	Rules themselves not reviewed; see _notes
9.10	Noise (equipment placement)	no material difference	No heat-pump or HVAC equipment provision located in chapter
Solar, storage and interconnection			
16.63	Small residential rooftop solar permitting	Entry 13.3	Fees in rooftop-solar-permit-fees; same state-law base as other cities
16.63.050	Fees for expedited solar permit	Entry 13.1	Amounts in municipal fee schedule, not code
16.17.070	Solar-ready tree canopy clause	Entry 13.5	No local PV size or battery mandate
18.42.120	Resource conservation energy facilities	no material difference	FAR/coverage exemption for cogeneration; no comparable rule found elsewhere
2.48	Utilities solar program, tax credit permits	not development-related	1982 tax-credit authorization
21.20.310	Solar requirements for subdivisions	no material difference	Solar access in subdivision design; Sunnyvale and Menlo Park have similar
16.14	Green building code solar provisions	covered by energy-ev	Palo Alto has no local PV mandate
CPAU Rules, E-EEC-1, E-15	Interconnection, export compensation	Entry 13.4	Non-code
Battery storage permits	Fees, checklist, SolarAPP+	Entry 13.2	Non-code
Site work, water, hazards and construction operations			
16.28	Grading, erosion control	no material difference	Wet-season and erosion rules track regional permit practice
16.28.155-.156	Construction dewatering	Entry 14.1	Unique limits in Palo Alto
16.52	Flood hazard	Entry 14.3	Basement ban; 1 ft freeboard
18.30(H)	Flood hazard combining district	no material difference	Not reviewed beyond 16.52
16.11	Stormwater, PCBs, copper	no material difference	Implements regional permit; PCB demolition screening common
16.09	Sewer use	no material difference	Pretreatment rules similar; Not examined in depth
16.12	Recycled water	Entry 14.5	Lowest dual-plumbing size trigger
16.13	Fats, oils, grease	Entry 14.4	Detail in non-code regulations
16.10; 16.66	Private sewage; hauled waste	not development-related	Rare for development
Title 17; 18.42.200; 18.62; 18.40.120; 18.40.270	Hazardous materials limits	no material difference	Not examined; no comparison completed
5.24; 16.14 A4.105/A5.408	Deconstruction, diversion	Entry 14.2	Salvage survey; 80% diversion
5.20	Refuse collection	not development-related	Service rules; not examined
9.10; 18.42.190	Construction hours and noise	Entry 14.6	Mixed; equipment noise to energy-ev

PAMC	Subject	Disposition	Note
Subdivisions and public improvements			
21.04	General provisions, merger	no material difference	Procedural; merger rules not compared
21.08	Maps required, lot line adjustments	Entry 15.3	Lot line adjustments by City Engineer
21.10	Urban lot split parcel maps	covered by adu-sb9	See urban-lot-split-process
21.11	Streamlined subdivisions (SB 684)	Entry 15.3	Ministerial; 600 and 1,200 sq ft minimums
21.12; 21.13	Tentative maps, vesting maps	Entry 15.3	Commission recommends, Council decides
21.16	Final and parcel maps	Entry 15.3	City Engineer and Director approve parcel maps
21.20	Subdivision design, lots, flag lots, streets	Entry 15.1	Private street widths 22-32 ft not compared
21.24	Dedications	Entry 15.4	Standard map dedications
21.28	Subdivision improvements	Entry 15.4	Undergrounding in undergrounding-new-development
21.32; 21.36	Exceptions and appeals	Entry 15.3	Council grants exceptions
21.44	Certificates of compliance	no material difference	Follows Map Act
21.40; 21.50	Condo conversions; parkland fees	covered by affordable-housing / impact-fees	condo-conversion-limits; park-fees-multifamily
12.08	Street, sidewalk and driveway permits	Entry 15.4	Permit only; no improvement mandate
12.09	Equipment in rights-of-way	not development-related	Telecom facilities
12.12	Encroachments	no material difference	Revocable permits; not compared in depth
12.16	Underground utilities	Entry 15.2	Districts plus new construction
20.04; 20.08	Plan lines and setback lines	no material difference	Map-based building prohibition; comparison not made
10.10	Temporary street closures	not development-related	Special events
9.48	Not reviewed	no material difference	Not examined in this pass
Development impact fees			
16.58	Park, community center, library, public safety, general government fees	Entry 16.2	Park fee; other facility fees in facility-impact-fees; nonresidential in nonres-impact-fees
16.59	Citywide transportation impact fee	Entry 16.6	Trip-based; other cities use per-unit or per-sq-ft rates
16.45	Stanford Research Park transportation fee	Entry 16.4	Area-specific; mentioned, not priced
16.46	San Antonio-West Bayshore traffic fee	Entry 16.4	Area-specific; mentioned, not priced
16.60	Charleston-Arastradero safety fee	Entry 16.6	$1,743 per unit; $0.51 per sq ft commercial
16.64	Fee administration, timing, protests	no material difference	Procedural; annual inflation index noted in entries
21.50	Parkland dedication and in-lieu fees	Entry 16.5	Subdivision-only; apartment comparison in park-fees-multifamily
Public art, permit fees and transfer tax			
16.61	Public art for private developments	Entry 17.2	1% of valuation; broadest trigger of the eight cities

PAMC	Subject	Disposition	Note
2.34	Real property transfer tax	Entry 17.4	$1.65 per $500; San José and Mountain View have higher tiers
12.10	Street cut fees	no material difference	Palo Alto $14-$28 per sq ft; other cities' charges not compared; see _notes.md
Fee schedule	Building permit and plan check fees	Entry 17.5	$500,000 house; Palo Alto mid-range
Fee schedule	Planning application fees, design review	Entry 17.1	Palo Alto $41,836 deposit; highest published amount
Fee schedule	Construction taxes (none in Palo Alto)	Entry 17.3	Five peer cities levy a tax or percentage fee
Special uses and other zoning provisions			
18.42.030	Accessory uses; accessory buildings in required yard	no material difference	Generic accessory-use standards; 50% rear-yard limit not compared
18.42.040	Late night uses near residences	no material difference	Hours-based conditional use permit; operating use, not development; not compared
18.42.050	Temporary uses	Entry 18.1	45-day cap; no construction-use provision
18.42.060	Home occupations	Entry 18.4	Accessory-building allowance, 500 sq ft cap
18.42.070	Vehicle repair and storage	not development-related	Operating standards for existing uses
18.42.100	Mobile homes	no material difference	State manufactured housing law governs
18.42.110	Wireless communication facilities	Entry 18.3	Three tiers, federal limits apply to all
18.42.150	Cannabis	not development-related	Use regulation; state-licensed activity
18.42.160-.170	Safe parking	no material difference	Interim use permits; state law (AB 2553) limits local discretion
18.46	Reasonable accommodation	no material difference	Ministerial Director review; mirrors federal and state fair housing law
18.66	Easement covenants	no material difference	Implements Gov. Code 65870-65875
18.08	District designation and map	not development-related	Administrative
18.01	Adoption, purposes, enforcement	not development-related	Administrative
18.40.160	Replacement project required before demolition	Entry 18.2	Not located in other cities
18.40.170	Deferral of Director action	covered by review-procedures	Council referral of multi-entitlement projects
18.40.190-.200	Application withdrawal; new application	covered by review-procedures	Standard procedural rules

C Method, verification and limitations

Corpus. The full text of the nine city codes, both county codes and the separately published zoning codes was downloaded in October 2026 and converted to plain text, one file per chapter, with each section marked by its number. Every comparison in the report was made against this text.

Topics. The Palo Alto code's chapters were screened for relevance to development and grouped into eighteen topics, because some subjects (parking, for example) span several titles. The topics correspond to the sections of this report.

Analysis. For each topic, an AI analyst (Anthropic's Claude Sonnet) followed a written style guide. It read the Palo Alto provisions, located the corresponding provisions in each comparison city by searching section headings and text, consulted city websites and state sources for non-code rules and recent changes, and drafted entries for differences it judged material. It also drafted a coverage table recording each chapter's disposition.

Verification. Three checks followed.

1. *Quotations.* A script confirmed that the text of every quotation appears in the code text of the jurisdiction named, word for word after normalizing whitespace and quotation marks; an ellipsis splits a quotation into parts that must each appear, in order, in the same chapter. Quotations that failed were re-copied from the source or removed.
2. *Official text.* Quotations from the four cities published by Municode (San José, Mountain View, Los Altos and Redwood City; 83 quotations) were also checked automatically against the official Municode text. 82 matched; the remaining one could not be located automatically in Municode's table of contents and was not otherwise checked. All 99 Palo Alto quotations were also checked against the official American Legal Publishing text (Supplement 82, current through Ordinance No. 5704, passed June 15, 2026), and all 99 matched. Cupertino's six quotations were likewise checked against its official American Legal text and all matched.
3. *Facts.* A separate AI reviewer (Claude Haiku) checked every comparison-table cell and every numerical or ordering claim ("highest", "4 of 8") against the cited sections, and spot-checked web footnotes. The analyst then corrected each confirmed problem or recorded why it disagreed.
4. *Editing.* An editor (Claude Opus), working under the direction of the person who commissioned the report, reviewed each entry for accuracy, neutrality and consistency, re-checked arithmetic, and resolved conflicts between topics.

Limitations.

- Except for Redwood City's Zoning Code, the code text came from a third-party mirror of the official publications. Quotations from Palo Alto, Cupertino and the four Municode cities were also checked against the official text (Appendix C); quotations from Santa Clara, Sunnyvale and Menlo Park, whose official publisher blocks automated access, were not. A reader relying on a quotation should confirm it at the official publisher listed in Appendix A.
- Several city websites refuse automated access. Fee schedules for those cities were downloaded manually, and some other documents (precise and specific plans, guidelines, staff reports) could not be read. Entries mark such gaps as "Not located." This means the rule was not found in the sources reviewed, not that it does not exist.
- Comparisons use each city's principal district or most common case. Precise plans, specific plans and overlay districts can set different rules for particular areas; entries note this where it matters.

- Fee figures are for the fiscal year stated and change annually. The illustrative fee totals rest on stated assumptions and are not estimates for any real project.
- Direction and salience ratings are judgments, explained in each entry. They are not measurements.
- The report is not legal advice. The official code, the city's interpretation and state law govern any actual project.

Checking an entry. To verify an entry, open the linked section, confirm the quoted text at the official publisher, and compare the comparison-table cell for the city of interest with that city's cited section. For fees, open the cited schedule and find the line item for the fiscal year shown.

D State laws referenced

Many local rules in this report operate alongside state laws that set floors, ceilings or alternative approval paths for every city. This list covers the laws the entries rely on, with a one-line description of each. Code sections are cited to the official text at https://leginfo.legislature.ca.gov.

Law	What it does (in brief)	Entries
Housing approval and capacity		
Housing Accountability Act, Gov. Code § 65589.5	Limits a city's ability to deny, or reduce the density of, housing projects that meet objective standards; includes the "builder's remedy" where a city lacks a compliant housing element.	5.1, 8.4
Housing Crisis Act (SB 330, 2019; extended by SB 8, 2021), Gov. Code §§ 66300–66301	Restricts actions that reduce housing capacity; requires replacement of demolished protected units and relocation benefits (§§ 66300.5–66300.6); creates preliminary applications that lock in standards.	4.2, 5.3, 18.2
Density Bonus Law, Gov. Code § 65915	Requires additional density, incentives, waivers and reduced parking ratios for projects with qualifying affordable units.	4.1, 3.1
Housing element sites, Gov. Code § 65583.2	Governs housing element site inventories; requires by-right approval on certain reused or rezoned lower-income sites.	4.3
AB 2011 (2022), Gov. Code § 65912.100 et seq.	Ministerial approval of qualifying housing on commercially zoned sites.	4.3
SB 4 (2023), Gov. Code § 65913.16	By-right affordable housing on land owned by religious institutions and nonprofit colleges.	4.3
SB 79 (2025)	Sets minimum allowable height and density for housing near major transit stops, effective July 1, 2026, with local implementation options.	4.2
Single-family lots, ADUs and small subdivisions		
SB 9 (2021), Gov. Code §§ 65852.21, 66411.7	Ministerial approval of two-unit projects and urban lot splits on most single-family lots.	2.3, 15.1
ADU law, Gov. Code §§ 66310–66342	Minimum standards cities must allow for accessory and junior accessory dwelling units. AB 1033 (2023) lets cities allow ADUs to be sold separately as condominiums (§ 66342).	2.2, 2.1
SB 684 (2023) and SB 1123 (2024)	Ministerial approval of small subdivisions of up to ten units.	15.3
Parking		
AB 2097 (2022), Gov. Code § 65863.2	Bars minimum parking requirements within one-half mile of a major transit stop, with exceptions.	7.1, 7.3
AB 894 (2023), Gov. Code § 65863.1	Allows shared use of underused parking to count toward local requirements.	7.4
Fees		
Mitigation Fee Act, Gov. Code § 66000 et seq.	Requires a reasonable relationship between impact fees and development impacts, and annual reporting. AB 2553 (2024) affects transportation fees for housing near transit.	16.6, 16.2
Quimby Act, Gov. Code § 66477	Authorizes parkland dedication or in-lieu fees as a condition of subdivision maps.	16.2, 16.5
Solar permit fee limits, Gov. Code § 66015	Caps residential solar permit fees unless a city adopts findings supporting a higher fee.	13.1
Documentary transfer tax, Rev. & Tax. Code § 11911 et seq.	County transfer tax with a credit for city taxes at half the county rate; charter cities may set their own rates.	17.4
Building, energy and solar		

Law	What it does (in brief)	Entries
AB 130 (2025)	Limits new local amendments to residential building standards from October 1, 2025 to June 1, 2031, with exceptions.	12.1, 11.1
Pub. Resources Code § 25402.1	Local energy standards stricter than the state's require cost-effectiveness findings and California Energy Commission approval.	12.2
AB 2188 (2022), Gov. Code § 65850.5	Expedited permitting for small residential rooftop solar.	13.3
SB 379 (2022), Gov. Code § 65850.52	Requires an online, automated permitting platform for residential solar and paired storage.	13.3, 13.2
Historic resources		
CEQA, Pub. Resources Code § 21084.1	Treats substantial adverse changes to historical resources, including eligible but unlisted ones, as significant environmental effects.	9.3
Mills Act, Gov. Code § 50280 et seq.	Allows contracts that reduce property taxes on historic properties in exchange for preservation.	9.2

E Glossary

ADU, JADU Accessory dwelling unit; junior accessory dwelling unit (a unit of up to 500 square feet within a single-family house). State law (Gov. Code §§ 66310–66342) sets minimum standards that cities must allow.

AMI Area median income, as published annually by the state for each county. Affordable housing rules set rents and prices as percentages of AMI.

ARB Architectural Review Board, Palo Alto's design review body.

BMR Below-market-rate housing: units sold or rented at restricted prices under an inclusionary or incentive program.

By right; ministerial Approval without discretionary review or a public hearing when a project meets objective standards. A ministerial approval is generally exempt from CEQA.

CALGreen The California Green Building Standards Code (Title 24, Part 11). Its voluntary "tiers" can be made mandatory by local ordinance.

CEQA The California Environmental Quality Act, which requires environmental review of discretionary approvals.

CPAU City of Palo Alto Utilities, the city-owned electric, gas, water and wastewater utility.

CUP Conditional use permit: a discretionary permit for a use allowed only after findings.

Daylight plane An inclined plane, starting at a set height above a property line, that a building may not cross. It limits bulk near neighbors.

Density bonus Additional units and waivers or concessions from development standards that a city must grant, under Gov. Code § 65915, to projects that include affordable units.

du/ac Dwelling units per acre.

FAR Floor area ratio: building floor area divided by lot area.

HCD California Department of Housing and Community Development.

Housing Element The housing chapter of a city's general plan, which must plan for the city's share of regional housing need and be certified by HCD.

In-lieu fee A payment made instead of meeting a requirement on site, such as providing parking, parkland or affordable units.

Linkage fee (housing impact fee) A fee on new commercial (and sometimes market-rate residential) floor area that funds affordable housing.

Objective standard A standard that involves no personal or subjective judgment and can be checked against a fixed benchmark. State law limits review of many housing projects to objective standards.

PC district Planned Community district: a site-specific zoning district with standards set in the rezoning ordinance.

Reach code A local building or energy standard that exceeds the statewide code. Energy reach codes need approval by the California Energy Commission.

SB 9 Senate Bill 9 (2021), which requires cities to allow two-unit projects and lot splits on most single-family lots (Gov. Code §§ 65852.21 and 66411.7).

SB 79 Senate Bill 79 (2025), which allows denser housing near major transit stops, effective July 1, 2026.

SVP Silicon Valley Power, the City of Santa Clara's municipal electric utility.

TDM Transportation demand management: measures that reduce single-occupant vehicle trips, such as transit passes, parking pricing and shuttles.

TDR Transfer of development rights: allowing floor area not used on one site (for example, a historic building) to be used on another.

Tier 1, Tier 2 Successively stricter voluntary levels of CALGreen.